MOTOR VEHICLE REGISTRATION MANUAL

Texas Department *of* Motor Vehicles

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August 2026

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Chapter 1

ACCOUNTING

This chapter contains the following sections:

- *1.1 General Provisions*
- *1.2 Insufficient Funds by Check, Credit, or Debit Cards*
- *1.3 Credit for Destroyed Vehicles*
- *1.4 Refund of Overcharged Registration Fee*

1.1 General Provisions

Registration Year

Transportation Code, Sec. 502.044. Registration Period.

(a) The department shall designate a vehicle registration year of 12 consecutive months to begin on the first day of a calendar month and end on the last day of the 12th calendar month.

(b) The department shall designate vehicle registration years so as to distribute the work of the department and the county assessor-collectors as uniformly as possible throughout the year. The department may establish separate registration years for any vehicle or classification of vehicle and may adopt rules to administer the year-round registration system.

(c) The department may designate a registration period of less than 12 months to be computed at a rate of one-twelfth the annual registration fee multiplied by the number of months in the registration period. The board by rule may allow payment of registration fees for a designated period not to exceed the amount of time determined by department rule.

(d) The department shall issue a registration receipt and registration insignia that are valid until the expiration of the designated period.

(e) The department shall use the date of sale of the vehicle in designating the registration year for a vehicle for which registration is applied for under Section 501.0234.

The term "Motor Vehicle Registration Year" means a 12-month period and provides for the collection of registration renewal fees during the two-month period immediately preceding the registration year. The fee required during this two-month renewal period is the fee in effect the first day of the motor vehicle registration year.

Schedule of Registration Fees

Transportation Code, Sec. 502.190. Schedule of Registration Fees.

The department shall post a complete schedule of registration fees on the Internet.

Collection of Fees

Transportation Code, Sec. 502.191. Collection of Fees.

(a) A person may not collect a registration fee under this chapter unless the person is:

(1) an officer or employee of the department; or

(2) a county assessor-collector or a deputy county assessor-collector.

(b) The department may accept electronic payment by electronic funds transfer, credit card, or debit card of any fee that the department is authorized to collect under this chapter.

(c) The department may collect a fee for processing a payment by electronic funds transfer, credit card, or debit card in an amount not to exceed the amount of the charges incurred by the department to process the payment.

(d) The department may collect the fee set under Section 2054.2591, Government Code, from a person making a payment by electronic funds transfer, credit card, or debit card through the online project implemented under Section 2054.252, Government Code.

(e) If, for any reason, the payment of a fee under this chapter by electronic funds transfer, credit card, or debit card is not honored by the funding institution or by the electronic funds transfer, credit card, or debit card company on which the funds are drawn, the department may collect from the person who owes the fee being collected a service charge that is for the collection of that original amount and is in addition to the original fee. The amount of the service charge must be reasonably related to the expense incurred by the department in collecting the original amount.

(f) The department may not collect a fee under Subsection (c) or (d) if the department collects a fee under Section 502.1911.

Transportation Code, Sec. 502.1911. Registration Processing and Handling Fee.

(a) The department may collect a fee, in addition to other registration fees for the issuance of a license plate, a set of license plates, or another device used as the registration insignia, to cover the expenses of collecting those registration fees, including a service charge for registration by mail.

(b) The board by rule shall set the fee in an amount that:

(1) includes the fee established under Section 502.356(a); and

(2) is sufficient to cover the expenses associated with collecting registration fees by:

(A) the department;

(B) a county tax assessor-collector;

(C) a private entity with which a county tax assessor-collector contracts under Section 502.197; or

(D) a deputy assessor-collector that is deputized in accordance with board rule under Section 520.0071.

(c) The county tax assessor-collector, a private entity with which a county tax assessor-collector contracts under Section 502.197, or a deputy assessor-collector may retain a portion of the fee collected under Subsection (b) as provided by board rule. Remaining amounts collected under this section shall be deposited to the credit of the Texas Department of Motor Vehicles fund.

Processing and Handling (P&H) Fee

A $4.75 P&H Fee will be assessed on certain registration transactions. The P&H Fee includes the Automation Fee and Mail-in Fee when collected.

The P&H Fee applies to:

- Registration renewals
- Private party title transactions when the registration is current ($2.50 Transfer Fee), however, the registration expiration is within the renewal window and registration is renewed.
- Temporary permits and Temporary Registration Plates
- Dealer title transactions when registration fees are collected
- Other registration transactions when registration fees are collected (i.e., exchange, additional weight)

Exclusions

The following are registration related transactions that are exempt from the P&H Fee:

- Replacement license plates and/or registration stickers
- Transfer of registration with a title application (if $2.50 Transfer Fee only)
- Vehicles exempt from registration (Standard and Regular Exempt vehicles)
- Vehicle Transit Permits
- Registration corrections
- Duplicate or Inquiry receipts
- Inspection Fee receipts
- Exchange of license plates when no registration fees are collected. If registration fees are assessed on the exchange, then P&H would apply.

Certain military license plates that do not pay registration fees will not be assessed the P&H Fee (i.e., Silver Star, DV, Legion of Merit, Purple Heart).

All Texas Department of Motor Vehicles (TxDMV) systems are programmed to collect the P&H Fee when appropriate.

P&H Fee and Renewal Notice

The P&H Fee will be displayed as a line item on the front of the renewal notice. Information is provided on the back of the renewal notice to inform the public of the new fee and the purpose.

Renewals processed online will pay the $4.75 P&H Fee. This information is also provided on the back of the renewal notice.

Note: For distribution of the P&H Fee by entity, see Appendix C.

Transfer of Registration

Transportation Code, Sec. 502.192. Transfer Fee.

The purchaser of a used motor vehicle shall pay, in addition to any fee required under Chapter 501 for the transfer of title, a transfer fee of $2.50 for the transfer of the registration of the motor vehicle. The county assessor-collector may retain as commission for services provided under this subchapter half of each transfer fee collected. The portion of each transfer fee not retained by the county assessor-collector shall be deposited to the credit of the Texas Department of Motor Vehicles fund.

Statute requires collection of the $2.50 Transfer Fee if Texas registration is current on the vehicle at the time of title transfer. In a private party sale, the fee is collected even if the buyer renews registration on the vehicle at the time of transfer. The collection of the $2.50 Transfer Fee does not apply to vehicles sold by dealers since they are required to collect 12 months of registration at time of sale.

Deposits to the State Highway Fund

Transportation Code, Sec. 502.196. Deposit of Registration Fees in State Highway Fund.

Except as otherwise provided by this chapter, the board and the department shall deposit all money received from registration fees in the state treasury to the credit of the state highway fund.

Mail or Electronic Registration Service Charge

Transportation Code, Sec. 502.197. Registration by Mail or Electronic Means; Service Charge.

(a) A county assessor-collector may retain a service charge in the amount determined by the board under Section 502.1911 from each applicant registering a vehicle by mail. The service charge shall be used to pay the costs of handling and postage to mail the registration receipt and insignia to the applicant.

(b) With the approval of the commissioners court of a county, a county assessor-collector may contract with a private entity to enable an applicant for registration to use an electronic off-premises location. A private entity may retain an amount determined by the board under Section 502.1911 for the service provided.

(c) The department may adopt rules to cover the timely application for and issuance of registration receipts and insignia by mail or through an electronic off-premises location.

Disposition of Fees

Transportation Code, Sec. 502.198. Disposition of Fees Generally.

(a) Except as provided by Sections 502.058, 502.060, 502.1911, 502.192, 502.356, and 502.357 and Subchapter H, this section applies to all fees collected by a county assessor-collector under this chapter.

(b) Each Tuesday, a county assessor-collector shall credit to the county road and bridge fund an amount equal to the net collections made during the preceding week until the amount so credited for the calendar year equals the total of:

(1) $60,000; and

(2) $350 for each mile of county road maintained by the county, according to the most recent information available from the department, not to exceed 500 miles.

(c) After the credits to the county road and bridge fund equal the total computed under Subsection (b), each Tuesday the county assessor-collector shall:

(1) credit to the county road and bridge fund an amount equal to 50 percent of the net collections made during the preceding week, until the amount so credited for the calendar year equals $125,000; and

(2) send to the department an amount equal to 50 percent of those collections for deposit to the credit of the state highway fund.

(d) After the credits to the county road and bridge fund equal the total amounts computed under Subsections (b) and (c)(1), each Tuesday the county assessor-collector shall send to the department all collections made during the preceding week for deposit to the credit of the state highway fund.

County Additional Fees

Deposit of Fees in Interest Bearing Account

Transportation Code, Sec. 502.1983. Deposit of Fees in Interest-Bearing Account.

(a) A county assessor-collector may:

(1) deposit the fees subject to Section 502.198 in an interest-bearing account or certificate in the county depository; and

(2) send the fees to the department not later than the 34th day after the date the fees are due under Section 502.198.

(b) The county owns all interest earned on fees deposited under this section. The county treasurer shall credit the interest to the county general fund.

Interest on Fees

Transportation Code, Sec. 502.1984. Interest on Fees.

(a) A fee required to be sent to the department under this chapter bears interest for the benefit of the state highway fund or the Texas Department of Motor Vehicles fund, as applicable, at an annual rate of 10 percent beginning on the 60th day after the date the county assessor-collector collects the fee.

(b) The department shall audit the registration and transfer fees collected and disbursed by each county assessor-collector and shall determine the exact amount of interest due on any fee not sent to the department.

(c) The state has a claim against a county assessor-collector and the sureties on the assessor-collector's official bond for the amount of interest due on a fee.

Use of County Registration Fees

Transportation Code, Sec. 502.1985. Use of Registration Fees Retained by County.

(a) Money credited to the county road and bridge fund under Section 502.198 may not be used to pay the compensation of the county judge or a county commissioner. The money may be used only for the construction and maintenance of lateral roads in the county, under the supervision of the county engineer.

(b) If there is not a county engineer, the commissioners court of the county may require the services of the department's district engineer or resident engineer to supervise the construction and surveying of lateral roads in the county.

(c) A county may use money allocated to it under this chapter to:

(1) pay obligations issued in the construction or improvement of any roads, including state highways in the county;

(2) improve the roads in the county road system; or

(3) construct new roads.

(d) To the maximum extent possible, contracts for roads constructed by a county using funds provided under this chapter should be awarded by competitive bids.

Distribution of Fees between State and Counties

Transportation Code, Sec. 502.1986. Contingent Provision for Distribution of Fees Between State and Counties.

If the method of distributing vehicle registration fees collected under this chapter between the state and counties is declared invalid because of inequality of collection or distribution of those fees, 60 percent of each fee shall be distributed to the county collecting the fee and 40 percent shall be sent to the state in the manner provided by this chapter.

Electronic Transfer of Funds

Transportation Code, Sec. 502.199. Electronic Funds Transfer.

A county assessor-collector that transfers money to the department under this chapter shall transfer the money electronically.

Tax Assessor-Collector Compensation

Transportation Code, Sec. 520.006. Compensation of Assessor-Collector.

(a) A county assessor-collector shall retain an amount determined by the board under Section 502.1911 for each receipt issued under Chapter 502.

(a-1) A county assessor-collector collecting fees on behalf of another county assessor-collector for purposes of Section 501.023, 501.0234, 501.030, 502.0023, 502.040, or 502.041 shall collect all taxes, fees, and other revenue based on the vehicle owner's county of residence. The vehicle owner's county of residence shall be the recipient of all taxes, fees, and other revenue collected as a result of the transaction, except that the county processing the application may retain the portion of the title application fee under Section 501.138 and the processing and handling fee under Section 502.1911 that the tax assessor-collector is authorized to retain.

(b) A county assessor-collector who is compensated under this section for processing a transaction shall pay the entire expense of issuing registration receipts and license plates under Chapter 501 or 502 from the compensation allowed under this section.

Contracts Between Counties

Transportation Code, Sec. 520.0061. Contracts Between Counties.

(a) A county tax assessor-collector, with approval of the commissioners court of the county by order, may enter into an agreement with one or more counties to perform mail-in or online registration or titling duties.

(b) A contract entered into under Subsection (a) may be terminated by a county that is a party to the contract.

Allocation of Fees

Transportation Code, Sec. 501.148. Allocation of Fees.

(a) The county assessor-collector may retain as commission for services provided under this subchapter half of each late fee.

(b) The county assessor-collector shall report and remit the balance of the fees collected to the department on Monday of each week as other fees are required to be reported and remitted. The department shall deposit the remitted fees in the state treasury to the credit of the Texas Department of Motor Vehicles fund.

(c) Of each late fee collected from a person who does not hold a general distinguishing number by the department under Subsection (b), $10 may be used only to fund a statewide public awareness campaign designed to inform and educate the public about the provisions of this chapter.

1.2 Insufficient Funds by Check, Credit, or Debit Cards

Transportation Code, Sec. 502.193. Payment by Check Drawn Against Insufficient Funds.

(a) A county assessor-collector who receives from any person a check or draft for payment of a registration fee for a registration year that has not ended that is returned unpaid because of insufficient funds or no funds in the bank or trust company to the credit of the drawer of the check or draft shall certify the fact to

the sheriff or a constable or highway patrol officer in the county after attempts to contact the person fail to result in the collection of payment. The certification must be made before the 30th day after the date the check or draft is returned unpaid and:

(1) be under the assessor-collector's official seal;

(2) include the name and address of the person who gave the check or draft;

(3) include the license plate number and make of the vehicle;

(4) be accompanied by the check or draft; and

(5) be accompanied by documentation of any attempt to contact the person and collect payment.

(b) On receiving a complaint under Subsection (a) from the county assessor-collector, the sheriff, constable, or highway patrol officer shall find the person who gave the check or draft, if the person is in the county, and demand immediate redemption of the check or draft from the person. If the person fails or refuses to redeem the check or draft, the sheriff, constable, or highway patrol officer shall:

(1) seize and remove the license plates and registration insignia from the vehicle; and

(2) return the license plates and registration insignia to the county assessor-collector.

Transportation Code, Sec. 502.1931. Disputed Payment by Credit Card or Debit Card.

(a) A county assessor-collector who receives from any person a payment by credit card or debit card for a registration fee for a registration year that has not ended that is returned unpaid because the payment by the credit card or debit card has been disputed by the credit card or debit card company shall certify the fact to the sheriff or a constable or highway patrol officer in the county after attempts to contact the person fail to result in the collection of payment. The certification must be made before the 30th day after the date the assessor-collector is made aware that the credit card or debit card payment has been disputed and:

(1) be under the assessor-collector's official seal;

(2) include the name and address of the person who authorized the credit card or debit card payment;

(3) include the license plate number and make of the vehicle;

(4) be accompanied by evidence from the credit card or debit card company that the company has determined that it will not make payment on the disputed credit card or debit card charge; and

(5) be accompanied by documentation of any attempt to contact the person and collect payment.

(b) On receiving a complaint under Subsection (a) from county assessor-collector, the sheriff, constable, or highway patrol officer shall find the person who authorized the credit card or debit card payment, if the person is in the county, and demand immediate redemption of payment from the person. If the person fails or refuses to redeem the payment, the sheriff, constable, or highway patrol officer shall:

(1) seize and remove the license plates and registration insignia from the vehicle; and

(2) return the license plates and registration insignia to the assessor-collector.

These sections of the law require a county tax assessor-collector's office to notify the sheriff, constable, or highway patrol officer when a customer gives a hot check, or provides a credit card or debit card that is disputed by the company which issued the card for payment of a registration fee. The county tax assessor-collector's office should then follow the procedures regarding the acceptance of personal checks or credit/debit cards and collection of dishonored checks or disputed credit/debit cards in the Registration & Title System (RTS). The Hot Check event in RTS, renamed the Insufficient Funds event, is to account for handling hot checks and disputed credit/debit cards. Hot Check Account Item Codes are still available and new Credit Card Account Item Codes have been added to accommodate for both credit and debit card transactions.

Payment by Check

Local Government Code, Chapter 130, authorizes the county tax assessor-collector's office to accept checks for payment of motor vehicle registration fees.

- If a county tax assessor-collector's office chooses to accept personal checks for payment of registration fees, the applicant must furnish identification, preferably a driver license.
- Counties should record the driver license number (including state of issuance) and the license plate number on the front of the check (for example, Texas State driver license number - license plate number, phone number).

Insufficient Funds

A county tax assessor-collector's office must notify law enforcement about any insufficient funds for payment of registration. Law enforcement is required to seize and remove the license plates and registration insignia (windshield or license plate sticker) from the vehicle and return them to the county tax assessor-collector's office.

Most trailers and motorcycles will have the registration license plate sticker affixed to the license plate, while most cars and trucks will require the registration insignia be removed from the inside of the vehicle's front windshield.

Counties should follow these procedures to obtain credit from the TxDMV for an unpaid hot check payment or disputed credit/debit card payment involved with registration fees:

1. Notify law enforcement before the 30th day after the date the check, draft, credit or debit card is returned unpaid.
2. Take credit for the check or credit/debit card in the system through the Insufficient Funds Credit event.

In addition to registration, the TxDMV authorizes credit for a dishonored check, or disputed credit/debit card payments received by the county tax assessor-collector's office for additional weight fees, transfer registration fees, delinquent transfer penalties, and replacement license plate fees with the following exception:

- The purchase of additional weight or temporary additional weight is an addendum to the original registration and falls within the existing Insufficient Funds policy. This applies even in situations when the time limit on the temporary additional weight receipt has expired.

3. Maintain a calendar year file of all insufficient funds. This file should contain:

   - the check or copy of it if original has been turned over to the District Attorney for collection,
   - a copy of letter to law enforcement,
   - a copy of the system Insufficient Funds Credit Receipt, and
   - if check or funds have been redeemed, the copy of the Insufficient Funds Redeemed Receipt.

   TxDMV will audit the county tax assessor-collector's office files to verify that the documentation for the unredeemed dishonored checks or disputed credit/debit card payments are complete.

4. When payment is received on a dishonored check/draft or credit/debit card and the license plates and sticker have been seized:

   - redeem through the Insufficient Funds Redeemed event, and
   - issue replacement license plates/sticker and collect the statutory $6 Replacement Fee and the Automation Fee (registration sticker issued should reflect the same expiration month/year as previously issued).

   If an "Insufficient Funds" remark appears on the motor vehicle record, the registration is invalidated. At the time of title transfer, the applicant must pay the appropriate registration fee as of the date of application. When the TxDMV processes the title application, it removes the "Insufficient Funds" remark from the motor vehicle record.

Insufficient Funds from Dealer

The procedure below should be used when your office receives notification of insufficient funds for a check or debit/credit card submitted by a motor vehicle dealer for one or more transactions. This will allow your office to be credited for the appropriate amount without penalizing the purchaser by flagging their record with an "Insufficient Funds" remark.

- County tax assessor-collector's office staff should follow standard county insufficient funds procedures by reporting non-payment to the District Attorney's office, local Sheriff's office, or other appropriate offices.
- Your office should also notify the Texas Comptroller of Public Accounts to inform them of the sales tax portion of the transaction.

- Go to the RTS Accounting event, select "Insufficient Funds Credit," and input the Vehicle Identification Number (VIN) to select the vehicle. From the Insufficient Funds ACC004 screen, enter the required fees (Title, Registration, Additional Fees [Road & Bridge, Child Safety and Mobility Fee], Automation Fee or P&H Fee, if applicable, Reg Fee-DPS, etc.).
- If there is more than one vehicle on the dealer's transaction that results in insufficient funds, the above procedure should be followed for all vehicles covered by the transaction.
- After 48 hours, the county tax assessor-collector's office should request that its Regional Service Center remove the insufficient funds remark from the system. If there was more than one vehicle on the dealer's transaction that results in insufficient funds, the county tax assessor-collector's office should request the insufficient funds remarks be removed for all vehicles covered by the transaction.

1.3 Credit for Destroyed Vehicles

Transportation Code, Sec. 502.194. Credit for Registration Fee Paid on Motor Vehicle Subsequently Destroyed.

(a) The owner of a motor vehicle that is destroyed to the extent that it cannot afterwards be operated on a public highway is entitled to a registration fee credit if the prorated portion of the registration fee for the remainder of the registration year is more than $15. The owner must claim the credit by sending the registration fee receipt for the vehicle to the department.

(b) The department, on satisfactory proof that the vehicle is destroyed, shall issue a registration fee credit slip to the owner in an amount equal to the prorated portion of the registration fee for the remainder of the registration year. The owner, during the same or the next registration year, may use the registration fee credit slip as payment or part payment for the registration of another vehicle to the extent of the credit.

Registration Fee Credit

The TxDMV may issue a registration fee credit to the owner of any motor vehicle that has been destroyed to such an extent that it can no longer be operated (may be sold for parts or crushed), if the prorated portion of the registration fee for the remainder of the registration year is more than $15.

The owner should submit an application for registration fee credit by completing an *Application for Registration Fee Credit for a Destroyed Vehicle* (Form VTR-50-A) directly to a TxDMV Regional Service Center, along with the following:

- The current license plate, registration sticker, if applicable, and registration receipt issued for the destroyed vehicle.
- The negotiable certificate of title covering the destroyed vehicle. The certificate of title or title application receipt must have been issued in the name of the person applying for the registration fee credit prior to the time of destruction of the vehicle. A title that has been assigned to the person applying for the registration fee credit is not acceptable.

- If the vehicle owner has surrendered the title to an insurance company, a written statement from the owner to that effect will be sufficient. If all required information is submitted, the TxDMV Regional Service Center will issue the Form VTR-50-A.
- Evidence that the vehicle is inoperable, **must** include:
  - a photograph of the vehicle taken after its destruction.
  - a copy of the accident report made by the law enforcement official who investigated the accident. There are also many other reasons a vehicle could be totaled where police were not involved such as storm/wind/tree/hail damage or a fire loss. This list is not all inclusive, however; if there is not an accident report then a statement from the insurance company stating the reason for totaling the vehicle would be sufficient.
  - a statement from the agency which handled the investigation verifying the date of destruction, where and how the vehicle was destroyed, and the extent of damage to the vehicle.

If the vehicle was not involved in an accident and a law enforcement officer did not make an investigation, the owner should submit a notarized 'affidavit of fact' giving full details as to when, where and how the vehicle was destroyed.

The TxDMV Regional Service Center issues registration fee credit in the form of a Form VTR-50-A. The original is issued to the owner and the remaining copies are filed.

Persons/companies that have been issued a credit voucher may apply the credit toward the purchase of registration on another vehicle or vehicles owned by the same person/company to the extent of the total fee authorized in the credit voucher. The credit voucher may be used during the year of issuance or the next year.

When a credit voucher has been used as credit toward the purchase of registration for another vehicle the county tax assessor-collector’s office should record the following on the voucher:

- The license plate number and registration expiration date of the newly registered vehicle,
- The amount of credit applied to the new registration, and
- The balance of credit due, if any (county tax assessor-collector’s office may not refund the cash difference).

Return each voucher to the Regional Service Center that issued the voucher for examination. The county tax assessor-collector’s office should only accept an original Registration Fee Credit Voucher in payment of registration fees. Do not accept an altered, duplicated or reproduced credit voucher.

- Staple the Registration Fee Credit Voucher to the registration receipt or receipts to which credit was applied and submit to the TxDMV Regional Service Center that issued the original voucher.

- The owner does not have to use the entire registration fee credit at one time. If an owner applies only a portion of a registration fee credit to the registration of another vehicle, or vehicles, the Regional Service Center issues a supplemental credit voucher for the balance of credit due when the county tax assessor-collector's office reports the original credit voucher to the TxDMV. The TxDMV does not issue a supplemental credit voucher for balances of less than $1.
- Issuance of the new registration receipt, the "total fee" shows only that amount of money actually collected for such registration, if any, and a notation on the face of the registration receipt shows the full amount of the registration fee and the amount of credit allowed.
- When a customer applies Registration Fee Credit Voucher as full or partial payment of the applicant's registration fee, staple the Registration Fee Credit Voucher to the system receipt and submit them to the TxDMV Regional Service Center. The TxDMV will mail a supplemental credit voucher to the owner, if there are unused credit fees remaining.

Owners must submit a separate registration fee credit application for each destroyed vehicle. Upon approval, the owner will receive a separate credit voucher for each vehicle. However, in the case of a destroyed truck-tractor and semitrailer registered in combination, the TxDMV only issues the Registration Fee Credit Voucher on the combination registration. The TxDMV does not approve a registration fee credit application covering a semitrailer registered with a Token Trailer license plate since the fee for such license plate is not more than $15.

Statement of Surrender of License Plates and Title for Destroyed Vehicle

- If a negotiable title is surrendered, a *Statement of Surrender of License Plates and Title for Destroyed Vehicle* (Form VTR-50-B), is issued by the TxDMV Regional Service Center and mailed to the applicant. A statement from the insurance company stating the title, license plates and registration sticker was surrendered and destroyed can also be accepted in lieu of the owner surrendering the required documents to the TxDMV.
- If the vehicle is sold to a salvage vehicle dealer they must list the Form VTR-50-B on the Inventory Sheet and surrender such statement in lieu of the certificate of title and license plates.

1.4 Refund of Overcharged Registration Fee

Transportation Code, Sec. 502.195. Refund of Overcharged Registration Fee.

(a) The owner of a motor vehicle who pays an annual registration fee in excess of the statutory amount is entitled to a refund of the overcharge.

(b) The county assessor-collector who collects the excessive fee shall refund an overcharge on presentation to the assessor-collector of satisfactory evidence of the overcharge not later than the first anniversary of the date the excessive registration fee was paid.

(c) A refund shall be paid from the fund in which the county's share of registration fees is deposited.

Refunds

This section describes the registration refund policy as of January 2012.

Effective date as it relates to refunds, is the first day of the following month after the registration expiration date. (i.e., A registration expiration date of November 2023 has a registration effective date of December 1, 2022.) The registration effective date for 24 months of registration is the first day of the following month of the first year of the registration expiration date. (i.e., A registration expiration date of November 2023 has a registration effective date of December 1, 2022.)

Full Refunds

Full refunds, including those for multi-year registrations, will be authorized after a windshield or license plate sticker HAS BEEN AFFIXED under the following conditions:

- Incorrect vehicle registered (county error or owner renews vehicle they no longer own),
- Double registration (full registration fees were paid twice on the same vehicle),
- Vehicle registered but wrecked **prior to** the effective date of the registration,
- Vehicle registered, and owner moves out-of-state **prior to** the effective date of the registration, and
- Vehicle transferred to a dealer **prior to** the effective date of the registration.

Before authorizing a refund, verify through the system that the vehicle has not been transferred to a new owner. If the vehicle has been transferred, a refund will be denied.

Incorrect vehicle registered - include a statement on the *Registration Fee Refund Request/Authorization* (Form VTR-304) indicating county error and include the information for the correct vehicle.

Double registration - both registration receipts must be submitted as proof before a refund will be authorized.

Note: A full refund may be authorized, if the vehicle has not been transferred to a new owner, the registration was purchased prior to the effective date and the request for refund is prior to the effective date.

Partial Refunds

Partial Refunds, including those for multi-year registration, will be authorized after the effective date of the registration period for registration stickers NOT AFFIXED to the windshield or license plate. If a refund is requested when the owner's registration sticker has not been affixed to either the windshield or license plate, only a partial (prorated) refund will be issued. Full remaining months of registration may be authorized if the vehicle has not been transferred to a new owner.

Before authorizing a refund, verify through the system that the vehicle has not been transferred to a new owner. If the vehicle has been transferred, a refund will be denied.

If the vehicle has not been transferred and the sticker has not been affixed to a vehicle, the customer will be advised that the partial (prorated) refund will be authorized. Example: Registration expires May 2017 and the customer comes in January 2017. The customer will receive a refund for four months of registration (February through May) for the unused sticker.

Other Refund Changes

License plate fees paid in lieu of registration are not eligible for a refund.

Customers with no-fee or reduced-fee (first set) qualifying license plates may not receive a refund of registration fees paid by a previous owner.

For example, a Disabled Veteran who buys a vehicle with current registration and transfers their Disabled Veteran license plates ($3 license plate fee only) is not eligible for a refund of the registration fees previously paid.

However; if a customer with no-fee or reduced-fee (first set) qualifying license plates buys a new vehicle and the dealer fails to transfer the qualifying license plates, a full refund of the registration fees will be authorized since the vehicle was registered in error by the dealer.

If a customer wants to exchange from full fee registration license plates to reduced fee qualifying license plates, they should be encouraged to do so at time of renewal since a partial refund will not be given for the remaining portion of the full registration.

This change is consistent with existing policy regarding exchanges. Example: A vehicle that is currently registered with Truck registration classification and is exchanged for Farm Truck registration classification, will not receive a refund.

A refund will not be authorized for a vehicle registered with Combination registration classification and is exchanged for Truck registration classification as the result of a reconstruction change, even if the gross vehicle weight is lower.

Chapter 2

COMMERCIAL VEHICLES

This chapter contains the following sections:

- *2.1 Commercial Motor Vehicle or Truck-Tractor Fees*
- *2.2 Permissible Weight Table*
- *2.3 Truck-Tractor or Semitrailer Token Fees*
- *2.4 Soil Conservation Equipment*
- *2.5 Trailers Transporting Soil Conservation Machinery or Equipment*
- *2.6 Road Tractor Fees*
- *2.7 Foreign Commercial Vehicles Annual Permits*
- *2.8 Motor Bus Fees*
- *2.9 Tow Trucks*
- *2.10 Fleet Registration*

2.1 Commercial Motor Vehicle or Truck-Tractor Fees

Transportation Code, Sec. 502.253. Fee: Vehicles that Weigh More than 6,000 Pounds.

(a) The fee for a registration year for registration of a vehicle with a gross weight of more than 6,000 pounds is as follows unless otherwise provided in this chapter:

Weight Classification in pounds	***Fee Schedule***
6,001-10,000	*$54.00*
10,001-18,000	*$110.00*
18,001-25,999	*$205.00*
26,000-40,000	*$340.00*
40,001-54,999	*$535.00*
55,000-70,000	*$740.00*
70,001-80,000	*$840.00*

Transportation Code, Sec. 502.255. Truck-Tractor or Commercial Motor Vehicle Combination Fee; Semitrailer Token Fee.

(a) This section applies only to a truck-tractor or commercial motor vehicle with a gross weight of more than 10,000 pounds that is used or is to be used in combination with a semitrailer that has a gross weight of more than 6,000 pounds.

(b) The fee for a registration year for registration of a truck-tractor or commercial motor vehicle is calculated by gross weight according to Section 502.253.

(c) The fee for registration of a semitrailer used in the manner described by Subsection (a), regardless of the date the semitrailer is registered, is $15 for a registration year.

(d) A registration made under Subsection (c) is valid only when the semitrailer is used in the manner described by Subsection (a).

(e) For registration purposes, a semitrailer converted to a trailer by means of an auxiliary axle assembly retains its status as a semitrailer.

(f) A combination of vehicles may not be registered under this section for a combined gross weight of less than 18,000 pounds.

(g) This section does not apply to:

(1) a combination of vehicles that includes a vehicle that has a distinguishing license plate under Section 502.146;

(2) a truck-tractor or commercial motor vehicle registered or to be registered with $5 distinguishing license plates for which the vehicle is eligible under this chapter;

(3) a truck-tractor or commercial motor vehicle used exclusively in combination with a semitrailer of a travel trailer type; or

(4) a vehicle registered or to be registered:

(A) with a temporary registration permit;

(B) under Section 502.433; or

(C) under Section 502.435.

(h) The department may adopt rules to administer this section.

(i) The department shall issue a license plate for a token trailer registered under this section that does not expire or require an annual registration insignia to be valid. The alphanumeric pattern for a license plate issued under this subsection may remain on a token trailer for as long as the registration of the token trailer is renewed or until the token trailer is removed from service or sold. The registration receipt required under Section 621.002 is not required for a vehicle that displays a license plate issued under this subsection.

(j) A person may register a semitrailer under this section if the person:

(1) applies to the department for registration;

(2) provides proof of the person's eligibility to register the vehicle under this subsection as required by the department; and

(3) pays a fee of $15, plus any applicable fee under Section 502.401, for each year included in the registration period.

Commercial motor vehicles are subject to registration fees based on the vehicle's gross weight. The gross weight is determined by adding the empty weight of the vehicle and the heaviest load that will be carried by the vehicle (carrying capacity) during the registration year.

Any vehicle that is a pulling unit (truck or truck-tractor) with a gross vehicle weight in excess of 10,000 lbs. that is pulling a semitrailer with a gross weight in excess of 6,000 lbs. may be registered with a Combination license plate, if the combined gross weight is more than 18,000 lbs. Texas Transportation Code, Sec. 502.255, applies to those vehicles registered in Combination.

All other vehicles that do not meet this definition should be registered under the commercial motor vehicle statute.

The following only pertains to those trucks and truck-tractors that are excluded from the requirements of registering in Combination and fall under the provisions of Transportation Code, Sec. 502.253, Fee: Vehicles that Weigh More than 6,000 lbs.

Vehicles with Truck Registration Classification

If the truck has a gross weight in excess of 55,000 lbs., Heavy Vehicle Use Tax is required to be paid prior to registration.

Truck Registration Fees

All trucks and truck-tractors registered are registered for the gross weight of the vehicle, which is inclusive of the empty weight plus the net carrying capacity. The vehicle should not be registered for more than the manufacturer's gross vehicle weight rating (GVWR).

Truck Types

The term "Truck" means every motor vehicle designed, used, or maintained primarily for the transportation of property, including any passenger vehicle reconstructed for delivery purposes.





Certain vehicles manufactured of special design may register at the owner's option either as a commercial vehicle or as a passenger car depending on the intended use of such vehicles.

Sport utility type vehicles and vans manufactured with windows on both sides back of the front doors designed for the transportation of persons but may have features of a commercial vehicle are classified Pass/Truck and registered with either Passenger or Truck registration classifications.

Some examples of sport utility vehicles may include the following:

- Chevrolet Suburban,
- Chevrolet Tahoe,
- Ford Excursion,
- Ford Explorer,

- Toyota 4-Runner, and
- Toyota Landcruiser.

If a van or panel-type vehicle has no side windows or windows only on one side back of the front doors, and the vehicle operates as a commercial vehicle, register the vehicle as Truck registration classification.

Vehicles designed by the manufacturer for optional registration classifications must include a carrying capacity on the registration receipt and application for title if registered as a commercial motor vehicle.

Show the vehicle class as Pass/Truck. Carrying capacity must be included for Pass/Truck registration if Truck is selected for the registration class.

If an optional classification vehicle currently holds passenger registration and the owner chooses to register the vehicle as a commercial motor vehicle, the owner must submit a corrected title to record the applicable carrying capacity.

Conversions

If a passenger car is altered or reconstructed by means of a permanent body change into a commercial vehicle, a corrected title must be applied for. For corrected title information, refer to the Title Manual.

Register commercial vehicles (vans, panels, etc.) that have been converted to motor homes with Passenger registration classification.

Register pickup trucks with camper units attached that can be readily removed with Truck registration classification. However, any vehicle with a camper unit permanently mounted on its chassis and cab must be registered with passenger registration classification, and indicate the body style as “Motor Home” on the title application and registration receipt.



Slide-in Camper Unit
Truck Registration Classification



Passenger Registration Classification

An owner applying for title and/or registration for an out-of-state pickup with a “slide-in” camper unit may obtain the empty weight of the pickup without removing the camper unit by the following procedure:

- Obtain a weight certificate covering the gross weight of the pickup and camper.
- Subtract the carrying capacity of the pickup from this gross weight.
- Show the difference as the empty weight of the pickup on the application for title and registration receipt.
- A weight certificate may be required to determine the correct empty weight.

Classify buses reconstructed by removing the seats (except driver's seat) as commercial vehicles. An exchange of registration and corrected title is required.

Register garage wreckers with a carrying capacity equal to the heaviest load hauled, but in no case less than the manufacturer's rated carrying capacity. When a wrecker is towing a vehicle, consider the part of the weight of the vehicle supported by the wrecker as part of the load being hauled. The empty weight of the wrecker includes all the equipment mounted on the wrecker.

Register conventional vehicles with cranes, draglines or other similar machinery mounted on the vehicle with regular registration (with the exception of water well drilling units). These vehicles usually qualify under the fixed weight formula (refer to Registration Weight).

Cranes, draglines, and other types of machinery on unconventional vehicles that are built from the ground up may qualify for the $5 Machinery license plate (Transportation Code, Sec. 502.146. Certain Farm Vehicles and Drilling and Construction Equipment.) or Permit license plate (Transportation Code, Sec. 623.141. Optional Procedure.).

- A “Conventional” vehicle is a regular truck or regular trailer primarily designed to transport divisible loads, regardless of the vehicle's present use. Such vehicles which have been altered or reconstructed or upon which machinery has been mounted or attached, permanently or otherwise, retain their conventional status. Conventional vehicles are eligible only for regular registration. (Water well drilling equipment and vehicles qualified for Permit license plates exception.)
- An “Unconventional” vehicle is a vehicle built entirely as machinery from the ground up and is permanently designed to perform a specific function. Such vehicles may not transport property.



Oversize unit (Permit license plates)
An additional Permit must be purchased through Motor Carrier Division (MCD)



Built from the ground up
(may be registered as Machinery)

Truck-tractor

A truck-tractor is defined as every motor vehicle designed or used primarily for drawing other vehicles, and not constructed to carry a load other than a part of the weight of the vehicle and load to be drawn.

Register all truck-tractors that qualify for registration under the provisions of this section with Truck or Combination registration classification (whichever is applicable), and show the body style of such vehicles on the registration receipts as "TruckTractor."



The round, turntable-type device connecting semitrailers to a truck-tractor is known as a "fifth wheel." In some instances, a truck has a fifth wheel mounted on or at the rear of its bed (designed to pull a semitrailer). Register any vehicle with a gross vehicle weight in excess of 10,000 lbs. and used to pull a semitrailer having a gross weight in excess of 6,000 lbs., with a Combination license plate, however the combined gross weight must be greater than 18,000 lbs. in accordance with Transportation Code, Sec. 502.255.

Various truck manufacturers offer Glider kits for reconstructing older model trucks or truck-tractors. A glider kit consists of a complete new cab, frame, front axle, and accessories.

- When a truck or truck-tractor is reconstructed combining a glider kit and the power train of an existing titled truck or truck-tractor that is currently registered with Texas license plates, the license plates may be retained and used on the reconstructed vehicle, provided the certificate of title covering the original truck or truck-tractor is surrendered with the title transaction.
- If the certificate of title covering the original truck or truck-tractor is not surrendered with the title transaction, the reconstructed vehicle must be registered as of the date application for title is filed. (For title requirements, refer to the Title Manual.)

Truck Weights

The empty weight of a commercial vehicle (truck or truck-tractor) is the weight of the vehicle fully equipped with body, bed, and any other permanently attached equipment.

All new commercial vehicles (truck or truck-tractors rated in excess of 10,000 lbs.) either manufactured in the U.S. or in a foreign country must carry a registration receipt that includes the vehicle weights (empty, carrying capacity, and gross weight). A weight certificate is a verification of weight as certified by either a public weigher or any License and Weight Inspector of the Texas Department of Public Safety (DPS).

A weight certificate (see Acceptable Weight Certificates) is required on all new commercial vehicles when the body style is shown as cab and chassis on the manufacturer's certificate. The weight certificate must include weight of the bed and attachments.

If no shipping weight is shown on a manufacturer's certificate covering a commercial motor vehicle, a weight certificate is required to verify the vehicle's empty weight.

Require weight certificates on all commercial vehicles last registered out-of-state if the weight cannot be determined by reviewing the surrendered ownership evidence or by reviewing the appropriate web resources such as www.KBB.com or www.JDPower.com/cars.

Acceptable Weight Certificates

Weight certificates may be obtained from:

- a Texas public weigher,
- an out-of-state source if the vehicle was previously titled in another state, or
- any License and Weight Inspector of the DPS.

The TxDMV requires public weighers to provide the following minimum information on the weight certificate:

- the weight (not hand written),
- the date that the weight was taken,
- the name and address of the company, and
- the signature of the weigher.

The weight certificate can be in physical or digital form.

Acceptable out-of-state weight certificates should include comparable information. If the Texas or out-of-state weight certificate does not meet the above criteria a new weight certificate may be required.

Conversions

No correction of title or exchange of registration is necessary when a truck bed is changed, such as from stake to dump, pickup to stake, or flatbed to van; however, if the weight of such vehicle is increased, the additional weight must be accounted for on a Permanent Additional Weight Receipt. When a truck bed is changed, a weight certificate is required at renewal in order to establish the correct carrying capacity and gross weight of the vehicle.

When a truck is converted into a truck-tractor and the registration classification is changed from “Truck” to “Combination,” an exchange of license plates is required.

If a truck-tractor is converted into a truck and the registration classification is changed from “Combination” to “Truck,” do not exchange the license plates unless the change involves a major permanent reconstruction change, such as when the frame of a truck-tractor is altered to accommodate the installation of a different type bed or body. The owner must exchange license plates and apply for corrected title.

A refund will not be authorized when a Combination license plate is exchanged for truck license plates as the result of a reconstruction change, even if the gross vehicle weight is lower.

Exceptions

Certain commercial vehicles with a registered gross weight in excess of 26,000 lbs. may lower the registered gross weight of the vehicle when the manufacturer's gross vehicle weight rating does not exceed 26,000 lbs.

Gross Vehicle Weight Rating (GVWR) and Determining Carrying Capacity

A vehicle accompanied by a Manufacturer's Certificate of Origin (MCO) may be titled using the "Gross Vehicle Weight Rating" (GVWR), as shown on the MCO. The empty weight, or shipping weight, may be subtracted from the GVWR to obtain the carrying capacity. The gross weight of a vehicle should not exceed the GVWR on an MCO.

For Texas and out of state titles, if the applicant provides a carrying capacity for the vehicle, the supplied carrying capacity must be used even if it is less than 1,000 lbs. If the applicant is unable to provide a carrying capacity, and both the shipping weight and GVWR are listed on the title, the empty weight of the vehicle will be subtracted from the GVWR to determine the carrying capacity: GVWR - Empty Weight = Carrying Capacity. If the GVWR is not listed on the title, the GVWR can be obtained from the vehicle's permanently mounted information sticker, typically located on the driver's side door jamb.

Note: If an out of state title does not list an empty weight or Gross Vehicle Weight Rating (GVWR), the GVWR may be obtained from the vehicle's permanently mounted information sticker. The empty weight may be obtained from web resources www.KBB.com or www.JDPower.com/cars. If an empty weight still cannot be determined using these methods, a weight certificate is required.

If the applicant cannot provide the carrying capacity, the ownership evidence reflects only the empty or shipping weight, and the GVWR cannot be determined from the permanently mounted information sticker, determine the carrying capacity using **Table 2-1, Minimum Carrying Capacity for Trucks.** Table 2-1 establishes the minimum carrying capacity for trucks, based on the empty weight, and is used only when the applicant cannot provide the vehicle's carrying capacity, and it cannot be determined using the GVWR.

Table 2-1 Minimum Carrying Capacity for Trucks

Empty Weight or Shipping Weight	Minimum Carrying Capacity
6,000 lbs. or less	1,000 lbs.
6,001 - 7,500 lbs.	1,500 lbs.
7,501 - 10,000 lbs.	2,000 lbs.
10,001 - 14,000 lbs.	3,000 lbs.
14,001 - 16,000 lbs.	4,000 lbs.
16,001 - 19,500 lbs.	5,000 lbs.
19,501 - 26,000 lbs.	6,000 lbs.
26,001 - 33,000 lbs.	7,000 lbs.

Heavy vehicles with a gross weight of more than 33,000 lbs. should be processed as usual.

Registration Weight

The registration weight of a truck is determined by adding the empty weight of the vehicle rounded up to the next 100 lbs. plus the weight of the heaviest load carried. The registered gross vehicle weight cannot be less than the empty weight of the vehicle plus the minimum carrying capacity.

Vehicles with Fixed Weight



Owners of commercial vehicles on which machinery or equipment is permanently mounted may be registered without removal of the fixed load in order to determine the empty weight.

- To qualify for fixed weight registration, a vehicle must meet the criteria of having at least two-thirds of its bed covered with permanently mounted machinery or equipment.

  Whether such vehicle is equipped with some type of receptacle or tank in addition to the mounted fixed load does not matter; however, do not consider the dimensions of any receptacle or tank with the machinery or equipment in order to meet the two-thirds criteria.
- Fixed weight is the actual weight of the empty vehicle plus the weight of the permanently mounted machinery or equipment; however, this weight, as evidenced by a weight certificate, must not fall below the minimum gross weight required for that particular vehicle.
- A photograph is required to determine if the vehicle qualifies for fixed weight registration. If the photograph shows that less than two-thirds of the bed is covered with permanently mounted machinery or equipment, the vehicle may not be registered with a fixed weight and must be registered for the maximum gross weight the vehicle will carry.
- When a fixed weight vehicle transports property in addition to the fixed load, register it for a fixed weight that covers the maximum gross weight that is carried during the registration year. Do not register the vehicle for a fixed weight exceeding the statutory maximum gross weight applicable to that particular vehicle.

The receipt or an unaltered copy must accompany the commercial vehicle at all times.

Statutory Size and Weight Limitations

Statutory size and weight limitations apply to all commercial vehicles regardless of whether such vehicles register individually for the vehicle's gross weight or register in Combination for combined gross weights.

The applicant is responsible for registering the vehicle with the load capabilities within the limits prescribed in the statutes pertaining to the registration of commercial vehicles.

Commercial vehicles and Combination vehicles are restricted to certain weight limitations to prevent damage to the highways. Statutory weight limitations are based upon tire size, statutory axle load limitations and the distance in feet between the extremes of any group of axles.

A vehicle or Combination vehicles may not be operated over or on a public highway or at a port-of-entry between Texas and the United Mexican States if the vehicle or Combination vehicle has:

- a single axle weight heavier than 20,000 lbs., including all enforcement tolerances;
- a tandem axle weight heavier than 34,000 lbs., including all enforcement tolerances;
- an overall gross weight on a group of two or more consecutive axles heavier than the weight computed using the following formula and rounding the result to the nearest 500 lbs.:

  W = 500((LN/(N - 1)) + 12N + 36) where: "W" is maximum overall gross weight on the group; "L" is distance in feet between the axles of the group that are the farthest apart; and "N" is number of axles in the group; or
- tires that carry a weight heavier than the weight specified and marked on the sidewall of the tire, unless the vehicle is being operated under the terms of a special permit.

Two consecutive sets of tandem axles may carry a gross load of not more than 34,000 lbs. each if the overall distance between the first and last axles of the consecutive sets is 36 feet or more. The overall gross weight on a group of two or more consecutive axles may not be heavier than 80,000 lbs., including all enforcement tolerances, regardless of tire ratings, axle spacing (bridge), and number of axles.

Figure 2-1 indicates typical weight distribution on all axles without exceeding maximum weights allowed by law.

Figure 2-1 Maximum Weights

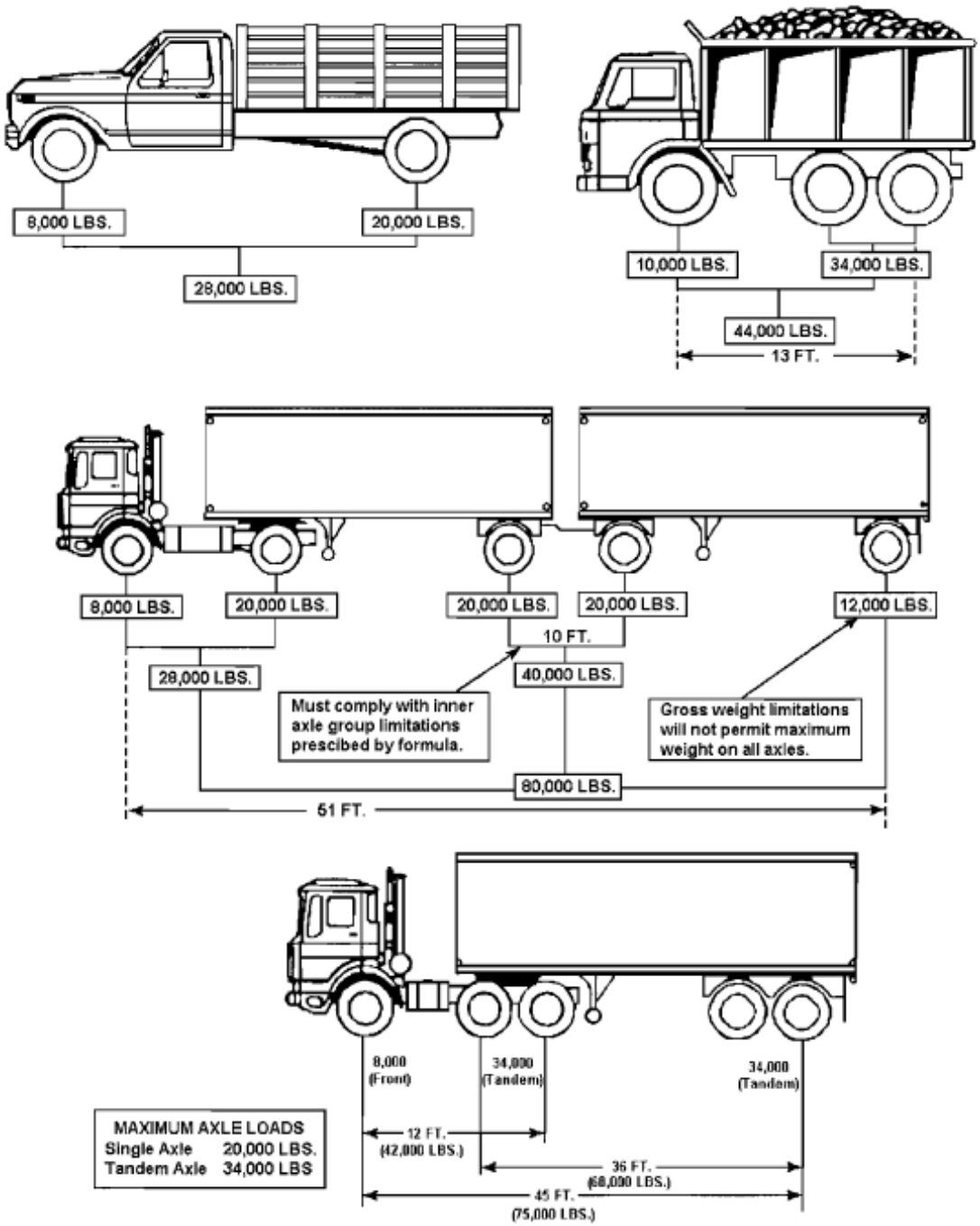
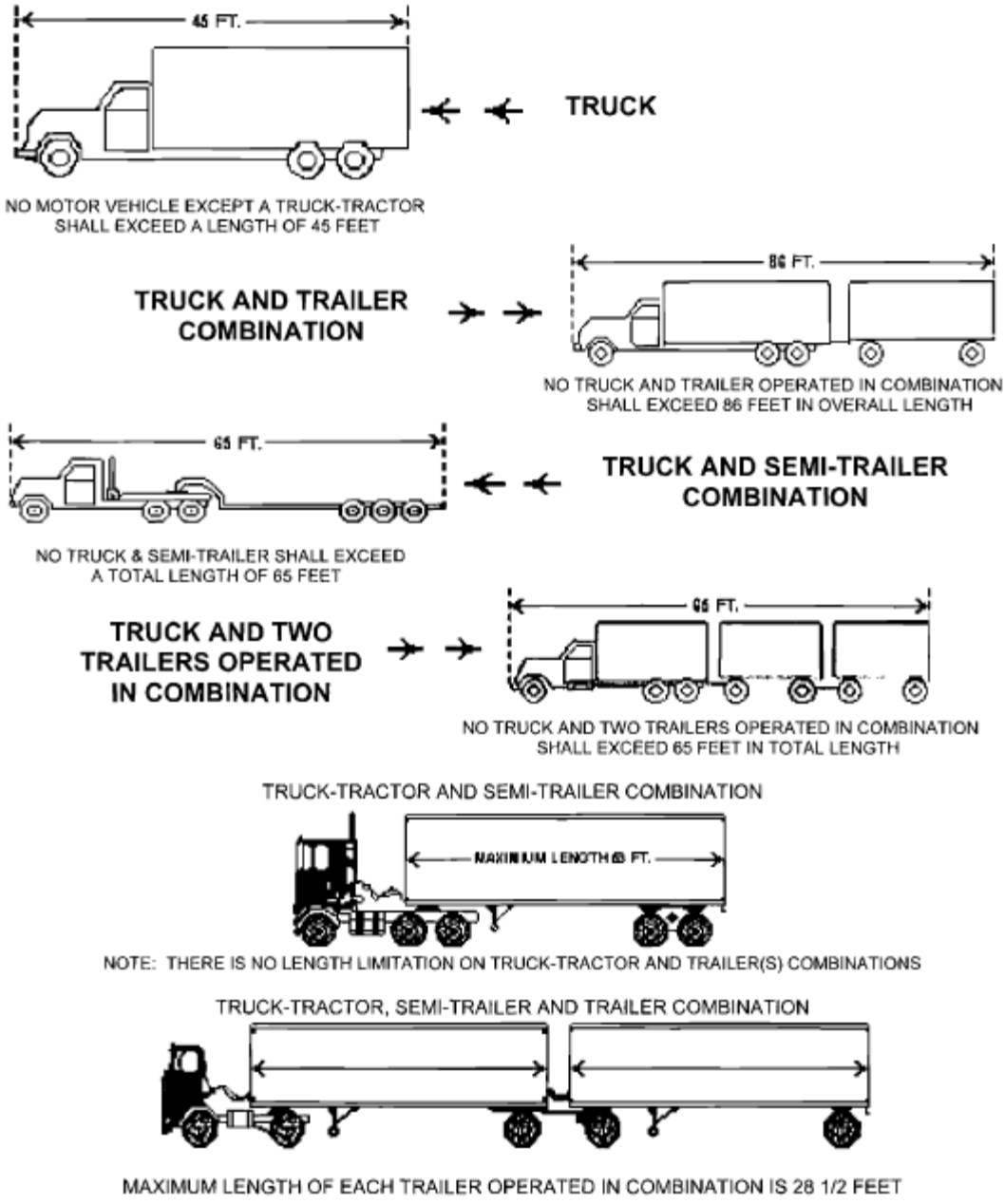


Figure 2-2 reflects the maximum size limitations allowed by law.

Figure 2-2 Maximum Sizes



Note: The maximum allowable width of a vehicle and load is 8'6" except on certain designated highways, and the maximum allowable height is 14 feet.

2.2 Permissible Weight Table

Table 2-2 provides a guide to determine the maximum weight permitted on any group of two or more consecutive axles. Apply the table to inner axle groups such as the power unit only of a combination, the drive axle(s) of the power unit and the trailer, or the entire combination of axles from the steering axle of the power unit to the last trailing axle of the trailer.

The number in the first column is the required minimum distance in feet between the extremes of any group of two or more consecutive axles in relation to the corresponding weight shown in columns to the right. The computations are based upon the following formula:

$$W = 500 \left(\frac{LN}{N - 1} + 12N + 36 \right)$$

L = length & N = # of axles

Table 2-2 Permissible Weight Table

Distance in Feet	2 Axles	3 Axles	4 Axles	5 Axles	6 Axles	7 Axles
4	34,000					
5	34,000					
6	34,000					
7	34,000					
8	34,000	34,000				
8+	38,000	42,000				
9	39,000	42,500				
10	40,000	43,500				
11		44,500				
12		45,000	50,000			
13		45,500	50,500			
14		46,500	51,500			
15		47,500	52,000			
16		48,000	52,500	58,000		
17		48,500	53,500	58,500		
18		49,900	54,000	59,000		
19		51,400	54,500	60,000		
20		52,800	55,500	60,500	66,000	
21		54,000	56,000	61,000	66,500	
22		54,000	56,500	61,500	67,000	
23		54,000	57,500	62,500	68,000	
24		54,000	58,700*	63,000	68,500	74,000
25		54,500	59,650*	63,500	69,000	74,500
26		55,500	60,600*	64,000	69,500	75,000
27		56,000	61,550*	65,000	70,000	75,500
28		57,000	62,500*	65,500	71,000	76,500
29		57,500	63,450*	66,000	71,500	77,000
30		58,500	64,000*	66,500	72,000	77,500
31		59,000	65,350*	67,500	72,500	78,000
32		60,000	66,300*	68,500	73,000	78,500
33			67,250*	68,500	74,000	79,000
34			68,200*	69,000	74,500	80,000
35			69,150*	70,000	75,000	
36			70,100*	70,500	75,500	
37			71,050*	71,050	76,000	
38			72,000*	72,000*	77,000	
39			72,000*	72,500	77,500	
40			72,000*	73,000	78,000	
41			72,000*	73,500	78,500	
42			72,000*	74,000	79,000	
43			72,000*	75,000	80,000	
44			72,000*	75,500		
45			72,000	76,000		
46			72,500	76,500		
47			73,500	77,500		
48			74,000	78,000		
49			74,500	78,500		
50			75,500	79,000		
51			76,000	80,000		

Table 2-2 *These figures were carried forward from Article 6701d-11, Section 5(a)(4) when Senate Bill 89 of the 64th Texas Legislature amended it on December 16, 1974. The amendment provided that axle configurations and weights that were lawful as of that date would continue to be legal under the increased weight limits.

+These figures apply only to an axle spacing greater than 8 feet but less than 9 feet.

Except as otherwise provided by law, **no** vehicle may exceed the following size limitations:

Table 2-3 Size Limitations

Single motor vehicle (except truck-tractor- no length limit)	45 feet
Combination of vehicle (except truck-tractor)	65 feet
Bus	45 feet
Trailer (full - doubles)	28 1/2 feet
Semitrailer 59 feet (when operated in Combination with trailer, excluding the length of the towing device)	28 1/2 feet
Width	8 1/2 feet (102 inches)
Height	13 1/2 feet

No overweight or oversize vehicle, other than those excepted by statute, can operate on the public roads or highways except when issued a special permit through the TxDMV Motor Carrier Division (Transportation Code, Chapter 623).

Voluntary Additional Weight

Voluntary additional weight must be purchased in the county of the owner's residence (unless apprehended) or any county willing to accept the application.

A registrant is required to provide proof of payment of Heavy Vehicle Use Tax (HVUT) when a vehicle weight is voluntarily increased to 55,000 lbs. or more during a registration year.

Incorrect Gross Weight (Apprehension)

Any person transporting a load greater than the weight for which the vehicle is registered must, when apprehended, purchase additional registration at the nearest county tax assessor-collector's office to increase the gross registration weight equal to the apprehended load weight.

If the gross weight of the vehicle at the time of apprehension is in excess of the maximum legal load limit, then the amount of the additional weight which can be issued is only that which brings the weight of the vehicle up to the legal load limit.

For example, a vehicle registered at 54,000 lbs. is apprehended with a gross vehicle weight (GVW) of 64,000 lbs. However, the legal GVW for the vehicle is 60,000 lbs.; therefore, the vehicle weight can only be increased by 6,000 lbs. (to 60,000 lbs.).

In some instances, movement of the vehicle is held until the gross weight is lowered to comply with the maximum authorized by law. The enforcement officer usually advises the operator or county tax assessor-collector’s office of the weight decrease needed.

- An apprehension occurs when an enforcement officer issues a citation for a registration violation.

- If the apprehension occurs in a county other than the owner's county of residence, the county tax assessor-collector's office retains the regular receipt commission and remits the balance of all monies collected to the TxDMV for later redistribution to the appropriate county. Enter the owner's county of residence county number in the system.
- A vehicle that has been apprehended does not qualify for any temporary permit or any Temporary Registration Plate (e.g., 72-Hour and 144-Hour Permit).
- In calculating the fee for the additional weight on apprehensions, the fee is always calculated from the date of the original registration.
- If voluntary additional weight is purchased for a vehicle, the fee is always calculated from the date of the request.

Exchange of License Plates as a Result of a Classification Change

When exchanging license plates, the owner must surrender the registration receipt and license plates to the county tax assessor-collector's office. The registration fee for the new license plates is calculated by the date of the license plate exchange. Full credit is allowed for the unexpired portion of the registration fee.

- An exchange from a Trailer license plate to a Token Trailer license plate is not authorized unless the pulling unit and semitrailer was initially registered in error.
- The policy of exchanging commercial Truck and Trailer license plates for Farm Truck, Farm Trailer, or Soil Conservation license plates (reduced fee license plates) is not recommended. The full fees paid previously will not be refunded. The transaction is handled on an even exchange.

2.3 Truck-Tractor or Semitrailer Token Fees

Transportation Code, Sec. 502.255. Truck-Tractor or Commercial Motor Vehicle Combination Fee; Semitrailer Token Fee.

(a) This section applies only to a truck-tractor or commercial motor vehicle with a gross weight of more than 10,000 pounds that is used or is to be used in combination with a semitrailer that has a gross weight of more than 6,000 pounds.

(b) The fee for a registration year for registration of a truck-tractor or commercial motor vehicle is calculated by gross weight according to Section 502.253.

(c) The fee for registration of a semitrailer used in the manner described by Subsection (a), regardless of the date the semitrailer is registered, is $15 for a registration year.

(d) A registration made under Subsection (c) is valid only when the semitrailer is used in the manner described by Subsection (a).

(e) For registration purposes, a semitrailer converted to a trailer by means of an auxiliary axle assembly retains its status as a semitrailer.

(f) A combination of vehicles may not be registered under this section for a combined gross weight of less than 18,000 pounds.

(g) This section does not apply to:

(1) a combination of vehicles that includes a vehicle that has a distinguishing license plate under Section 502.146;

(2) a truck-tractor or commercial motor vehicle registered or to be registered with $5 distinguishing license plates for which the vehicle is eligible under this chapter;

(3) a truck-tractor or commercial motor vehicle used exclusively in combination with a semitrailer of the travel trailer type; or

(4) a vehicle registered or to be registered:

(A) with a temporary registration permit;

(B) under Section 502.433; or

(C) under Section 502.435.

(h) The department may adopt rules to administer this section.

(i) The department shall issue a license plate for a token trailer registered under this section that does not expire or require an annual registration insignia to be valid. The alphanumeric pattern for a license plate issued under this subsection may remain on a token trailer for as long as the registration of the token trailer is renewed or until the token trailer is removed from service or sold. The registration receipt required under Section 621.002 is not required for a vehicle that displays a license plate issued under this subsection.

(j) A person may register a semitrailer under this section if the person:

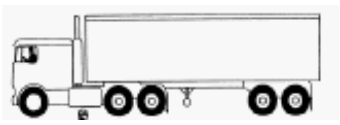
(1) applies to the department for registration;

(2) provides proof of the person's eligibility to register the vehicle under this subsection as required by the department; and

(3) pays a fee of $15, plus any applicable fee under Section 502.401, for each year included in the registration period.

Registering by Gross Weight

You may register a truck or truck-tractor with a gross vehicle weight in excess of 10,000 lbs., used in combination with a semitrailer having a gross weight in excess of 6,000 lbs., for a gross weight equal to the combined gross weight of all the vehicles in the combination (the gross weight of both must be in excess of 18,000 lbs.).





A truck or truck-tractor registered under the provisions of this section is issued a license plate bearing the word “Combination.” At time of initial registration or renewal Combination vehicles are issued a Combination license plate and a windshield registration sticker. The month of expiration for Combination vehicles is staggered for 12 months based on the date of application or renewal.

Register a semitrailer with a gross weight in excess of 6,000 lbs. operated in combination with a truck or truck-tractor with a Token Fee of $15 and a distinguishing license plate displaying the words "Token Trailer." Token trailers are not required to display a registration sticker on the Token Trailer license plate. Not issuing a registration sticker eliminates the need for motor carriers to track down their trailers every year at renewal time to put on a new registration sticker.

Vehicles not Registered in Combination

The following vehicles may not be registered in combination:

- Trucks or truck-tractors with a gross vehicle weight of 10,000 lbs. or less or trucks or truck-tractors used exclusively in combination with semitrailers having gross weights not exceeding 6,000 lbs. and the gross weight of both units is not in excess of 18,000 lbs.
- Semitrailers with gross weights of 6,000 lbs. or less or semitrailers operated exclusively with trucks or truck-tractors having a gross vehicle weight of 10,000 lbs. or less and the gross weight of both units is not in excess of 18,000 lbs.
- Trucks or truck-tractors used exclusively in combination with semitrailer-type vehicles displaying $5 Machinery, Permit, or Farm Trailer license plates.
- Trucks or truck-tractors used exclusively in combination with travel trailers and manufactured housing.
- Trucks or truck-tractors registered with Farm Truck or Farm Truck-Tractor license plates.
- Trucks or truck-tractors and semitrailers registered with $5 Disaster Relief license plates.
- Trucks or truck-tractors and semitrailers registered with Soil Conservation license plates.
- Trucks or truck-tractors and semitrailers registered with U.S. Government license plates or Exempt license plates.

Determining Combined Gross Weight

The combined gross weight of a truck or truck-tractor, registered under the provisions of this section, is determined as follows:

The empty weight of the truck or truck-tractor combined with:

- the empty weight of the heaviest semitrailer or semitrailers used or to be used in combination; plus
- the heaviest net load to be carried on such combination during the motor vehicle registration year.

In no case may the combined gross weight be less than 18,000 lbs.

Once a truck or truck-tractor is registered for a combined gross weight, the weight cannot be lowered at any subsequent date during the registration year. The owner may, however, lower the gross weight when registering the vehicle for the following registration year, provided the vehicle is registered for a combined gross weight which is sufficient to cover the heaviest load transported during the year.

A combination of vehicles is restricted by statute to a total gross weight not to exceed 80,000 lbs. (Transportation Code, Sec. 502.253). However, all combinations may not legally qualify for 80,000 lbs. unless the weight can be properly distributed in accordance with axle load limitations, tire size, and distance between axles (Transportation Code, Sec. 621.101).

Issuing a Combination License Plate

For trucks and truck-tractors, registered for combined gross weights, one Combination license plate is issued and should be displayed on the front of the unit. A registration sticker will also be issued and should be displayed on the windshield. When displaying a Combination license plate, a truck or truck-tractor is not restricted to pulling a semitrailer licensed with a Token Trailer license plate. Instead, it can legally pull semitrailers and full trailers displaying other types of Texas license plates or license plates issued out-of-state. However, the pulling unit may be registered for a combined gross weight which includes the weight of all semitrailers operated in the combination, regardless of the type of registration displayed on such semitrailer(s).

Combination license plates and/or registration stickers that have been lost, stolen, mutilated or need to be replaced for cosmetic or readability reasons may be obtained from any county tax assessor-collector's office. The applicant should sign the back of the VTR-500-RTS or be required to complete an *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60) and pay the $6 Replacement Fee and the Automation Fee.

Token Trailer License Plates

Issue Token Trailer license plates for semitrailers registered in combination. Token Trailer license plates are issued on a staggered basis for $15. Such license plates are valid only when displayed on semitrailers being pulled by trucks or truck-tractors which have been properly registered with Combination, Apportioned, Forestry Vehicle, or Seasonal Permit license plates for combined gross weights that include the weight of the semitrailers.

- The fee for a Token Trailer license plate is $15 and is never prorated.
- A copy of the registration receipt is no longer required by law to accompany the power unit when such vehicle is operated upon the public highways.

Token Trailer license plates that have been lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons may be obtained from any county tax assessor-collector's office. The applicant should sign the back of the VTR-500-RTS or be required to complete an *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60) and pay the $6 Replacement Fee and the Automation Fee.

Do not issue a Token Trailer license plate for a full trailer. Register a full trailer with a trailer license plate under the provisions of Transportation Code, Sec. 502.254. Fee: Trailer, Travel Trailer, or Semitrailer. In the event a full trailer and a "Token Trailer" semitrailer are pulled by a power unit registered with a Combination license plate, register the full trailer separately paying full registration fees for the trailer license plate for its gross weight. No portion of the registered gross weight of the pulling unit should be applied to the weight of the full trailer.



Semitrailer
(part of the weight rests on the pulling unit)

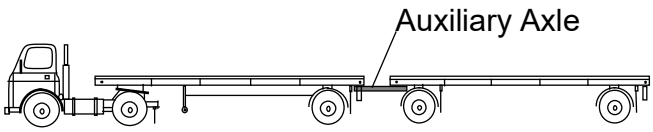


Full-trailer
(weight does not rest on the pulling unit)

Auxiliary Axles

Semitrailers converted to full trailers by means of auxiliary axle assemblies, retain the semitrailer status, and are subject to the Combination and Token Trailer registration requirements.

There are various types of axle assemblies specially designed for use in conjunction with other vehicles or combinations of vehicles in order to increase the load capabilities of such vehicles or combinations. The following is applicable to such axle assemblies.





- Auxiliary axle assemblies, such as trailer axle converters, jeep axles, drag axles, flip-up axles, etc., used in conjunction with truck-tractor and semitrailer combinations, are not required to be registered. However, include the additional weight acquired by the use of such axle assemblies in the combined gross weight of the combination.
- Register house-moving dollies with Token Trailer license plates and title them as semitrailers; however, only one such dolly in a combination is registered and titled. The remaining dolly (or dollies) is permitted to operate unregistered, since by the nature of its construction, it is dependent upon another such vehicle in order to function. The pulling unit must display a Combination license plate.

- Ready-mix concrete trucks that have an auxiliary axle assembly installed for increasing the load capacity must be registered for a weight, which includes the axle assembly. The axle assembly is not considered a semitrailer.

Towing Devices



Tow Dolly

Register towing devices used to transport secondary vehicles behind motor homes, etc., as semitrailers at the owner's discretion. Registration of this type is not required in Texas, but may be required in other jurisdictions. Handle the registration of these vehicles in a manner identical to that used to register semitrailers. The gross weight must include the weight of that portion of the towed vehicle that is being supported by the towing device.

Proof of Payment of the Federal Heavy Vehicle Use Tax (HVUT)

Under the provisions of the Surface Transportation Assistance Act of 1982 (federal law), effective October 1, 1985, the TxDMV is required to refuse to register a commercial motor vehicle with a gross weight of 55,000 lbs. or more until proof of HVUT payment is submitted (IRS Form 2290). Permanent Additional Weight that increases the vehicle weight to 55,000 lbs. or more requires proof of HVUT.

Acceptable proof of payment consists of one of the following:

- The original or a copy of the Schedule 1 portion of the Form 2290 receipted by the Internal Revenue Service (IRS).
- A copy of the Form 2290 with Schedule 1 attached as filed with the IRS along with a copy of the front and back of the canceled check covering the payment to the IRS.
- A copy of the Form 2290 with Schedule 1 attached as filed with the IRS along with a validated receipt for payment from a local IRS office in lieu of a copy of a canceled check.

Carriers required to file the Form 2290 electronically (25 or more vehicles) receive an electronic receipt. The e-form includes an “IRS e-file” watermark and indicates the payment date in the following format - “Received MM/DD/YYYY.”

Proof of payment of the Federal HVUT, for either the current tax year (July 1 of the current year through June 30 of the following year) or the preceding tax year (July 1 of the previous year through June 30 of the current year), is acceptable through October 1 of the current year.

If the Federal HVUT payment was on 21 or less vehicles, a list of the VINs of each vehicle is on the Schedule 1. If a VIN is not listed, the vehicle is not registered until acceptable proof of payment of the tax for the vehicle is provided unless an exception applies.

If the Schedule 1 (Form 2290), covers more than 21 vehicles, a listing of VINs is not required.

Questions regarding this tax should be directed to the IRS at 1-800-829-1040 or to a local IRS office. Visit www.irs.gov for more information.

Exemptions

Proof of HVUT payment is not required on a vehicle being registered for 55,000 lbs. or more under the following circumstances:

- apprehensions,
- new vehicles,
- used vehicles transferred within 60 days of the date of application for title and registration, and
- vehicles previously wrecked, in storage, or otherwise out of service and not registered or operated during the current registration year or during the current tax year.

If there was no vehicle operation during the current registration or tax year, submit a separate affidavit to reflect the required statements. This provision is made because the tax is not payable to the IRS until the last day of the month following the month of first taxable use in a tax period. Consequently, proof of payment is not available if the tax is not due at the time the vehicle is being registered.

If an exemption is in order because a vehicle is new, falls under the 60-day transfer rule, or has been unused during the current registration or tax year, record one of the following notations on the receipt in addition to the Texas title number or the abbreviation of the state where last titled, whichever is applicable. The county tax assessor-collector's office selects "Verified Heavy Vehicle Use Tax" in the system.

The Federal HVUT is not required if a commercial vehicle with a gross weight of 55,000 lbs. or more is:

- operating under a temporary permit,
- operated less than 5,000 miles, or
- a heavy agriculture vehicle that is operated less than 7,500 miles in a tax year, and
- appears on Part II of the Schedule 1 (Form 2290), and the form receipted by the IRS.

Federal regulations require proof of payment only once during a tax year. Therefore, proof of payment is required when registration is initially issued for a vehicle but not required when registration is issued on a replacement or exchange basis.

The IRS has advised that an applicant who has not paid the tax at the time vehicle registration is attempted, may pay the tax and obtain a validated receipt for payment only at IRS offices.

A registrant is required to provide proof of payment of the Federal HVUT when a vehicle weight is voluntarily increased to 55,000 lbs. or more during a registration year.

If the vehicle operates at an increased weight prior to the payment of Federal HVUT, the registrant is required to obtain a 72-Hour or 144-Hour temporary permit.

Vehicles registered with Seasonal Agricultural registration must submit Federal HVUT if the vehicle is 55,000 lbs. or more.

2.4 Soil Conservation Equipment

Transportation Code, Sec. 502.435. Certain Soil Conservation Equipment.

(a) The owner of a truck-tractor, semitrailer, or low-boy trailer used on a highway exclusively to transport the owner's soil conservation machinery or equipment used in clearing real property, terracing, or building farm ponds, levees, or ditches may register the vehicle for a fee equal to 50 percent of the fee otherwise prescribed by this chapter for the vehicle.

(b) An owner may register only one truck-tractor and only one semitrailer or low-boy trailer under this section.

(c) An owner must certify that the vehicle is to be used only as provided by Subsection (a).

(d) The registration receipt issued for a vehicle registered under this section must be carried in or on the vehicle and state the nature of the operation for which the vehicle may be used.

(e) A vehicle to which this section applies that is operated on a public highway in violation of this section is considered to be operated while unregistered and is immediately subject to the applicable registration fees and penalties prescribed by this chapter.

2.5 Trailers Transporting Soil Conservation Machinery or Equipment

Owners of trucks, truck-tractors, semitrailers, and lowboy trailers used solely for transporting their own soil conservation machinery or equipment, may qualify and register **one** truck or truck-tractor and **one** semitrailer or lowboy trailer at a fee which is 50% of the truck or trailer registration fee usually charged for such a vehicle.

The gross vehicle weight is not a factor in determining the qualification of a truck or truck-tractor for soil conservation registration. Therefore, any commercial vehicle may qualify including pickup trucks.

All semitrailers that are capable of transporting soil conservation machinery or equipment may qualify for soil conservation registration; however, full trailers are not eligible for soil conservation registration unless it is a lowboy design.

A lowboy full trailer is constructed to have its bed either axle level or lower.



Note: A commercial vehicle registered with Soil Conservation license plates may not pull a semi-trailer registered with Token Trailer license plates. The trailer would need to display a 72-Hour or 144-Hour Permit. See Truck Combination 72/144-Hour Permit Quick Reference.

Soil Conservation Machinery or Equipment

Examples of soil conservation machinery or equipment used in the clearing of land, terracing, building farm ponds, levees, or ditches includes:

- Maintainers,
- Bulldozers,
- Scrapers,
- Draglines,
- Plows, such as those used in the building of terraces,
- Front-end loaders,
- Backhoes, and
- Dozer blades.

Additional supplies needed for the function of soil conservation machinery or equipment is permitted on vehicles displaying Soil Conservation license plates. Some examples include:

- Fuel drums,
- Additional parts used in the operation of soil conservation machinery or equipment, and
- Tools used in the repairing of soil conservation machinery or equipment.

Application for Soil Conservation Vehicles

The applicant must complete and submit *Application for Soil Conservation Vehicles* (Form VTR-45) to their local county tax assessor-collector's office.

Owners including both individuals and firms (corporations), may qualify for the registration of one truck or one truck-tractor and one semitrailer or one lowboy trailer. The application is maintained at the county tax assessor-collector's office and the file should be checked each time an application for a Soil Conservation license plate is received to ensure that no more than two Soil Conservation license plates are issued.

After initial issuance, the owner may renew the plates annually by submitting to the county tax assessor-collector's office the previous year's Soil Conservation registration receipt and completing a new Form VTR-45.

Soil Conservation License Plates

Soil Conservation license plates are staggered for 12 months based on the date of application or renewal. The fee is 50% of the registration fee.

When a vehicle is transferred to an applicant who does not qualify for Soil Conservation license plates, the new owner must exchange the Soil Conservation license plate for truck and/or trailer registration. Credit is allowed for the unexpired portion of the registration fee.

When a vehicle is transferred to an applicant who qualifies for a Soil Conservation license plate, the purchaser must complete an *Application for Soil Conservation Vehicles* (Form VTR-45) and the Soil Conservation license plate may be transferred.

Soil Conservation License Plates Violations

Vehicles displaying Soil Conservation license plates operated in violation of this subsection are subject to full commercial registration. The registration fees are collected from the date of apprehension for the remaining portion of the registration year plus a 20% penalty. Credit is allowed for the unexpired portion of the registration fee.

2.6 Road Tractor Fees

Transportation Code, Sec. 502.256. Fee: Road Tractor.

The fee for a registration year for registration of a road tractor is the fee prescribed by weight as certified by a public weigher or a license and weight inspector of the Department of Public Safety under Section 502.252 or 502.253, as applicable.

Farm Type Tractor Plates



Register tractors used as road tractors to mow the right-of-way or used to move commodities over the highway for hire with a Road Tractor license plate.

- Farm tractors operated temporarily on the highway are not required to be registered.
- Register tractors used in construction, such as backhoes and bulldozers equipped with pneumatic or solid rubber tires only, with Machinery license plates.

If a farm tractor or machinery registered tractor is apprehended for operating in violation of the registration statutes, it must be registered with a Road Tractor license plate.



Trailer Jockey

Register Trailer Jockey's (yard dogs) with Road Tractor license plates unless the Trailer Jockey is used in combination. As a prerequisite to title and registration, Trailer Jockeys must meet the U.S. Department of Transportation and Texas safety standards. Ownership evidence must be a secure Manufacturer's Certificate of Origin (MCO). Proof of financial responsibility in the applicant's name is required.

Road Tractor license plates are issued on a staggered basis.

Application for title is required as a prerequisite to the issuance of Road Tractor license plates.

2.7 Foreign Commercial Vehicles Annual Permits

Transportation Code, Sec. 502.093. Annual Permits.

(a) The department may issue an annual permit in lieu of registration to a foreign commercial motor vehicle, trailer, or semitrailer that is subject to registration in this state and is not authorized to travel on a public highway because of the lack of registration in this state or the lack of reciprocity with the state or country in which the vehicle is registered.

(b) A permit issued under this section is valid for a vehicle registration year to begin on the first day of a calendar month designated by the department and end on the last day of the last calendar month of the registration year.

(c) A permit may not be issued under this section for the importation of citrus fruit into this state from a foreign country except for foreign export or processing for foreign export.

(d) A person may obtain a permit under this section by:

(1) Applying in the manner prescribed by the department;

(2) paying a fee in the amount required by Subsection (e) in the manner prescribed by the department, including a service charge for a credit card payment or escrow account; and

(3) furnishing evidence of financial responsibility for the motor vehicle that complies with Sections 502.046(c) and 601.168(a), the policies to be written by an insurance company or surety company authorized to write motor vehicle liability insurance in this state.

(e) The fee for a permit under this section is the fee that would be required for registering the vehicle under Section 502.253 or 502.255, except as provided by Subsection (f).

(f) A vehicle registered under this section is exempt from the token fee and is not required to display the associated distinguishing license plate if the vehicle:

(1) is a semitrailer that has a gross weight of more than 6,000 pounds; and

(2) is used or intended to be used in combination with a truck tractor or commercial motor vehicle with a gross vehicle weight of more than 10,000 pounds.

(g) A vehicle registered under this section is not subject to the fee required by Section 502.401 or 502.403.

Annual Permits Offense

Transportation Code, Sec. 502.476. Annual Permits; Offense.

A person who violates Section 502.093 commits an offense.

Annual Permits

Annual Permits are issued by the TxDMV Regional Service Centers located along and close to the Texas/United Mexican States border.

- The fee is based on the vehicle's gross weight for the applicable registration classification.
- Proof of insurance is required at the time application is made. If the applicant is a motor carrier registered with the Motor Carrier Division, a registration listing is acceptable with the application in lieu of proof of insurance.
- Currently, the receipt for an Annual Permit is issued with a template on an original TxDMV letterhead through the Regional Service Centers. The receipt must accompany the vehicle at all times during the period in which the permit is valid.

A vehicle's registration with an Annual Permit is indicated by the display of "ANNUAL PERMIT" on the license plate.

An Annual Permit is issued in lieu of registration and is valid for a vehicle registration year to begin on the first day of a calendar month designated and to end on the last day of the last calendar month of the registration year.

- An applicant may increase the weight. The applicant must present the current Annual Permit registration receipt along with a *Texas Annual Permit Application* (Form VTR-29) showing the new weight desired.
- To obtain a replacement Annual Permit license plate or registration sticker, the owner must apply directly to the TxDMV and pay a Replacement Fee of $6 and the Automation Fee.
- Proof of Heavy Vehicle Use Tax is required.

Annual Permits are not issued for importing citrus fruit into this state from a foreign country, except for foreign export or processing for foreign export or for a vehicle that has been apprehended for operating illegally.

2.8 Motor Bus Fees

Transportation Code, Sec. 502.168. Fees: Motor Bus.

The fee for a registration year for registration of a motor bus is the fee prescribed by Section 502.252 or 502.253, as applicable.

Motor buses are vehicles that transport persons for hire from a city or town to a destination outside the city limits.

A taxi or any other vehicle which transports passengers for compensation or hire must display Motor Bus license plates when operated outside of the city limits.

A motor bus is registered with the Motor Carrier Division. However, this is not a prerequisite to registration.

- Calculate the registration fees for "Motor Buses" by the gross weight of the buses.
- Determine the gross weight by adding the carrying capacity to the empty weight.
- Obtain the carrying capacity of a motor bus by multiplying its seating capacity by 150 lbs. excluding the driver.

A weight certificate must support the application for title on all new and out-of-state buses.

The additional 11% Diesel Fee is collected.

Motor Bus license plates may be transferred to the purchaser.

No motor bus may exceed any of the following size limitations:

- 35 feet in length; however, a motor bus may be 45 feet in length if equipped with air brakes and have either three or more axles or a minimum of four tires on the rear axle.
- 13 1/2 feet in height.
- 102 inches in width.

2.9 Tow Trucks

Transportation Code, Sec. 504.508. Tow Trucks.

(a) The department shall issue specialty license plates for a commercial motor vehicle used as a tow truck. The license plates must include the words "Tow Truck." A vehicle used commercially as a tow truck shall display license plates issued under this section.

(b) There is no fee for issuance of the license plates.

(c) Proof of eligibility for license plates under this section must include a copy of the permit certificate issued by the Texas Department of Licensing and Regulation for the tow truck.

Eligibility

The TxDMV will not issue Tow Truck license plates unless the Texas Department of Licensing and Regulation (TDLR) has issued a permit for the tow truck under Occupations Code, Chapter 2308, Subchapter C. Each tow truck must carry the TDLR permit in the cab. The applicant must present the TDLR permit when applying for Tow Truck license plates.

- Texas-registered tow trucks (except those displaying Combination registration) must display Tow Truck license plates. Tow Truck license plates for Texas vehicles (except those displaying Combination registration) are issued with staggered expirations.
- Texas-registered tow trucks displaying Combination registration must display a single, small license plate with "Tow Truck," in addition to the Combination license plate. The small Tow Truck license plates are issued by the TxDMV Regional Service Centers.

- Out-of-state registered tow trucks that operate in Texas and any tow truck displaying apportioned registration that operates in Texas must have a small Tow Truck license plate, in addition to the out-of-state or Apportioned license plates. The small Tow Truck license plate should be displayed on the front of the out-of-state vehicle with the out-of-state or Apportioned license plate.

Exemptions

The following vehicles are excluded from the requirement to display Tow Truck license plates:

- A motor vehicle owned and used exclusively by a governmental entity, including a public school district.
- A motor vehicle towing:
  - a race car,
  - a motor vehicle for exhibition, or
  - an antique motor vehicle.
- A recreational vehicle towing another vehicle.
- A motor vehicle used in combination with a tow bar, tow dolly, or other mechanical device that is not operated by a commercial enterprise.
- A motor vehicle controlled and/or operated by a farmer or rancher, towing a farm vehicle.
- A motor vehicle that is owned or operated by an entity of which the primary business is the rental of motor vehicles and only tows vehicles rented by the entity.
- A truck-trailer combination that is owned or operated by a dealer licensed under Chapter 2301 and used to transport new vehicles during the normal course of a documented transaction in which the dealer is a party and ownership or the right of possession of the transported vehicle is conveyed or transferred.
- A car hauler that is used solely to transport, other than in a consent or nonconsent tow, motor vehicles as cargo in the course of a prearranged shipping transaction or for the use in mining, drilling, or construction operations.

Renewal

Tow Truck license plates for Texas-registered vehicles are renewed annually. The applicant must present the TDLR permit with the vehicle listed, along with the registration fee.

Replacement

Tow Truck license plates that have been lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons may be obtained from the county tax assessor-collector's office along with payment of the $6 Replacement Fee and the Automation Fee. The TDLR permit is not required when requesting a replacement license plate. Replacement of small Tow Truck license plates issued to out-of-state registered vehicles, apportioned, and Texas-registered vehicles displaying Combination registration can be obtained through the TxDMV Regional Service Centers.

Transfers not allowed

Tow Truck license plates are nontransferable.

If the new owner cannot provide a Vehicle Registration Listing issued by TDLR in their name (or company name), the county tax assessor-collector's office may reject the application for title until the proper credentials are obtained by the new owner.

If the new owner can provide a TDLR permit in the new owner's name (or company name), a new set of Tow Truck license plates may be issued. If the registration is current, new Tow Truck license plates are issued on an exchange basis. If the registration has expired, collect the full registration fee.

2.10 Fleet Registration

Fleet Registration is an online program for registering fleets of intrastate commercial motor vehicles in Texas, making it convenient for business owners and corporations to keep their vehicle registrations current.

Intrastate Fleet Qualifications

Commercial fleet means a group of at least 25 non-apportioned motor vehicles.

- A fleet can include multiple vehicle classes, such as passenger cars, trucks, and motorcycles. There is no maximum number of vehicles.
- Fleet owners can have more than one fleet under their account. There is no maximum number of fleets, but all vehicles in a fleet will have the same expiration date.
- If any fleet contains a Combination-license plated vehicle, the fleet must have a March expiration date.

Fleet owners can select a registration period of not less than one year and not more than eight years. Registration fees, including a one-time $10 per vehicle commercial fee, and all applicable local fees, will be collected for the entire registration period selected at the time of initial registration.

License Plates

Fleet owners have the option of selecting a standard license plate or a custom logo license plate, which will be manufactured with a company name and/or logo. Custom logo license plates must be pre-approved by the TxDMV, prior to beginning the multi-year fleet registration process. Both the standard and custom logo license plates will be manufactured with the month and year of expiration, eliminating the registration sticker requirement.

License plate fees:

- Standard license plates: one-time license plate manufacturing fee of $1.50 for each license plate or set of license plates.
- Custom logo license plates: one-time license plate manufacturing fee of $8.00 for each license plate or set of license plates.

Registration Process

Qualifying applicants may sign up for Multi-Year Intrastate Fleet Registration, by:

- emailing the TxDMV at MCD_FleetRegistration@txdmv.gov,
- phone at 512-374-5250 (Option 6), or
- if you already have an Apportion account you can access the online registration system to obtain your temporary user name and password.

Chapter 3

DISABLED PERSONS

This chapter contains the following sections:

- ***3.1*** Definitions
- ***3.2*** Persons with Disabilities
- ***3.3*** Disabled Parking Placards
- ***3.4*** Parking Placard Application
- ***3.5*** Applicant's Personal Identification
- ***3.6*** Parking Placard Expiration
- ***3.7*** Tax Assessor-Collector Duties
- ***3.8*** License Plates and Placards
- ***3.9*** Institutions, Facilities, & Residential Retirement Communities
- ***3.10*** Lost or Destroyed Placard
- ***3.11*** Renewal
- ***3.12*** Placard Database
- ***3.13*** Parking Privileges
- ***3.14*** Veterans with Disabilities
- ***3.15*** Enforcement
- ***3.16*** Enforcement by Appointed Persons
- ***3.13*** Parking Privileges
- ***3.18*** Counterfeit Placards
- ***3.19*** Seizure and Revocation of Placards

3.1 Definitions

Transportation Code, Sec. 681.001. Definitions.

In this chapter:

(1) "Department" means the Texas Department of Motor Vehicles.

(2) "Disability" means a condition in which a person has:

(A) mobility problems that substantially impair the person's ability to ambulate;

(B) visual acuity of 20/200 or less in the better eye with correcting lenses; or

(C) visual acuity of more than 20/200 but with a limited field of vision in which the widest diameter of the visual field subtends an angle of 20 degrees or less.

(3) "Disabled parking placard" means a placard issued under Section 681.002.

(4) "International symbol of access" means the symbol adopted by Rehabilitation International in 1969 at its Eleventh World Congress on Rehabilitation of the Disabled.

(5) "Mobility problem that substantially impairs a person's ability to ambulate" means that the person:

(A) cannot walk 200 feet without stopping to rest;

(B) cannot walk without the use of or assistance from an assistance device, including a brace, a cane, a crutch, another person, or a prosthetic device;

(C) cannot ambulate without a wheelchair or similar device;

(D) is restricted by lung disease to the extent that the person's forced respiratory expiratory volume for one second, measured by spirometry, is less than one liter, or the arterial oxygen tension is less than 60 millimeters of mercury on room air at rest;

(E) uses portable oxygen;

(F) has a cardiac condition to the extent that the person's functional limitations are classified in severity as Class III or Class IV according to standards set by the American Heart Association;

(G) is severely limited in the ability to walk because of an arthritic, neurological, or orthopedic condition;

(H) has a disorder of the foot that, in the opinion of a person licensed to practice podiatry in this state or in a state adjacent to this state, limits or impairs the person's ability to walk; or

(I) has another debilitating condition that, in the opinion of a physician licensed to practice medicine in this state or a state adjacent to this state, or authorized by applicable law to practice medicine in a hospital or other health facility of the Veterans Administration, limits or impairs the person's ability to walk.

(6) "Podiatry" has the meaning assigned by Section 202.001, Occupations Code.

(7) "Stand" or "standing" means to halt an occupied or unoccupied vehicle, other than temporarily while receiving or discharging passengers.

3.2 Persons with Disabilities

Transportation Code, Sec. 504.201. Persons with Disabilities.

(a) In this section:

(1) "Disability" and "mobility problem that substantially impairs a person's ability to ambulate" have the meanings assigned by Section 681.001.

(2) "Legally blind" means a condition described by Section 681.001(2)(B) or (C).

(3) "Practice of optometry" and "practice of therapeutic optometry" have the meanings assigned by Section 351.002, Occupations Code.

(b) The department shall issue specialty license plates for a motor vehicle that:

(1) has a gross vehicle weight of 18,000 pounds or less; and

(2) is regularly operated for noncommercial use by or for the transportation of a person with a permanent disability.

(c) An owner of a motor vehicle regularly operated by or for the transportation of a person described by Subsection (a) may apply to the department for registration under this section.

(d) Except as provided by Subsection (d-1), the initial application for specialty license plates under this section must be accompanied by a written statement from a physician who is licensed to practice medicine in this state or in a state adjacent to this state or who is authorized by applicable law to practice medicine in a hospital or other health facility of the Department of Veterans Affairs. If the applicant has a mobility problem caused by a disorder of the foot, the written statement may be issued by a person licensed to practice podiatry in this state or a state adjacent to this state. In this subsection, "podiatry" has the meaning assigned by Section 681.001. The statement must certify that the person making the application or on whose behalf the application is made is legally blind or has a mobility problem that substantially impairs the person's ability to ambulate. The statement must also certify whether a mobility problem is temporary or permanent. A written statement is not required as acceptable medical proof if:

(1) the person with a disability:

(A) has had a limb, hand, or foot amputated; or

(B) must use a wheelchair; and

(2) the applicant executes a statement attesting to the person's disability before the county assessor-collector.

(d-1) If the initial application for specialty license plates under this section is made by or on behalf of a person who is legally blind, the written statement required by Subsection (d) may be issued by a person licensed to engage in the practice of optometry or the practice of therapeutic optometry in this state or a state adjacent to this state.

(e) A person with a disability may receive:

(1) one disabled parking placard under Section 681.002 if the person receives a set of license plates under this section; or

(2) two disabled parking placards under Section 681.002 if the person does not receive a set of license plates under this section.

(f) A license plate issued under this section must include the symbol of access adopted by Rehabilitation International in 1969 at its Eleventh World Congress on Rehabilitation of the Disabled. The symbol must be the same size as the numbers on the license plate.

(g) In addition to a license plate issued under this section, an eligible person is entitled to be issued a set of the license plates for each motor vehicle owned by the person that has a gross vehicle weight of 18,000 pounds or less and is equipped with special equipment that:

(1) is designed to allow a person who has lost the use of one or both of the person's legs to operate the vehicle; and

(2) is not standard equipment on that type of vehicle for use by a person who has use of both legs.

Transportation Code, Sec. 504.205. Information Provided with Plates.

The department shall include with each set of specialty license plates issued under this subchapter a document that provides:

(1) information on laws governing parking for persons with disabilities; and

(2) instructions for reporting alleged violations of Chapter 681.

3.3 Disabled Parking Placards

Transportation Code, Sec. 681.002. Disabled Parking Placard.

(a) The department shall provide for the issuance of a disabled parking placard to a person with a disability.

(b) A disabled parking placard must be two-sided and hooked and include on each side:

(1) the international symbol of access, which must be at least three inches in height, be centered on the placard, and be:

(A) white on a blue shield for a placard issued to a person with a permanent disability; or

(B) white on a red shield for a placard issued to a person with a temporary disability;

(2) an identification number;

(3) an expiration date at least three inches in height; and

(4) the seal or other identification of the department.

(c) The department shall furnish the disabled parking placards to each county assessor-collector.

(d) A disabled parking placard must bear a hologram designed to prevent the reproduction of the placard or the production of a counterfeit placard.

(e) In addition to the expiration date included on a disabled parking placard under Subsection (b), the expiration date must be indicated on the placard by a month and year hole-punch system.

3.4 Parking Placard Application

Transportation Code, Sec. 681.003. Parking Placard Application.

(a) An owner of a motor vehicle regularly operated by or for the transportation of a person with a disability may apply for a disabled parking placard.

(b) An application for a disabled parking placard must be:

(1) on a form furnished by the department;

(2) submitted to the county assessor-collector of the county in which the person with the disability:

(A) resides; or

(B) is seeking medical treatment; and

(3) accompanied by a fee of $5 if the application is for a temporary placard.

(c) Subject to Subsection (e) and (f), the first application must be accompanied by a notarized written statement or written prescription of a physician licensed to practice medicine in this state or a state adjacent to this state, or authorized by applicable law to practice medicine in a hospital or other health facility of the United States Department of Veterans Affairs, certifying and providing evidence acceptable to the department that the person making the application or on whose behalf the application is made is legally blind or has a mobility problem that substantially impairs the person's ability to ambulate. The statement or prescription must include a certification of whether the disability is temporary or permanent and information acceptable to the department to determine the type of disabled parking placard for which the applicant is eligible. The department shall determine a person's eligibility based on evidence provided by the applicant establishing legal blindness or mobility impairment.

(d) Information concerning the name or address of a person to whom a disabled parking placard is issued or in whose behalf a disabled parking placard is issued is confidential and not subject to disclosure under Chapter 552, Government Code.

(e) If a first application for a disabled parking placard under this section is made by or on behalf of a person with:

(1) a mobility problem caused by a disorder of the foot, the notarized written statement or written prescription required by Subsection (c) may be issued by a person licensed to practice podiatry in this state or a state adjacent to this state; or

(2) a disability caused by an impairment of vision as provided by Section 681.001(2), the notarized written statement or written prescription required by Subsection (c) may be issued by a person licensed to engage in the practice of optometry or the practice of therapeutic optometry in this state or a state adjacent to this state.

(f) This subsection applies only to the first application for a disabled parking placard submitted by a person. The notarized written statement or prescription may be issued by:

(1) a person acting under the delegation and supervision of a licensed physician in conformance with Subchapter B, Chapter 157, Occupations Code; or

(2) a physician assistant licensed to practice in this state acting as the agent of a licensed physician under Section 204.202(e), Occupations Code.

(g) In this section, "practice of optometry" and "practice of therapeutic optometry" have the meanings assigned by Section 351.002, Occupations Code.

3.5 Applicant's Personal Identification

Transportation Code, Sec. 681.0031. Applicant's Identification.

(a) The applicant shall include on the application the applicant's:

(1) driver's license number or the number of a personal identification card issued to the applicant under Chapter 521;

(2) military identification number; or

(3) driver's license number of a driver's license issued by another state or country if the applicant is not a resident of this state and is seeking medical treatment in this state.

(b) The county assessor-collector shall record on any disabled parking placard issued to the applicant the following information in the following order:

(1) the county number assigned by the comptroller to the county issuing the placard;

(2) the first four digits of the applicant's driver's license number, personal identification card number, or military identification number; and

(3) the applicant's initials.

3.6 Parking Placard Expiration

Transportation Code, Sec. 681.004. Issuance of Parking Placard; Expiration.

(a) A person with a permanent disability may receive:

(1) two disabled parking placards, if the person does not receive a set of special license plates under Section 504.201;

(2) one disabled parking placard, if the person receives a set of special license plates under Section 504.201; or

(3) two disabled parking placards, if the person receives two sets of special license plates under Section 504.202(b-1).

(b) A person with a temporary disability may receive two disabled parking placards.

(c) A disabled parking placard issued to a person with a permanent disability:

(1) is valid for:

(A) four years for a resident of this state; and

(B) six months for a person who is not a resident of this state; and

(2) shall be replaced or renewed on request of the person to whom the initial card was issued without presentation of evidence of eligibility.

(d) A disabled parking placard issued to a person with a temporary disability expires after the period set by the department and may be renewed at the end of that period if the disability remains as evidenced by a physician's statement or prescription submitted as required for a first application under Section 681.003(c).

(e) The department shall include with each disabled parking placard a document that provides:

(1) information on laws governing parking for persons with disabilities; and

(2) instructions for reporting alleged violations of this chapter.

3.7 Tax Assessor-Collector Duties

Transportation Code, Sec. 681.005. Duties of County Assessor-Collector.

Each county assessor-collector shall send to the department each fee collected under Section 681.003, to be deposited in the Texas Department of Motor Vehicles fund to defray the cost of providing the disabled parking placard.

3.8 License Plates and Placards

There are two types of disabled person identification for vehicles.

Disabled Person License Plates

Disabled Person license plates are manufactured with the International Symbol of Access (ISA) on the license plate. These license plates are issued for display on motor vehicles that have a gross vehicle weight of 18,000 lbs. or less (non-commercial use only) and regularly operated by or for the transportation of persons with a permanent disability.

Transfers

Disabled Person license plates may not be transferred between persons. Disabled Person license plates may be transferred between vehicles using the Plate to Owner check box within the Title Application, Exchange, and Renewal events if the county can verify the license plate is in the applicant's name. Verification may include: an RTS inquiry, a copy of the *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214), or the owner's current registration receipt. An owner who sells or trades a vehicle with Disabled Person license plates must remove the license plates from the vehicle.

Note: When Disabled Person license plates are transferred in RTS, the license plate number will be entered on the REG029 Registration Expiration Month and Year screen.

Disabled Parking Placards

Parking placards are available for issuance to a person with either a temporary or permanent disability.

The placards are designed to hang from the vehicle's rear view mirror when the vehicle is parked in a disabled parking space. If the vehicle does not have a rear view mirror, display the placard on the center portion of the dashboard, in a manner that is clearly visible through the windshield.

When a Disabled Parking Placard is placed on the rear view mirror of a vehicle transporting a person with a disability, the vehicle operator is afforded the same parking privileges as the operator of a vehicle displaying Disabled Person license plates.

Both disabled placards have an expiration date area that is at least three inches in height and a month/year hole-punch system expiration date.

Information written on the placard includes: County Number, first four digits of the Driver License, Identification Card, or Military Identification and initials of applicant.

Blue Placards

Blue Disabled Parking Placard(s) are issued to a person with a permanent disability.

Red Placards

Red Disabled Parking Placard(s) are issued to a person with a temporary disability.

Red Placards for Out-of-State/Country

Red Disabled Parking Placard(s) are issued to a person with a permanent disability that is an out-of-state/country resident and seeking medical treatment in Texas.

Placard Fee

There is no fee for blue placards issued for a permanent disability; there is a $5 fee for each red placard issued for a temporary disability (up to two red placards may be issued).

When issuing a red placard for a person with a permanent disability that is an out-of-state/country resident and seeking medical treatment in Texas, do not charge the $5 fee.

Length of Time Placards are Valid

Blue disabled placards (permanent) are valid for a maximum of four years.

Red disabled placards (temporary) are valid for six months from the date of issuance, or until the end of the disability, whichever comes first.

Red disabled placards (out-of-state/country residents with a permanent disability and seeking medical treatment in Texas) are valid for six months from the date of issuance, or until the end of the disability, whichever comes first.

Limitations

A person with a permanent disability may obtain:

- two blue Disabled Parking Placards, or
- one blue Disabled Parking Placard and one set of license plates (additional sets of Disabled Person license plates may be issued to vehicles that have been specially equipped to be operated by a person who has lost the use of one or both legs.

A person with a red Disabled Parking Placard may not obtain Disabled Person license plates.

Application Information

Application for Disabled Person license plates must be submitted through the county tax assessor-collector's office in the county in which the applicant resides.

Application for Disabled Parking Placards must be submitted through the county tax assessor-collector's office in the county in which the applicant resides or in the county in which the applicant is seeking medical treatment. For out-of-state/country residents application for disabled Parking Placards must be submitted through the county tax assessor-collector's office in which the applicant is seeking medical treatment.

The applicant may be the owner of a registered vehicle that is regularly operated by or for the transportation of a disabled person or a disabled person who is not a vehicle owner.

Application for Disabled Parking Placards and Disabled Person license plates may be made by submitting an *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214).

The *Persons with Disabilities License Plates and Placards* (Form VTR-429) brochure must be provided to customers when issuing a Disabled Parking Placard or Disabled Person license plate.

Driver License or Identification Number Required

The disabled person, or person making application on behalf of the disabled person, must include their driver license (DL) number or identification card number issued by the DPS. Out-of-state DL or ID numbers are allowed for nonresidents who have a Texas address (such as "Winter Texans"). Out-of-state or country DL or ID numbers are allowed for a nonresident seeking medical treatment in Texas.

Out-of-state DL or ID numbers are permissible for nonresident military personnel or the spouse of military personnel stationed on a military installation in Texas. If the person with the disability has a DL or Texas ID number issued to them, it is preferable to show the disabled person's number on the placard since the vehicle is to be used on their behalf.

Transportation Code, Sec. 521.001, defines "License" as an authorization to operate a motor vehicle which includes:

- a driver's license;
- the privilege of a person to operate a motor vehicle regardless of whether the person holds a driver's license; and
- a nonresident's operating privilege.

Proof of Disability

Initial application for Disabled Person license plates and/or Parking Placard must provide for proof of disability.

The "Disability Statement" on the *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214) must be signed by:

- a physician licensed to practice medicine in Texas, Arkansas, Louisiana, New Mexico, or Oklahoma;
- a physician's assistant, advanced practice nurse, or advanced nurse practitioner licensed in Texas, Arkansas, Louisiana, New Mexico, or Oklahoma;
- a physician practicing medicine in the U.S. military on a military installation in Texas;
- a physician practicing medicine in a hospital or other health facility of the U.S. Department of Veterans Affairs; or
- a person licensed to practice podiatry or optometry in Texas, Arkansas, Louisiana, New Mexico, or Oklahoma.

If the applicant is requesting Disabled Parking Placards, the licensed medical professional's signature must be notarized on the Form VTR-214 unless a separate original written or electronic prescription is submitted in lieu of the notarized signature. Disabled Person license plates are not required to have a notarized written statement or written prescription. Only a written statement from a medical professional is required for Disabled Person license plates. For the purposes of obtaining a disabled person license

plate, a written statement includes a properly completed VTR-214 or any formal document which includes the disabled person's name, indication that the disability is permanent, and the licensed medical professional's title (as described above) and signature.

Note: Although not required, a notarized written statement or an original written or electronic prescription is acceptable for issuance of Disabled Person license plates.

The written or electronic prescription should include the:

- disabled person's name,
- type of disability (permanent or temporary), and
- licensed medical professional's title (as described above) and signature.

3.9 Institutions, Facilities, & Residential Retirement Communities

Transportation Code, Sec. 504.203. Issuance of Disabled License Plates to Certain Institutions.

(a) The department shall issue specialty license plates under this subchapter for a van or bus operated by an institution, facility, or residential retirement community for the elderly or for veterans in which an eligible person resides, including:

(1) an institution that holds a license issued under Chapter 242, Health and Safety Code; or

(2) a facility that holds a license issued under Chapter 246 or 247 of that code.

(b) An application for license plates under this section must be accompanied by a written statement acknowledged by the administrator or manager of the institution, facility, or retirement community certifying that the institution, facility, or retirement community regularly transports, as a part of the services that the institution, facility, or retirement community provides, one or more eligible persons who reside in the institution, facility, or retirement community. The department shall determine the eligibility of the institution, facility, or retirement community on the evidence the applicant provides.

(c) The application and eligibility requirements for a license plate under this section are the same as those provided by Sections 504.201 and 504.202, as applicable.

Institutional Parking Placards

Transportation Code, Sec. 681.0032. Issuance of Disabled Parking Placards to Certain Institutions.

(a) The department shall provide for the issuance of disabled parking placards described by Section 681.002 for a van or bus operated by an institution, facility, or residential retirement community for the elderly in which a person described by Section 504.201(a) resides, including an institution licensed under Chapter 242, Health and Safety Code, and a facility licensed under Chapter 246 or 247 of that code.

(b) The application for a disabled parking placard must be made in the manner provided by Section 681.003(b) and be accompanied by a written statement signed by the administrator or manager of the institution, facility, or retirement community certifying to the department that the institution, facility, or retirement community regularly transports, as a part of the services that the institution, facility, or retirement community provides, one or more persons described by Section 504.201(a) who reside in the institution, facility, or retirement community. The department shall determine the eligibility of the institution, facility, or retirement community on the evidence the applicant provides.

Institutions, facilities, and residential retirement communities which are licensed under Chapter 242, 246, or 247 of the Health and Safety Code may obtain BLUE Disabled Parking Placards and/or Disabled Person license plates, or Disabled Veteran license plates, for vans or buses operated for the transport of their residents. A Texas Vehicle Registration Receipt must be provided for each van or bus for which placards and/or license plates are requested.

The application for a Parking Placard must be made in the manner described above and be accompanied by a completed *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214), or written statement signed by the administrator or manager of the institution, facility or retirement community certifying to the TxDMV that they transport one or more disabled persons who reside at the facility as part of the services they provide. In these instances, a signature is not required on the application for Disabled Person license plates and/or identification placards.

In lieu of the Form VTR-214, the administrator or manager may prepare a statement that indicates the following:

- The name and address of the institution, facility, or retirement community;
- The administrator or manager's name; a statement that the institution, facility, or retirement community transports disabled persons; and
- A statement that the institution, facility, or retirement community is licensed by a Texas state agency; and provides the facility number issued by the agency.

Institutions, facilities, or residential retirement communities are not restricted in the quantity of Disabled Person license plates or placards they can obtain. However, the institution, facility, or residential retirement community must submit a Texas Vehicle Registration Receipt for each van or bus for which Disabled Person license plates or parking placards are requested.

If the Vehicle Registration Receipt indicates that the van or bus is not owned by the institution, facility, or residential retirement community, then a separate written statement is also submitted, stating that the van or bus is in the possession and control of the institution, facility, or residential retirement community and that it is operated for the transportation of its residents with disabilities.

3.10 Lost or Destroyed Placard

If a placard is lost or destroyed, the applicant may obtain a replacement placard if they are able to submit a copy of the original, completed *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214), verifying that a placard was issued. If the applicant does not have a copy of the form, and the county tax assessor-collector's office cannot verify that a placard was issued, the applicant must submit a new Form VTR-214 with the disability statement completed and notarized physician's or applicable signature (or a separate written or electronic prescription).

3.11 Renewal

To renew a blue parking placard, the following must be submitted to the applicant's local county tax assessor-collector's office:

- a new *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214) (not the disability statement), including the signature of the applicant; and
- the expiring placard(s) or a copy of the original Form VTR-214. If the applicant does not have a copy of the form and the county tax assessor-collector's office cannot verify that a placard was issued, the applicant must submit a new Form VTR-214 with the disability statement completed and notarized physician's or applicable signature (or a separate written or electronic prescription).

Note: The above also applies to out-of-state/country residents with a permanent disability seeking medical treatment in Texas, when their six-month placard expires before medical treatment ends.

A new Form VTR-214 is not required when renewing Disabled Person license plates.

3.12 Placard Database

The Electronic Placard Database provides the county tax assessor-collector's offices with the ability to inquire by:

- Applicant ID (Driver License/Identification Card [DL/ID]),
- Existing Placard Number(s),
- Name (first, middle and/or last), and
- Institution Name to verify the number of placards issued.

The database is also accessible by law enforcement through the Texas Law Enforcement Telecommunications System (TLETS). Law enforcement will have query capability using the Placard Number and/or a DL/ID Number.

The inquiry will provide:

- The name of the disabled person or institution and address,
- The applicant's ID, which may include:
  - TDL of Disabled Person,
  - TDL on Behalf of Disabled Person,
  - Texas ID of Disabled Person,
  - Texas ID on Behalf of Disabled Person,
  - Facility #,
  - Out-of-State/Country Driver License,
  - Out-of-State/Country ID,
  - Military ID,
  - Dates Placard is Valid, and
  - County Issued.

Note: Placards issued prior to December 17, 2008, will not be in the database.

3.13 Parking Privileges

Transportation Code, Sec. 681.006. Parking Privileges: Persons with Disabilities.

(a) Subject to Section 681.009(e), a vehicle may be parked for an unlimited period in a parking space or area that is designated specifically for persons with physical disabilities if:

(1) the vehicle is being operated by or for the transportation of a person with a disability; and

(2) there are:

(A) displayed on the vehicle special license plates issued under Section 504.201; or

(B) placed on the rearview mirror of the vehicle's front windshield a disabled parking placard.

(b) The owner of a vehicle is exempt from the payment of a fee or penalty imposed by a governmental unit for parking at a meter if:

(1) the vehicle is being operated by or for the transportation of a person with a disability; and

(2) there are:

(A) displayed on the vehicle special license plates issued under Section 504.201; or

(B) placed on the rearview mirror of the vehicle's front windshield a disabled parking placard.

(c) The exemption provided by Subsection (b) or (e) does not apply to a fee or penalty:

(1) imposed by a branch of the United States government; or

(2) imposed by a governmental unit for parking at a meter, in a parking garage or lot, or in a space located within the boundaries of a municipal airport.

(d) This section does not permit a vehicle to be parked at a time when or a place where parking is prohibited.

(e) A governmental unit may provide by ordinance or order that the exemption provided by Subsection (b) also applies to payment of a fee or penalty imposed by the governmental unit for parking in a parking garage or lot or in a space with a limitation on the length of time for parking.

Transportation Code, Sec. 681.007. Parking Privileges: Vehicles Displaying International Symbol of Access.

A vehicle may be parked and is exempt from the payment of a fee or penalty in the same manner as a vehicle that has displayed on the vehicle special license plates issued under Section 504.201 or a disabled parking placard as provided by Section 681.006 if there is displayed on the vehicle a license plate or placard that:

(1) bears the international symbol of access; and

(2) is issued by a state or by a state or province of a foreign country to the owner or operator of the vehicle for the transportation of a person with a disability.

Only vehicles operated by or for the transportation of a disabled person are eligible to park in areas or spaces that are designated specifically for disabled persons.

Blue and Red Placards

Vehicles displaying Disabled Parking Placards may park in any parking space designated specifically for disabled persons.

Disabled Person License Plates

Vehicles displaying Disabled Person license plates may park in any disabled parking space.

Disabled Veteran ISA License Plates

Vehicles displaying Disabled Veteran International Symbol of Access (ISA) license plates may park in any disabled parking space.

Disabled Peace Officer ISA License Plates

Vehicles displaying Disabled Peace Officer ISA license plates may park in any disabled parking space.

Parking Fees

Owners of vehicles displaying Blue or Red Disabled Parking Placards or Disabled Person license plates are exempt from the payment of a fee or penalty imposed by a governmental unit for parking at a meter if the vehicles are being operated by or for the transportation of persons with a disability (Transportation Code, Sec. 681.008. Parking Privileges: Certain Veterans and Military Award Recipients.).

This exemption does not apply to a fee or penalty imposed by:

- a branch of the U.S. government, or

- a governmental unit for parking at a meter, in a parking garage or lot, or in a space located within the boundaries of a municipal airport.

Owners of vehicles displaying certain military license plates, as specified in Transportation Code, Sec. 681.008, are exempt from the payment of parking fees, including a fee collected through a parking meter, charged by a governmental authority other than a branch of the federal government. These vehicles are only exempt from the parking fees if they are being operated by or for the transportation of the person who registered the vehicle with the above mentioned license plates.

Statute grants reciprocal parking privileges to the owner or operator of a vehicle used for the transportation of disabled persons when the vehicle displays a license plate or identification card that bears the International Symbol of Access issued by another state or country.

Note: Governmental units, by ordinance or order, may waive the fees for parking lots or garages.

3.14 Veterans with Disabilities

Refer to Chapter 19, "Military Specialty License Plates", for information regarding veterans with disabilities.

3.15 Enforcement

Transportation Code, Sec. 681.010. Enforcement.

(a) A peace officer or a person designated by a political subdivision to enforce parking regulations may file a charge against a person who commits an offense under this chapter at a parking space or area designated as provided by Section 681.009.

(b) A security officer commissioned under Chapter 1702, Occupations Code, and employed by the owner of private property may file a charge against a person who commits an offense under this chapter at a parking space or area designated by the owner of the property as provided by Section 681.009.

3.16 Enforcement by Appointed Persons

Transportation Code, Sec. 681.0101. Enforcement by Certain Appointed Persons.

(a) A political subdivision may appoint a person to have authority to file a charge against a person who commits an offense under this chapter.

(b) A person appointed under this section must:

(1) be a United States citizen of good moral character who has not been convicted of a felony;

(2) take and subscribe to an oath of office that the political subdivision prescribes; and

(3) successfully complete a training program of at least four hours in length developed by the political subdivision.

(c) A person appointed under this section:

(1) is not a peace officer;

(2) has no authority other than the authority applicable to a citizen to enforce a law other than this chapter; and

(3) may not carry a weapon while performing duties under this section.

(d) A person appointed under this section is not entitled to compensation for performing duties under this section or to indemnification from the political subdivision or the state for injury or property damage the person sustains or liability the person incurs in performing duties under this section.

(e) The political subdivision and the state are not liable for any damage arising from an act or omission of a person appointed under Subsection (a) in performing duties under this section.

3.17 Offenses

Transportation Code, Sec. 681.011. Offenses; Presumption.

(a) A person commits an offense if:

(1) the person stands a vehicle on which are displayed license plates issued under Section 504.201 or 504.202(b-1) or a disabled parking placard in a parking space or area designated specifically for persons with disabilities by:

(A) a political subdivision; or

(B) a person who owns or controls private property used for parking as to which a political subdivision has provided for the application of this section under Subsection (f); and

(2) the standing of the vehicle in that parking space or area is not authorized by Section 681.006, 681.007, or 681.008.

(b) A person commits an offense if the person stands a vehicle on which license plates issued under Section 504.201 or 504.202(b-1) are not displayed and a disabled parking placard is not displayed in a parking space or area designated specifically for individuals with disabilities by:

(1) a political subdivision; or

(2) a person who owns or controls private property used for parking as to which a political subdivision has provided for the application of this section under Subsection (f).

(c) A person commits an offense if the person stands a vehicle so that the vehicle blocks an architectural improvement designed to aid persons with disabilities, including an access aisle or curb ramp.

(d) A person commits an offense if the person lends a disabled parking placard issued to the person to a person who uses the placard in violation of this section.

(e) In a prosecution under this section, it is presumed that the registered owner of the motor vehicle is the person who left the vehicle standing at the time and place the offense occurred.

(f) A political subdivision may provide that this section applies to a parking space or area for persons with disabilities on private property that is designated in compliance with the identification requirements referred to in Section 681.009(b).

(f-1) It is not a defense to prosecution for an offense under Subsection (a) or (b) that the parking space or area designated specifically for persons with disabilities is not designated in compliance with the standards and specifications referred to in Section 681.009(b) if the parking space or area is generally in compliance with those standards and specifications and is clearly distinguishable as being designated specifically for persons with disabilities.

(f-2) A peace officer may issue a warning but may not issue a citation for an offense under Subsection (a) or (b) to a person who stands a vehicle in a parking space or area designated specifically for persons with disabilities that does not have a parking space identification sign identifying the parking space in accordance with the requirements of the standards and specifications referred to in Section 681.009(b).

(g) Except as provided by Subsections (h)-(k), an offense under this section is a misdemeanor punishable by a fine of not less than $500 or more than $750.

(h) If it is shown on the trial of an offense under this section that the person has been previously convicted one time of an offense under this section, the offense is punishable by:

(1) [2 Versions: As added by Acts 2009, 81st Leg., ch.1160] a fine of not less than $550 or more than $800; and

(1) [2 Versions: As added by Acts 2009, 81st Leg., ch.1336] a fine of not less than $500 or more than $800; and

(2) 10 hours of community service.

(i) If it is shown on the trial of an offense under this section that the person has been previously convicted two times of an offense under this section, the offense is punishable by:

(1) a fine of not less than $550 or more than $800; and

(2) [2 Versions: As amended by Acts 2009, 81st Leg., ch.1160] not less than 20 hours or more than 30 hours of community service.

(2) [2 Versions: As amended by Acts 2009, 81st Leg., ch.1336] 20 hours of community service.

(j) If it is shown on the trial of an offense under this section that the person has been previously convicted three times of an offense under this section, the offense is punishable by:

(1) a fine of not less than $800 or more than $1,100; and

(2) [2 Versions: As amended by Acts 2009, 81st Leg., ch.1160] 50 hours of community service.

(2) [2 Versions: As amended by Acts 2009, 81st Leg., ch.1336] 30 hours of community service.

(k) If it is shown on the trial of an offense under this section that the person has been previously convicted four times of an offense under this section, the offense is punishable by a fine of $1,250 and 50 hours of community service.

(l) A person commits an offense if the person:

(1) stands a vehicle on which are displayed license plates issued under Section 504.201 or 504.202(b-1) a disabled parking placard in a parking space or area for which this chapter creates an exemption from payment of a fee or penalty imposed by a governmental unit;

(2) does not have a disability;

(3) is not transporting a person with disability; and

(4) does not pay any applicable fee related to standing in the space or area imposed by a governmental unit or exceeds a limitation on the length of time for standing in the space or area.

(m) Subsections (n) and (o) apply only to a person who commits an offense under Subsection (b) when the vehicle:

(1) displays special license plates issued under Section 504.202 other than special license plates issued under Section 504.202(b-1); and

(2) does not display a disabled parking placard.

(n) Notwithstanding Subsections (g)-(k), an offense described by Subsection (m) is a misdemeanor punishable by a fine of not less than $25 or more than $200 or not more than 10 hours of community service, except that:

(1) if the person has previously been convicted one time of an offense described by Subsection (m) or received a dismissal under Subsection (o), the offense is punishable by:

(A) a fine of not less than $200 or more than $400; or

(B) not less than 10 hours or more than 20 hours of community service; and

(2) if the person has previously been convicted two times of an offense described by Subsection (m) or if the person has previously received a dismissal under Subsection (o) and previously been convicted one time of an offense described by Subsection (m), the offense is punishable by:

(A) a fine of not less than $400 or more than $750; or

(B) not less than 20 hours or more than 30 hours of community service.

(o) The court shall dismiss a charge for an offense described by Subsection (m) if the person:

(1) has not been previously convicted of an offense described by that subsection;

(2) has not previously received a dismissal under this subsection; and

(3) submits an application for a specialty license plate that includes the symbol described by Section 504.201(f) within six months after the date the person was charged with the offense.

A violation cannot be dismissed even if the political subdivision has failed to mark the parking space that complies with Texas Law as long as it is in general compliance and has distinguishable markings that it is a designated accessible parking space for people who have disabilities. A warning may be issued for unlawfully parking in a space designated for persons with disabilities if there is no above-grade sign as described by law.

Law enforcement can seize a Disabled Person Placard if the first four digits of the Driver License, Identification Card, or Military Identification on the placard do not belong to the person operating the vehicle, the applicant on behalf of the disabled person, or the disabled person.

3.18 Counterfeit Placards

Transportation Code, Sec. 681.0111. Manufacture, Sale, Possession, or Use of Counterfeit or Altered Placard.

(a) A person commits an offense if, without the department's authorization, the person:

(1) manufactures, sells, or possesses a placard that is deceptively similar to a disabled parking placard; or

(2) alters a genuine disabled parking placard.

(b) A person commits an offense if the person knowingly parks a vehicle displaying a counterfeit or altered placard in a parking space or area designated specifically for persons with disabilities.

(c) An offense under Subsection (a) is a Class A misdemeanor. An offense under Subsection (b) is a Class C misdemeanor.

(d) For purposes of this section, a placard is deceptively similar to a disabled parking placard if the placard is not a genuine disabled parking placard but a reasonable person would presume that it is a genuine disabled parking placard.

3.19 Seizure and Revocation of Placards

Transportation Code, Sec. 681.012. Seizure and Revocation of Placard.

(a) A law enforcement officer who believes that an offense under Section 681.011(a) or (d) has occurred in the officer's presence shall seize any disabled parking placard involved in the offense. Not later than 48 hours after the seizure, the officer shall determine whether probable cause existed to believe that the offense was committed. If the officer does not find that probable cause existed, the officer shall promptly return each placard to the person from whom it was seized. If the officer finds that probable cause existed, the officer, not later than the fifth day after the date of the seizure, shall destroy the placard and notify the department.

(a-1) A peace officer may seize a disabled parking placard from a person who operates a vehicle on which a disabled parking placard is displayed if the peace officer determines by inspecting the person's driver's license, personal identification certificate, or military identification that the disabled parking placard does not contain the first four digits of the driver's license number, personal identification certificate number, or military identification number and the initials of:

(1) the person operating the vehicle;

(2) the applicant on behalf of a person being transported by the vehicle; or

(3) a person being transported by the vehicle.

(a-2) A peace officer shall destroy a seized placard and notify the department.

(b) On seizure of a placard under Subsection (a) or (a-1), a placard is revoked. A person from whom the placard was seized may apply for a new placard by submitting an application under Section 681.003.

Seizures

A law enforcement officer may seize a Disabled Parking Placard that the officer believes is being used illegally.

Within 48 hours after the placard is seized, the officer must determine if probable cause existed to believe that there was an offense committed.

If it is determined that probable cause did not exist, the placard is returned to the person.

If it is determined that probable cause did exist, no later than the fifth day after the placard is seized, the law enforcement officer must destroy the placard and notify the TxDMV's Vehicle Data Management unit (VDM). VDM will revoke the placard in the Placard Database. In order to revoke the placard, law enforcement will need to provide the following by email or fax:

- placard holder's name and address;
- an image of the seized placard, if available (at a minimum, submit a legible placard number);
- a copy of the citation issued under Transportation Code, Sec. 681.011(a) or (d) with a legible citation or case number; and
- a brief summary of the events leading to the citation.

Note: If these items are submitted to the county tax assessor-collector's office, the tax office should immediately forward them, along with the name and address of the law enforcement agency.

Revoked Placards

If a placard is marked "Revoked" in the placard database, the applicant can apply for a new placard. The applicant will need to complete and sign *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214), but will not need to complete the disability statement section.

Chapter 4

DRIVER'S PRIVACY PROTECTION ACT

This chapter contains the following sections:

- ***4.1*** Release of Vehicle Registration Information
- ***4.2*** Motor Vehicle Records Disclosure Act
- ***4.3*** Release of Personal Motor Vehicle Records Information
- ***4.4*** Permitted Disclosures
- ***4.5*** Thumb or Finger Images
- ***4.6*** Fees
- ***4.7*** Additional Conditions
- ***4.8*** Resale or Redisclosure
- ***4.9*** Organization of Records
- ***4.10*** False Representation Penalties
- ***4.11*** Ineligible Persons
- ***4.12*** Federal DPPA and Texas MVRDA
- ***4.13*** In Summary

4.1 Release of Vehicle Registration Information

Inquiries

If an individual wants to obtain registration information by license plate number, they may do so by submitting a completed *Request for Texas Motor Vehicle Information* (Form VTR-275) to a TxDMV Regional Service Center or the headquarters office in Austin.

If personal information, motor vehicle title, or registration information is requested under the Public Information Act, it may only be released to the requestor in accordance with the provisions of Transportation Code, Chapter 730, Motor Vehicle Records Disclosure Act.

The Texas Public Information Act (Government Code, Chapter 552) provides information "…that is collected, assembled, or maintained under a law or ordinance or in connection with the transaction of official business by a governmental body or for a governmental body…" is public information and must be made available to the public (Sec. 552.021). However, Chapter 552 also provides exceptions for certain types of requests and certain information.

Exceptions

Government Code, Sec. 552.130. Exception: Confidentiality of Certain Motor Vehicle Records.

(a) Information is excepted from the requirements of Section 552.021 if the information relates to:

(1) a motor vehicle operator's or driver's license or permit issued by an agency of this state or another state or country;

(2) a motor vehicle title or registration issued by an agency of this state or another state or country; or

(3) a personal identification document issued by an agency of this state or another state or country or a local agency authorized to issue an identification document.

(b) Information described by Subsection (a) may be released only if, and in the manner, authorized by Chapter 730, Transportation Code.

(c) Subject to Chapter 730, Transportation Code, a governmental body may redact information described by Subsection (a) from any information the governmental body discloses under Section 552.021 without the necessity of requesting a decision from the attorney general under Subchapter G.

(d) If, under Subsection (c), a governmental body redacts or withholds information without requesting a decision from the attorney general about whether the information may be redacted or withheld, the requestor is entitled to seek a decision from the attorney general about the matter. The attorney general by rule shall establish procedures and deadlines for receiving information necessary to decide the matter and briefs from the requestor, the governmental body, and any other interested person. The attorney general shall promptly render a decision requested under this subsection, determining whether the redacted or withheld information was excepted from required disclosure to the requestor, not later than the 45th business day after the date the attorney general received the request for a decision under this subsection. The attorney general shall issue a written decision on the matter and provide a copy of the decision to the requestor, the governmental body, and any interested person who submitted necessary information or a brief to the attorney general about the matter. The requestor or the governmental body may appeal a decision of the attorney general under this subsection to a Travis County district court.

(e) A governmental body that redacts or withholds information under Subsection (c) shall provide the following information to the requestor on a form prescribed by the attorney general:

(1) a description of the redacted or withheld information;

(2) a citation to this section; and

(3) instructions regarding how the requestor may seek a decision from the attorney general regarding whether the redacted or withheld information is excepted from required disclosure.

Request for Vehicle Information from Incarcerated Individuals

Government Code, Sec. 552.028, relates to requests for information from incarcerated individuals.

Do not release information to an individual who is **imprisoned** or confined in a correctional facility unless the information specifically pertains to that individual. Determination of whether that requestor is an inmate is based on, but not limited to, a return address or the content of the request. Do not ask whether the requestor is imprisoned or confined in a correctional facility.

Correctional facility is defined as "a place designed by law for the confinement of a person arrested for, charged with, or convicted of a criminal offense." The term correctional facility includes municipal or county jails, a confinement facility operated by, or under contract with, any division of the Texas Department of Criminal Justice, and a community corrections facility operated by a community supervision and corrections department.

Permissible Inquiries

Government Code, Sec. 552.222. Permissible Inquiry by Governmental Body to Requestor.

(a) The officer for public information and the officer's agent may not make an inquiry of a requestor except to establish proper identification or except as provided by Subsection (b), (c), or (c-1).

(b) If what information is requested is unclear to the governmental body, the governmental body may ask the requestor to clarify the request. If a large amount of information has been requested, the governmental body may discuss with the requestor how the scope of a request might be narrowed, but the governmental body may not inquire into the purpose for which information will be used.

(c) If the information requested relates to a motor vehicle record, the officer for public information or the officer's agent may require the requestor to provide additional identifying information sufficient for the officer or the officer's agent to determine whether the requestor is eligible to receive the information under Chapter 730, Transportation Code. In this subsection, "motor vehicle record" has the meaning assigned that term by Section 730.003, Transportation Code.

(c-1) If the information requested includes a photograph described by Section 552.155(a), the officer for public information or the officer's agent may require the requestor to provide additional information sufficient for the officer or the officer's agent to determine whether the requestor is eligible to receive the information under Section 552.155(b).

(d) If by the 61st day after the date a governmental body sends a written request for clarification or discussion under Subsection (b) or an officer for public information or agent sends a written request for additional information under Subsection (c) the governmental body, officer for public information, or agent, as applicable, does not receive a written response from the requestor, the underlying request for public information is considered to have been withdrawn by the requestor.

(e) A written request for clarification or discussion under Subsection (b) or a written request for additional information under Subsection (c) must include a statement as to the consequences of the failure by the requestor to timely respond to the request for clarification, discussion, or additional information.

(f) Except as provided by Subsection (g), if the requestor's request for public information included the requestor's physical or mailing address, the request may not be considered to have been withdrawn under Subsection (d) unless the governmental body, officer for public information, or agent, as applicable, sends the request for clarification or discussion under Subsection (b) or the written request for additional information under Subsection (c) to that address by certified mail.

(g) If the requestor's request for public information was sent by electronic mail, the request may be considered to have been withdrawn under Subsection (d) if:

(1) the governmental body, officer for public information, or agent, as applicable, send the request for clarification or discussion under Subsection (b) or the written request for additional information under Subsection (c) by electronic mail to the same electronic mail address from which the original request was sent or to another electronic mail address provided by the requestor; and

(2) the governmental body, officer for public information, or agent, as applicable, does not receive from the requestor a written response or response by electronic mail within the period described by Subsection (d).

This law provides the authority to request sufficient information from a requestor to determine if they are eligible to receive the motor vehicle record information under Transportation Code, Chapter 730.

4.2 Motor Vehicle Records Disclosure Act

Short Title

Transportation Code, Sec. 730.001. Short Title.

This chapter may be cited as the Motor Vehicle Records Disclosure Act.

Purpose

Transportation Code, Sec. 730.002. Purpose.

The purpose of this chapter is to implement 18 U.S.C. Chapter 123 and to protect the interest of an individual in the individual's personal privacy by prohibiting the disclosure and use of personal information contained in motor vehicle records, except as authorized by the individual or by law.

Definitions

Transportation Code, Sec. 730.003. Definitions.

In this chapter:

(1) "Agency" includes any agency or political subdivision of this state, or an authorized agent or contractor of an agency or political subdivision of this state, that compiles or maintains motor vehicle records.

(2) "Disclose" means to make available or make known personal information contained in a motor vehicle record about a person to another person, by any means of communication.

(3) "Individual record" means a motor vehicle record obtained by an agency containing personal information about an individual who is the subject of the record as identified in a request.

(4) "Motor vehicle record" means a record that pertains to a motor vehicle operator's or driver's license or permit, motor vehicle registration, motor vehicle title, or identification document issued by an agency of this state or a local agency authorized to issue an identification document. The term does not include:

(A) a record that pertains to a motor carrier; or

(B) an accident report prepared under:

(i) Chapter 550; or

(ii) former Section 601.004 before September 1, 2017.

(5) "Person" means an individual, organization, or entity but does not include this state or an agency of this state.

(6) "Personal information" means information that identifies a person, including an individual's photograph or computerized image, social security number, driver identification number, name, address, but not the zip code, telephone number, and medical or disability information. The term does not include:

(A) information on vehicle accidents, driving or equipment-related violations, or driver's license or registration status; or

(B) information contained in an accident report prepared under:

(i) Chapter 550; or

(ii) former Section 601.004 before September 1, 2017.

(7) "Record" includes any book, paper, photograph, photostat, card, film, tape, recording, electronic data, printout, or other documentary material regardless of physical form or characteristics.

4.3 Release of Personal Motor Vehicle Records Information

Transportation Code, Sec. 730.004. Prohibition on Disclosure and Use of Personal Information from Motor Vehicle Records.

Notwithstanding any other provision of law to the contrary, including Chapter 552, Government Code, except as provided by Sections 730.005-730.007, an agency may not disclose personal information about any person obtained by the agency in connection with a motor vehicle record.

Required Disclosure

Transportation Code, Sec. 730.005. Required Disclosure.

Personal information obtained by an agency in connection with a motor vehicle record shall be disclosed for use in connection with any matter of:

(1) motor vehicle or motor vehicle operator safety;

(2) motor vehicle theft;

(3) motor vehicle emissions;

(4) motor vehicle product alterations, recalls, or advisories;

(5) performance monitoring of motor vehicles or motor vehicle dealers by a motor vehicle manufacturer;

(6) removal of nonowner records from the original owner records of a motor vehicle manufacturer to carry out the purposes of:

(A) the Automobile Information Disclosure Act, 15 U.S.C. Section 1231 et seq.;

(B) 49 U.S.C. Chapters 301, 305, 323, 325, 327, 329, and 331;

(C) the Anti Car Theft Act of 1992, 18 U.S.C. Sections 553, 981, 982, 2119, 2312, 2313, and 2322, 19 U.S.C. Sections 1646b and 1646c, and 42 U.S.C. Section 3750a et seq., all as amended;

(D) the Clean Air Act, 42 U.S.C. Section 7401 et seq., as amended; and

(E) any other statute or regulation enacted or adopted under or in relation to a law included in Paragraphs (A)-(D);

(7) child support enforcement under Chapter 231, Family Code;

(8) enforcement by the Texas Workforce Commission under Title 4, Labor Code; or

(9) voter registration or the administration of elections by the secretary of state.

Required Disclosure with Consent

Transportation Code, Sec. 730.006. Required Disclosure with Consent.

Personal information obtained by an agency in connection with a motor vehicle record shall be disclosed to a requestor who demonstrates, in such form and manner as the agency requires, that the requestor has obtained the written consent of the person who is the subject of the information.

4.4 Permitted Disclosures

Transportation Code, Sec. 730.007. Permitted Disclosures.

(a) Personal information obtained by an agency in connection with a motor vehicle record may be disclosed to any requestor by an agency if the requestor:

(1) provides the requestor's name and address and any proof of that information required by the agency; and

(2) represents that the use of the personal information will be strictly limited to:

(A) use by:

(i) a government agency, including any court or law enforcement agency, in carrying out its functions; or

(ii) a private person or entity acting on behalf of a government agency in carrying out the functions of the agency;

(B) use in connection with a matter of:

(i) motor vehicle or motor vehicle operator safety;

(ii) motor vehicle theft;

(iii) motor vehicle product alterations, recalls, or advisories;

(iv) performance monitoring of motor vehicles, motor vehicle parts, or motor vehicle dealers;

(v) motor vehicle market research activities, including survey research; or

(vi) removal of nonowner records from the original owner records of motor vehicle manufacturers;

(C) use in the normal course of business by a legitimate business or an authorized agent of the business, but only:

(i) to verify the accuracy of personal information submitted by the individual to the business or the agent of the business; and

(ii) if the information is not correct, to obtain the correct information, for the sole purpose of preventing fraud by, pursuing a legal remedy against, or recovering on a debt or security interest against the individual;

(D) use in conjunction with a civil, criminal, administrative, or arbitral proceeding in any court or government agency or before any self-regulatory body, including service of process, investigation in anticipation of litigation, execution or enforcement of a judgment or order, or under an order of any court;

(E) use in research or in producing statistical reports, but only if the personal information is not published, redisclosed, or used to contact any individual;

(F) use by an insurer or insurance support organization, or by a self-insured entity, or an authorized agent of the entity, in connection with claims investigation activities, antifraud activities, rating, or underwriting;

(G) use in providing notice to an owner of a towed or impounded vehicle;

(H) use by a licensed private investigator agency or licensed security service for a purpose permitted under this section;

(I) use by an employer or an agent or insurer of the employer to obtain or verify information relating to a holder of a commercial driver's license that is required under 49 U.S.C. Chapter 313;

(J) use in connection with the operation of a private toll transportation facility;

(K) use by a consumer reporting agency, as defined by the Fair Credit Reporting Act (15 U.S.C. Section 1681 et seq.), for a purpose permitted under that Act; or

(L) use for any other purpose specifically authorized by law that relates to the operation of a motor vehicle or to public safety.

(b) The only personal information an agency may release under this section is the individual's:

(1) name and address;

(2) date of birth; and

(3) driver's license number.

(c) This section does not:

(1) prohibit the disclosure of a person's photographic image to:

(A) a law enforcement agency, the Texas Department of Motor Vehicles, a county tax assessor-collector, or a criminal justice agency for an official purpose;

(B) an agency of this state investigating an alleged violation of a state or federal law relating to the obtaining, selling, or purchasing of a benefit authorized by Chapter 31 or 33, Human Resources Code; or

(C) an agency of this state investigating an alleged violation of a state or federal law under authority provided by Title 4, Labor Code; or

(2) prevent a court from compelling by subpoena the production of a person's photographic image.

(d) Personal information obtained by an agency in connection with a motor vehicle record shall be disclosed to a requestor by an agency if the requestor:

(1) provides the requestor's name and address and any proof of that information required by the agency; and

(2) represents that the intent of the requestor is to use personal information in the motor vehicle record only for the purpose of preventing, detecting, or protecting against personal identity theft or other acts of fraud and provides any proof of the requestor's intent required by the agency.

(e) If the agency determines that the requestor intends to use personal information requested under Subsection (d) only for the represented purpose, the agency shall release to the requestor any requested personal information in the motor vehicle record.

(f) Personal information obtained by an agency under Section 411.0845, Government Code, in connection with a motor vehicle record may be disclosed as provided by that section.

4.5 Thumb or Finger Images

Transportation Code, Sec. 730.010. Disclosure of Thumb or Finger Images Prohibited.

Notwithstanding any other provision of this chapter, if an agency obtains an image of an individual's thumb or finger in connection with the issuance of a license, permit, or certificate to the individual, the agency may:

(1) use the image only:

(A) in connection with the issuance of the license, permit, or certificate; or

(B) to verify the identity of an individual as provided by Section 521.059; and

(2) disclose the image only if disclosure is expressly authorized by law.

4.6 Fees

Transportation Code, Sec. 730.011. Fees.

Unless a fee is imposed by law, an agency that has obtained information in connection with a motor vehicle may adopt reasonable fees for disclosure of that personal information under this chapter.

4.7 Additional Conditions

Transportation Code, Sec. 730.012. Additional Conditions.

(a) In addition to the payment of a fee adopted under Section 730.011, an agency may require a requestor to provide reasonable assurance:

(1) as to the identity of the requestor; and

(2) that use of the personal information will be only as authorized or that the consent of the person who is the subject of the information has been obtained.

(b) An agency may require the requestor to make or file a written application in the form and containing any certification requirement the agency may prescribe.

4.8 Resale or Redisclosure

Transportation Code, Sec. 730.013. Resale or Redisclosure.

(a) An authorized recipient of personal information may not resell or redisclose the personal information in the identical or a substantially identical format the personal information was disclosed to the recipient by the applicable agency.

(b) An authorized recipient of personal information may resell or redisclose the information only for a use permitted under Section 730.007.

(c) Any authorized recipient who resells or rediscloses personal information obtained from an agency shall be required by that agency to:

(1) maintain for a period of not less than five years records as to any person or entity receiving that information and the permitted use for which it was obtained; and

(2) provide copies of those records to the agency on request.

(d) A person commits an offense if the person violates this section. An offense under this subsection is a misdemeanor punishable by a fine not to exceed $25,000.

4.9 Organization of Records

Transportation Code, Sec. 730.014. Agency Rules; Organization of Records.

(a) Each agency may adopt rules to implement and administer this chapter.

(b) An agency that maintains motor vehicle records in relation to motor vehicles is not required to also maintain those records in relation to the individuals named in those records.

4.10 False Representation Penalties

Transportation Code, Sec. 730.015. Penalty for False Representation.

(a) A person who requests the disclosure of personal information from an agency's records under this chapter and misrepresents the person's identity or who makes a false statement to the agency on an application required by the agency under this chapter commits an offense.

(b) An offense under Subsection (a) is a Class A misdemeanor.

4.11 Ineligible Persons

Transportation Code, Sec. 730.016. Ineligibility of Certain Persons to Receive Personal Information.

(a) A person who is convicted of an offense under this chapter, or who violates a rule adopted by an agency relating to the terms or conditions for release of personal information to the person, is ineligible to receive personal information under Section 730.007.

(b) For purposes of Subsection (a), a person is considered to have been convicted in a case if:

(1) a sentence is imposed;

(2) the defendant receives probation or deferred adjudication; or

(3) the court defers final disposition of the case.

4.12 Federal DPPA and Texas MVRDA

The Texas Motor Vehicle Records Disclosure Act (MVRDA) (Transportation Code, Chapter 730) was enacted by the 75th Texas Legislature, 1997, to implement the provisions of the federal Driver's Privacy Protection Act (DPPA) (18 U.S.C. Chapter 123). These laws protect personal information contained in the motor vehicle records maintained by the TxDMV. The MVRDA became effective September 1, 1997.

In October 1999, the DPPA was amended to place further restrictions on the release of personal information from motor vehicle records. These amendments became law on December 1, 2000. Additionally, Transportation Code, Chapter 730 was amended by the 77th Texas Legislature, 2001, effective September 1, 2001.

As a result of the amendments to the DPPA, effective December 1, 2000, all motor vehicle records are "closed," and the release and use of **all** personal information contained in **all** motor vehicle records is now restricted.

Terms Used in this Section

Certification of a Required or Permitted Use

Written certification on a *Request for Texas Motor Vehicle Information* (Form VTR-275) or county-generated equivalent, that the personal information in the motor vehicle record is requested for a required or permitted use as provided for by law.

Express Written Consent

Before releasing personal information, you must have express written consent from the subject of the record. Only the personal information of the person providing the written consent may be released. *Request for Texas Motor Vehicle Information* (Form VTR-275) completed by the requestor is required in addition to the written authorization from the subject of the record. Such consent or written authorization may consist of:

- *Authorization for Release of Personal Information* (Form VTR-386)*;*
- A written statement that specifically authorizes the release of a person's personal information to another. The statement must include all the information required on the Form VTR-386; or
- *Limited Power of Attorney for Eligible Motor Vehicle Transactions* (Form VTR-271). A person presenting a Power of Attorney granted by a subject of the record has the same access to personal information as the subject and may obtain all personal information in the record.

Masking personal information refers to manually redacting the applicable personal information, then copying the record to eliminate the ability to read personal information.

Motor Vehicle record is any record that relates to a motor vehicle title or registration issued by the TxDMV. This includes records in any format, including paper, electronic, etc.

Non-personal information is any information in a motor vehicle record that does not identify or relate to a person. Non-personal information includes:

- Year,
- Make,
- Model,
- Weight,
- Vehicle Identification Number,
- Registration Expiration Date,
- County of Residence Information,
- Title Number (Document Number), and

- Status of the Record (i.e., Title Awaiting Release).

Person refers to an individual, organization, or entity, but does not include a state or agency of the state.

Personal information is any information that identifies a person, including:

- Name and Address of Current Owner,
- Name and Address of Previous Owner,
- License Plate Numbers,
- Temporary Permit Numbers,
- Dealer ePLATES,
- Temporary Timed Permits (72-Hour, 144-Hour),
- Temporary Registration Plates (30-Day, One-Trip),
- Fleet Registration Temporary Permit,
- Vehicle Transit Permit,
- Disabled Parking Placard Number,
- Lienholder Information, and
- Social Security Numbers (although SSN is no longer captured, some records may still reflect it).

Request for personal information requires a completed application Form VTR-275 or county-generated equivalent.

Subject of the record includes a person named in a motor vehicle record, including previous owners or lienholders. If a subject of the record is deceased, the appointed executor or administrator is regarded as the subject and is eligible to receive all personal information in that record.

Penalties

Violations of the provisions of the MVRDA and DPPA can result in civil and criminal penalties. Violations include falsifying statements, or knowingly, obtaining, disclosing, or using the information obtained from a motor vehicle record in violation of these laws. This includes verbal responses, either in-person by telephone, and/or correspondence.

Penalties can apply to anyone who obtains, has access to, uses, or releases/rediscloses motor vehicle information in violation including all employees of the TxDMV and county tax assessor-collector's offices, as well as subcontractors and deputies of those offices.

Written Request Required

A written request is required if personal information contained in a motor vehicle record is being requested. If requesting multiple records, the applicant may submit one written request and attach a listing of the additional records.

A written request **must** include:

- Who may obtain personal information from a motor vehicle record,
- Certification statements that are required in order to provide information from a motor vehicle record, including that:
  - The information is used for a lawful and legitimate purpose,

  - The information is used only in accordance with the federal DPPA and state MVRDA and only used for the required or permitted use indicated on the request, and
  - The requestor has no convictions of MVRDA violations (Chapter 730) or of a TxDMV rule relating to the terms or conditions for release of personal information.
- A listing of the required and permitted uses for which the information may be released,
- A warning statement regarding the penalties for violation of the provisions of these laws,
- A statement of conditions regarding resale and redisclosure of information obtained from motor vehicle records, and
- The signature, printed name, and government-issued photo identification number of the requestor, and the state/agency of issuance and expiration date of the identification.

Transportation Code, Chapter 730, provides that a requestor must provide their name, address, and any other information required to ensure the requestor's identity. Every requestor must provide their government-issued photo identification information.

Retention of Requests for Personal Information

All requests for personal information received by TxDMV offices are retained for a one year period. Any accompanying documentation, such as a photocopy of *Limited Power of Attorney for Eligible Motor Vehicle Transactions* (Form VTR-271) or *Authorization for Release of Personal Information* (Form VTR-386), is retained with the request.

Note: A requestor that has written authorization to obtain a subject's personal information may only receive that subject's personal information. Mask personal information of any other subject in that record.

Distribution of Surveys, Marketing, or Solicitation

The release or use of personal information from motor vehicle records for the purpose of "bulk distribution of surveys, marketing, or solicitations" is strictly prohibited.

Resale and Redisclosure of Personal Information

The MVRDA and DPPA provide specific provisions that restrict the resale and redisclosure of personal information obtained from a motor vehicle record. The original requestor of the personal information:

- May resell or redisclose the personal information only for a permitted use,
- May not resell or redisclose the personal information in an "identical or substantially identical" format,
- Must maintain records for five years of the person the personal information was provided to and the permitted use it was obtained for, and
- Must provide copies of those records to the TxDMV upon request.

Non-personal information may be released without restriction.

Electronic Access to Texas Motor Vehicle Records

Businesses and individuals that routinely need to verify Texas motor vehicle record information, such as dealerships, insurance companies, or lienholders, may enter into a contract with the TxDMV to access Texas motor vehicle records via the internet. Access is provided only to entities that certify the information will be used for a required or permitted use. The TxDMV can assist with inquiries regarding this service.

Guidelines for Release of Personal Information

The TxDMV can only advise county tax assessor-collector's offices with general guidance to questions regarding the MVRDA and DPPA restrictions. The county tax assessor-collector's office is encouraged to seek legal advice from its county attorneys for any questions regarding the release of personal information and compliance with the provisions of the law.

Provide printouts or vehicle inquiries, if the request is from:

- The subject of the record, provide the entire record;
- A person who certifies a required or permitted use, provide the entire record;
- A person who provides the express written consent of a subject, provide only that subject's personal information (mask ALL other personal information); or
- A person who does not fall under any of the above, provide only the non-personal information (mask ALL personal information).

Faxed Requests for Information

A *Request for Texas Motor Vehicle Information* (Form VTR-275), is accepted by fax to assist certain callers with a title or registration related concern. The acceptance of a fax request is limited to a subject of the record, law enforcement offices, governmental agencies, and other jurisdictions. A copy of the requestor's photo identification is required to be submitted with a faxed Form VTR-275.

Acceptance of faxed requests for information submitted to a county tax assessor-collector's office is at the discretion of that office.

Title and Registration Transactions

When a title or registration transaction is processed and a receipt is issued, personal information concerning the owner and/or lienholder is released or disclosed. Consider who is filing or submitting the transaction and whether they are already in possession of the personal information that is disclosed on the title or registration receipt.

Caution should be taken when processing such a transaction that is presented by someone other than the "subject" of record. Keep in mind that, in many cases when a third-party applicant (someone other than the owner or lienholder) presents a title application or registration renewal notice, that person is already in possession of the personal information that will be printed on the receipt. In this situation, when the receipt is issued, personal information is not actually disclosed. This would apply to situations such as a dealer title transaction and registration or title transactions processed by a title service or lending institution.

If someone other than the owner requests to register a vehicle and does not present the registration renewal notice or previous year's registration receipt, authorization from the owner to register the vehicle must be required prior to issuing the registration and subsequent receipt, that discloses the owner's personal information. Such authorization could include a completed *Limited Power of Attorney for Eligible Motor Vehicle Transaction*s (Form VTR-271) or *Power of Attorney for Transfer of Ownership to a Motor Vehicle* (Form VTR-271-A), or a written statement from the owner(s) authorizing issuance of the registration.

Microfilm Documents/Title Histories

To protect the personal information of all previous owners of a motor vehicle, microfilm documents and title histories are available only to persons that certify the information is used for a required or permitted use.

A *Request for Texas Motor Vehicle Information* (Form VTR-275) certifying the required or permitted use should be submitted with each request for microfilm documents, except those requests made by court orders or subpoenas.

Court Order/Subpoena

The TxDMV complies with subpoenas or court orders requiring the TxDMV to provide copies of microfilm documents. A *Request for Texas Motor Vehicle Information* (Form VTR-275) is not required.

Written Responses to Inquiries or Correspondence

Do not disclose personal information (i.e., in the address, body of the letter, or cc's) when sending correspondence relating to title or registration records, if the letter is being sent to someone other than a subject of the record. Sending a “bc” (blind copy) to an owner or lienholder when the correspondence is addressed to a third party will prevent the release of restricted personal information.

Requests from Law Enforcement Agencies

Many law enforcement agencies have access to motor vehicle records through the Texas Law Enforcement Telecommunications System (TLETS). However, if a law enforcement agency requests information directly through the TxDMV or county tax assessor-collector’s office, and not through TLETS, they must submit a *Request for Texas Motor Vehicle Information* (Form VTR-275) or county-generated equivalent.

4.13 In Summary

- The wording of the statement on page one of the *Request for Texas Motor Vehicle Information* (Form VTR-275) specifies that no other Acts (such as Public Information or Open Records) supersede the Driver’s Privacy Protection Act.
- The Permitted Use section on page two of the Form VTR-275 states that customers must handwrite their initials next to the appropriate permitted reasons for the release of information.

DPPA protected personal information includes the following:

- Name and address of vehicle owner,
- Name and address of previous owner,

- Name and address of lienholder,
- License plate number,
- Disabled placard numbers, and
- Temporary permit numbers.

To ensure the privacy of vehicle records, the following procedures must be followed at all times.

Release of Personal Information

Personal information may not be released unless the customer presents current photo identification containing a unique identification number. A completed *Request for Texas Motor Vehicle Information* (Form VTR-275) and the applicable fee also are required in the instances below. The TxDMV does not release personal information via telephone, email, correspondence, or in-person without obtaining and verifying all of the following:

- A current government-issued photo identification such as a:
  - driver license or state identification certificate issued by a state or territory of the United States,
  - United States or foreign passport,
  - United States military identification card,
  - North Atlantic Treaty Organization identification or identification issued under a Status of Forces Agreement,
  - United States Department of Homeland Security, United States Citizenship and Immigration Services, or United States Department of State identification document,
  - copy of current law enforcement credentials if the requestor is a law enforcement officer, or
  - concealed handgun license or license to carry a handgun issued by the DPS under Government Code, Chapter 411, Subchapter H.

Personal information may be released to an in-person customer who is the owner or subject of record once identification has been verified with a current photo identification containing a unique identification number. The Form VTR-275, the applicable fee and a current photo identification are required if a printed copy of the information is requested.

For in-person customers who are not the owner or subject of record, a current photo identification containing a unique identification number, the Form VTR-275 with a permitted use initialed and the applicable fee are required before personal information may be provided.

Counties that do not have their own DPPA forms may use Form VTR-275.

Counties may continue to support law enforcement inquiries if you are able to verify their identity. It is recommended that requests for vehicle owner information be routed to a supervisor for approval or referred to the TxDMV. In the absence of a Form VTR-275, counties should document (e.g., log name of officer, identification type, issuing entity, number provided, date of contact, information requested) for their own protection in case questions arise.

Verification of Personal Information

Information in the vehicle record may be verbally verified to a customer in-person or by phone. In this situation, the customer must provide the license plate, vehicle identification number, or title document number and information, such as owner address, they want verbally verified. Counties may then verbally confirm only the information provided by the customer.

Chapter 5

EMISSIONS

This chapter contains the following sections:

- ***5.1*** Registration-Based Enforcement of Motor Vehicle Inspection Requirements
- ***5.2*** Texas Emissions Reduction Plan Surcharge
- ***5.3*** Counties Requiring Emissions Inspections

5.1 Registration-Based Enforcement of Motor Vehicle Inspection Requirements

Transportation Code, Sec. 502.047. Registration-Based Enforcement of Motor Vehicle Inspection Requirements.

(a) Except as provided by Chapter 548, the department and the Department of Public Safety shall ensure compliance with motor vehicle inspection requirements under Chapter 548, through a vehicle registration-based enforcement system.

(b) A motor vehicle may not be registered if the department receives from the Texas Commission on Environmental Quality or the Department of Public Safety notification that the registered owner of the vehicle has not complied with Chapter 548.

(c) A motor vehicle may not be registered if the vehicle was denied registration under Subsection (b) unless verification is received that the registered vehicle owner is in compliance with Chapter 548.

(d) The department and the Department of Public Safety shall enter into an agreement regarding the timely submission by the Department of Public Safety of inspection compliance information to the department.

(d-1) The department, the Texas Commission of Environmental Quality, and the Department of Public Safety shall enter an agreement regarding the responsibilities for costs associated with implementing this section.

(e) A county tax assessor-collector is not liable to any person for refusing to register a motor vehicle because of the person's failure to provide verification of the person's compliance with Chapter 548.

Vehicles Subject To Program

The inspection and maintenance (I/M) program applies to any gasoline-powered motor vehicle that:

- requires registration in and primarily operated in affected counties, and
- is two to 24 years old.

The program also applies to:

- a vehicle with United States governmental license plates primarily operated in affected counties,

- a vehicle operated on a federal facility in affected counties, and
- a vehicle primarily operated in affected counties that is exempt from motor vehicle registration requirements or is eligible under Transportation Code, Sec. 502.451. Exempt Vehicles., to display an Exempt license plate.

Failing Vehicles

If a vehicle fails to comply with the vehicle emissions and I/M program, the Texas Commission on Environmental Quality (TCEQ) informs the TxDMV of the failure and a notation is placed on the vehicle record. The remark will display "TCEQ-EMISSIONS PGRM NON-COMPLIANCE." Contact the TCEQ at 1-888-295-0141 for questions regarding this notation or for compliance verification.

The tax assessor-collector may not issue registration or renew registration to any vehicle with which this notation appears, unless the owner provides one of the following:

- Vehicle Inspection Report (VIR) showing a passing inspection.
- DPS waiver/affidavit indicating the vehicle is in compliance, or
- A verification of compliance with the I/M program by accessing vehicle inspection record through www.mytxcar.org.

Once the tax assessor-collector verifies that the vehicle is in compliance, they issue registration or renewal, and the notation is automatically removed from the vehicle record.

If the notation "DPS-EMISSIONS PGRM NON-COMPLIANCE" is on the vehicle record, the vehicle fails program compliance. Contact the DPS at 512-424-7293 for questions regarding this notation.

The tax assessor-collector, as a prerequisite to issuing registration or renewal, must verify that the vehicle subsequently passed the emissions testing.

- Verification consists of a form issued by the DPS, signed by a certified vehicle inspector, that the vehicle passes its emissions inspection. The form should have the date the vehicle passed the vehicle emissions inspection, as well as the vehicle identification number and description of the vehicle.
- If the registered owner of a vehicle presents a certificate issued by the DPS that issues a waiver to the vehicle, the tax assessor-collector may issue registration, or renewal for that vehicle.

If a vehicle registered in a county adjacent to an affected county is operating and exceeding acceptable emissions limitations in an affected county, DPS will provide a notice to the registered owner of the vehicle.

- The notice explains how the owner must proceed to obtain and pass an emissions inspection.
- If the registered owner of the vehicle fails to comply, a notation is placed on the vehicle record and renewal of the vehicle is denied until proof that the vehicle passed an emissions inspection is submitted.

If the owner of a vehicle that failed emissions compliance relocates to a non-affected county, the owner must submit to the county tax assessor-collector's office at time of renewal, either a DPS Affidavit (VIE-12) or a Vehicle Inspection Report that includes an emissions inspection waiver notation.

Note: A county tax assessor-collector's office may issue a 30-Day Temporary Registration Plate to a vehicle with the TCEQ-EMISSIONS PGRM NON-COMPLIANCE remark if the applicant provides a Vehicle Inspection Report (VIR) showing a passing inspection by contacting their local TxDMV Regional Service Center for an Authorization Code.

Vehicles Not Subject to the Program

The program does not apply to a:

- motorcycle, military tactical vehicle, diesel-powered vehicle, dual-fueled vehicle that cannot operate using gasoline, and antique vehicle.
- slow-moving vehicle, defined by Transportation Code, Sec. 547.001, as:
  - a motor vehicle designed to operate at a maximum speed of 25 MPH or less, or
  - implement of husbandry, or machinery, including road construction machinery, towed by an animal.

5.2 Texas Emissions Reduction Plan Surcharge

Transportation Code, Sec. 502.358. Texas Emissions Reduction Plan Surcharge.

(a) In addition to the registration fees charged under Section 502.255, a surcharge is imposed on the registration of a truck-tractor or commercial motor vehicle under that section in an amount equal to 10 percent of the total fees due for the registration of the truck-tractor or commercial motor vehicle under that section.

(b) The county tax assessor-collector shall remit the surcharge collected under this section to the comptroller at the time and in the manner prescribed by the comptroller for deposit in the Texas emissions reduction plan fund.

(c) This section expires on the last day of the state fiscal biennium during which the Texas Commission on Environmental Quality publishes in the Texas Register the notice required by Section 382.037, Health and Safety Code.

Fees

Collect the 10% registration fee emissions surcharge on truck-tractors and commercial motor vehicles that are subject to the combination fees.

- The 10% registration fee emissions surcharge includes Combination, Annual Permits, Seasonal Agriculture, Apportioned, and Forestry registrations that are subject to the combination fee chart.
- The 10% emissions surcharge also applies to additional weight applications, apportioned exchanges and transfers.

The 10% registration fee emissions surcharge does **not** apply to a truck displaying Truck license plates.

Note: Under the Tax Code, Sec. 152.0215, diesel-powered motor homes and RVs are exempt from the Texas Emissions Reduction Plan Sales Tax Surcharge, if the vehicle weighs over 14,000 lbs. and is not used commercially or for the production of income.

5.3 Counties Requiring Emissions Inspections

The following counties require emissions inspections and will not be eligible to renew their vehicle's annual registration if the vehicle has not passed its annual emissions inspection or complied with the vehicle emissions inspection program requirements.

- Brazoria
- Collin
- Dallas
- Denton
- Ellis
- El Paso
- Fort Bend
- Galveston
- Harris
- Johnson
- Kaufman
- Montgomery
- Parker
- Rockwall
- Tarrant
- Travis
- Williamson

Note: The Texas Commission on Environmental Quality (TCEQ) maintains this list. For updated information, visit the Texas Commission on Environmental Quality's website.

5.4 Emissions Inspection Exemptions and Affidavit Reasons

Motor vehicle owners who reside in one of the 17 emissions counties (Sec. 5.3) are required to obtain a passing emissions inspection for all gas-powered vehicles prior to registration. Department systems have been programmed to identify if an emissions inspection is needed and will attempt to locate this information in the inspection database. If the system does not find an emissions inspection, then the owner's motor vehicle may qualify for an Emissions exemption reason or obtain an emissions inspection.

When a passing emissions inspection is NOT found electronically in the inspection database, the following affidavit reasons will be displayed. Users are allowed one selection.

- Vehicle out of state. A remark will be placed on the vehicle record indicating an emissions inspection is still due and a passing emissions inspection must be completed upon returning to Texas. Law enforcement will not be able to electronically verify the passing emissions inspection so the owner must retain the inspection report inside their vehicle to show to law enforcement because the remark will not be removed at the time of emissions inspection
- Vehicle is not subject to the Texas Vehicle Emissions Inspection and Maintenance Program because the vehicle is not and will not be primarily operated in affected counties. This pertains to vehicles that are registered in an affected county but operated outside an affected county. Such as company fleet vehicles, hunting vehicles, etc.
- Vehicle is no longer subject to the Texas Vehicle Emissions Inspection and Maintenance Program because the vehicle is no longer and will no longer be primarily operated in affected counties. This pertains to vehicles registered in an affected county, but the owner does not currently reside in an affected county and will not operate over 60 days per calendar year in an affected county. Such as someone who moved from an affected county.
- Vehicle will not return to an affected county prior to the expiration of the current inspection certificate. This pertains to vehicles registered in an affected county, and primarily operated in an affected county, but outside county upon expiration of inspection certificate. Such as a student, vacationer, extended out-of-town business, etc.
- Military tactical vehicle or Slow-moving vehicle defined as a motor vehicle designed to operate at a maximum speed of 25 MPH or less.

Note: It is important to note that new vehicles do not require an emissions test for the first two years after purchase. Owners of new vehicles (current or preceding model year) that have not been previously registered in Texas or another state, will pay an initial Inspection Replacement Fee of $16.75 but are not required to obtain an emissions inspection. Those who pay the $16.75 fee are not required to pay the annual fee of $7.50 for the same vehicle the following registration year.

Chapter 6

EXEMPT LICENSE PLATES

This chapter contains the following sections:

- ***6.1*** General Provisions
- ***6.2*** Application for Standard Exempt License Plates
- ***6.3*** Regular Exempt License Plates
- ***6.4*** Alias Law Enforcement Vehicles

6.1 General Provisions

Transportation Code, Sec. 502.451. Exempt Vehicles.

(a) Before license plates are issued or delivered to the owner of a vehicle that is exempt by law from payment of registration fees, the department must approve the application for registration. The department may not approve an application if there is the appearance that:

(1) the vehicle was transferred to the owner or purported owner:

(A) for the sole purpose of evading the payment of registration fees; or

(B) in bad faith; or

(2) the vehicle is not being used in accordance with the exemption requirements.

(b) The department shall revoke the registration of a vehicle issued license plates under this section and may recall the plates if the vehicle is no longer:

(1) owned and operated by the person whose ownership of the vehicle qualified the vehicle for the exemption; or

(2) used in accordance with the exemption requirements.

(c) The department shall provide by rule for the issuance of specially designated license plates for vehicles that are exempt by law. Except as provided by Subsection (f), the license plates must bear the word "exempt."

(d) A license plate under Subsection (c) is not issued annually, but remains on the vehicle until:

(1) the registration is revoked as provided by Subsection (b); or

(2) the plate is lost, stolen, or mutilated.

(e) A person who operates on a public highway a vehicle after the registration has been revoked is liable for the penalties for failing to register a vehicle.

(f) The department shall provide by rule for the issuance of regularly designed license plates not bearing the word "exempt" for a vehicle that is exempt by law and that is:

(1) a law enforcement vehicle, if the agency certifies to the department that the vehicle will be dedicated to law enforcement activities;

(2) a vehicle exempt from inscription requirements under a rule adopted as provided by Section 721.003; or

(3) a vehicle exempt from inscription requirements under an order or ordinance adopted by a governing body of a municipality or commissioners court of a county as provided by Section 721.005, if the applicant presents a copy of the order or ordinance.

Transportation Code, Sec. 502.452. Limitation on Issuance of Exempt License Plates; Seizure of Certain Vehicles.

(a) The department may not issue exempt license plates for a vehicle owned by the United States, this state, or a political subdivision of this state unless when application is made for registration of the vehicle, the person who under Section 502.453 has authority to certify to the department that the vehicle qualifies for registration under that section also certifies in writing to the department that there is printed on each side of the vehicle, in letters that are at least two inches high or in an emblem that is at least 100 square inches in size, the name of the agency, department, bureau, board, commission, or officer of the United States, this state, or the political subdivision of this state that has custody of the vehicle. The letters or emblem must be of a color sufficiently different from the body of the vehicle to be clearly legible from a distance of 100 feet.

(b) The department may not issue exempt license plates for a vehicle owned by a person other than the United States, this state, or a political subdivision of this state unless, when application is made for registration of the vehicle, the person who under Section 502.453 has authority to certify to the department that the vehicle qualifies for registration under that section also certifies in writing to the department that the name of the owner of the vehicle is printed on the vehicle in the manner prescribed by Subsection (a).

(c) A peace office listed in Article 2.12, Code of Criminal Procedure, may seize a motor vehicle displaying exempt license plates if the vehicle is:

(1) operated on a public highway; and

(2) not identified in the manner prescribed by Subsection (a) or (b), unless the vehicle is covered by Subsection (f).

(d) A peace officer who seizes a motor vehicle under Subsection (c) may require that the vehicle be:

(1) moved to the nearest place of safety off the main-traveled part of the highway; or

(2) removed and placed in the nearest vehicle storage facility designated or maintained by the law enforcement agency that employs the peace officer.

(e) To obtain the release of the vehicle, in addition to any other requirement of law, the owner of a vehicle seized under Subsection (c) must:

(1) remedy the defect by identifying the vehicle as required by Subsection (a) or (b); or

(2) agree in writing with the law enforcement agency to provide evidence to that agency, before the 10th day after the date the vehicle is released, that the defect has been remedied by identifying the vehicle as required by Subsection (a) or (b).

(f) Subsections (a) and (b) do not apply to a vehicle to which Section 502.451(f) applies.

(g) For purposes of this section, an exempt license plate is a license plate issued by the department that is plainly marked with the word "exempt."

Transportation Code, Sec. 502.453. Government-Owned Vehicles; Public School Buses; Fire-Fighting Vehicles; County Marine Law Enforcement Vehicles; U.S. Coast Guard Auxiliary Vehicles.

(a) The owner of a motor vehicle, trailer, or semitrailer may annually apply for registration under Section 502.451 and is exempt from the payment of a registration fee under this chapter if the vehicle is:

(1) owned by and used exclusively in the service of:

(A) the United States;

(B) this state;

(C) a county, municipality, or school district in this state; or

(D) an open-enrollment charter school;

(2) owned by a commercial transportation company and used exclusively to provide public school transportation services to a school district under Section 34.008, Education Code;

(3) designed and used exclusively for fire fighting;

(4) owned by a volunteer fire department and used exclusively in the conduct of department business;

(5) privately owned and used by a volunteer exclusively in county marine law enforcement activities, including rescue operations, under the direction of the sheriff's department;

(6) used by law enforcement under an alias for covert criminal investigations; or

(7) owned by units of the United States Coast Guard Auxiliary headquartered in Texas and used exclusively for conduct of United States Coast Guard or Coast Guard Auxiliary business and operations, including search and rescue, emergency communications, and disaster operations.

(b) An application for registration under this section must be made by a person having the authority to certify that the vehicle meets the exemption requirements prescribed by Subsection (a). An application for registration under this section of a fire-fighting vehicle described by Subsection (a)(3) must include a reasonable description of the vehicle and of any fire-fighting equipment mounted on the vehicle. An application for registration under this section of a vehicle described by Subsection (a)(5) must include a statement signed by a person having the authority to act for a sheriff's department that the vehicle is used exclusively in marine law

enforcement activities under the direction of the sheriff's department. An application for registration under this section of a vehicle described by Subsection (a)(7) must include a statement signed by a person having authority to act for the United States Coast Guard Auxiliary that the vehicle or trailer is used exclusively in fulfillment of an authorized mission of the United States Coast Guard or Coast Guard Auxiliary, including search and rescue, patrol, emergency communications, or disaster operations.

Transportation Code, Sec. 502.456. Emergency Services Vehicles.

(a) A vehicle may be registered without payment if:

(1) the vehicle is owned or leased by an emergency medical services provider that:

(A) is a nonprofit entity; or

(B) is created and operated by:

(i) a county;

(ii) a municipality; or

(iii) any combination of counties and municipalities through a contract, joint agreement, or other method provided by Chapter 791, Government Code, or other law authorizing counties and municipalities to provide joint programs; and

(2) the vehicle:

(A) is authorized under an emergency medical services provider license issued by the Department of State Health Services under Chapter 773, Health and Safety Code, and is used exclusively as an emergency medical services vehicle; or

(B) is an emergency medical services chief or supervisor vehicle and is used exclusively as an emergency services vehicle.

(b) A vehicle may be registered without payment of a registration fee if the vehicle:

(1) is owned by the Civil Air Patrol, Texas Wing; and

(2) is used exclusively as an emergency services vehicle by members of the Civil Air Patrol, Texas Wing.

(c) An application for registration under Subsection (a) must be accompanied by a copy of the license issued by the Department of State Health Services. An application for registration of an emergency medical services vehicle must include a statement signed by an officer of the emergency medical services provider that the vehicle is used exclusively as an emergency response vehicle and qualifies for registration under this section. An application for registration of an emergency medical services chief or supervisor vehicle must include a statement signed by an officer of the emergency medical services provider stating that the vehicle qualifies for registration under this section.

(d) An application for registration under Subsection (b) must include a statement signed by an officer of the Civil Air Patrol, Texas Wing, that the vehicle is used exclusively as an emergency services vehicle by members of the Civil Air Patrol, Texas Wing.

(e) The department must approve an application for registration under this section as provided by Section 502.451.

The TxDMV is the only agency authorized by law to determine who is eligible for the issuance of Exempt license plates. A list of qualifying agencies is available in the system; if the applying exempt agency is not on the list, contact the Special Plates Unit at 512-374-5010 or email at VTR_Special_Plates@txdmv.gov.

The county tax assessor-collector's office issues two types of exempt registration, standard exempt and regular exempt. Standard Exempt license plates have the word "EXEMPT" printed on the license plate. Regular Exempt license plates are general issue license plates.

Standard Exempt License Plates

Standard Exempt license plates are issued to vehicles owned by agencies of the United States, the State of Texas, counties, cities, school districts, open-enrollment charter schools and other state political subdivisions.

Vehicles with Standard Exempt license plates will receive an annual renewal notice and be issued a registration sticker to be displayed on the vehicle once an annual inspection can be verified and the state's portion of the Inspection Fee is paid (if applicable). For more information on this, see Chapter 22, Section 22.6 Standard Exempt Registration.

In addition, Exempt license plates may be issued to vehicles:

- owned by commercial transportation companies used exclusively to provide public school transportation,
- designed and used exclusively for fire fighting,
- owned by volunteer fire departments and used exclusively in the conduct of their business,
- privately owned and used by a volunteer exclusively in county marine law enforcement activities under the direction of the county sheriff's department,
- owned by units of the U.S. Coast Guard Auxiliary headquartered in Texas and used exclusively for conduct of U.S. Coast Guard or Coast Guard Auxiliary business operations, including search and rescue, emergency communications, and disaster operations,
- leased or loaned to exempt agencies, and
- new vehicles on loan to a school district or any other subdivision of state government used only in approved driver education courses conducted by an entity exempt from licensing under Education Code, Sec. 1001.002.

Note: This does not include privately owned universities.

Under Transportation Code, Sec. 502.452, vehicles that qualify for Standard Exempt license plates must be owned by the U.S., State of Texas, counties, cities, or political subdivisions of this state must have printed words on each side of the vehicle:

- in letters that are at least 2 inches in height, or
- in an emblem that is at least 100 square inches in size, the name of the agency that has custody of the vehicle. Such letters or emblem must be clearly legible from a distance of 100 feet. Buses and other vehicles leased or contracted from a commercial transportation company to an exempt agency must bear the agency's inscription if the vehicles are displaying Exempt license plates. The inscription requirement is inclusive of trailers owned or operated by exempt agencies and displaying Exempt license plates.

If the applicant is exempt from the inscription requirements under Transportation Code, Sec. 721.003, the applicant must present a certification that each vehicle listed on the application is exempt from inscription requirements under Sec. 721.003. The applicant must also provide a citation to the rule that exempts the vehicle.

A peace officer may seize a motor vehicle displaying Exempt license plates for operating on a public highway and not identified in the manner prescribed.

If the vehicle is sold, junked, or salvaged, the Exempt license plates and registration sticker (if applicable) must be removed from the vehicle and surrendered to the TxDMV or the county that issued the license plates and sticker.

All vehicle types may qualify for the issuance of Exempt license plates.

Exempt license plates are not transferable.

Note: This does not apply to vehicles owned by the U.S. government and its subsidiary agencies.

6.2 Application for Standard Exempt License Plates

An exempt agency must submit to the county tax assessor-collector's office an *Application for Standard Texas Exempt License Plates* (Form VTR-62-A).

- The application must be signed by an authorized agent of the exempt agency.
- Up to six vehicles may be listed on the application.
- The Form VTR-62-A and the proper evidence of ownership (if vehicle is not currently titled in the name of the exempt agency) should be completed and submitted to the local county tax assessor-collector's office.
- County tax assessor-collector's office personnel should maintain and submit the title transactions with the appropriate system batch report. The exempt Form VTR-62-A applications are placed in a 8 ½" x 11" specially marked envelope or under a colored coversheet and mailed to OpenText.

Political Subdivision

Applications submitted by a political subdivision must reflect the statute number under which the subdivision was created by the Texas Legislature. Examples of such subdivisions would include:

- Flood Control Districts,
- Water Control and Improvement Districts,
- Navigation Districts, and
- Rural and Urban Transit Districts.

The statute number is not required for federal, state, county, city, and/or school districts.

U.S. Government Vehicles

Motor vehicles owned by the U.S. government are not titled by the State of Texas. In order to issue Exempt license plates to a government vehicle it would be necessary to process through the system as Registration Purposes Only.

It is very uncommon for any agency of the U.S. Government to make application for Texas Exempt license plates although it does occur. U.S. government vehicles normally display government license plates or registration numbers. Those vehicles displaying registration numbers in lieu of metal license plates must be readily identifiable as U.S. government vehicles. The vehicles have the registration numbers painted on the rear and both sides of the vehicle.

Travel Trailers used by a government agency to provide temporary housing in response to a natural disaster or other declared emergency are able to obtain Exempt license plates.

Privately owned motor vehicles used to transport as an agent of the United States Postal Service do not qualify for Exempt license plates. In the event a person, firm, or corporation leases a motor vehicle to the U.S. government, no certificate of title or registration is issued. The vehicle may display government license plates or registration numbers in lieu of Texas registration. If a certificate of title is requested, the vehicle becomes subject to registration.

Commercial Transportation Company - School Bus

School buses owned by commercial transportation companies (buses titled in the company name) and used exclusively to provide public school transportation services to a school district may apply for Exempt license plates. A representative of the school district completes an *Application for Standard Texas Exempt License Plates* (Form VTR-62-A). A representative of the commercial transportation company completes the *Public School Transportation Services Certification* (Form VTR-62-BUS). Both the Forms VTR-62-A and VTR-62-BUS must be submitted to the county tax assessor-collector's office for approval and issuance of Exempt license plates.

Fire Fighting Vehicles

Privately owned fire fighting vehicles and vehicles owned by volunteer fire departments may qualify for Exempt license plates. Vehicles owned by volunteer fire departments do not have to be designed exclusively for fire fighting in order to qualify for exempt license plates, provided the vehicles are titled in the name of the volunteer fire department and used exclusively in the conduct of business of that department. Privately owned fire fighting vehicles must be designed and used exclusively for fire fighting in order to qualify for Exempt license plates. Privately owned fire fighting vehicles require proof of insurance.

The *Application for Exempt Registration of Certain Rescue Vehicles* (Form VTR-62-F) must be completed and submitted to the county tax assessor-collector's office.

A photograph of the privately owned fire fighting vehicle must be attached to the Form VTR-62-F to verify that the vehicle is designed for fighting fires. A privately owned vehicle must be permanently outfitted with fire fighting equipment, such as water supply tank, booster pump, ladders, hoses, smoke ejector, emergency lighting, etc. An ambulance or other vehicle which does not have permanently mounted fire equipment would not qualify for Exempt license plates, unless it is owned by a volunteer fire department.

A privately owned fire fighting vehicle or a vehicle owned by a volunteer fire department is exempt from registration fees but is not exempt from certificate of title fees.

If a privately owned fire fighting vehicle or a vehicle owned by a volunteer fire department is currently titled in that agency's name in Texas, the Form VTR-62-F is submitted to the county tax assessor-collector's office for approval. If, however, the vehicle is not currently titled, an application for title together with the Form VTR-62-F must be submitted to the county tax assessor-collector's office.

State agencies, incorporated cities, and counties owning fire fighting vehicles should complete the *Application for Standard Texas Exempt License Plates* (Form VTR-62-A) as a prerequisite to the issuance of Exempt license plates.

Marine Law Enforcement

Privately owned vehicles used exclusively by county sheriff's departments in marine law enforcement activities, including rescue operations, may qualify for Exempt license plates. The *Application for Exempt Registration of Certain Rescue Vehicles* (Form VTR-62-F) signed by a person acting under the authority of the county sheriff's department and certifying the use of the vehicle is exclusively for marine law enforcement activities must be submitted to the county tax assessor-collector's office.

U.S. Coast Guard Auxiliary

Vehicles owned by the U.S. Coast Guard Auxiliary headquartered in Texas and used exclusively for conduct of the U.S. Coast Guard or Coast Guard Auxiliary business and operations, including search and rescue, emergency communications, and disaster operations, may qualify for Exempt license plates. The *Application for Exempt Registration of Certain Rescue Vehicles* (Form VTR-62-F) signed by a person acting under the authority of the U.S. Coast Guard Auxiliary and certifying the use of the vehicle is exclusively for authorized missions of these entities must be submitted to the county tax assessor-collector's office.

Machinery Type Vehicles

Any qualified exempt agency possessing unconventional machinery-type vehicles that operate upon the highways must make application and secure Exempt license plates. Machinery vehicles are not titled. The *Application for Texas Exempt License Plates* (Form VTR-62-A), may be submitted to the county tax assessor-collector's office without any supporting evidence, with the following exception:

Farm-type tractors owned by exempt agencies must be titled and registered. Either the motor or serial number of unconventional machinery is used on the application for Exempt license plates. If the machinery has no motor or serial number, obtain an assigned vehicle identification number from a TxDMV Regional Service Center by completing the *Law Enforcement Identification Number Inspection* (Form VTR-68-A).

Emergency Medical Services (EMS)

Standard Exempt license plates may be issued to EMS vehicles operated by:

- Nonprofit entities, and
- City, county, or any combination of cities and counties through a contract or joint agreement.

Such vehicles must be used exclusively as EMS vehicles and these EMS providers must be licensed by the Texas Department of Health and Human Services.

An *Application for Exempt Registration of an Emergency Medical Services Vehicle* (Form VTR-62-EMS) and a copy of the vehicle registration receipt must be submitted to the county tax assessor-collector's office.

- An ambulance is not required to be titled in the name of the nonprofit volunteer ambulance company. The law requires that the vehicle be operated and used exclusively by a nonprofit, volunteer ambulance company. If the vehicle is leased the application must be accompanied by the lease agreement.
- A nonprofit, volunteer ambulance company is exempt from payment of the registration fee but is not exempt from payment of the title fee.

In those instances when ownership is in a name other than the non-profit, volunteer ambulance company, the Exempt Registration Receipt must record the name of owner and the notation "Registered by (Nonprofit, Volunteer Ambulance Company)." This allows anyone making an inquiry to know who has possession and control of the vehicle since it is in operation by someone other than the recorded owner.

Civil Air Patrol

Vehicles owned by the Civil Air Patrol, Texas Wing may be issued Standard Exempt license plates, provided such vehicles operate exclusively as emergency services vehicles by members of that organization.

The *Application for Standard Texas Exempt License Plates* (Form VTR-62-A) along with proper evidence of ownership (if vehicle not currently titled to Civil Air Patrol) must be submitted to the county tax assessor-collector's office.

The Civil Air Patrol, Texas Wing is exempt from payment of the registration fee but is not exempt from payment of the title fee.

Leased Vehicles

Vehicles leased to exempt agencies or political subdivisions are also issued Standard Exempt license plates. In such instances, an authorized agent of the exempt agency should complete the *Application for Standard Texas Exempt License Plates* (Form VTR-62-A) and attach a copy of the lease agreement.

Abandoned/Seized Vehicles

The Texas Litter Abatement Act allows unclaimed abandoned motor vehicles to be used "for police purposes." A peace officer may obtain Exempt license plates for the vehicle by submitting a completed *Auction Sales Receipt* (Form VTR-71-1), along with the application for title and the *Application for Standard Texas Exempt License Plate*s (Form VTR-62-A).

Exempt license plates may also be issued to vehicles that have been seized by law enforcement under the authority of state or federal law. Application for Exempt license plates must be accompanied by the court order awarding ownership to the exempt agency. Refer to the Title Manual for more information regarding seized and forfeited vehicles.

Replacements

Standard Exempt license plates that have been lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons may be obtained from the county tax assessor-collector's office. The exempt agency should submit a completed *Application for Standard Texas Exempt License Plates* (Form VTR-62-A) and any remaining license plate.

Weight

Even though exempt agencies are not charged a registration fee, the correct weights must be entered in the system. If the weight is not shown on the MCO or out-of-state title, a weight certificate is required.

When an application for exempt registration is submitted for a bus, and only the gross weight is shown on the evidence of ownership, the empty weight can be calculated using the following formula:

- determine the carrying capacity by the number of seats multiplied by 150 lbs., and
- subtract the carrying capacity from the gross weight to determine the empty weight (Gross weight - carrying capacity = empty weight).

Note: Exempt agencies must provide the same documentation required of any title applicant, unless not required by law (i.e., insurance).

6.3 Regular Exempt License Plates

General issue license plates may be issued as exempt registration for vehicles owned or controlled by exempt agencies that are not required to display an identification inscription on their vehicles by authority of Transportation Code, Chapter 721. The exempt agency must submit an *Application for General Issue License Plates for Exempt Vehicle(s)* (Form VTR-119) to the county tax assessor-collector's office.

Exempt state agencies that qualify for the general issue license plate are:

- Texas Commission on Fire Protection,
- Texas State Board of Pharmacy,
- Texas Department of State Health Services and Department of Aging and Disability Services,

- Department of Public Safety of the State of Texas,
- Texas Department of Criminal Justice,
- Board of Pardons and Paroles,
- Parks and Wildlife Department,
- Railroad Commission of Texas,
- Texas Alcoholic Beverage Commission,
- Texas Department of Banking,
- Department of Savings and Mortgage Lending,
- Texas Juvenile Justice Department,
- Texas Commission on Environmental Quality,
- Texas Lottery Commission,
- Office of the Attorney General,
- Texas Department of Insurance,
- Texas Military Department,
- Nonprofit Food Bank, and
- Agencies that receive an appropriation under an article of the General Appropriations Act that appropriates money to the legislature.

Other agencies that may qualify for the regular exempt license plates include:

- City Police Department,
- County Sheriff Department,
- County Constable,
- Criminal District Attorney Office,
- County District Attorney,
- County Fire Marshall,
- Medical Examiner's Office,
- City Code Enforcement Officer designated to enforce environmental criminal laws, and
- Juvenile Probation Department vehicles used to transport children.

If any of these vehicles are owned by a city, the city council resolution must accompany the Form VTR-119. If owned by a county, the commissioner's court order must support the applications. The name of the exempt agency and the name of the person designated to apply for regular license plates for use on exempt vehicles must be stated in either the City Council resolution or the Commissioners Court Order.

Nonprofit Food Banks

Vehicles owned and used by nonprofit food banks, as defined in Tax Code, §162.001, (45-a), with a gross vehicle weight of at least 25,000 lbs. are eligible for regular exempt license plates. An application for exempt registration for a vehicle owned by a nonprofit food bank must include a statement by the owner of the vehicle that the vehicle is used by a nonprofit food bank to deliver food; and a statement signed by an officer of the nonprofit

food bank that the vehicle will be used by a nonprofit food bank to deliver food as provided on the *Application for General Issue License Plates for Exempt Vehicle(s)* (Form VTR-119). Applicants are exempt from payment of registration fees but are not exempt from payment of the title fee.

Pursuant to Tax Code, §152.094, a motor vehicle that is owned and operated by a nonprofit food bank as defined by Tax Code, §162.001 (45-a) and is primarily used for the purposes of the food bank is exempt from the taxes imposed on the purchase, use, or rental of the motor vehicle.

6.4 Alias Law Enforcement Vehicles

On receipt of a written request approved by the executive administrator of a law enforcement agency, the TxDMV may issue Exempt license plates for a vehicle and register the vehicle under an alias for the law enforcement agency's use in covert criminal investigations.

Any questions concerning the policy/procedures relating to the issuance of alias registration should be directed to the TxDMV's Vehicle Titles and Registration Division's Vehicle Data Management Section.

Chapter 7

FARM VEHICLES

This chapter contains the following sections:

- *7.1* Vehicle Transporting Seasonal Agricultural Products
- *7.2* Seasonal Agricultural Vehicle Offense
- *7.3* Commercial Farm Motor Vehicle
- *7.4* Commercial Motor Vehicles Used on the Farm Offense
- *7.5* Transports and Fertilizer Spreaders
- *7.6* Farm Vehicles Excess Weight
- *7.7* Farm Vehicles
- *7.8* Cotton Vehicles

7.1 Vehicle Transporting Seasonal Agricultural Products

Transportation Code, Sec. 502.432. Vehicle Transporting Seasonal Agricultural Products.

(a) The department shall provide for a monthly registration period for a truck-tractor or a commercial motor vehicle:

(1) that is used exclusively to transport a seasonal agricultural product;

(2) that would otherwise be registered for a vehicle registration year; and

(3) for which the owner can show proof of payment of the heavy vehicle use tax or exemption.

(b) The department shall prescribe a registration receipt that is valid until the expiration of the designated registration period.

(c) The registration fee for a registration under this section is computed at a rate of one-twelfth the annual registration fee under Section 502.253, 502.255, or 502.433, as applicable, multiplied by the number of months in the registration period specified in the application for the registration, which may not be less than one month or longer than six months.

(d) For purposes of this section, "to transport a seasonal agricultural product" includes any transportation activity necessary for the production, harvest, or delivery of an agricultural product that is produced seasonally.

7.2 Seasonal Agricultural Vehicle Offense

Transportation Code, Sec. 502.479. Seasonal Agricultural Vehicle; Offense.

A person issued a registration under Section 502.432 commits an offense if the person, during the registration period, uses the truck-tractor or commercial motor vehicle for a purpose other than to transport a seasonal agricultural product.

Seasonal Agricultural Registration

A truck-tractor or commercial motor vehicle used exclusively to transport a seasonal agricultural product may not be registered for a period of less than one month or longer than six months. The phrase, "to transport a seasonal agricultural product," includes any transportation activity necessary for the production, harvest, or delivery of an agricultural product produced seasonally.

Vehicle License Plate Requirements

A vehicle registered under this section displays the standard Truck, Farm Truck, or Farm Truck-Tractor license plates. Vehicles that have a gross vehicle weight in excess of 10,000 lbs. that pulls a semi-trailer with a weight in excess of 6,000 lbs. must be issued a Seasonal Permit license plate.

An applicant for registration under this section must complete *Application for Seasonal Agricultural Registration* (Form VTR-626).

The owner must register a vehicle with Seasonal Agricultural registration in the county of residence or any county willing to accept the application.

The county tax assessor-collector's office should retain the original Form VTR-626 until the expiration of the "Seasonal Agricultural registration" or for as long as deemed administratively valuable. A copy of the application may be given to the applicant if requested.

Seasonal Agricultural Registration Vehicle Types

Seasonal Agricultural registration may be purchased for a truck, farm truck, farm truck-tractor, or combination vehicles only. Seasonal Agricultural registration may not be issued for a trailer or passenger vehicle. Seasonal Agricultural registration permits are not transferable.

- A truck registered with Seasonal Agricultural registration for which "TRUCK" fees were paid (Transportation Code, Sec. 502.252. Fee: Vehicles That Weigh 6,000 Pounds or Less.) may pull the same types of trailers that a truck displaying Truck license plates is eligible to pull (such vehicles may not pull a semitrailer displaying a Token Trailer license plate).
- A truck-tractor registered with Seasonal Agricultural registration for which Combination fees were paid (Transportation Code, Sec. 502.255. Truck-Tractor or Commercial Motor Vehicle Combination Fee; Semitrailer Token Fee.) may pull the same types of trailers that a truck-tractor displaying a Combination license plate is eligible to pull.

Note: Combination is the only vehicle classification that will be issued Seasonal Permit license plates.

Vehicle Registration Fees

The fee for registration under this section is calculated by one-twelfth the annual registration fee for the applicable vehicle, multiplied by the number of months (one to six months).

Example County Procedure

The month of expiration is based on the number of months' registration requested.

1. The current month is included in the calculation.

   Example 1: If an applicant requests six months' registration in the month of March, then the expiration month is August.

   Example 2: If an applicant requests one month of registration in the month of June, then the expiration month is June (the same month).

   Example 3: If an applicant requests three months' registration in the month of November, then the expiration month is January (of the following year).

2. Registration fees are collected in whole-month increments.
3. Optional local fees, such as County Road and Bridge and Child Safety Fund fees are collected each time Seasonal Agricultural registration is issued.
4. The $4.75 P&H Fee, if applicable, and the $1 Insurance Fee (Reg Fee-DPS) is collected.
5. Do **not** collect the Young Farmer Loan Guarantee Fee in conjunction with the issuance of Seasonal Agricultural registration for trucks and combination motor vehicles.
6. Collect the Young Farmer Loan Guarantee Fee in conjunction with the issuance of Seasonal Agricultural registration for farm trucks and farm truck-tractors.

Note: The owner or operator of a truck-tractor or a commercial motor vehicle used exclusively to transport seasonal agricultural products is required to provide proof of the Federal Heavy Vehicle Use Tax (HVUT) payment or exemption for vehicles 55,000 lbs. or more.

Seasonal Agriculture Expiration

The registration expires on the last day of the month indicated on the registration sticker. There is no five-day grace period for expired registration for vehicles registered with Seasonal Agricultural registration.

Seasonal Agriculture Replacements

Registration sticker and/or Seasonal Permit license plates that have been lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons may be obtained from the county tax assessor-collector's office along with payment of the $6 Replacement Fee and the Automation Fee.

Exchanging Seasonal Registration

The county tax assessor-collector's office may exchange Seasonal Agricultural registration for Truck, Farm Truck, Farm Truck-Tractor, or Combination registration, whichever is applicable for a period of 12 months.

Encourage customers to complete exchanges at renewal time only. However, if an exchange involving Seasonal Agricultural registration occurs, process through the RTS Exchange Event.

No refund will be authorized for any registration fees that may be remaining from the exchange.

Any previously issued registration sticker that is still valid must be surrendered to the tax office at the time of the exchange.

Seasonal Agricultural Registration Requirements

A vehicle must be titled in Texas to be eligible for Seasonal Agricultural registration. A Registration Purposes Only receipt satisfies this requirement. Refer to the Title Manual and Transportation Code, Sec. 501.029, for further information regarding Registration Purposes Only applications.

Proof of liability insurance must be provided at the time Seasonal Agricultural registration is issued or renewed.

Seasonal Agricultural registration may be renewed for another registration period. To renew, the applicant must complete a new *Application for Seasonal Agricultural Registration* (Form VTR-626) and pay the required fees. During the Seasonal Agricultural registration period, vehicles can only transport seasonal agricultural products.

7.3 Commercial Farm Motor Vehicle

Transportation Code, Sec. 502.433. Fee: Commercial Farm Motor Vehicle.

(a) The registration fee for a commercial motor vehicle as a farm vehicle is 50 percent of the applicable fee under Section 502.252 or 502.253, as applicable, if the vehicle's owner will use the vehicle for commercial purposes only to transport:

(1) the person's own poultry, dairy, livestock, livestock products, timber in its natural state, or farm products to market or another place for sale or processing;

(2) laborers from their place of residence to the owner's farm or ranch; or

(3) without charge, materials, tools, equipment, or supplies from the place of purchase or storage to the owner's farm or ranch exclusively for the owner's use or for use on the farm or ranch.

(a-1) A commercial motor vehicle registration may not be issued or renewed under this section unless the vehicle's owner provides a registration number issued by the comptroller under Section 151.1551, Tax Code. The comptroller shall allow access to the online system established under Section 151.1551(l), Tax Code, to verify a registration number provided under this subsection.

(b) A commercial motor vehicle may be registered under this section despite its use for transporting without charge the owner or a member of the owner's family:

(1) to attend church or school;

(2) to visit a doctor for medical treatment or supplies;

(3) for other necessities of the home or family; or

(4) for the purpose of participating in equine activities or attending livestock shows, as defined by Section 87.001, Civil Practice and Remedies Code.

(c) Subsection (b) does not permit the use of a vehicle registered under this section in connection with gainful employment other than farming or ranching.

(d) The department shall provide distinguishing license plates for a vehicle registered under this section.

7.4 Commercial Motor Vehicles Used on the Farm Offense

Transportation Code, Sec. 502.478. Commercial Motor Vehicle Used Primarily for Agricultural Purposes; Offense.

(a) The owner of a commercial motor vehicle registered under Section 502.433 commits an offense if the person uses or permits the use of the vehicle for a purpose other than one allowed under Section 502.433. Each use or permission of use in violation of this section is a separate offense.

(b) An offense under this section is a misdemeanor punishable by a fine of not less than $25 or more than $200.

Farm Truck and Farm Truck-Tractor Registration

Farm Trucks and Farm Truck-Tractors can be registered at 50% of the annual registration fee only if the vehicle is used or operated by the owner for transporting:

- the owner's own poultry, dairy, livestock, livestock products, or timber in its natural state;
- farm products to market or to other points for sale or processing;
- laborers from their place of residence; and
- materials, tools, equipment, and supplies without charge from the place of purchase or storage to the owner's own farm or ranch.

Vehicles registered with Farm Truck license plates may be used as a means of passenger transportation by the owner or member of his family to:

- attend church or school,
- visit doctors for medical treatment or supplies,
- for other necessities of the home or family, and
- participate in equine activities or attend livestock shows.

The fact that an owner lives on a farm or ranch does not entitle the owner to register a vehicle with Farm license plates. The use of the vehicle governs the eligibility of the vehicle to display Farm registration.

Counties **may** issue Farm Truck license plates to:

- Any individual, business, firm, company, or corporation provided they qualify as stipulated in this section.
- Persons in the business of cutting trees in logging or timber operations provided the timber is owned by the applicant and such timber is in its natural state.

Counties should **not** issue Farm Truck license plates to:

- Farmers' Cooperatives;
- Passenger cars, unless reconstructed for delivery purposes;
- Vehicles transporting livestock to a show or rodeo when such stock is not being transported for the purpose of sale; and
- Any vehicle used for gainful employment or for hire, including transportation to and from a place of employment.

Applicants for Farm license plates for Farm Truck, or Farm Truck Tractors must present a current Texas Agricultural and Timber Exemption Registration Number (Ag/Timber Number) issued by the Texas Comptroller of Public Accounts. The courtesy card consisting the Ag/Timber Number must be current, legible, and contain a registration number. The county tax assessor-collector's office must be able to associate the name of the person or DBA (doing business as) on the courtesy card to the name on the motor vehicle record.

For example, the motor vehicle record is in the name of Jane Doe and the Ag/Timber Number is in the DBA of Doe's Farms, this would be acceptable. Also, if the motor vehicle record contained two names; however, only one of those names is on the courtesy card or vice versa, this would be acceptable as well.

A copy of the courtesy card provided by the Comptroller is not required to be submitted with the application or retained for county records. Proof of the Ag/Timber Number may consist of:

- the courtesy card issued by the Comptroller,
- a copy of the courtesy card issued by the Comptroller, or
- verification through the Comptroller's website.

Note: The Ag/Timber Number is also required at time of renewal of Farm license plates through walk-in, online and by mail. Renewal via webSUB is not allowed.

Owner's Responsibilities

Vehicles currently registered with Farm license plates may not be loaned to anyone, including another farmer or rancher, for transporting any commodity.

An employee of a farm or ranch may not register a personally owned commercial motor vehicle with Farm Truck license plates for use in conjunction with employment.

Out-of-State Vehicles

Out-of-state registered farm vehicles may operate in Texas with the same privileges offered Texas farmers, provided the operation is an **interstate** movement.

For **intrastate** movement, a 72-Hour or 144-Hour Permit must be obtained.

Oversize or overweight vehicles require special permits from the Motor Carrier Division.

Farm Truck and Farm Truck-Tractor License Plates Restrictions

Since Farm Truck and Farm Truck-Tractor license plates are restricted in use, the law provides that the owner of the vehicle must agree to use the license plate in accordance with the restrictions.

The completion of the *Application for Farm License Plates* (Form VTR-52-A) is a prerequisite to the issuance of Farm license plates. The Form VTR-52-A is only required when farm license plates are initially issued or transferred to an owner.

- A copy of the Form VTR-52-A must be submitted with the application for title. The county should retain the original copy in the tax assessor-collector's office.
- A new form is not required when renewing the vehicle.
- If a farmer leases a truck or truck-tractor, the farmer is considered the owner for registration purposes and must complete the Form VTR-52-A. The registration receipt will indicate the name of both the lessee and the lessor.
- Must provide a valid Texas Agricultural and Timber Exemption Registration Number (Ag/Timber Number) issued by the Texas Comptroller of Public Accounts for initial issuance of farm license plates, as well as at time of renewal.

Farm Trailers with Living Quarters

Trailers with living quarters primary used to haul livestock and not used primarily for human habitation qualify for a Trailer or Farm Trailer license plate (if operated in accordance with Transportation Code, Sec. 502.433).

Registration

Farm Truck and Farm Truck-Tractor license plates are issued on a staggered basis. Registration begins on the first day of the month in which the applicant applies and is valid for 12 months.

Farm trucks that pull semi-trailers must be registered with Farm Truck-Tractor license plates. Each unit in the combination must be registered separately for its own weight. For example, to register a truck-tractor at the maximum weight register the truck-tractor at 46,000 lbs, and the semi-trailer at 34,000 lbs.

For maximum axle weights allowed by law, see Transportation Code, Sec. 621.101, Maximum Weight of Vehicle or Combination.

Table 7-1 Farm Trailer Registration

Trailer or Semi-trailer (Registration Options)
• Farm trailers with a gross weight of 4,000 lbs. or less. No license plate required. • Farm trailers with a gross weight of more than 4,000 lbs. but less than 34,000 lbs. Farm Trailer license plate required. • Farm trailers with a gross weight of more than 34,000 lbs. Regular trailer license plates required. No reduction in fee.

A truck-tractor registered with Farm Truck-Tractor license plates may not tow a semi-trailer displaying Token Trailer license plates.

Farm license plates may be transferred if the purchaser is a farmer and completes a *Application for Farm License Plates* (Form VTR-52-A). If the purchaser does not qualify for Farm plates, general issue license plates must be issued.

Farm Vehicle Violations

If any commercial motor vehicle is apprehended while operating in violation of this Section, the owner of the vehicle must surrender the Farm license plates and receipt to the county tax assessor-collector's office. The owner must pay commercial registration fees from the date of apprehension for the remaining portion of the registration year, plus a penalty equal to 20% of the registration fee.

7.5 Transports and Fertilizer Spreaders

Transportation Code, Sec. 502.431. Fee: Motor Vehicle Used Exclusively to Transport and Spread Fertilizer.

The fee for a registration year for registration of a motor vehicle designed or modified and used exclusively to transport to the field and spread fertilizer, including agricultural limestone, is $75.



Fertilizer Truck License Plates

Fertilizer Truck license plates are staggered for 12 months based on the date of application or renewal.

One Fertilizer Truck license plate is issued to be displayed on the front of the vehicle and a registration sticker is issued.

Eligibility

The vehicle must be titled in the applicant's name or an application filed at the time of issuance. Proof of insurance must be submitted.

The *Application for Fertilizer Truck License Plate* (Form VTR-52-F) must be completed by the applicant prior to the issuance of the Fertilizer license plate.

The vehicle must be self-propelled, designed or adapted to transport and spread plant food materials or agricultural chemicals in the field, whether the vehicle is a conventional or unconventional vehicle.

Exchanges

Credit is allowed for the unexpired portion of a Fertilizer Truck License Fee when being exchanged for a different classification of registration.

7.6 Farm Vehicles Excess Weight

Transportation Code, Sec. 502.434. Farm Vehicles: Excess Weight.

(a) The owner of a registered commercial motor vehicle, truck-tractor, trailer, or semitrailer may obtain a short-term permit to haul loads of a weight more than that for which the vehicle is registered by paying an additional fee before the additional weight is hauled to transport:

(1) the person's own seasonal agricultural products to market or another point for sale or processing;

(2) seasonal laborers from their place of residence to a farm or ranch; or

(3) materials, tools, equipment, or supplies, without charge, from the place of purchase or storage to a farm or ranch exclusively for use on the farm or ranch.

(a-1) A permit may not be issued under this section unless the vehicle's owner provides a registration number issued by the comptroller under Section 151.1551, Tax Code. The comptroller shall allow access to the online system established under Section 151.1551(l), Tax Code, to verify a registration number provided under this subsection. This subsection does not apply to a permit issued to a retail dealer of tools or equipment that is transporting the tools or equipment from the place of purchase or storage to the customer's farm or ranch.

(b) A permit may not be issued under this section for a period that is less than one month or that:

(1) is greater than one year; or

(2) extends beyond the expiration of the registration year for the vehicle.

(c) A permit issued under this section for a quarter must be for a calendar quarter.

(d) The fee for a permit under this section is a percentage of the difference between the registration fee otherwise prescribed for the vehicle and the annual fee for the desired weight, as follows:

One month (30 consecutive days)	*10 percent*
One quarter	*30 percent*
Two quarters	*60 percent*
Three quarters	*90 percent*

(e) The department shall design, prescribe, and furnish a sticker, plate, or other means of indicating the additional weight and the registration period for each vehicle registered under this section.

Temporary Additional Weight Permits

Temporary additional weight permit may be purchased for vehicles transporting seasonal agricultural products in the county where the owner resides or any county willing to accept the application.

Temporary additional weight permits are issued on a monthly basis (a period of 30 consecutive days); or in calendar quarters, the first quarter beginning on April l of each year.

- When issuing the permits on a monthly basis, the county tax assessor-collector's office issues only one monthly (30 consecutive days) permit at a time. Do not postdate these permits or issue them in a chain-like fashion. However, there are no limitations as to the number of times an owner may return to purchase a permit.
- If a temporary additional weight permit is needed for longer than 30 days, the county tax assessor-collector's office issues the permit on a quarterly basis. A permit issued for a fraction of a quarter requires the payment of a full quarter.

The additional fee is a percentage of the difference between the current registration fee for the present gross weight and the current registration fee for the desired gross weight. Calculate the additional fee according to Table 7-2**:**

Table 7-2 Additional Fees

One month (30 consecutive days)	10%
One quarter (3 consecutive months)	30%
Two quarters (6 consecutive months)	60%
Three quarters (9 consecutive months)	90%

Temporary Additional Weight Permit Example

The owner wants to register a truck for 18,000 lbs. On July 15, the owner decides to increase the gross weight to 24,000 lbs. for one month. Therefore, issue the additional weight permit for a period of 30 days, extending from July 15 through August 13 of the following month. Calculate fees as shown in Table 7-3:

Table 7-3 Temporary Additional Weight

Annual fee for 24,000 lbs.	$205.00
Annual fee for 18,000 lbs.	-110.00
Difference in annual fees	=$95.00
10% of difference for one month	x 10%
Total fee due	$9.50

Note: If the owner of a semitrailer with a gross weight of 4,000 lbs. or less (non-title) applies for a temporary additional weight permit above 4,000 lbs., the owner is not required to file an application for title. This temporary registration is in the nature of a permit, and the vehicle returns to its previous status (non-title) when the period ends.

Registration Number

Applicants for excess weight permits for Farm Trailers/Semitrailers, or farm vehicles must present a current Texas Agricultural and Timber Exemption Registration Number (Ag/Timber Number) issued by the Texas Comptroller of Public Accounts. The courtesy card consisting the Ag/Timber Number must be current, legible, and contain a registration number. The county tax assessor-collector's office must be able to associate the name of the person or DBA (doing business as) on the courtesy card to the name on the motor vehicle record.

For example, the motor vehicle record is in the name of Jane Doe and the Ag/Timber Number is in the DBA of Doe's Farms, this would be acceptable. Also, if the motor vehicle record contained two names; however, only one of those names is on the courtesy card or vice versa, this would be acceptable as well.

A copy of the courtesy card provided by the Comptroller is not required to be submitted with the application or retained for county records. Proof of the Ag/Timber Number may consist of:

- the courtesy card issued by the Comptroller,
- a copy of the courtesy card issued by the Comptroller, or
- verification through the Comptroller's website.

7.7 Farm Vehicles

Transportation Code, Sec. 502.146. Certain Farm Vehicles and Drilling and Construction Equipment.

(a) The department shall issue distinguishing license plates to a vehicle described by Subsection (b), (c) or (i). The fee for the license plates is $5 and shall be deposited to the credit of the Texas Department of Motor Vehicles fund.

(b) An owner is not required to register a vehicle that is used only temporarily on the highways if the vehicle is:

(1) a farm trailer or farm semitrailer with a gross weight of more than 4,000 pounds but not more than 34,000 pounds that is used exclusively:

(A) to transport seasonally harvested agricultural products or livestock from the place of production to the place of processing, market, or storage;

(B) to transport farm supplies from the place of loading to the farm; or

(C) for the purpose of participating in equine activities or attending livestock shows, as defined by Section 87.001, Civil Practice and Remedies Code;

(2) machinery used exclusively for the purpose of drilling water wells;

(3) oil well servicing or drilling machinery and if at the time of obtaining the license plates, the applicant submits proof that the applicant has a permit under Section 623.142; or

(4) construction machinery.

(c) An owner is not required to register a vehicle that is:

(1) a farm trailer or farm semitrailer owned by a cotton gin and used exclusively to transport agricultural products without charge from the place of production to the place of processing, market, or storage;

(2) a trailer used exclusively to transport fertilizer without charge from a place of supply or storage to a farm; or

(3) a trailer used exclusively to transport cottonseed without charge from a place of supply or storage to a farm or place of processing.

(c-1) An exemption provided by this section applies to a vehicle owned by a farmers' cooperative society incorporated under Chapter 51, Agriculture Code, or a marketing association organized under Chapter 52, Agriculture Code, and used by members of the society or association for a fee if the vehicle otherwise meets the requirements for the exemption.

(d) A vehicle described by Subsection (b) is exempt from the inspection requirements of Subchapter F, Chapter 548.

(e) Except as provided by Subsection (c-1), this section does not apply to a farm trailer or farm semitrailer that:

(1) is used for hire;

(2) has metal tires operating in contact with the highway;

(3) is not equipped with an adequate hitch pinned or locked so that it will remain securely engaged to the towing vehicle while in motion; or

(4) is not operated and equipped in compliance with all other law.

(f) A vehicle to which this section applies that is operated on a public highway in violation of this section is considered to be operated while unregistered and is immediately subject to the applicable registration fees and penalties prescribed by this chapter.

(g) In this section, the gross weight of a trailer or semitrailer is the combined weight of the vehicle and the load carried on the highway.

(h) A distinguishing license plate may not be issued or renewed under Subsection (a) to an owner of a vehicle described by Subsection (b)(1) unless the vehicle's owner provides a registration number issued by the comptroller under Section 151.1551, Tax Code, or the vehicle is owned by a farmers' cooperative society incorporated under Chapter 51, Agriculture Code, or a marketing association organized under Chapter 52, Agriculture Code. The comptroller shall allow access to the online system established under Section 151.1551(l), Tax Code, to verify a registration number provided under this subsection.

(i) The department shall issue a distinguishing license plate under this section for a frac tank that does not expire or require an annual registration insignia to be valid. The alphanumeric pattern for a license plate issued under this subsection may remain on a frac tank for as long as the license plate for the frac tank is renewed or until the frac tank is removed from service or sold. The registration receipt required under section 621.002 is not required for a frac tank that displays

a license plate issued under this subsection. For purpose of this subsection, "frac tank" means a portable or stationary high-volume holding vessel designed and constructed for use in separating, storing, or temporarily holding materials used in or resulting from fracturing techniques in oil and gas exploration.

Operating Temporarily on a Highway

A farm tractor operated or moved temporarily upon the highways is exempt from title and registration. However, they may apply for title and register their farm tractor as a "road tractor."

A farm trailer or farm semitrailer with a gross weight not exceeding 4,000 lbs. is exempt from title and registration when operated temporarily on the highway. Owners of a trailer 4,000 lbs. or less do have the option to title a trailer with a valid VIN.

Implements of husbandry operated or moved temporarily upon the highways are exempt from title and registration.

Implements of Husbandry



The term "Implement of husbandry," as defined in Transportation Code, Sec. 541.201, means a vehicle, other than a passenger car or truck, that is designed and adapted for use as a farm implement, machinery, or tool for tilling the soil; a towed vehicle that transports to the field and spreads fertilizer or agricultural chemicals; or a motor vehicle designed and adapted to deliver feed to livestock.

Implement of husbandry operated or moved temporarily upon the highways are exempt from title and registration.

- Transportation Code, Sec. 545.361(d), limits the speed of a motor vehicle designed or adapted for applying plant food materials or agricultural chemicals to 30 miles-per-hour unless the vehicle has current registration. Any motor vehicle designed or adapted for spreading fertilizer operated at speeds greater than 30 miles per hour on the public highways no longer retains its exemption as an implement of husbandry and must be registered as a Fertilizer Truck. The annual registration fee is $75.
- Implements of husbandry have no width limitations, provided the vehicle is moved for the purpose of agricultural operations, and provided that such implements move a distance of not more than 50 miles. However, if the implement of husbandry or vehicle is over height, over length, or over weight, a permit is required.

Farm Trailers and Semitrailers



A farmer or a rancher who owns a Farm Trailer or Farm Semitrailer may purchase a distinguishing Farm Trailer license plate for a fee of $5 provided the Trailer/Semitrailer only transports:

- agricultural products,
- livestock,
- farm supplies, or
- participates in equine activities or livestock shows.

Farm trailers and semitrailers with gross weights of 4,000 lbs. or less are not required to be registered and are exempt from Certificate of Title Act. Farm trailers no longer have a minimum weight requirement and can be issued a Farm license plate in the system. Farm trailers and semitrailers with a gross weight not exceeding 34,000 lbs. may qualify for a $5 Farm Trailer license plate in lieu of paying regular registration fees. The exemption does not apply if the vehicle is not being operated within the weight limitation. In accordance with the above statutes, these same exemptions also apply to the following:

- Farm trailers and semitrailers owned by cotton gins and furnished, without charge, to farmers for the transportation of agricultural products from their place of production to their place of process, market or storage.
- Fertilizer trailers, regardless of ownership, used solely to transport fertilizer, without charge, between a place of supply or storage to farms and return.
- Cottonseed trailers, regardless of ownership, used to haul cottonseed, without charge, between a place of supply or storage to farms or place of process and return.

Note: Trailers and semitrailers (including fertilizer and cottonseed trailers) owned by cotton gins may also display the $5 Farm Trailer license plate.

- A farmer or rancher that raises show stock that transports such stock for the purpose of sale.
- Participation in equine activities or attending livestock shows, as defined by Sec. 87.001, Civil Practice and Remedies Code.
- Trailers or semitrailers leased or rented to farmers or ranchers, solely for their own use.

Applicants for Farm license plates for Farm Trailers/Semitrailers must present a current Texas Agricultural and Timber Exemption Registration Number (Ag/Timber Number) issued by the Texas Comptroller of Public Accounts. The courtesy card consisting the Ag/Timber Number must be current, legible, and contain a registration number. The county tax assessor-collector's office must be able to associate the name of the person or DBA (doing business as) on the courtesy card to the name on the motor vehicle record.

For example, the motor vehicle record is in the name of Jane Doe and the Ag/Timber Number is in the DBA of Doe's Farms, this would be acceptable. Also, if the motor vehicle record contained two names; however, only one of those names is on the courtesy card or vice versa, this would be acceptable as well.

A copy of the courtesy card provided by the Comptroller is not required to be submitted with the application or retained for county records. Proof of the Ag/Timber Number may consist of:

- the courtesy card issued by the Comptroller,
- a copy of the courtesy card issued by the Comptroller, or
- verification through the Comptroller's website.

Note: The Ag/Timber Number is also required at time of renewal of Farm license plates through walk-in, online and by mail. Renewal via webSUB is not allowed.

Applicants for farm trailers/semitrailers owned by a farmers' cooperative (co-op) or marketing association may apply for and renew Farm license plates without proof of the ag/timber number issued by the comptroller's office. The following may be presented in lieu of the ag/timber number:

- "Article of Incorporation" or "Certificate of Formation" filed with the secretary of state's office,
- "Certificate of Fact" provided by the secretary of state's office,
- "Business Organizations Inquiry" printout from the secretary of state's website, or
- Statement from the entity on letterhead, which includes the filing number issued by the secretary of state's office.

These vehicles may only be renewed by mail or in person at the local county tax assessor-collector's office or any county willing to accept the application. These entities are not exempt from sales tax.

Applicants for Farm license plates must complete the *Application for Farm License Plates* (Form VTR-52-A). The application is made through the county tax assessor-collector's office of the county in which the applicant resides or any county willing to accept the application. The Form VTR-52-A is also used when transferring farm trailer license plates from one person to an eligible applicant.

- If the applicant has more than one trailer or semitrailer to license with Farm Trailer license plates, list the descriptions of the various trailers on the application instead of submitting a separate application for each such trailer or semitrailer.
- Applications are kept on file in the office of the county tax assessor-collector's officeand should remain open for inspection by enforcement officers.

Farm Trailer license plates are issued on a staggered basis.

If a farm trailer or farm semitrailer is a manufactured trailer then the vehicle identification number as reflected on the vehicle should be indicated on the registration receipt.

It is not necessary for a homemade or shopmade farm trailer or semitrailer to have a vehicle identification number (VIN) in order for Farm Trailer license plates to be issued. However, for theft protection purposes, it is suggested that the applicant either apply for an assigned VIN for the trailer/semitrailer or die-stamp an identifying number to the vehicle. If the applicant has obtained a VIN, the *Notice of Assigned or Reassigned Identification Number* (Form VTR-68-N) should be presented as evidence and that number should be indicated on the registration receipt.

If a farm-licensed trailer or semitrailer exceeds the 34,000 pound gross weight limitation at any time during the year for which the distinguishing license plate is valid, the owner must purchase either:

- Standard registration (Token Trailer or Trailer license plate), or
- A 72-Hour Permit.

Note: No credit will be allowed for the surrendered $5 Farm license plate.

Apprehensions

If a farm licensed trailer or semitrailer is apprehended with a gross weight in excess of 34,000 lbs., the county tax assessor-collector's office should:

- Determine that the trailer design accommodates a gross weight in excess of 34,000 lbs. based on the axle configuration.
- Determine if the vehicle is currently titled. If not, either then apply for an RPO title or apply for a negotiable if owner is able to surrender proper evidence of ownership.
- Charge the trailer license fee for that particular trailer's weight classification and collect such fee from the date of apprehension for the remaining portion of the registration year or issue a Token Trailer license plate and collect the appropriate fee. Credit should not be issued for the surrendered Farm Trailer license plate.
- Charge the statutory penalty equal to 20% of the total amount of the prescribed fee.
- Temporary agricultural permits or additional weight permits may not be issued to farm licensed trailers or semitrailers.

Replacement

Farm Trailer license plates and/or registration stickers that have been lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons may be obtained from the county tax assessor-collector's office along with payment of the $6 Replacement Fee and the Automation Fee.

The owner must complete a replacement *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60) and surrender the current year's registration receipt. If an owner cannot surrender the current year's registration receipt, and the license plate cannot be verified as farm, do not issue the owner a replacement plate and/or registration sticker. The owner must complete a new application, *Application for Farm License Plates* (Form VTR-52-A), and reapply for a Farm Trailer license plate.

Renewal

When renewing a Farm Trailer license plate, the applicant must present the registration renewal notice or previous registration receipt to the county tax assessor-collector's office with the fee of $5. If the registration renewal notice or current registration receipt is not available and the license plate cannot be verified as farm, the applicant must complete a new *Application for Farm License Plates* (From VTR-52-A), and reapply for a Farm Trailer license plate.

Transfer

Farm semitrailers with a valid VIN may be titled at the option of the registrant. Upon transfer or sale of a farm semitrailer, if the registrant titles the farm trailer then the title must be transferred to the buyer. If the farm semitrailer is non-titled, then it should be sold with a bill of sale and a copy of the farm trailer registration receipt.

Note: If the buyer is applying for farm registration, it is the buyer's option to title the trailer.

If the buyer qualifies, the farm license plates may be retained if the *Application for Farm License Plates* (Form VTR-52-A) is submitted.

If the buyer does not qualify, the buyer must surrender the Farm Trailer license plate to the county tax assessor-collector's office and register the trailer with standard registration (Trailer or Token Trailer License Plate). They must then apply for a certificate of title with the evidence referenced above. Credit will not be allowed for the surrendered Farm Trailer license plate.

7.8 Cotton Vehicles

Transportation Code, Sec. 504.505. Cotton Vehicles.

(a) The department shall issue specialty license plates for a single motor vehicle that is:

(1) used only to transport chile pepper modules, seed cotton, cotton, cotton burrs, or equipment used in transporting or processing chile peppers or cotton; and

(2) not more than 10 feet in width.

(b) The license plates must include the words "Cotton Vehicle."

(c) There is no fee for issuance of the license plates. The license plates may be renewed without payment of a fee.

Initial Issuance

An *Application for Cotton Vehicle License Plate* (Form VTR-815) must be submitted to the registrant's county tax assessor-collector's office. The deputy should complete the information requested in the space marked "FOR COUNTY USE ONLY." Upon approval, the applicant must:

- pay registration fees,
- pay any local fees, and
- submit valid proof of financial responsibility.

The Cotton Vehicle license plate is staggered for 12 months based on the date of application or renewal. The license plate is validated with a registration sticker and is issued at any time during the year upon receipt of proper application and fee. One Cotton Vehicle license plate is issued per vehicle, and it should be displayed on the front of the vehicle.

The motor vehicle displaying the Cotton Vehicle license plate can operate on any highway provided its width does **not** exceed 10 feet, its length longer than 48 feet, or its height greater than 14 feet, 6 inches, and is used only to transport chili pepper modules, seed cotton, cotton, cotton burrs, or equipment used to transport or process chili pepper modules or cotton.

The overall gross weight of a motor vehicle used to transport seed cotton or equipment used to transport or process seed cotton may not exceed 64,000 lbs.

The overall gross weight of a single motor vehicle used to transport chili pepper modules or equipment used to transport or process chili pepper modules may not exceed 54,000 lbs.

The title must be in the applicant's name, however:

- joint ownership is permissible.
- if the applicant has legal right of possession and control of the vehicle, an affidavit must be completed and attached to the application.
- if the applicant has a leased vehicle, the county tax assessor-collector’s office should verify the lease agreement.

If the vehicle is currently registered, the applicant must surrender their license plates, sticker, and receipt to the county tax assessor-collector’s office in exchange for the Cotton Vehicle license plate.

Renewal

At the time of renewal, the owner will pay the registration fee and local county fees if applicable.

Replacement

Cotton Vehicle license plates and/or registration stickers that have been lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons may be obtained from the local county tax assessor-collector’s office.

The applicant may submit the *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60) and pay the $6 Replacement Fee and the Automation Fee.

Transfer

If a vehicle registered with a Cotton Vehicle license plate is being transferred to a new owner, an application for title must be filed with the local county tax assessor-collector’s office and if the new owner is eligible the *Application for Cotton Vehicle License Plate* (Form VTR-815), marked “TRANSFER,” by completing the information requested in the space marked “FOR COUNTY USE ONLY” must be completed..

Chapter 8

ADDITIONAL AND VOLUNTARY FEES

This chapter contains the following sections:

- ***8.1*** State's Portion of Inspection Fee
- ***8.3*** Automation Fee
- ***8.4*** Registration Fee-DPS
- ***8.5*** Diesel Fee
- ***8.6*** Electric Vehicle Fee
- ***8.7*** Delinquent Fees
- ***8.8*** Optional County Road and Bridge Fund Fees
- ***8.9*** Optional County Fee for Transportation Projects
- ***8.10*** Optional County Child Safety Fees
- ***8.11*** Voluntary Assessment for Young Farmer Loan Guarantees
- ***8.12*** Voluntary Donation to Donor Registry
- ***8.13*** Voluntary Donation to Veterans' Assistance Fund
- ***8.14*** Voluntary Donation to Parks and Wildlife Department
- ***8.15*** Voluntary Donation to Special Olympics Texas Fund
- ***8.16*** Voluntary Donation to Evidence Testing Grant Program
- ***8.17*** Voluntary Donation to Ending Homelessness Fund
- ***8.18*** Disposition of Certain Voluntary Contributions

8.1 State's Portion of Inspection Fee

Transportation Code, Sec. 548.203. Exemptions.

(a) The commission by rule may exempt a type of commercial motor vehicle from the application of this subchapter if the vehicle:

(1) was manufactured before September 1, 1995;

(2) is operated only temporarily on a highway of this state and at a speed of less than 30 miles per hour; and

(3) complies with each applicable provision in Title 49, Code of Federal Regulations.

(b) A commercial motor vehicle is not subject to the inspection requirements of this chapter if the vehicle:

(1) is not domiciled in this state;

(2) is registered in this state or under the International Registration Plan as authorized by Section 502.091; and

(3) has been issued a certificate of inspection in compliance with federal motor carrier safety regulations.

(c) A commercial motor vehicle described by Subsection (b) is subject to any fees established by this code that would apply to the vehicle if the vehicle were subject to the inspection requirements of this chapter, including a fee under Section 548.504 or 548.5055.

Transportation Code, Sec. 548.509. Collection of Fee During Registration.

The Texas Department of Motor Vehicles or a county assessor-collector that registers a motor vehicle that is subject to an inspection fee under this chapter shall collect at the time of registration of the motor vehicle the portion of the inspection fee that is required to be remitted to the state. The Texas Department of Motor Vehicles or the county assessor-collector shall remit the fee to the comptroller.

8.2 Inspection Program Replacement Fee

Sec. 548.510. INSPECTION PROGRAM REPLACEMENT FEE.

(a) Except as provided by Subsections (b) and (c), in addition to other fees imposed at the time of registration, at the time of application for initial registration or renewal of registration of a motor vehicle, trailer, semitrailer, pole trailer, or mobile home, the applicant shall pay an annual fee of $7.50.

(b) Instead of the fee provided by Subsection (a), an applicant shall pay a one-time fee of $16.75 if the application is for the initial registration of a passenger car or light truck that:

(1) is sold in this state or purchased by a commercial fleet buyer described by Section 501.0234(b)(4) for use in this state;

(2) has not been previously registered in this or another state; and

(3) on the date of sale is of the current model year or preceding model year.

(c) An applicant who pays a fee under Subsection (b) for a registration year is not required to pay a fee under Subsection (a) for the next registration year for the same vehicle.

(d) Each fee paid under Subsection (a) shall be deposited by the comptroller after receipt under Section 548.509 as follows:

(1) $3.50 to the credit of the Texas mobility fund;

(2) $2 to the credit of the general revenue fund; and

(3) $2 to the credit of the clean air account.

(e) Each fee paid under Subsection (b) shall be deposited by the comptroller after receipt under Section 548.509 as follows:

(1) $12.75 to the credit of the Texas mobility fund;

(2) $2 to the credit of the general revenue fund; and

(3) $2 to the credit of the clean air account.

(f) A fee collected under this section is not a motor vehicle registration fee and the revenue collected from the fee is not required to be used for a purpose specified by Section 7-a, Article VIII, Texas Constitution.

The "Inspection Program Replacement Fee" is mandated by state law to be collected at time of vehicle registration or renewal. Owners registering a new vehicle will pay a $16.75 Inspection Program Replacement Fee to cover the first two years.

8.3 Automation Fee

Transportation Code, Sec. 502.356. Automated Registration and Titling System.

(a) In addition to other registration fees for a license plate or set of license plates or other device used as the registration insignia, the board by rule shall adopt a fee of not less than 50 cents and not more than $1. The fee shall be collected and deposited into a subaccount in the Texas Department of Motor Vehicles fund.

(b) The department may use money collected under this section to provide for or enhance the automation of and the necessary infrastructure for:

(1) on-premises and off-premises registration and permitting, including permitting under Subtitle E;

(2) services related to the titling of vehicles; and

(3) licensing and enforcement procedures.

Note: Effective January 2017 and later, the Automation Fee is $0.50 when applicable. For transactions where the P&H Fee is applied, the Automation Fee is included within the $4.75.

8.4 Registration Fee-DPS

Transportation Code, Sec. 502.357. Financial Responsibility Programs.

(a) In addition to other fees imposed for registration of a motor vehicle, at the time of application for registration or renewal of registration of a motor vehicle for which the owner is required to submit evidence of financial responsibility under Section 502.046, the applicant shall pay a fee of $1. In addition to other fees imposed for registration of a motor vehicle, at the time of application for registration of a motor vehicle that is subject to Section 501.0234, the applicant shall pay a fee of $1. Fees collected under this section shall be remitted weekly to the department.

(b) Fees collected under this section shall be deposited to the credit of the state highway fund except that the comptroller shall provide for a portion of the fees to be deposited first to the credit of a special fund in the state treasury outside the general revenue fund to be known as the TexasSure Fund in a total amount that is necessary to cover the total amount appropriated to the Texas Department of Insurance from that fund and for the remaining fees to be deposited to the state highway fund. Subject to appropriations, the money deposited to the credit of the state highway fund under this section may be used by the Department of Public Safety to:

(1) support the Department of Public Safety's reengineering of the driver's license system to provide for the issuance by the Department of Public Safety of a driver's license or personal identification certificate, to include use of image comparison technology; and

(2) make lease payments to the master lease purchase program for the financing of the driver's license reengineering project.

(c) Subject to appropriation, fees collected under this section may be used by the Department of Public Safety, the Texas Department of Insurance, the Department of Information Resources, and the department to carry out Subchapter N, Chapter 601.

(d) The Department of Public Safety, the Texas Department of Insurance, the Department of Information Resources, and the department shall jointly adopt rules and develop forms necessary to administer this section.

8.5 Diesel Fee

Transportation Code, Sec. 502.359. Additional Fee for Certain Vehicles Using Diesel Motor.

(a) The registration fee under this chapter for a motor vehicle other than a passenger car, a truck with a gross vehicle weight of 18,000 pounds or less, or a vehicle registered in combination under Section 502.255 is increased by 11 percent if the vehicle has a diesel motor.

(b) The registration receipt for a motor vehicle, other than a passenger car or a truck with a gross vehicle weight of 18,000 pounds or less, must show that the vehicle has a diesel motor.

(c) The department may adopt rules to administer this section.

The additional 11% Diesel Motor Fee is applicable to all motor vehicles powered by diesel engines except the following:

- Passenger vehicles, private buses, commercial motor vehicles registered with Combination license plates; and
- Commercial motor vehicles having a gross vehicle weight of 18,000 lbs. or less.

8.6 Electric Vehicle Fee

Transportation Code, Sec. 502.360. Additional Fee for Electric Vehicles

(a) In this section, "electric vehicle" means a motor vehicle that has a gross weight of 10,000 pounds or less and uses electricity as its only source of motor power. The term does not include:

(1) an autocycle, as defined by Section 501.008;

(2) a moped, as defined by Section 541.201;

(3) a motorcycle, as defined by Sections 521.001 and 541.201; or

(4) a neighborhood electric vehicle, as defined by Section 551.301.

(b) In addition to other fees authorized under this chapter, at the time of application for registration or renewal of registration of an electric vehicle, the applicant shall pay an additional fee of:

(1) $400, for the registration of a new vehicle to which Section 548.102 applies; or

(2) $200, for the registration or renewal of registration of a vehicle to which Section 548.101 applies.

(c) Fees collected under this section must be deposited to the credit of the state highway fund.

(d) The department may adopt rules to administer this section.

"Electric Vehicle" is defined as a motor vehicle with a gross weight of 10,000 lbs. or less and that uses electricity as its only source of motor power. Autocycles, mopeds, motorcycles, and neighborhood electric vehicles (NEV) are excluded from the definition of electric vehicle.

Fully electric cars and trucks with a gross vehicle weight of 10,000 lbs. or less will be assessed an annual $200 fee at time of initial registration or renewal. New electric vehicles issued two years of registration will be assessed a $400 fee.

Note: Governmental vehicles with exempt registration and other vehicles for which no registration fee is due, including those with Disabled Veteran and other meritorious military license plates, are not assessed the electric vehicle fee.

8.7 Delinquent Fees

Transportation Code, Sec. 502.045. Delinquent Registration.

(a) A registration fee for a vehicle becomes delinquent immediately if the vehicle is used on a public highway without the fee having been paid in accordance with this chapter.

(b) An applicant for registration who provides evidence to establish good reason for delinquent registration and who complies with the other requirements for registration under this chapter may register the vehicle for a 12-month period that ends on the last day of the 11th month after the month in which the registration occurs under this subsection.

(c) An applicant for registration who is delinquent and has not provided evidence acceptable to establish good reason for delinquent registration but who complies with the other requirements for registration under this chapter shall register the vehicle for a 12-month period without changing the initial month of registration.

(d) A person who has been arrested or received a citation for a violation of Section 502.472 may register the vehicle being operated at the time of the offense for a 12-month period without change to the initial month of registration only if the person:

(1) meets the other requirements for registration under this chapter; and

(2) pays an additional charge equal to 20 percent of the prescribed fee.

(e) The board by rule shall adopt a list of evidentiary items sufficient to establish good reason for delinquent registration under Subsection (b) and provide for the evidence that may be used to establish good reason under that subsection.

(f) The board by rule shall adopt procedures to implement this section in connection with the delinquent registration of a vehicle registered directly with the department or through other means.

All motor vehicles, trailers, or semitrailers that are either unregistered or improperly registered and being operated on the highways of this state are in violation of Texas laws.

If there is a valid reason for the delinquent registration of a vehicle, the vehicle should be registered for a 12-month period, establishing a new registration expiration month, which ends on the last day of the 11th month following the month of registration.

Valid reasons may include:

- a receipt for extensive repairs on the vehicle,
- evidence that the person was out of the country,
- evidence that the vehicle is used only for seasonal use,
- military orders,
- a storage receipt, or
- any other evidence submitted that the tax assessor collector determines is valid.

If there is not a valid reason for the delinquent registration of a vehicle, the vehicle should be registered for a 12-month period without establishing a new registration period.

The operator of a vehicle apprehended for violating (Transportation Code, Sec. 502.472. Operation of Vehicle Under Improper Registration.) is required to register the vehicle for a 12-month period without changing the initial month of registration and is also required to pay a penalty equal to 20% of the registration fee.

8.8 Optional County Road and Bridge Fund Fees

Transportation Code, Sec. 502.401. Optional County Fee for Road and Bridge Fund.

(a) The commissioners court of a county by order may impose an additional fee, not to exceed $10, for registering a vehicle in the county.

(b) A vehicle that may be registered under this chapter without payment of a registration fee may be registered in a county imposing a fee under this section without payment of the additional fee.

(c) A fee imposed under this section may take effect only on January 1 of a year. The county must adopt the order and notify the department not later than September 1 of the year preceding the year in which the fee takes effect.

(d) A fee imposed under this section may be removed. The removal may take effect only on January 1 of a year. A county may remove the fee only by:

(1) rescinding the order imposing the fee; and

(2) notifying the department not later than September 1 of the year preceding the year in which the removal takes effect.

(e) The county assessor-collector of a county imposing a fee under this section shall collect the additional fee for a vehicle when other fees imposed under this chapter are collected.

(f) The department shall collect the additional fee on a vehicle that is owned by a resident of a county imposing a fee under this section that must be registered directly with the department. The department shall send all fees collected for a county under this subsection to the county treasurer to be credited to the county road and bridge fund.

(g) The department shall adopt rules necessary to administer registration for a vehicle being registered in a county imposing a fee under this section.

Optional County Fees

The optional County Road and Bridge Fee cannot exceed $10 per statute.

The County Commissioners Court must send formal notification to the TxDMV, on or before September 1 of the year preceding the year in which the fee takes effect.

If the County Commissioners Court wants to rescind the original order imposing the fee or wants to change the fee, they must notify the TxDMV by September 1 of the year preceding the one in which the fee is rescinded or changed.

The optional fee is collected on any vehicle when the payment of the registration fee is made. However, this fee will not be collected for vehicles displaying certain specialty license plates since these license plate categories are statutorily exempt from payment of registration fees and are exempt from collection of the optional fee. The following are some examples:

- Bronze Star*, Silver Star*, Pearl Harbor*, Purple Heart* etc.; and
- Machinery, Disaster Relief and Permit license plates.

*If an owner has more than one set of these specialty license plates, the County Road and Bridge Fee will be charged for those additional registrations.

The fee will not be collected when issuing any temporary registration permits or temporary registration plates.

When collecting the optional County Road and Bridge Fee for a registration issued for 13, 14, or 15 months, only one optional fee should be collected, (the TxDMV considers 13, 14, and 15 month registrations as representing a single registration period).

The optional fee is not collected when transferring the specialty category license plates to a currently registered vehicle, regardless of the number of months for which an additional registration fee may be due (one month or 11 months). The optional fee is collected when processing renewals or issuing most specialty license plates to a new vehicle, out-of-state vehicle, or unregistered Texas titled vehicle.

When registering an apprehended vehicle, the County Road and Bridge Fee is collected in addition to the applicable registration fees. The county commission is the only amount that is retained by the county in which the vehicle was apprehended, as long as it is not the county of residence.

The *Registration Renewal Notice* (Form VTR-39-A) includes the optional fees. The County Road and Bridge and Child Safety Fees are combined and are listed as "LOCAL FEES" on the registration receipt.

The TxDMV utilizes the county number to print the County Road and Bridge Fee and the county name on registration renewal notices. However, as the result of out-of-county registrations due to apprehensions or new vehicles registered in the county in which the vehicle was purchased or encumbered, the county number may not reflect the registrant's county of residence. Therefore, the clerk will enter the correct county number of residence for the registrant.

If the registrant does not present a registration renewal notice, it is necessary to verify vehicle information in order to issue registration.

A county imposing the optional County Road and Bridge Fee is required to deposit 100% of the fee in the county depository to the credit of the County Road and Bridge Fund.

While the prescribed registration fee for an antique vehicle is based on a five-year rather than a twelve-month registration period, only a single fee is prescribed for the registration period. Therefore, only one County Road and Bridge Fee may be collected upon issuance of the antique registration regardless of the number of years involved.

The optional County Road and Bridge Fee is collected only at the time of initial registration or renewal. The optional fee is not collected on:

- Vehicle transfer (vehicle currently registered),
- Exchange (including specialty license plates when additional registration fees are collected to adjust the expiration date),
- Additional weight (voluntary or apprehended), and
- Replacement.

The 20% apprehension penalty is based on the total registration fees (not the optional fees).

8.9 Optional County Fee for Transportation Projects

Transportation Code, Sec. 502.402. Optional County Fee for Transportation Projects.

(a) This section applies only to:

(1) a county that:

(A) borders the United Mexican States; and

(B) has a population of more than 250,000;

(2) a county that has a population of more than 1.5 million that is coterminous with a regional mobility authority; and

(3) a county that has a population of more than 190,000 and not more than 1.5 million that is coterminous with a regional mobility authority.

(b) The commissioners court of a county by order may impose an additional fee for a vehicle registered in the county. Except as provided by Subsection (b-1), the fee may not exceed $10.

(b-1) The commissioners court of a county described by Subsection (a) with a population of less than 700,000 may increase the additional fee to an amount that does not exceed $20 if approved by a majority of the qualified voters of the county voting on the issue at a referendum election, which the commissioners court may order and hold for that purpose.

(c) A vehicle that may be registered under this chapter without payment of a registration fee may be registered under this section without payment of the additional fee.

(d) A fee imposed under this section may take effect and be removed in accordance with the requirement of Section 502.401.

(e) The additional fee shall be collected for a vehicle when other fees imposed under this chapter are collected. The fee revenue collected shall be sent to a regional mobility authority located in the county to fund long-term transportation projects in the county that are consistent with the purposes specified by Section 7-a, Article VIII, Texas Constitution.

(f) The department shall adopt rules necessary to administer registration for a vehicle being registered in a county imposing a fee under this section.

Optional Mobility Fee

The Optional Mobility Fee applies to counties that:

- border the United Mexican States and have a population of more than 250,000; or
- have a population of more than 1.5 million that is coterminous with a regional mobility authority; or
- have a population of more than 190,000 and not more than 1.5 million that is coterminous with a regional mobility authority.

These counties may charge an additional Optional Mobility Fee not to exceed $10 at the time of vehicle registration. Currently, only Bexar, Brazos, Cameron, El Paso, Hidalgo, and Webb counties meet the criteria. Brazos county must approve the fee by a majority of voters at a referendum election, as of October 2021 this has not been done.

Counties that border the United Mexican States and have a population of more than 250,000 but less than 700,000 may increase the Optional Mobility Fee to an amount that does not exceed $20. The fee would have to be approved by majority of the voters at a referendum election, which the commissioners court may hold for this purpose. Currently, only Cameron and Webb counties meet the criteria.

8.10 Optional County Child Safety Fees

Transportation Code, Sec. 502.403. Optional County Fee for Child Safety.

(a) The commissioners court of a county that has a population greater than 1.3 million and in which a municipality with a population of more than one million is primarily located may impose by order an additional fee of not less than 50 cents or more than $1.50 for a vehicle registered in the county. The commissioners court of any other county may impose by order an additional fee of not more than $1.50 for registering a vehicle in the county.

(b) A vehicle that may be registered under this chapter without payment of a registration fee may be registered without payment of the additional fee.

(c) A fee imposed under this section may take effect and be removed in accordance with the provisions of Section 502.401.

(d) The additional fee shall be collected for a vehicle when other fees imposed under this chapter are collected.

(e) A county imposing a fee under this section may deduct for administrative costs an amount of not more than 10 percent of the revenue it receives from the fee. The county may also deduct from the fee revenue an amount proportional to the percentage of county residents who live in unincorporated areas of the county. After making the deductions provided for by this subsection, the county shall send the remainder of the fee revenue to the municipalities in the county according to their population.

(f) A municipality with a population greater than 1.3 million shall deposit revenue from a fee imposed under this subsection to the credit of the child safety trust fund created under Section 106.001, Local Government Code. A municipality with a population less than 1.3 million shall use revenue from a fee imposed under this section in accordance with Article 102.014(g), Code of Criminal Procedure.

(g) After deducting administrative costs, a county may use revenue from a fee imposed under this section only for a purpose permitted by Article 102.014(g), Code of Criminal Procedure.

8.11 Voluntary Assessment for Young Farmer Loan Guarantees

Transportation Code, Sec. 502.404. Voluntary Assessment for Texas Agricultural Finance Authority.

(a) When a person registers a commercial motor vehicle under Section 502.433, the person shall pay a voluntary assessment of $5.

(b) The county assessor-collector shall send an assessment collected under this section to the comptroller, at the time and in the manner prescribed by the Texas Agricultural Finance Authority, for deposit in the Texas agricultural fund

(c) The Texas Agricultural Finance Authority shall prescribe procedures under which an assessment collected under this section may be refunded. The county assessor-collector of the county in which an assessment is collected shall:

(1) implement the refund procedures; and

(2) provide notice of those procedures to a person paying an assessment at the time of payment.

Young Farmer Loan Guarantee Program

A "voluntary assessment" in the amount of $5 is collected at the time of registration for motor vehicles registered with Farm Truck and Farm Truck-Tractor license plates. Money from the program is made available to eligible applicants who want to establish or enhance farming or ranching operations or an agriculture-related business.

- The fee is also due when license plates are exchanged for Farm Truck and Farm Truck-Tractor license plates. Since this fee is deposited separately and is not considered part of the registration, a fee credit is never given.
- "Young Farmer Program" is reflected on all receipts when the fee is collected. County tax assessor-collector's office personnel should provide the registrant with a notice of the refund procedures prescribed by the Texas Agricultural Finance Authority when they pay the fee. The TxDMV cannot authorize a refund or a credit for this fee.
- The county tax assessor-collector's office will send the $5 Young Farmer Guarantee Fee directly to the State Treasurer. Two forms (the *Texas Agricultural Finance Authority Young Farmer Loan Guarantee Program Remittance Advice Form* and the *RTS Monthly Funds Report Young Farmer Program*) must accompany the remittance. The funds remit on or before the 15th day of the month following the last day of the collection month. For example, all fees collected February 1 through February 28 are remitted on or before March 15 to the Texas Agricultural Finance Authority.

8.12 Voluntary Donation to Donor Registry

Transportation Code, Sec. 502.405. Voluntary Contribution to Donor Registry.

(a) The department shall provide to each county assessor-collector the educational materials for prospective donors provided under Section 502.189.

(b) When a person applies for the registration or renewal of registration of a motor vehicle, the person may elect to contribute $1 or more to the nonprofit organization administering the Glenda Dawson Donate Life-Texas Registry established under Chapter 692A, Health and Safety Code. The department shall remit any contribution paid under this subsection to the comptroller for deposit to the credit of the Glenda Dawson Donate Life-Texas Registry fund created under Section 692A.020, Health and Safety Code. Money received under this subsection by the organization may be used only for the purposes described by Section 692A.020(i), Health and Safety Code. The organization shall submit an annual report to the legislature and the comptroller that includes the total dollar amount of money received by the organization under this subsection. If a person makes a contribution under this section and does not pay the full amount of the registration fee, the department may credit all or a portion of the contribution to the person's registration fee. The department shall:

(1) include space on each motor vehicle registration renewal notice, on the page that states the total fee for registration renewal, that allows a person renewing a registration to voluntarily contribute $1 or more to the organization;

(2) provide an opportunity for a person to contribute $1 or more to the organization during the registration renewal process on the department's Internet website; and

(3) provide an opportunity to contribute $1 or more to the organization in any registration renewal system that succeeds the registration renewal system in place on September 1, 2015.

(c) Three percent of all money collected under this section shall be credited to the Texas Department of Motor Vehicles fund and may be appropriated only to the department to administer this section.

A voluntary donation of $1 or more benefits the Glenda Dawson Donate Life-Texas Registry.

- The voluntary $1 or more organ donor donation is collected through the TxDMV's systems when registering or renewing registration.
- The TxDMV cannot authorize a refund or a credit for this donation. Customers wanting a refund should contact the DPS.

8.13 Voluntary Donation to Veterans' Assistance Fund

Transportation Code, Sec. 502.1746. Voluntary Contribution to Veterans' Assistance Fund.

(a) When a person registers a motor vehicle under this chapter, the person is entitled to make a voluntary contribution in any amount to the fund for veterans' assistance established by Section 434.017, Government Code, as redesignated and amended by Chapter 1418 (H.B. 3107), Acts of the 80th Legislature, Regular Session, 2007.

(b) The county assessor-collector shall send any contribution made under this section to the comptroller for deposit in the state treasury to the credit of the fund for veterans' assistance before the 31st day after the date the contribution is made. A contribution made under this section may be used only for the purposes of the fund for veterans' assistance.

(c) The department shall:

(1) include space on each motor vehicle registration renewal notice, on the page that states the total fee for registration renewal, that allows a person renewing a registration to indicate the amount that the person is voluntarily contributing to the fund for veterans' assistance;

(2) provide an opportunity to contribute to the fund for veterans' assistance similar to the opportunity described by Subsection (a) and in the manner described by Subdivision (1) in any registration renewal system that succeeds the system in place on September 1, 2011; and

(3) provide an opportunity for a person to contribute to the fund for veterans' assistance during the registration renewal process on the department's Internet website.

(d) If a person makes a contribution under this section and does not pay the full amount of a registration fee, the county assessor-collector may credit all or a portion of the contribution to the person's registration fee.

(e) The department shall consult with the Texas Veterans Commission in performing the department's duties under this section.

A voluntary donation for any amount may be submitted to benefit the Veterans Assistance Fund.

- The voluntary donation is collected through the department's systems when registering or renewing registrations.
- The department cannot authorize a refund or a credit for this donation. Customers wanting a refund should contact the Texas Veterans Commission.

8.14 Voluntary Donation to Parks and Wildlife Department

Transportation Code, Sec. 502.1747. Voluntary Contribution to Parks and Wildlife Department.

(a) When a person registers or renews the registration of a motor vehicle under this chapter, the person may contribute $5 or more to the Parks and Wildlife Department.

(b) The department shall:

(1) include space on each motor vehicle registration renewal notice, on the page that states the total fee for registration renewal, that allows a person renewing a registration to indicate the amount that the person is voluntarily contributing to the state parks account;

(2) provide an opportunity to contribute to the state parks account similar to the opportunity described by Subsection (a) and in the manner described by Subdivision (1) in any registration renewal system that succeeds the system in place on September 1, 2011; and

(3) provide an opportunity for a person to contribute to the state parks account during the registration renewal process on the department's Internet website.

(c) If a person makes a contribution under this section and does not pay the full amount of a registration fee, the county assessor-collector may credit all or a portion of the contribution to the person's registration fee.

(d) The county assessor-collector shall send any contribution made under this section to the comptroller for deposit to the credit of the state parks account under Section 11.035, Parks and Wildlife Code. Money received by the Parks and Wildlife Department under this section may be used only for the operation and maintenance of state parks, historic sites, or natural areas under the jurisdiction of the Parks and Wildlife Department.

(e) The department shall consult with the Parks and Wildlife Department in performing the department's duties under this section.

A voluntary donation may be submitted (minimum amount of $5) to benefit the Parks and Wildlife Department.

- The voluntary donation is collected through the TxDMV's systems when registering or renewing registration.
- The TxDMV cannot authorize a refund or a credit for this donation. Customers wanting a refund should contact the Parks and Wildlife Department.

8.15 Voluntary Donation to Special Olympics Texas Fund

Transportation Code, Sec. 502.413. Voluntary Contribution to Special Olympics Texas Fund.

(a) When a person registers or renews the registration of a motor vehicle under this chapter, the person may contribute any amount to the Special Olympics Texas fund under Subsection (f).

(b) The department shall provide, in a conspicuous manner, an opportunity to contribute to the Special Olympics Texas fund in any registration renewal system used by the department.

(c) If a person makes a contribution under this section and does not pay the full amount of a registration fee, the county assessor-collector may credit all or a portion of the contribution to the person's registration fee.

(d) The county assessor-collector shall send any contribution made under this section to the comptroller for deposit to the Special Olympics Texas fund before the 31st day after the date the contribution is made.

(e) The department shall consult with the Department of Aging and Disability Services in performing the department's duties under this section.

(f) The Special Olympics Texas fund is created as a trust fund outside the state treasury to be held by the comptroller and administered by the Department of Aging and Disability Services as trustee on behalf of Special Olympics Texas. The fund is composed of money deposited to the credit of the fund under this section. Money in the fund shall be disbursed at least monthly, without appropriation, to Special Olympics Texas to provide training and athletic competitions for persons with mental illness and intellectual disabilities.

A voluntary donation may be submitted to benefit the Special Olympics.

- The voluntary donation is collected through the TxDMV's systems when registering or renewing registration.
- The TxDMV cannot authorize a refund or a credit for this assessment. Customers wanting a refund should contact the Department of Aging and Disability Services.

8.16 Voluntary Donation to Evidence Testing Grant Program

Transportation Code, Sec. 502.414. Voluntary Contribution for Evidence Testing Grant Program.

(a) When a person registers or renews the registration of a motor vehicle under this chapter, the person may contribute any amount to the evidence testing grant program established under Section 772.00715, Government Code.

(b) The department shall provide, in a conspicuous manner, an opportunity to contribute to the evidence testing grant program in any registration renewal system used by the department.

(c) If a person makes a contribution under this section and does not pay the full amount of a registration fee, the county assessor-collector may credit all or a portion of the contribution to the person's registration fee.

(d) The county assessor-collector shall send any contribution made under this section to the comptroller for deposit to the credit of the evidence testing account established under Section 772.00716, Government Code, at least once every three months. Before sending the money to the comptroller, the department may deduct money equal to the amount of reasonable expenses for administering this section.

A voluntary donation may be submitted to benefit the Evidence Testing Grant Program.

- The voluntary donation is collected through the TxDMV's systems when registering or renewing registration.
- The TxDMV cannot authorize a refund or a credit for this donation.

8.17 Voluntary Donation to Ending Homelessness Fund

Transportation Code, Sec. 502.415. Voluntary Contribution to Ending Homelessness Fund.

(a) When a person registers or renews the registration of a motor vehicle under this chapter, the person may contribute any amount to the Ending Homelessness fund under Subsection (f).

(b) The department shall provide, in a conspicuous manner, an opportunity to contribute to the Ending Homelessness fund in any registration renewal system used by the department.

(c) If a person makes a contribution under this section and does not pay the full amount of a registration fee, the county assessor-collector may credit all or a portion of the contribution to the person's registration fee.

(d) The county assessor-collector shall send any contribution made under this section to the comptroller for deposit to the Ending Homelessness fund before the 31st day after the date the contribution is made.

(e) The department shall consult with the Texas Department of Housing and Community Affairs in performing the department's duties under this section.

(f) The Ending Homelessness fund is created as a trust fund outside the state treasury to be held by the comptroller and administered by the Texas Department of Housing and Community Affairs as trustee. The fund is composed of money deposited to the credit of the fund under this section. Money in the fund shall be used to provide grants to counties and municipalities to combat homelessness.

(g) The Texas Department of Housing and Community Affairs shall adopt rules governing application for grants from the Ending Homelessness fund and the issuance of those grants.

A voluntary donation may be submitted to benefit the Ending Homelessness Fund.

- The voluntary donation is collected through the TxDMV's systems when registering or renewing registration.
- The TxDMV cannot authorize a refund or a credit for this donation. Customers wanting a refund should contact the Department of Housing and Community Affairs.

8.18 Disposition of Certain Voluntary Contributions

Transportation Code, Sec. 502.1748. Disposition of Certain Voluntary Contributions.

If a person makes a voluntary contribution under Section 502.1746 or 502.1747 at the time the person registers or renews the registration of a motor vehicle under this chapter but the person does not clearly specify the entity to which the person intends to contribute, the county assessor-collector shall divide the contribution between the entities authorized to receive contributions under those sections.

At the time of initial registration, or when a customer renews their registration in person, by mail, or online, they may donate to the Texas Parks and Wildlife Department, the Veterans Assistance Fund, the Special Olympics Texas Fund, the Evidence Testing Grant Program, the Ending Homelessness Fund, and/or the Glenda Dawson Donate Life-Texas Registry.

When the customer writes in a donation on the registration renewal notice for Texas Parks and Wildlife Department or Veterans Assistance Fund, and they do not clearly specify the entity, the county tax assessor-collector's office will divide the donation between the entities authorized to receive the contributions. If the customer makes a voluntary donation but does not include sufficient funds to cover the registration fees, the county tax assessor-collector's office will credit all or a portion of the donation to the customer's registration fees.

Chapter 9

REGISTRATION FEES

This chapter contains the following sections:

- ***9.1*** Passenger Car, Municipal and Private Bus Fees
- ***9.2*** Municipal and Private Buses
- ***9.3*** Trailer or Semitrailer Fees
- ***9.4*** Motorcycle or Moped Fees
- ***9.5*** Mopeds

9.1 Passenger Car, Municipal and Private Bus Fees

Transportation Code, Sec. 502.252. Fee: Vehicles That Weigh 6,000 Pounds or Less.

(a) The fee for a registration year for registration of a vehicle with a gross weight of 6,000 pounds or less is $50.75, unless otherwise provided in this chapter.

(b) Repealed by Acts 2013, 83rd Leg., R.S., Ch. 1135, Sec. 140(2), eff. September 1, 2013.

Registration Fees

The registration fees for passenger vehicles are based upon the gross vehicle weight.

Use the shipping weight shown on the manufacturer's certificate to determine the weight of new passenger vehicles, add 100 lbs., and figure the fee on the next even 100 lbs. For example, if the manufacturer's certificate of origin shows the shipping weight as 5,415 lbs., the addition of 100 lbs. would result in a total of 5,515 lbs. When rounded off to the next highest 100 lbs., use 5,600 lbs. as the registration weight.

- If there is a question as to the correct weight of a particular vehicle, require the applicant to present a weight certificate from a Public Weigher.
- The weight shown on a weight certificate is acceptable as the registration weight of the vehicle. Do not add any weight to the figure shown on the weight certificate, but round it off to the next highest 100 lbs.
- If the weight of a vehicle is in question and the evidence of ownership for the vehicle is a manufacturer's certificate, do not lower the weight below the weight indicated without a corrected manufacturer's certificate.

Vehicles that Receive the General Issue License Plate

Passenger Vehicle License Plate Issuance

Passenger vehicles expire on a staggered basis depending on the month of issuance. New and out-of-state passenger vehicles register from the date of application for a period of at least 12 months, including the month of application.

The renewal month does not change unless:

- the owner has more than one vehicle and requests to change the month to correspond to another vehicle that they own,

- the vehicle is registered late and the owner has a valid reason for not renewing on time, or
- a specialty license plate is transferred to the vehicle

Vehicles to be Registered with Passenger License Plates

Passenger license plates are issued to the following type vehicles, which contain living facilities:

- Motor homes,
- Permanently mounted camper units constructed on truck chassis, and
- Reconstructed used trucks and buses converted to Motor Homes.

Truck-tractor conversions that have fully self-contained accommodations for human habitation will be classified as a motor home and registered as a passenger vehicle, provided the vehicle will not be operated for commercial purposes. Such truck-tractors conversions may only pull a recreational vehicle (boat, travel trailer, camper).

When converted truck-tractors are used for hire, or to pull trailers that represent commercial entities (racing vehicle trailer, competition horse trailer, vending trailer, etc.), they are subject to the laws for commercial vehicles, and should be registered with the appropriate license plates.

Optional Passenger Registration

Station wagons, sport utility vehicles, and suburban type vehicles are usually classified by the manufacturers as passenger vehicles. However, some station wagon-type vehicles and windowed vans are classified as "LL-Suburban," and the registration of such vehicles is optional as passenger vehicle or truck registration classification.

Note: At the time of application for title and registration, it is the owner's responsibility to inform the county tax assessor-collector's office that the vehicle will be operated for commercial use. If the vehicle displaying Passenger license plates is stopped by law enforcement for a violation and is operating for hire or for commercial purposes, fines could be imposed, in addition to fees and penalties for improper registration of the vehicle.

Changes in Vehicle Weight

Do not lower the weight of a passenger vehicle unless an application for corrected title is filed. Supporting evidence may include:

- Microfilm records of the manufacturer's certificate of origin, and
- Microfilm records of the out-of-state title.
    - The weight may be changed if a weight certificate is surrendered or any reference guides (Branham Guide) may be used as the basis of determining the correct weight.
    - This only applies to passenger vehicles and not motor homes, buses, or ambulances. The correction of the weight for these vehicles should be accomplished by the surrender of a weight certificate.

No passenger vehicle or any other motor vehicle with an unladen weight of less than 2,500 lbs. may be joined with more than one other vehicle or towing device at one time. Towing devices are exempt from registration (Transportation Code, Sec. 621.205).

9.2 Municipal and Private Buses

Transportation Code, Sec. 504.503. Municipal, Motor, and Private Buses.

The department shall issue without charge specialty license plates for municipal buses, motor buses, and private buses. The license plates must include the words "City Bus," "Motor Bus," or "Private Bus," as appropriate.

City Bus

City Bus license plates are issued to street or suburban buses (city buses) used to transport passengers for compensation or hire exclusively within the limits of cities and towns. City Bus license plates are issued on a staggered basis.

City Bus license plates may be transferred to the new purchaser if they qualify.

Buses owned and operated by exempt agencies that are used to transport passengers for compensation or hire exclusively within the limits of cities and towns are considered exempt from the payment of registration fees and are issued Exempt license plates. Refer to Chapter 6, "Exempt License Plates" for further information.

Private Buses

Registration fees for a private bus are determined by the gross vehicle weight of the bus.

Register all privately owned buses with Private Bus license plates. These buses include those owned by charitable, religious, and social organizations, as well as those owned by individuals.

- The "Private Bus" registration classification includes every motor vehicle not operated for compensation or hire, and designed for carrying more than 10 passengers (excluding the driver or operator). Private Bus license plates are issued on a staggered basis.
- This classification applies to all SUV-type vehicles rated by the manufacturers as having seating capacities in excess of 10 persons (excluding the driver or operator), when not used for compensation or hire.
- A weight certificate is required to verify the empty weight on all new and out-of-state privately owned buses and all used buses transferred from exempt agencies if the empty weight is not shown on the title.
- The weight of a Private Bus is determined by adding the shipping weight (empty weight) and the seating capacity multiplied by 150 lbs. and then rounded to the next highest 100 lbs. (carrying capacity). A carrying capacity must be captured. For a Private Bus currently titled and registered without a carrying capacity, calculate the carrying capacity as specified.

9.3 Trailer or Semitrailer Fees

Transportation Code, Sec. 502.254. Fee: Trailer, Travel Trailer, or Semitrailer.

(a) The fee for a registration year for registration of a trailer, travel trailer, or semitrailer with a gross weight of 6,000 pounds or less is $45.00.

(b) The fee for a registration year for registration of a trailer, travel trailer, or semitrailer with a gross weight of more than 6,000 pounds is calculated by gross weight according to Section 502.253.

Transportation Code, Sec. 502.0024. Extended Registration of Certain Trailers

(a) Notwithstanding Section 502.044(c), the department shall develop and implement a system of registration to allow an owner of a trailer, semitrailer, or pole trailer having an actual gross weight or registered gross weight of 7,500 pounds or less to register the vehicle for an extended registration period of not more than five years. The owner may select the number of years for registration under this section within that range and register the vehicle for that period. Payment for all applicable fees, including any optional fee imposed under Subchapter H and other registration fees and the fee required by Section 548.510, for the entire registration period selected is due at the time of registration.

(b) The fee required by Section 548.510 shall be remitted to the comptroller for deposit in the Texas mobility fund, the general revenue fund, and the clean air account in amounts proportionate to the allocation prescribed by Subsection (d) of that section.

(c) The fees imposed under Subchapter H shall be collected and remitted as prescribed by that subchapter.

Extended Registration for Eligible Trailers

An owner of a trailer, semitrailer, or pole trailer with a gross vehicle weight of 7,500 lbs. or less may obtain registration for a period ranging from one to five years at the customer's discretion. One P&H Fee will be collected for any extended registration period, and other annual fees, including local county fees, will be multiplied based on the length of the registration period.

Upon the expiration of extended registration, the trailer registration will revert to an annual period.

Eligibility for Trailer, Semitrailer, or Token Trailer License Plates

Trailer Type Definitions

All trailers and semitrailers require registration when operated on the public highways of this state, except farm trailers and farm semitrailers with a gross weight of less than 4,000 lbs. The fees for trailers and semitrailers registered under the provisions of this section are based on the same registration fees depending on the gross weight of the vehicle.

Full trailers are designed or used to carry its load on its own structure and be drawn by a motor vehicle. The tongue is fixed to the front axle and attached to the frame of the trailer by a swivel that pulls and controls the trailer.

- All trailers with a gross weight in excess of 4,000 lbs. must be titled (except farm trailers, that may be titled at the owner's discretion).

- A weight certificate must be included with the application for title for all out-of-state trailers or semitrailers unless the empty weight is shown on the title being surrendered.

Semitrailers are trailer type vehicles that are designed or used in conjunction with a pulling unit where some part of the trailer weight and load rests upon the pulling unit.

- All semitrailers with a gross weight in excess of 4,000 lbs. must be titled (except farm trailers, which may be titled at the owner's discretion).
- A weight certificate may be needed to verify the empty weight on new trailers and semitrailers, as well as a used trailer/semitrailer transferred from an exempt agency when applying for a Texas title if no empty weight is shown.
- Determine the gross weight of a semitrailer by weighing the semitrailer (fully equipped and "hooked up" to a truck-tractor) at its rear axle assembly with the maximum (heaviest) load carried during the registration year.

Note: Semitrailers may be registered with regular Trailer or Token Trailer license plates.

Note: A weight certificate may be needed to verify the empty weight on new trailers and semitrailers, as well as a used trailer/semitrailer transferred when applying for a Texas title if no empty weight is shown.

Token Trailer license plates are issued to a semitrailer that meets the following conditions:

- Has a gross weight in excess of 6,000 lbs., and
- Used with trucks or truck-tractors registered with Combination, Forestry, Seasonal Permit, or Apportioned license plates with a gross weight in excess of 10,000 lbs. For Combination-license plated vehicles, the combined gross weight may not be less than 18,000 lbs.

For more information regarding Token Trailers and their correct classifications, refer to Chapter 2, "Commercial Vehicles."

Issuing Trailer License Plates

Trailer license plates are issued on a staggered basis.

Vehicle Identification Number (VIN)

A VIN is required to title trailers and semitrailers. To title the trailer or semitrailer the owner may apply for an assigned VIN. Small trailers and semitrailers 4,000 lbs. or less are exempt from the Certificate of Title Act and do not require a VIN but the owner has the option to apply for one. Trailers or semitrailers 4,000 lbs. or less do have the option to apply for title and will be required to have a valid VIN from the manufacturer or one assigned by the TxDMV. (Refer to the Title Manual for more information regarding assigned VINs.)

Weight

The registration weight of a trailer or semitrailer should be the empty weight of the vehicle plus the heaviest load to be carried during the registration year. The minimum carrying capacity of a trailer or semitrailer cannot be less than one-third of the vehicle's empty weight.

A trailer or semitrailer may not legally be operated in Texas with a gross weight in excess of the maximum permissible weight allowed by law.

When currently registered trailers and semitrailers that are exempt from the Certificate of Title Act (Under 4,000 lbs or farm trailers) are sold, a registration receipt and a bill of sale are required.

Token Trailers

In order to obtain a Token Trailer license plate the gross weight of the semitrailer must be 6,000 lbs. or more and used in combination with a truck or truck-tractor with a gross weight in excess of 10,000 lbs. If the Token Trailer is being pulled by a Combination-license plated vehicle, the combined gross weight may not be less than 18,000 lbs.

The fee for Token Trailer license plates is $15. Token Trailers can only be used when pulled by vehicles properly registered with Combination, Apportioned, Forestry Vehicle, or Seasonal Permit license plates, for the combined gross weight of all the vehicles used in combination.

An additional 4,000 lbs. may be carried on the semitrailer in excess of 80,000 lbs. if an additional permit is purchased through the Motor Carrier Division. The Overweight Permit receipt should be carried in the vehicle at all times.

Five-year token trailer license plates are issued through the TxDMV Regional Service Center.

See additional information under Truck-Tractor or Semitrailer Token Fees in Chapter 2, “Commercial Vehicles.”

Custom Trailers with Living Quarters

Some custom trailers, i.e., car haulers, horse trailers, etc., have enclosed living quarters. These trailers do not qualify for a Travel Trailer license plate and therefore, should be registered with a Trailer license plate (including Farm Trailers). When registering a custom trailer with living quarters, a Trailer license plate should be issued, and the appropriate body style should be selected according to the actual type of trailer, i.e., UT - Utility, HE - Horse, LS - Livestock, etc.





Note: Trailers with living quarters primarily used to haul livestock and not used primarily for human habitation are also eligible for Farm Trailer license plates if operated in accordance with Sec. 502.433. See Farm Trailers with Living Quarters.

Hybrid Trailers

Travel trailers are manufactured equipped with a cargo area developed to carry recreational items such as ATVs, personal watercraft, snowmobiles, bikes, etc., in addition to temporary living quarters. The primary purpose for these vehicles is recreation, camping, travel, or seasonal use and not for hauling cargo. As a prerequisite to titling a travel trailer, the applicant must complete a *Trailer Verification Statement of Fact* (Form VTR-141). These vehicles should be registered with Travel Trailer license plates.

Travel Trailers





Transportation Code, Sec. 501.002, reads in part, as follows:

(30) "Travel trailer" means a house trailer-type vehicle or a camper trailer:

(A) that is a recreational vehicle defined under 24 C.F.R. Section 3282.8(g); or

(B) that:

(i) is less than eight feet six inches in width or 45 feet in length, exclusive of any hitch installed on the vehicle;

(ii) is designed primarily for use as temporary living quarters in connection with recreational, camping, travel, or seasonal use;

(iii) is not used as a permanent dwelling; and

(iv) is not a utility trailer, enclosed trailer, or other trailer that does not have human habitation as its primary function.

Travel Trailer Fees

Travel Trailer license plates are issued on a staggered basis. The registration fees for travel trailers are based on gross vehicle weight.

Vehicles Eligible for Travel Trailer License Plates





All house trailer type vehicles and camper trailer type vehicles that are less than 8 feet and 6 inches in width or less than 45 feet in length (not including the hitch) or are of the "Park Model" type (400 square feet or less) should be registered and titled as "travel trailers." Before titling a travel trailer, the applicant must verify the size of the trailer by completing a *Trailer Verification Statement of Fact* (Form VTR-141). The form must be included with the application for title covering new and out-of-state travel trailers.

Gross Weight

Use the gross weight, including all furnishings and equipment, as the basis for determining the registration fee for all house trailer type vehicles. Round off the actual gross weight to the next highest 100 lbs.

For example, register a travel trailer with an actual gross weight of 4,445 lbs. as 4,500 lbs. The 4,500 lbs. registered weight appears on the application for Texas title and registration receipt.

Note: "House trailer" means and includes only vehicles that meet the size criteria of a travel trailer.

Establishing Weight

If the shipping weight is not shown on the Manufacturer Certificate of Origin (MCO), the owner should sign a statement listing the length and width of the vehicle. Determine the gross weight by multiplying the length (to the nearest foot) by the width (to the nearest foot) to determine square footage and then multiplying the result by 20 lbs. per square foot.

When processing title transactions on travel trailers the following procedures should be followed:

New or Out-of-State Travel Trailers

- Enter the empty weight or shipping weight that is reflected on the evidence of ownership, i.e., MCO or out-of-state title, as the empty weight.
- Enter a carrying capacity. The carrying capacity can be calculated by subtracting the empty weight from the gross weight (Gross Weight – Empty Weight = Carrying Capacity).
- If the gross weight is not reflected on the MCO or out-of-state title, it can be determined by one of the following methods:
  - a weight certificate, or
  - use the following formula: Length x Width x 20 lbs. = Gross Weight.

Texas Title Transfers

If the gross weight is not shown on the Texas title, the gross weight can be determined by one of the following methods:

- a weight certificate; or
- use the following formula: Length x Width x 20 lbs. = Gross Weight.

Recreational Vehicles

A recreational vehicle is defined under Federal Rule 24 C.F.R. 3282.8(g) as a vehicle, which is:

- built on a single chassis,
- 400 square feet or less when measured at the largest horizontal projections,
- self-propelled or permanently towable by a light duty truck, and

- designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

The Federal definition places some vehicles previously considered mobile homes or manufactured housing into the travel trailer category, since Texas does not have a recreational vehicle category. These are also commonly called "Park Model" by the manufacturing industry, and made in varying widths, but the most popular model is the 12-foot wide model.

Square Footage

U.S. Department of Housing and Urban Development (HUD) recommends that, to calculate the square footage of a home, take measurements on the exterior of the home. The square footage includes all siding, corner trim, molding, storage space, and area enclosed by windows but not the roof overhang.

Park Models



In order to move a "Park Model" trailer that is over of the maximum width or length limitations allowed by law, the applicant must get an oversize permit from the Motor Carrier Division. Place a notation on the title of oversize vehicles requiring a permit in order to move the vehicle.

Camper Trailers



A "camper trailer" is a temporary human habitation that expands or folds out to form a shelter. The top and sides are either permanently attached or detachable from the trailer. The existence of items such as beds, icebox, cooking stove, etc., is immaterial.

All camper trailers, new or used, purchased on and after September 1, 1967, are registered with Travel Trailer license plates; and new owners must apply for a certificate of title.

Utility Trailers

Utility trailers that are not designed as camper trailers but are used to transport property, camping equipment, or other items would not fall within the definition of a travel trailer.

Manufactured Housing

Manufactured housing that includes mobile homes are not subject to the Registration or Certificate of Title Acts. Manufactured housing falls under the authority of the Department of Housing and Community Affairs.

No registration of any type (including One-Trip Temporary Registration Plates, In-transit license plates, or Dealer license plates) is required as a prerequisite to obtaining over width/over length permits for the movement of manufactured housing. Customers must obtain oversize permits from the Motor Carrier Division.

Mobile Office Trailers

Mobile office trailers, mobile oil field laboratories, mobile oil field bunkhouses, and trailer type vehicles used for selling merchandise do not qualify as manufactured housing. As a result, these vehicles are classified as commercial semitrailers and require registration with either Trailer license plates or Temporary 72-Hour or 144-Hour Permits if they are on the public roads.

However, if the trailer and power unit meet the requirements under the combination law, a Token Trailer license plate could also be issued for the trailer. If the body style is designated as mobile office, mobile oil field laboratory, or mobile oil field bunkhouse, the weight shown on the Manufacturer's Certificate of Origin is acceptable as the fixed weight of the vehicle for registration purposes.

If there is no weight value on the Manufacturer's Certificate of Origin, require a weight certificate. The “1/3 minimum carrying capacity” rule does not apply to these vehicles. Photos or brochures are not required except in instances when a mobile home has been altered for use as a mobile office, bunkhouse, or laboratory.

Trucks and truck-tractors

Trucks and truck-tractors, used exclusively for pulling travel trailers are registered with general issue license plates. Converted truck-tractors (with living quarters) have the option to register as motor homes with passenger registration (see above).

9.4 Motorcycle or Moped Fees

Transportation Code, Sec. 502.251. Fee: Motorcycle or Moped.

The fee for a registration year for registration of a motorcycle or moped is $30.

New and out-of-state motorcycles or mopeds are registered on a staggered basis for at least 12 consecutive months.

Off-road motorcycles designed and used exclusively as “off-highway” vehicles are not registered; however, they should be titled. If they operate on public land, they should receive an Off Highway Vehicle decal issued by Texas Parks and Wildlife Department.

9.5 Mopeds

A moped is a motor vehicle with a maximum speed of 30 mph with a motor that produces not more than five-brake horsepower. If an internal combustion engine is used, the maximum piston displacement is 50cc. The power drive system must only have one gear. Moped license plates are available for motor vehicles that meet the moped definition in Transportation Code, Section 541.201. The month of expiration is determined by the registration period assigned, which is one year from the date of application.

Chapter 10

GENERAL PROVISIONS

This chapter contains the following sections:

- ***10.1*** Definitions
- ***10.2*** Rules and Forms
- ***10.3*** Registration by Political Subdivision Prohibited
- ***10.4*** Vehicles Operated on Public Highways Separating Real Property
- ***10.5*** Nonresident Operated Vehicles
- ***10.6*** Design of Registration Insignia
- ***10.7*** Cost of Manufacturing
- ***10.8*** International Registration Plan
- ***10.9*** Disputed Classification of Vehicle
- ***10.10*** Department Responsibilities
- ***10.11*** County Tax Assessor-Collector Operations
- ***10.12*** Communication Impediment
- ***10.13*** Digital License Plates

10.1 Definitions

Transportation Code, Sec. 502.001. Definitions.

In this chapter:

(1) Repealed by Acts 2019, 86th Leg., R.S., Ch. 1233 (H.B. 1548), Sec. 41(3), eff. June 14, 2019.

(2) "Apportioned license plate" means a license plate issued in lieu of a truck, motor bus, or combination license plate to a motor carrier in this state who proportionally registers a vehicle owned or leased by the carrier in one or more other states.

(3) "Board" means the board of the Texas Department of Motor Vehicles.

(4) "Combination license plate" means a license plate issued for a truck or truck-tractor that is used or intended to be used in combination with a semitrailer that has a gross weight of more than 6,000 pounds.

(5) "Combined gross weight" means the empty weight of the truck-tractor or commercial motor vehicle combined with the empty weight of the heaviest semitrailer used or to be used in combination with the truck-tractor or commercial motor vehicle plus the heaviest net load to be carried on the combination during the registration year.

(6) "Commercial fleet" means a group of at least 25 nonapportioned motor vehicles, semitrailers, or trailers owned, operated, or leased by a corporation, limited or general partnership, limited liability company, or other business entity and used for the business purposes of that entity.

(7) "Commercial motor vehicle" means a motor vehicle, other than a motorcycle or moped, designed or used primarily to transport property. The term includes a passenger car reconstructed and used primarily for delivery purposes. The term does not include a passenger car used to deliver the United States mail.

(8) "Construction machinery" means a vehicle that:

(A) is used for construction;

(B) is built from the ground up;

(C) is not mounted or affixed to another vehicle such as a trailer;

(D) was originally and permanently designed as machinery;

(E) was not in any way originally designed to transport persons or property; and

(F) does not carry a load, including fuel.

(9) "Credit card" has the meaning assigned by Section 501.002. See Credit Card.

(10) "Debit card" has the meaning assigned by Section 501.002. See Debit Card.

(11) "Department" means the Texas Department of Motor Vehicles.

(12) Repealed by Acts 2019, 86th Leg., R.S., Ch. 485 (H.B. 2188), Sec. 10, eff. September 1, 2019.

(13) "Electric personal assistive mobility device" has the meaning assigned by Section 551.201. See Electric Personal Assistive Mobility Device.

(14) "Empty weight" means the unladen weight of a truck-tractor or commercial motor vehicle and semitrailer combination fully equipped, as certified by a public weigher or license and weight inspector of the Department of Public Safety.

(15) "Farm semitrailer" or "farm trailer" means a vehicle designed and used primarily as a farm vehicle.

(16) "Farm tractor" has the meaning assigned by Section 541.201. See Farm Tractor.

(17) "Forestry vehicle" means a vehicle designed and used exclusively for transporting forest products in their natural state, including logs, debarked logs, untreated ties, stave bolts, plywood bolts, pulpwood billets, wood chips, stumps, sawdust, moss, bark, and wood shavings, and property used in production of those products.

(17-a) "Former military vehicle" means a vehicle, including a trailer, that:

(A) was manufactured for use in any country's military forces; and

(B) is not operated on continuous tracks.

(18) Repealed by Acts 2019, 86th Leg., R.S., Ch. 1233 (H.B. 1548), Sec. 41(3), eff. June 14, 2019.

(19) "Gross Vehicle Weight" has the meaning assigned by Section 541.401.

(20) "Implements of husbandry" has the meaning assigned by Section 541.201. See Implement of Husbandry.

(21) "Light truck" has the meaning assigned by Section 541.201. See Light Truck.

(22) "Moped" has the meaning assigned by Section 541.201. See Moped.

(23) "Motor bus" includes every vehicle used to transport persons on the public highways for compensation, other than:

(A) a vehicle operated by muscular power; or

(B) a municipal bus.

(24) "Motorcycle" has the meaning assigned by Section 521.001 or 541.201, as applicable. See Autocycle and Motorcycle.

(25) "Motor vehicle" means a vehicle that is self-propelled.

(26) "Motorized mobility device" has the meaning assigned by Section 552A.0101, See Motorized Mobility Device.

(27) "Municipal bus" includes every vehicle, other than a passenger car, used to transport persons for compensation exclusively within the limits of a municipality or a suburban addition to the municipality.

(28) "Net carrying capacity" means the heaviest net load that is able to be carried on a vehicle, but not less than the manufacturer's rated carrying capacity.

(29) "Oil well servicing, cleanout, or drilling machinery":

(A) has the meaning assigned by Section 623.149; or

(B) means a mobile crane:

(i) that is an unladen, self-propelled vehicle constructed as a machine and used solely to raise, shift, or lower heavy weights by means of a projecting, swinging mast with an engine for power on a chassis permanently constructed or assembled for that purpose; and

(ii) for which the owner has secured a permit from the department under Section 623.142. See Oil Well Servicing.

(30) "Operate temporarily on the highways" means to travel between:

(A) different farms;

(B) a place of supply or storage and a farm; or

(C) an owner's farm and the place at which the owner's farm produce is prepared for market or is marketed.

(31) "Owner" means a person who:

(A) holds the legal title of a vehicle;

(B) has the legal right of possession of a vehicle; or

(C) has the legal right of control of a vehicle.

(32) "Passenger car" has the meaning assigned by Section 541.201. See Passenger Car.

(33) "Power sweeper" means an implement, with or without motive power, designed for the removal by a broom, vacuum, or regenerative air system of debris, dirt, gravel, litter, or sand from asphaltic concrete or cement concrete surfaces, including surfaces of parking lots, roads, streets, highways, and warehouse floors. The term includes a vehicle on which the implement is permanently mounted if the vehicle is used only as a power sweeper.

(34) "Private bus" means a bus that:

(A) is not operated for hire; and

(B) is not a municipal bus or a motor bus.

(35) "Public highway" includes a road, street, way, thoroughfare, or bridge:

(A) that is in this state;

(B) that is for the use of vehicles;

(C) that is not privately owned or controlled; and

(D) over which the state has legislative jurisdiction under its police power.

(36) "Public property" means property owned or leased by this state or a political subdivision of this state.

(37) Repealed by Acts 2019, 86th Leg., R.S., Ch. 1233 (H.B. 1548), Sec. 41(3), eff. June 14, 2019.

(38) "Road tractor" means a vehicle designed for the purpose of mowing the right-of-way of a public highway or a motor vehicle designed or used for drawing another vehicle or a load and not constructed to carry:

(A) an independent load; or

(B) a part of the weight of the vehicle and load to be drawn.

(39) "Semitrailer" means a vehicle designed or used with a motor vehicle so that part of the weight of the vehicle and its load rests on or is carried by another vehicle.

(39-a) "Shipping weight" means the weight generally accepted as the empty weight of a vehicle.

(40) "Token trailer" means a semitrailer that:

(A) has a gross weight of more than 6,000 pounds; and

(B) is operated in combination with a truck or a truck-tractor that has been issued:

(i) an apportioned license plate;

(ii) a combination license plate; or

(iii) a forestry vehicle license plate.

(41) "Tow truck" means a motor vehicle adapted or used to tow, winch, or otherwise move another motor vehicle.

(42) "Trailer" means a vehicle that:

(A) is designed or used to carry a load wholly on its own structure; and

(B) is drawn or designed to be drawn by a motor vehicle.

(43) "Travel trailer" has the meaning assigned by Section 501.002. See Travel Trailer.

(44) "Truck-tractor" means a motor vehicle:

(A) designed and used primarily for drawing another vehicle; and

(B) not constructed to carry a load other than a part of the weight of the vehicle and load to be drawn.

(45) "Vehicle" means a device in or by which a person or property is or may be transported or drawn on a public highway, other than a device used exclusively on stationary rails or tracks.

Commercial Motor Vehicle

Transportation Code, Sec. 644.001, reads in part, as follows: Definitions.

In this chapter:

(1) "Commercial motor vehicle" means:

(A) a commercial motor vehicle as defined by 49 C.F.R. Section 390.5, if operated interstate; or

(B) a commercial motor vehicle as defined by Section 548.001, if operated intrastate.

Transportation Code, Sec. 548.001. Definitions.

In this chapter:

(1) "Commercial motor vehicle" means a self-propelled or towed vehicle, other than a farm vehicle with a gross weight, registered weight, or gross weight rating of less than 48,000 pounds, that is used on a public highway to transport passengers or cargo if:

(A) the vehicle, including a school activity bus as defined in Section 541.201, or combination of vehicles has a gross weight, registered weight, or gross weight rating of more than 26,000 pounds;

(B) the vehicle, including a school activity bus as defined in Section 541.201, is designed or used to transport more than 15 passengers, including the driver; or

(C) the vehicle is used to transport hazardous materials in a quantity requiring placarding by a regulation issued under the Hazardous Materials Transportation Act (49 U.S.C. Section 5101 et seq.).

Credit Card

Transportation Code, Sec. 501.002. Definitions.

In this chapter:

(2) "Credit card" means a card, plate, or similar device used to make a purchase or to borrow money.

Debit Card

Transportation Code, Sec. 501.002. Definitions.

In this chapter:

(4) "Debit card" means a card that enables the holder to withdraw money or to have the cost of a purchase charged directly to the holder's bank account.

Electric Bicycle

Transportation Code, Sec. 664.001. Vehicles.

In this chapter:

(4) "Electric bicycle" means a bicycle:

(A) equipped with:

(i) fully operable pedals; and

(ii) an electric motor of fewer than 750 watts; and

(B) with a top assisted speed of 28 miles per hour or less.

Electric Personal Assistive Mobility Device

Transportation Code, Sec. 551.201. Definition.

In this subchapter, "electric personal assistive mobility device" means a two non-tandem wheeled device designed for transporting one person that is:

(1) self-balancing; and

(2) propelled by an electric propulsion system with an average power of 750 watts or one horsepower.

Farm Tractor

Transportation Code, Sec. 541.201. Vehicles.

In this subtitle:

(4) "Farm tractor" means a motor vehicle designed and used primarily as a farm implement to draw an implement of husbandry, including a plow or a mowing machine.

Gross Vehicle Weight

Transportation Code, Sec. 541.401. Miscellaneous Terms.

In this subtitle:

(4) "Gross vehicle weight" means the weight of a vehicle and the weight of its load.

Implement of Husbandry

Transportation Code, Sec. 541.201. Vehicles.

In this subtitle:

(6) "Implement of husbandry" means:

(A) a vehicle, other than a passenger car or truck, that is designed and adapted for use as a farm implement, machinery, or tool for tilling the soil;

(B) a towed vehicle that transports to the field and spreads fertilizer or agricultural chemicals; or

(C) a motor vehicle designed and adapted to deliver feed to livestock.

Light Truck

Transportation Code, Sec. 541.201. Vehicles.

In this subtitle:

(7) "Light truck" means a truck, including a pickup truck, panel delivery truck, or carryall truck, that has a manufacturer's rated carrying capacity of 2,000 pounds or less.

Moped

Transportation Code, Sec. 541.201. Vehicles.

In this subtitle:

(8) "Moped" means a motor vehicle that is equipped with a rider's saddle and designed to have when propelled not more than three wheels on the ground, that cannot attain a speed in one mile of more than 30 miles per hour, and the engine of which:

(A) cannot produce more than five-brake horsepower; and

(B) if an internal combustion engine, has a piston displacement of 50 cubic centimeters or less and connects to a power drive system that does not require the operator to shift gears.

Autocycle and Motorcycle

Transportation Code, Sec. 502.005. Registration of Autocycle.

(a) In this section, "autocycle" means a motor vehicle, other than a tractor, that is:

(1) designed to have when propelled not more than three wheels on the ground;

(2) equipped with seat belts and a steering mechanism;

(3) equipped with seating that does not require the operator to straddle or sit astride the seat; and

(4) manufactured and certified to comply with federal safety requirements for a motorcycle.

(b) For purposes of registering a vehicle under this chapter, an autocycle is considered to be a motorcycle.

Transportation Code, Sec. 521.001. Definitions.

(a) In this chapter:

(6-a) "Motorcycle" includes an enclosed three-wheeled passenger vehicle that:

(A) is designed to operate with three wheels in contact with the ground;

(B) has a single, completely enclosed, occupant compartment; and

(C) at a minimum, is equipped with:

(i) seats that are certified by the vehicle manufacturer to meet the requirements of Federal Motor Vehicle Safety Standard No. 207, 49 C.F.R. Section 571.207;

(ii) a steering wheel used to maneuver the vehicle;

(iii) a propulsion unit located in front of or behind the enclosed occupant compartment;

(iv) a seat belt for each vehicle occupant certified by the manufacturer to meet the requirements of Federal Motor Vehicle Safety Standard No. 209, 49 C.F.R. Section 571.209;

(v) a windshield and one or more windshield wipers certified by the manufacturer to meet the requirements of Federal Motor Vehicle Safety Standard No. 205, 49 C.F.R. Section 571.205, and Federal Motor Vehicle Safety Standard No. 104, 49 C.F.R. Section 571.104;

(vi) a vehicle structure certified by the vehicle manufacturer to meet the requirements of Federal Motor Vehicle Safety Standard No. 216, 49 C.F.R. Section 571.216, if:

(a) the unladen weight of the vehicle is more than 900 pounds; or

(b) the unladen weight of the vehicle is not more than 900 pounds and the vehicle has a maximum speed capability of more than 40 milers per hour; and

(vii) an active tilt control system if the unladen weight of the vehicle is not more than 900 pounds and the vehicle has a maximum speed capability of 40 miles per hour or less.

(c) The department by rule may define types of vehicles that are "motorcycles" for the purposes of this chapter, in addition to those defined under Subsection (a)(6-a), and for the purposes of Chapters 501, 502, and 503. This subsection applies only to vehicles manufactured by a manufacturer licensed under Chapter 2301, Occupations Code.

Transportation Code, Sec. 541.201. Vehicles.

In this subtitle:

(9) "Motorcycle" means a motor vehicle, other than a tractor or moped, that is equipped with a rider's saddle and designed to have when propelled not more than three wheels on the ground.

Motorized Mobility Device

Transportation Code, Sec. 552A.0101. Operators of Certain Mobility Devices.

(a) In this section, "motorized mobility device" means a device designed for transportation of persons with physical disabilities that:

(1) has three or more wheels;

(2) is propelled by a battery-powered motor;

(3) has not more than one forward gear; and

(4) is not capable of speeds exceeding eight miles per hour.

(b) For the purposes of this subtitle, a person operating a nonmotorized wheelchair or motorized mobility device is considered to be a pedestrian.

Oil Well Servicing

Transportation Code, Sec. 623.149. Determination Whether Vehicle Subject to Registration or Eligible for Distinguishing License Plate.

(c) In this section, "oil well servicing, oil well clean out, or oil well drilling machinery or equipment" means a vehicle constructed as a machine used solely for servicing, cleaning out, or drilling an oil well and consisting in general of a mast, an engine for power, a draw works, and a chassis permanently constructed or assembled for one or more of those purposes.

Passenger Car

Transportation Code, Sec. 541.201. Vehicles.

In this subtitle:

(12) "Passenger car" means a motor vehicle, other than a motorcycle, used to transport persons and designed to accommodate 10 or fewer passengers, including the operator.

Travel Trailer

Transportation Code, Sec. 501.002. Definitions.

In this chapter:

(30) "Travel Trailer" means a house trailer-type vehicle or a camper trailer:

(A) that is a recreational vehicle defined under 24 C.F.R. Section 3282.8(g); or

(B) that:

(i) is less than eight feet six inches in width or 45 feet in length, exclusive of any hitch installed on the vehicle;

(ii) is designed primarily for use as temporary living quarters in connection with recreational, camping, travel, or seasonal use;

(iii) is not used as a permanent dwelling; and

(iv) is not a utility trailer, enclosed trailer, or other trailer that does not have human habitation as its primary function.

"Owner" means the person who holds legal title to the vehicle, or for registration purposes, that person who has the legal right of possession or legal right of control of such vehicle.

If the vehicle is subject to a lien, the lienholder is considered the legal owner; or if the vehicle is free and clear of all liens, the person who is named on the title is the legal owner.

The terms "legal right of possession" and "legal right of control" mean something more than the actual physical possession by an agent or servant. The terms imply such possession or control to be with a degree of permanency throughout the greater part of the registration year and not merely temporary possession. (Attorney General's Opinion No. 0-2105)

A person who can be classified as having either legal right of possession or legal right of control would be one who could be entrusted with the vehicle's care. Said terms would preclude a person who has only the physical control of a motor vehicle, but would include a person who has all rights in the motor vehicle as to its control, operation, use and management, but who does not have legal title. Such possession or control would have to be of a permanent nature and not one that is subject to being divested at any time the legal titleholder within the reasonable expectation of the parties at the time of the registration of the motor vehicle.

- A local ticket agent of a bus company would not have legal right of possession or legal right of control over the buses, which regularly pass through his town. The exception to this would be where by some instrument in the form of a lease or bailment said ticket agent would be given such legal right of control or legal right of possession. In this connection, however, such an instrument drawn up for the purpose of evasion of the motor vehicle registration law would not of itself suffice to make such person the owner within the meaning of the registration statute.
- The same rule that applies to a local agent of a bus company would also be applicable to the local agent of a freight line. However, the local agent of a freight line would be considered an owner, for registration purposes, of vehicles permanently stationed in his county over which he is given legal right of control or legal right of possession.
- A district or branch manager of an oil refining company or wholesale grocery concern could be an owner for his company for the vehicles definitely assigned to that district or branch for registration purposes.

Leased Vehicles - The lessor's name (person or firm who actually owns the vehicle) must be shown in the name of owner space on the registration receipt. To enable the leasing company to receive the negotiable title, allow the lessee to receive all subsequent registration renewal notices. The name and address of the lessee may be shown in Box 14c (Registrant's Name, Renewal Notice Receipt) on the *Application for Texas Title and/or Registration* (Form 130-U), and should be shown as the "Renewal Recipient."

Either the lessor or lessee may renew Texas registration, provided the renewal is filed in the county in which the applicant resides or any county willing to accept the application.

A company owned vehicle in which the employee has possession and control may renew registration in the county in which the employee resides or any county willing to accept the application.

10.2 Rules and Forms

Transportation Code, Sec. 502.0021. Rules and Forms.

(a) The department may adopt rules to administer this chapter.

(b) The department shall post forms on the Internet and provide each county assessor-collector with a sufficient supply of any necessary forms on request.

Administrative Rules

The agency's administrative rules provide an opportunity to clarify a statutory requirement or agency process. When an administrative rule is approved, the rule is formally proposed, filed, and published in the Texas Register. After a public comment period, and, approval by the board, the Secretary of State publishes the final rule in the Texas Administrative Code.

The Administrative Rules can be viewed online at: www.sos.state.tx.us/tac/

10.3 Registration by Political Subdivision Prohibited

Transportation Code, Sec. 502.003. Registration by Political Subdivision Prohibited.

(a) Except as provided by Subsection (b) a political subdivision of this state may not require an owner of a motor vehicle to:

(1) register the vehicle;

(2) pay a motor vehicle registration fee; or

(3) pay an occupation tax or license fee in connection with a motor vehicle.

(b) This section does not affect the authority of a municipality to:

(1) license and regulate the use of motor vehicles for compensation within the municipal limits; and

(2) impose a permit fee or street rental charge for the operation of each motor vehicle used to transport passengers for compensation, other than a motor vehicle operating under a registration certificate from the department or a permit from the federal Surface Transportation Board.

(c) A fee or charge under Subsection (b) may not exceed two percent of the annual gross receipts from the vehicle.

(d) This section does not impair the payment provisions of an agreement or franchise between a municipality and the owners or operators of motor vehicles used to transport passengers for compensation.

10.4 Vehicles Operated on Public Highways Separating Real Property

Transportation Code, Sec. 502.144. Vehicles Operated on Public Highway Separating Real Property Under Vehicle Owner's Control.

Where a public highway separates real property under the control of the owner of a motor vehicle, the operation of the motor vehicle by the owner or the owner's agent or employee across the highway is not a use of the motor vehicle on the public highway.

Vehicle registration is not required for vehicles moving to and from the owner's land if a public highway or city street divides the owner's land as long as the properties are within a reasonable distance from each other.

10.5 Nonresident Operated Vehicles

Transportation Code, Sec. 502.145. Vehicles Operated by Certain Nonresidents.

(a) A nonresident owner of a privately owned passenger car that is registered in the state or country in which the person resides and that is not operated for compensation may operate the car in this state for the period in which the car's license plates are valid. In this subsection, "nonresident" means a resident of a state or country other than this state whose presence in this state is as a visitor and who does not engage in gainful employment or enter into business or an occupation, except as may otherwise be provided by any reciprocal agreement with another state or country.

(b) This section does not prevent:

(1) a nonresident owner of a motor vehicle from operating the vehicle in this state for the sole purpose of marketing farm products raised exclusively by the person; or

(2) a resident of an adjoining state or country from operating in this state a privately owned and registered vehicle to go to and from the person's place of regular employment and to make trips to purchase merchandise, if the vehicle is not operated for compensation.

(c) The privileges provided by this section may be allowed only if, under the laws of the appropriate state or country, similar privileges are granted to vehicles registered under the laws of this state and owned by residents of this state.

(d) This section does not affect the right or status of a vehicle owner under any reciprocal agreement between this state and another state or country.

Texas grants reciprocity to vehicles from other jurisdictions displaying Farm license plates. Out-of-state vehicles displaying Farm license plates are restricted to the same limitations placed on Texas vehicles with interstate movement. If movement is intrastate, a permit or Texas registration is required.

10.6 Design of Registration Insignia

Transportation Code, Sec. 502.00211. Design of Registration Insignia.

The department shall prepare the designs and specifications to be used as the registration insignia.

10.7 Cost of Manufacturing

Transportation Code, Sec. 504.006. Cost of Manufacturing.

(a) The department shall reimburse the Texas Department of Criminal Justice for the cost of manufacturing license plates as the invoices for the license plates are delivered to the department.

(b) When manufacturing is started, the Texas Department of Criminal Justice, and the department, after negotiation, shall set the price to be paid for each license plate. The price must be determined from:

(1) the cost of metal, paint, and other materials purchased;

(2) the inmate maintenance cost per shift;

(3) overhead expenses;

(4) miscellaneous charges; and

(5) a previously agreed upon amount of profit for the work.

10.8 International Registration Plan

Transportation Code, Sec. 502.091. International Registration Plan.

(a) The department, through its director, may enter into an agreement with an authorized officer of another jurisdiction, including another state of the United States, a foreign country or a state, province, territory, or possession of a foreign country, to provide for:

(1) the registration of vehicles by residents of this state and nonresidents on an allocation or mileage apportionment plan, as under the International Registration Plan; and

(2) the exemption from payment of registration fees by nonresidents if residents of this state are granted reciprocal exemptions.

(b) The department may adopt and enforce rules to carry out the International Registration Plan or other agreement under this section. The rules may require an applicant to register under the unified carrier registration system as defined by Section 643.001 before the applicant applies for registration under the International Registration Plan.

(c) To carry out the International Registration Plan or other agreement under this section, the department shall direct that fees collected for other jurisdictions under the agreement be deposited to the credit of the proportional registration distributive fund in the state treasury and distributed to the appropriate jurisdiction through that fund. The department is not required to refund any amount less than $10 unless required by the plan.

(d) This section prevails to the extent of conflict with another law relating to the subject of this section.

(e) A person commits an offense if the person owns or operates a vehicle not registered in this state in violation of:

(1) an agreement under this section; or

(2) the applicable registration laws of this state, in the absence of an agreement under this section.

(f) An offense under Subsection (e) is a misdemeanor punishable by a fine not to exceed $200.

Who Must Obtain IRP Registration

Apportionable Vehicle means (except as provided below) any Power Unit that is used or intended for use in two or more Member Jurisdictions and that is used for the transportation of persons for hire or designed, used, or maintained primarily for the transportation of property, and:

- has two Axles and a gross vehicle weight or registered gross vehicle weight in excess of 26,000 lbs. (11,793.401 kilograms), or
- has three or more Axles, regardless of weight, or
- is used in combination, when the gross vehicle weight of such combination exceeds 26,000 lbs. (11,793.401 kilograms).

A recreational vehicle, a vehicle displaying Restricted license plates, or a government-owned vehicle are not Apportionable Vehicles.

Chartered buses and motorcoaches engaged in inter-jurisdictional operations will be subject to the requirements of IRP registration.

Trucks or Truck Tractors, or the Power Unit in a Combination of vehicles having a gross vehicle weight of 26,000 lbs. (11,793.401 kilograms), or less, may be registered under the Plan at the option of the registrant.

TxDMV may enter into a reciprocal agreement with other states, United Mexican States, and Canadian provinces. The publication, *Summary of Reciprocity Agreements between Texas and the other States* contains information on:

- Vehicles operated by military personnel,
- Vehicles operated with foreign license plates, and
- Student reciprocity.

10.9 Disputed Classification of Vehicle

Transportation Code, Sec. 502.056. Disputed Classification of Vehicle.

In a disputed case, the department may determine:

(1) the classification to which a vehicle belongs; and

(2) the amount of the registration fee for the vehicle.

When there is a doubt regarding vehicle classification, contact the department with a photograph and vehicle details.

10.10 Department Responsibilities

Transportation Code, Sec. 520.004. Department Responsibilities.

The department has jurisdiction over the registration and titling of, and the issuance of license plates to, motor vehicles in compliance with the applicable statutes. The department by rule:

(1) shall provide services that are reasonable, adequate, and efficient;

(2) shall establish standards for uniformity and service quality for counties and dealers licensed under 520.005;

(3) may conduct public service education campaigns related to the department's functions; and

(4) shall establish a risk-based system of monitoring and preventing fraudulent activity related to vehicle registration and titling in order to efficiently allocate resources and personnel.

10.11 County Tax Assessor-Collector Operations

Transportation Code, Sec. 520.007. County Branch Offices.

(a) The commissioners court of a county may authorize the county assessor-collector to:

(1) establish a suboffice or branch office for vehicle registration at one or more locations in the county other than the county courthouse; or

(2) appoint a deputy to register vehicles in the same manner and with the same authority as though done in the office of the assessor-collector.

(b) The report of vehicles registered through a suboffice or branch office shall be made through the office of the county assessor-collector.

The TxDMV recommends county tax assessor-collector's offices bond substation deputies in the same manner as those in the main tax office. The county tax assessor-collector's office should ensure the amount of the bond is equal to the volume of business handled.

County commissioners' courts can approve a request from the county tax assessor-collector to deputize a person or business to conduct specific vehicle title and registration functions. Deputies are either full-service or limited service. Each type has specific functions and allowed fees.

Deputies

Transportation Code, Sec. 520.0071. Deputies.

(a) The board by rule shall prescribe:

(1) the classification types of deputies performing titling and registration duties;

(2) the duties and obligations of deputies;

(3) the type and amount of any bonds that may be required by a county assessor-collector for a deputy to perform titling and registration duties; and

(4) the fees that may be charged or retained by deputies.

(b) A county assessor-collector, with the approval of the commissioners court of the county, may deputize an individual or business entity to perform titling and registration services in accordance with rules adopted under Subsection (a).

Transportation Code, Sec. 520.0072. Liability of County Tax Assessor-Collector For Certain Acts of Deputies.

Notwithstanding any other law, a county tax assessor-collector may not be held liable for an offense

or damages arising from the misuse of license plates or other fraudulent activity related to vehicle registration and titling by an individual or business entity deputized by the county tax assessor collector to perform titling services in accordance with rules adopted under Section 520.0071(a).

Lease of Additional Computer Equipment

Transportation Code, Sec. 520.0093. Lease of Computer Equipment.

(a) The department may lease equipment and provide related services to a:

(1) county for the operation of the automated registration and titling system in addition to the equipment provided by the department at no cost to the county under a formula prescribed by the department; and

(2) deputy appointed under Section 520.0071.

(b) On the request of the tax assessor-collector of a county, the department may enter into an agreement with the commissioners court of that county under which the department leases additional equipment to the county for the use of the tax assessor-collector in operating the automated registration and titling system in that county.

(b-1) On the request of a deputy appointed under Section 520.0071, the department may enter into an agreement under which the department leases equipment to the deputy for the use of the deputy in operating the automated registration and titling system. The department may require the deputy to post a bond in an amount equal to the value of the equipment.

(c) A county may install equipment leased under this section at offices of the county or of an agent of the county. A deputy appointed under Section 520.0071 may install equipment leased under this section on the premises described in the agreement.

(d) Equipment leased under this section:

(1) remains the property of the department; and

(2) must be used primarily for the automated registration and titling system.

(e) Under the agreement, the department shall charge an amount not less than the amount of the cost to the department to provide the equipment and any related services under the lease. All money collected under the lease shall be deposited to the credit of the Texas Department of Motor Vehicles fund.

If a county tax assessor-collector's office wants any additional system resources, (for example, workstations or peripheral equipment) beyond that which is allocated, the equipment and support may be leased at the county's expense from the TxDMV.

County tax assessor-collector's offices should contact their supporting TxDMV Regional Service Center for information to amend their existing agreement.

10.12 Communication Impediment

A completed *Certification of a Communication Impediment* (Form VTR-216) must be submitted to add a communication impediment indicator on the motor vehicle record at time of initial registration, renewal, or at any other time upon request of the vehicle owner or the applicant. The Form VTR-216 must be completed by a licensed physician if the applicant has a physical health condition or a licensed physician, licensed psychologist, or a non-physician mental health professional if the applicant has a mental health condition.

After verifying the certification and selecting the "Communication Impediment" check box in the Registration and Title System (RTS), complete the transaction and return the Form VTR-216 to the applicant.

The remark may be removed at anytime as a result of a verbal request by the customer.

10.13 Digital License Plates

Transportation Code, Sec. 504.151. Definitions.

In this subchapter:

(1) "Digital license plate" means an electronic display that is designed to:

(A) display the information required to be included on a physical license plate; and

(B) be placed on the rear of a vehicle in lieu of a physical license plate issued under this chapter.

(2) "Digital license plate provider" means a person engaged in the business of providing digital license plate hardware and services to vehicle owners, including the sale or lease of and issuance of digital license plates.

Transportation Code, Sec. 504.152. Applicability of Other Law.

Except as otherwise provided by this subchapter or a rule adopted under this subchapter, a digital license plate issued under this subchapter is subject to the laws of this state applicable to a physical license plate.

Transportation Code, Sec. 504.153. Rules.

The board shall adopt rules as necessary to implement and administer this subchapter.

Transportation Code, Sec. 504.154. Digital License Plates Authorized.

(a) The board by rule shall allow a vehicle described by Subsection (b) to be equipped with a digital license plate that is placed on the rear of the vehicle in lieu of a physical license plate issued under this chapter. The rule must require the owner of a vehicle issued a digital license plate to obtain a physical license plate to be placed on the front of the vehicle unless the vehicle is of a class of vehicles that is not required to display two license plates, as provided by other law.

(b) A vehicle registered under Chapter 502 may be equipped with a digital license plate only if the vehicle:

(1) is part of a commercial fleet, as defined by Section 502.001;

(2) is owned or operated by a governmental entity; or

(3) is not a passenger vehicle.

(c) The department may contract with digital license plate providers for the issuance of digital license plates, including any services related to the issuance of digital license plates.

(d) Notwithstanding any other law, a rule adopted under this subchapter may:

(1) authorize the display of the vehicle's registration insignia on a digital license plate issued for the vehicle in lieu of attaching the registration insignia to the inside of the vehicle's windshield as required by Section 502.059;

(2) establish a fee in an amount necessary to cover any administrative costs incurred that relate to the issuance of a digital license plate and exceed the administrative costs incurred for the issuance of a physical license plate; or

(3) prohibit a digital license plate provider from contracting with the department under Subchapter J.

Transportation Code, Sec. 504.155. Digital License Plates Requirements and Permissive Functionality.

(a) The board by rule shall set the specifications and requirements for digital license plates, including requirements for the placement of digital license plates. The design of and information displayed on a digital license plate must be approved by the department.

(b) A digital license plate issued under this subchapter must:

(1) meet the specifications and requirements adopted under Subsection (a);

(2) include the information required to be included on a physical license plate and legibly display that information at all times and in all light conditions, provided that the license plate may display the information in a smaller typeface when the vehicle is parked;

(3) have wireless connectivity capability; and

(4) provide benefits to law enforcement that meet or exceed the benefits provided by physical license plates as of the time of enactment of this subchapter and as determined by the Department of Public Safety.

(c) In adopting rules under Subsection (a), the board shall consult with the Department of Public Safety. Except as otherwise provided by this subsection and Section 2001.036, Government Code, a rule adopted under Subsection (a) takes effect on the 31st day after the date on which the rule is filed in the office of the secretary of state. A rule adopted under Subsection (a) does not take effect if, not later than the 30th day after the date on which the rule is filed in the office of the secretary of state, the public safety director of the Department of Public Safety submits to the office of the secretary of state written notification invalidating the rule.

(d) A rule adopted under this subchapter may:

(1) authorize the use of a digital license plate for electronic toll collection or to display a parking permit; or

(2) establish procedures for displaying on a digital license plate:

(A) an emergency alert or other public safety alert issued by a governmental entity, including an alert authorized under Subchapter L, M, or P, Chapter 411, Government Code;

(B) vehicle manufacturer safety recall notices;

(C) static logo displays, including unique displays for fleet vehicles; or

(D) advertising approved by the department.

Transportation Code, Sec. 504.156. Digital License Plate Provider Powers and Duties.

A digital license plate provider with whom the department contracts under Section 504.154:

(1) shall maintain an inventory of the digital license plates issued by the provider in this state;

(2) shall make available a digital version of each specialty license plate authorized by this chapter, other than personalized license plates authorized for marketing and sale under Subchapter J, provided that:

(A) each issuance of a specialty license plate with restricted distribution, including a license plate authorized under Subchapter C, D, E, or F, must be approved by the department; and

(B) the provider shall remit to the department in the manner prescribed by the department all money:

(i) payable to the department; or

(ii) required to be used or deposited in the manner prescribed by the law establishing the license plate;

(3) may contract with the private vendor under Subchapter J to make available a digital version of a personalized license plate authorized for marketing and sale under that subchapter, provided that the contract shall conform with any applicable requirements of Subchapter J and the terms of the private vendor's contract with the department;

(4) shall, if a digital license plate displays a registration insignia as authorized by a rule adopted under Section 504.154(d)(1), promptly update the display of the registration insignia to reflect the current registration period for the vehicle and, on request of the department, suspend the display of the registration insignia or indicate on the license plate that the registration insignia for the vehicle is expired;

(5) may provide any service related to the issuance of a digital license plate that is authorized by board rule, including the sale, lease, and installation of and customer service for a digital license plate; and

(6) may charge a fee, payable in installments, for the issuance of a digital license plate or any additional services provided by the provider for that license plate.

Transportation Code, Sec. 504.157. Defense to Prosecution of Certain Offenses.

It is a defense to prosecution of an offense involving the operation of a motor vehicle and relating to the placement of a license plate or the display of a registration insignia that the vehicle was operated in compliance with rules issued under this subchapter governing the placement of a digital license plate or the display of a registration insignia on a digital license plate, as applicable.

Eligibility

A digital license plate (DLP) is a wireless device that electronically provides the same license plate information on metal license plates and serves as an optional display device for eligible vehicles with current Texas registration. Vehicles eligible to display a DLP under state law include commercial fleet vehicles, exempt governmental vehicles, and other vehicles that are not classified as passenger vehicles unless the passenger vehicle is part of a commercial fleet or has Exempt registration. A "DLP" remark will be placed on the vehicle record for law enforcement use.

Displaying DLP

Under state law, the DLP must be displayed on the rear of the vehicle for vehicle types that are eligible under Transportation Code, Section 504.154, and a metal license plate must be displayed on the front of the vehicle "unless the vehicle is of a class of vehicles that is not required to display two license plates."

There is no statutory requirement for a vehicle registered with a DLP to display the registration sticker on the windshield; however, Texas Administrative Code requires the registration sticker to be retained inside the vehicle if it is not displayed on the vehicle. The registration expiration month and year will appear in the upper-right hand corner of the DLP in the same location as displayed on a metal license plate.

Obtaining DLP

DLPs and services related to DLPs are supplied by a third-party vendor. In addition to the cost of the DLP, a person issued a DLP must pay an Administrative Fee of $95.00 to the DLP third-party vendor upon initial application and to the county tax-assessor collector's office or the TxDMV, as applicable, on renewal of registration for a vehicle with a DLP. For more information, customers may be directed to the TxDMV's license plates webpage at: www.txdmv.gov/motorists/license-plates.

Chapter 11

INSURANCE

This chapter contains the following sections:

- ***11.1*** Evidence of Financial Responsibility
- ***11.2*** Minimum Coverage Amounts
- ***11.3*** Motor Vehicle Liability Insurance Requirements
- ***11.4*** Incomplete Evidence
- ***11.5*** Owners Providing Evidence for Others
- ***11.6*** Identification and Insurance Programs Fees
- ***11.7*** TexasSure Vehicle Insurance Verification

11.1 Evidence of Financial Responsibility

Transportation Code, Sec. 502.046. Evidence of Financial Responsibility.

(a) Evidence of financial responsibility as required by Section 601.051 other than for a trailer or semitrailer shall be submitted with the application for registration under Section 502.043. A county assessor-collector may not register the motor vehicle unless the owner or the owner's representative submits the evidence of financial responsibility.

(b) The county assessor-collector shall examine the evidence of financial responsibility to determine whether it complies with Subsection (c). After examination the evidence shall be returned unless it is in the form of a photocopy or an electronic submission.

(c) In this section, evidence of financial responsibility may be:

(1) a document listed under Section 601.053(a) or verified in compliance with Section 601.452;

(2) a liability self-insurance or pool coverage document issued by a political subdivision or governmental pool under the authority of Chapter 791, Government Code, Chapter 119, Local Government Code, or other applicable law in at least the minimum amounts required by Chapter 601;

(3) a photocopy of a document described by Subdivision (1) or (2); or

(4) an electronic submission of a document or the information contained in a document described by Subdivision (1) or (2).

(d) A personal automobile policy used as evidence of financial responsibility under this section must comply with Section 1952.052 et seq. and Sections 2301.051 through 2301.055, Insurance Code.

(e) At the time of registration, the county assessor-collector shall provide to a person registering a motor vehicle a statement that the motor vehicle may not be operated in this state unless:

(1) liability insurance coverage for the motor vehicle in at least the minimum amounts required by law remains in effect to insure against potential losses; or

(2) the motor vehicle is exempt from the insurance requirement because the person has established financial responsibility in a manner described by Sections 601.051(2)-(5) or is exempt under Section 601.052.

(f) A county assessor-collector is not liable to any person for refusing to register a motor vehicle to which this section applies because of the person's failure to submit evidence of financial responsibility that complies with Subsection (c).

(g) A county, a county assessor-collector, a deputy county assessor-collector, a person acting for or on behalf of a county or a county assessor-collector, or a person acting on behalf of an owner for purposes of registering a motor vehicle is not liable to any person for registering a motor vehicle under this section.

(h) This section does not prevent a person from registering a motor vehicle by mail or through an electronic submission.

(i) To be valid under this section, an electronic submission must be in a format that is:

(1) submitted by electronic means, including a telephone, facsimile machine, or computer;

(2) approved by the department; and

(3) authorized by the commissioners court for use in the county.

(j) This section does not apply to a vehicle registered pursuant to Section 501.0234.

Note: Due to a change in law for Transportation Code, Sec. 601.053(a), proof of insurance through a mobile communication device is another acceptable form of evidence. The insurance displayed on the device will need to have the minimum requirements listed under Transportation Code, Sec. 601.081.

Proof of Financial Responsibility

Registrants of motor vehicles must provide valid proof of financial responsibility (insurance) on the vehicle being registered in the minimum amounts required by law at the time of initial registration, or renewal of registration.

Texas licensed motor vehicle dealers are not required to provide proof of financial responsibility (insurance) when they are applying for title and registration for the purchaser. There are a few additional types of transactions where proof of insurance is not a requirement listed in Table 11-1.

The county, the county tax assessor-collector, a deputy county tax assessor-collector, and any person acting for or on behalf of a county or county tax assessor-collector is not liable to any person for refusing to register a motor vehicle subject to these provisions because of the person's failure to submit acceptable proof of financial responsibility.

If insurance is not verified through the system, valid evidence of financial responsibility (insurance) or a copy of the evidence satisfies the requirement of proof at the time of initial registration, or renewal of registration. This evidence includes, but is not limited to:

- A liability insurance policy or liability self-insurance or pool coverage document issued in at least the minimum amounts required by law, or
- A standard proof of liability form issued by a liability insurer including the:
  - name of the insurer,
  - insurance policy number,
  - policy period,
  - name and address of each insured,
  - policy limits or statement that the coverage of the policy complies with at least the minimum amounts of liability insurance required by law, and
  - make, and model of each covered vehicle.

Note: Some liability insurance cards may not contain all the information listed above, but are acceptable.

The tax assessor-collector should:

- examine the proof of financial responsibility to determine if it complies with the items acceptable as evidence,
- contact the Texas Department of Insurance if unsure concerning the acceptability of a presented document, and
- return original documents to the registrant regardless of whether registration is in person or by mail. Copies of insurance documents do not have to be returned.

Requirement of Financial Responsibility

Transportation Code, Sec. 601.051. Requirement of Financial Responsibility.

A person may not operate a motor vehicle in this state unless financial responsibility is established for that vehicle through:

(1) a motor vehicle liability insurance policy that complies with Subchapter D;

(2) a surety bond filed under Section 601.121;

(3) a deposit under Section 601.122;

(4) a deposit under Section 601.123; or

(5) self-insurance under Section 601.124.

- Subchapter D of Section 601 - A current automobile insurance policy or card is legitimate proof of financial responsibility. According to the Texas Department of Insurance, a binder issued pending the issuance of a motor vehicle liability policy is acceptable as proof of financial responsibility.
- Section 601.121 (Surety Bond) - A certificate of compliance, issued by the DPS, indicating the owner has filed the necessary bond for the vehicle with the DPS.
- Section 601.122 (Deposit of Cash or Securities with Comptroller) - A certificate issued by the State Comptroller showing the vehicle owner has deposited $55,000 in cash or securities with the Comptroller.

- Section 601.123 (Deposit of Cash or Cashier's Check with County Judge) - A copy of a certificate issued by the county judge of the county in which the vehicle is to be registered indicating the vehicle owner has deposited with the county judge an amount of not less than $55,000 in cash or a cashier's check, the certificate must be acknowledged by the sheriff of that county and filed with the DPS.
- Section 601.124 (Self-Insurance) - A copy of a self-insurance certificate issued by the DPS (25 vehicles or more to qualify).

11.2 Minimum Coverage Amounts

Transportation Code, Sec. 601.072. Minimum Coverage Amounts; Exclusions.

(a) Expired.

(a-1) Effective January 1, 2011, the minimum amounts of motor vehicle liability insurance coverage required to establish financial responsibility under this chapter are:

(1) $30,000 for bodily injury to or death of one person in one accident;

(2) $60,000 for bodily injury to or death of two or more persons in one accident, subject to the amount provided by Subdivision (1) for bodily injury to or death of one of the persons; and

(3) $25,000 for damage to or destruction of property of others in one accident.

(b) The coverage required under this section may exclude, with respect to one accident:

(1) the first $250 of liability for bodily injury to or death of one person;

(2) the first $500 of liability for bodily injury to or death of two or more persons, subject to the amount provided by Subdivision (1) for bodily injury to or death of one of the persons; and

(3) the first $250 of liability for property damage to or destruction of property of others.

(c) The Texas Department of Insurance shall establish an outreach program to inform persons of the requirements of this chapter and the ability to comply with the financial responsibility requirements of this chapter through motor vehicle liability insurance coverage. The commissioner, by rule, shall establish the requirements for the program. The program must be designed to encourage compliance with the financial responsibility requirements, and must be made available in English and Spanish.

Initial Registration and Transfer of Title Requirements

Acceptable proof of financial responsibility that may be accepted in conjunction with a transfer of title, if the transfer occurs within 30 days of the title assignment date, includes:

- Valid proof of insurance on any vehicle the title applicant owns, or
- Valid proof of insurance on a vehicle that is being used as a trade-in on the vehicle that is being registered and titled.

If the application for title is filed after 30 days after the date of title assignment then proof of insurance must be submitted on the actual vehicle that is being titled.

Insurance is not acceptable if written for less than 30 days.

11.3 Motor Vehicle Liability Insurance Requirements

Transportation Code, Sec. 601.071. Motor Vehicle Liability Insurance; Requirements.

For purposes of this chapter, a motor vehicle liability insurance policy must be an owner's or operator's policy that:

(1) except as provided by Section 601.083, is issued by an insurance company authorized to write motor vehicle liability insurance in this state;

(2) is written to or for the benefit of the person named in the policy as the insured; and

(3) meets the requirements of this subchapter.

Out-of-State or Out-of-Country Proof of Insurance

Proof of financial responsibility from out-of-state or out-of-country issued by an agent, company, or surety company authorized to write liability insurance in Texas, is acceptable provided the insurance coverage is at least the minimum amounts required by the Texas Motor Vehicle Safety-Responsibility Act (Transportation Code, Sec. 601.072).

No Fault Insurance

"No fault" insurance is acceptable as proof of financial responsibility, provided the insurance coverage is at least the minimum amounts required by the Texas Motor Vehicle Safety Responsibility Act (Transportation Code, Sec. 601.072).

Motorcycle Insurance

Valid proof of financial responsibility for a motorcycle is the same as for any vehicle.

11.4 Incomplete Evidence

Transportation Code, Sec. 601.057. Evidence that Does Not Fulfill Requirements; Suspension.

If evidence filed with the department does not continue to fulfill the purpose for which it was required, the department shall suspend the driver's license and all vehicle registrations or nonresident's operating privilege of the person who filed the evidence pending the filing of other evidence of financial responsibility.

In this section, the DPS is the department with the authority to suspend a driver license and vehicle registration.

11.5 Owners Providing Evidence for Others

Transportation Code, Sec. 601.054. Owner May Provide Evidence of Financial Responsibility for Others.

(a) The department shall accept evidence of financial responsibility from an owner for another person required to establish evidence of financial responsibility if the other person is:

(1) an operator employed by the owner; or

(2) a member of the owner's immediate family or household.

(b) The evidence of financial responsibility applies to a person who becomes subject to Subsection (a)(1) or (2) after the effective date of that evidence.

(c) Evidence of financial responsibility accepted by the department under Subsection (a) is a substitute for evidence by the other person and permits the other person to operate a motor vehicle for which the owner has provided evidence of financial responsibility.

(d) The department shall designate the restrictions imposed by this section on the face of the other person's driver's license.

Situations Not Requiring Proof of Insurance

Transportation Code, Sec. 601.052. Exceptions to Financial Responsibility Requirement.

(a) Section 601.051 does not apply to:

(1) the operation of a motor vehicle that:

(A) is a former military vehicle or is at least 25 years old;

(B) is used only for exhibitions, club activities, parades, and other functions of public interest and not for regular transportation; and

(C) for which the owner files with the department an affidavit, signed by the owner, stating that the vehicle is a collector's item and used only as described by Paragraph (B);

(2) a neighborhood electric vehicle that is operated only as authorized by Section 551.304;

(2-a) a golf cart that is operated only as authorized by Section 551.403;

(2-b) an off-highway vehicle that is operated only as authorized by Subchapter C, Chapter 551A, or Section 551A.055 of this code or Chapter 29, Parks and Wildlife Code; or

(3) a volunteer fire department for the operation of a motor vehicle the title of which is held in the name of a volunteer fire department.

(b) Subsection (a)(3) does not exempt from the requirement of Section 601.051 a person who is operating a vehicle described by that subsection.

(c) In this section:

(1) "Former military vehicle" has the meaning assigned by Section 504.502(i).

(2) "Volunteer fire department" means a company, department, or association that is:

(A) organized in an unincorporated area to answer fire alarms and extinguish fires or to answer fire alarms, extinguish fires, and provide emergency medical services; and

(B) composed of members who:

(i) do not receive compensation; or

(ii) receive only nominal compensation.

Note: ONLY Neighborhood Electric Vehicles (NEVs) operated under Transportation Code, Sec. 551.304. Limited Operation.**, are not required to have insurance.**

A list of registration scenarios that do not require insurance verification is in Table 11-1.

Table 11-1 Insurance Not Required Quick Reference

Topic	Situation	Additional Information
Form 130-U filed for…	transfer to Insurance company	for a total loss on an unrecovered vehicle
	transfer security interest	"LIEN TRANSFER/NCO" with no change in ownership
	correct vehicle description or add or delete a lien	no change in ownership
	vehicle with Apportioned license plates	proof is required for license plates obtained at a TxDMV Regional Service Center
Replacement license plates	this is not a registration event	no change in registration status
Exchange current license plates for specialty license plates	Collegiate, State Capitol, Armed Forces Reserve, etc.	no change in registration status
Application for initial issuance or renewal of Antique license plates	supported by *Affidavit Relating to Mandatory Liability Insurance Exemption* for Certain Antique Vehicles	(Transportation Code, Sec. 601.052), original form is filed with the DPS
Other specialty license plates, during application for initial issuance or renewal	Personalized Dealer license plates, Disaster Relief license plates, Exempt license plates, Trailer license plates (any type), Log Loader license plates, Machinery license plates, Permit license plates, Manufacturer's license plates, and Single Tow Truck license plates.	insurance not required by law

11.6 Identification and Insurance Programs Fees

Transportation Code, Sec. 502.357. Financial Responsibility Programs.

(a) In addition to other fees imposed for registration of a motor vehicle, at the time of application for registration or renewal of registration of a motor vehicle for which the owner is required to submit evidence of financial responsibility under Section 502.046, the applicant shall pay a fee of $1. In addition to other fees

imposed for registration of a motor vehicle, at the time of application for registration of a motor vehicle that is subject to Section 501.0234, the applicant shall pay a fee of $1. Fees collected under this section shall be remitted weekly to the department.

(b) Fees collected under this section shall be deposited to the credit of the state highway fund except that the comptroller shall provide for a portion of the fees to be deposited first to the credit of a special fund in the state treasury outside the general revenue fund to be known as the TexasSure Fund in a total amount that is necessary to cover the total amount appropriated to the Texas Department of Insurance from that fund and for the remaining fees to be deposited to the state highway fund. Subject to appropriations, the money deposited to the credit of the state highway fund under this section may be used by the Department of Public Safety to:

(1) support the Department of Public Safety's reengineering of the driver's license system to provide for the issuance by the Department of Public Safety of a driver's license or personal identification certificate, to include use of image comparison technology; and

(2) make lease payments to the master lease purchase program for the financing of the driver's license reengineering project.

(c) Subject to appropriation, fees collected under this section may be used by the Department of Public Safety, the Texas Department of Insurance, the Department of Information Resources, and the department to carry out Subchapter N, Chapter 601.

(d) The Department of Public Safety, the Texas Department of Insurance, the Department of Information Resources, and the department shall jointly adopt rules and develop forms necessary to administer this section.

11.7 TexasSure Vehicle Insurance Verification

A $1 fee is collected in addition to registration fees at the time of initial registration or renewal; the registration receipt will reflect Reg Fee-DPS

This fee was established for the creation and maintenance of an insurance database (TexasSure) that can be accessed through the system to determine the insurance status of a specific vehicle. Upon the input of a VIN or license plate number, the system returns the following messages:

- Verified - this indicates the vehicle has current insurance and no further verification is required
- Verify Manually - this information appears highlighted in RED and indicates that insurance could not be verified
- Not Applicable - this indicates proof of insurance is not required for this type of vehicle (trailers, semi-trailers, machinery, etc.).

If the system message returned is “Verify Manually,” then the registrant must present acceptable Proof of Financial Responsibility.

Chapter 12

OFF-HIGHWAY, LOG LOADER, FORESTRY & MISCELLANEOUS

This chapter contains the following sections:

- ***12.1*** Off-Highway Vehicles
- ***12.2*** Neighborhood Electric Vehicles (NEV)
- ***12.3*** Golf Cart
- ***12.4*** Package Delivery Vehicles
- ***12.5*** Miniature Vehicles
- ***12.6*** Pocket Bike or Minimotorbike
- ***12.7*** Motor Assisted Scooter and Minimotorbike
- ***12.8*** Log Loader Vehicle
- ***12.9*** Forestry Vehicles
- ***12.10*** Other Vehicles
- ***12.11*** Oil Well Servicing and Drilling Machinery
- ***12.12*** Registration of Vehicle
- ***12.13*** Vehicles Subject to Registration or Eligible for Distinguishing License Plates

12.1 Off-Highway Vehicles

Transportation Code, Sec. 502.140. Certain Off-Highway Vehicles.

(a) In this section, "off-highway vehicle" has the meaning assigned by Section 551A.001.

(b) Except as provided by Subsection (c), the department may not register an off-highway vehicle, with or without design alterations, for operation on a public highway.

(c) The department may register an off-highway vehicle that is owned by the state, county, or municipality for operation on a public beach or highway to maintain public safety and welfare.

(d) Section 504.401 does not apply to an off-highway vehicle.

(e) An off-highway vehicle that is registered under this section:

(1) is not subject to the requirements of Subchapter D, Chapter 551A; and

(2) is subject to the requirements of Subchapter E, Chapter 551A.

Transportation Code, Sec.551A.052. Registration; License Plates.

(a) Except as provided by Section 502.140(c), the Texas Department of Motor Vehicles may not register an off-highway vehicle for operation on a highway regardless of whether any alteration has been made to the vehicle.

(b) An operator may operate an unregistered off-highway vehicle on a highway in a manner authorized by this subchapter only if the vehicle displays a license plate issued under this section.

(c) The Texas Department of Motor Vehicles:

(1) shall by rule establish a procedure to issue license plates for unregistered off-highway vehicles; and

(2) may charge a fee not to exceed $10 for the cost of the license plate, to be deposited to the credit of the Texas Department of Motor Vehicles fund.

(d) An off-highway vehicle license plate issued under Subsection (c) does not expire. A person who becomes the owner of an off-highway vehicle for which the previous owner obtained a license plate may not use the previous owner's license plate.

Transportation Code, Sec. 551A.053. Operation on Highway Authorized by Municipality or Certain Counties.

(a) In addition to the operation authorized by Section 551A.055, the governing body of a municipality may allow an operator to operate an unregistered off-highway vehicle on all or part of a highway that:

(1) is in the corporate boundaries of the municipality; and

(2) has a posted speed limit of not more than 35 miles per hour.

(b) In addition to the operation authorized by Section 551A.055, the commissioners court of a county described by Subsection (c) may allow an operator to operate an unregistered off-highway vehicle on all or part of a highway that:

(1) is located in the unincorporated area of the county; and

(2) has a posted speed limit of not more than 35 miles per hour.

(c) Subsection (b) applies only to a county that:

(1) borders or contains a portion of the Red River;

(2) borders or contains a portion of the Guadalupe River and contains a part of a barrier island that borders the Gulf of Mexico; or

(3) is adjacent to a county described by Subdivision (2) and:

(A) has a population of less than 37,000; and

(B) contains a part of a barrier island or peninsula that borders the Gulf of Mexico.

Transportation Code, Sec. 551A.054. Prohibition of Operation in Certain Areas by Municipality, County, or Department.

(a) A county or municipality may prohibit the operation of an unregistered off-highway vehicle on a highway under Section 551A.055 if the governing body of the county or municipality determines that the prohibition is necessary in the interest of safety.

(b) The Texas Department of Transportation may prohibit the operation of an unregistered off-highway vehicle on a highway under Section 551A.055 if that department determines that the prohibition is necessary in the interest of safety.

Transportation Code, Sec.551A.055. Operation Authorized in Certain Areas.

An operator may operate an unregistered off-highway vehicle:

(1) in a master planned community:

(A) that has in place a uniform set of restrictive covenants; and

(B) for which a county or municipality has approved a plat; or

(2) on a highway for which the posted speed limit is not more than 35 miles per hour, if the off-highway vehicle is operated:

(A) during the daytime; and

(B) not more than two miles from the location where the off-highway vehicle is usually parked and for transportation to or from a golf course.

Transportation Code, Sec. 551A.056. Crossing Intersections.

An unregistered off-highway vehicle may cross a highway at an intersection, including an intersection with a highway that has a posted speed limit of more than 35 miles per hour.

Transportation Code, Sec. 551A.001. Definitions.

In this chapter:

(1) "All-terrain vehicle" means a motor vehicle that is:

(A) equipped with a seat or seats for the use of:

(i) the rider; and

(ii) a passenger, if the motor vehicle is designed by the manufacturer to transport a passenger;

(B) designed to propel itself with three or more tires in contact with the ground;

(C) designed by the manufacturer for off-highway use;

(D) not designed by the manufacturer primarily for farming or lawn care; and

(E) not more than 50 inches wide.

(1-b) "Off-highway vehicle" means:

(A) an all-terrain vehicle or recreational off-highway vehicle, as those terms are defined by Section 502.001;

(B) a sand rail; or

(C) a utility vehicle.

(3) "Sand rail" means a vehicle, as defined by Section 502.001, that:

(A) is designed or built primarily for off-highway use in sandy terrains, including for use on sand dunes;

(B) has a tubular frame, an integrated roll cage, and an engine that is rear-mounted or placed midway between the front and rear axles of the vehicle; and

(C) has a gross vehicle weight, as defined by Section 541.401, of:

(i) not less than 700 pounds; and

(ii) not more than 2,000 pounds.

(4) "Public off-highway vehicle land" means land on which off-highway recreation is authorized under Chapter 29, Parks and Wildlife Code.

(5) "Recreational off-highway vehicle" means a motor vehicle that is:

(A) equipped with a seat or seats for the use of:

(i) the rider; and

(ii) a passenger or passengers, if the vehicle is designed by the manufacturer to transport a passenger or passengers;

(B) designed to propel itself with four or more tires in contact with the ground;

(C) designed by the manufacturer for off-highway use by the operator only; and

(D) not designed by the manufacturer primarily for farming or lawn care.

(6) "Utility vehicle" means a motor vehicle that is not a golf cart, as defined by Section 551.401, or lawn mower and is:

(A) equipped with side-by-side seating for the use of the operator and a passenger;

(B) designed to propel itself with at least four tires in contact with the ground;

(C) designed by the manufacturer for off-highway use only; and

(D) designed by the manufacturer primarily for utility work and not for recreational purposes.

Off-highway vehicles include all-terrain vehicles (ATVs), recreational off-highway vehicles (ROVs), utility vehicles (UTVs), and sand rails.

All off-highway vehicles are required to be titled but are not registered. For titling requirements, refer to the Title Manual.

All Terrain Vehicles (ATV)

A vehicle is classified as an ATV if it:

- has a seat or seats for the rider and one passenger,
- has three or more tires,
- is designed for off-highway use,
- is not designed by the manufacturer for farm or lawn care, and
- is not more than 50 inches wide.

Recreational Off-Highway Vehicles (ROV)

A vehicle is classified as an ROV if it:

- has a seat or seats for the rider and one or more passengers,

- has four or more tires,
- is designed for off-highway use, and
- is not designed by the manufacturer for farm or lawn care.

Utility Vehicle (UTV)

A vehicle is classified as an UTV if it:

- has side by side seating for the operator and passenger,
- has four or more tires,
- is designed for off-highway use, and
- is designed by the manufacturer for utility work and not recreational purposes.

Sand Rail

A vehicle is classified as a sand rail if it:

- is designed or built for off-highway use in sandy terrains,
- has a tubular frame,
- has an integrated roll cage,
- has an engine that is rear-mounted or placed midway between the front and rear axles, and
- has a gross vehicle weight between 700-2,000 lbs.

Operation of Off-Highway Vehicles

Off-highway vehicles may be operated on public roads without the issuance of an Off-Highway Vehicle license plate if the vehicle is:

- owned by a state, county or municipality and operated on a public beach or highway to maintain public safety and welfare;
- operated by a farmer or a rancher and operation is during the daytime and does not exceed a distance of 25 miles from point of origin to the destination, and use of the vehicle is in connection with the production, cultivation, harvesting, etc. of agricultural products;
- operated by a public utility worker for utility work and operation is during the daytime and does not exceed a distance of 25 miles from point of origin to the destination; or
- operated by a law enforcement officer, or other person who provides law enforcement, firefighting (includes volunteer), ambulance, medical, or other emergency services, and does not exceed a distance of 10 miles from point of origin to the destination.

If the vehicle qualifies as indicated above and is operated on public roads:

- it must display a triangular orange flag (slow moving emblem) mounted to the back of the vehicle that is at least six feet above ground level,
- it must have headlights and taillights that are illuminated, and
- depending on the operator, operation does not exceed the specified distance from point of origin to the destination.

To be operated on public off-highway vehicle land, an off-highway vehicle must have:

- a brake system,
- a muffler system,

- a U.S. Forest Service qualified spark arrester,
- head and tail light, and
- an Off-Highway Vehicle decal issued by the Texas Parks and Wildlife Department.

Transportation Code, Section 551.005 allows off-highway vehicles that have been issued an Off-Highway Vehicle license plate to be operated:

- in a master planned community with a uniform set of restrictive covenants and a county or municipality-approved plat; or
- on a highway with a posted speed limit not more than 35 mph if operated during the daytime and the vehicle is driven not more than two miles from the location where it is usually parked for transportation to and from a golf course.

Transportation Code, Section 551A.053 allows a city or certain county to authorize operation of off-highway vehicles on certain highways within the city or county's boundaries. A city may authorize operation when the highway is within the boundaries of the city and the posted speed limits is 35 mph or less. Certain counties may authorize operation on the county highway that is located in an unincorporated area of the county and the posted speed limit is 35 mph or less. The counties that may authorize operation must:

- border or contain a portion of the Red River;
- border or contain a portion of the Guadalupe River and contain a part of a barrier island that borders the Gulf of Mexico; or
- be adjacent to a county that borders or contains a portion of the Guadalupe River and contain a part of a barrier island or peninsula that borders the Gulf of Mexico with a population less than 37,000.

Off-highway vehicles driven on highways where operation is authorized must display an Off-Highway Vehicle license plate. Off-highway vehicles also must display a slow-moving vehicle emblem if operated on roads at a speed of 25 mph or less.

Off-Highway Vehicle Decal

The Texas Parks and Wildlife Department (TPWD) issues the Off-Highway Vehicle decals that allow off-highway vehicles to operate in state owned parks and recreation areas. TPWD should be contacted for information concerning the issuance of these decals.

Safety Certificate for Operation on Public Property

In addition to the decal requirements for the off-highway vehicle, the operator of an off-highway vehicle on public off-highway vehicle land must hold a safety certificate issued by this state or by another state. The operator must carry the certificate when operating the vehicle on public off-highway vehicle land and display the certificate at the request of any law enforcement officer.

Transportation Code, Section. 502.140, states that a person may not register an off-highway vehicle, with or without design modifications, for operation on a public highway.

12.2 Neighborhood Electric Vehicles (NEV)

Transportation Code, Sec. 551.301. Definitions.

In this subchapter: "Neighborhood electric vehicle" means a vehicle that can attain a maximum speed of 35 miles per hour on a paved level surface and otherwise complies with Federal Motor Vehicle Safety Standard 500 (49 C.F.R. Section 571.500).

Transportation Code, Sec. 551.303. Operation on Roadways.

(a) A neighborhood electric vehicle may be operated only on a street or highway for which the posted speed limit is 45 miles per hour or less. A neighborhood electric vehicle may cross a road or street at an intersection where the road or street has a posted speed limit of more than 45 miles per hour. A neighborhood electric vehicle may not be operated on a street or highway at a speed that exceeds the lesser of:

(1) the posted speed limit; or

(2) 35 miles per hour.

(b) A county or municipality may prohibit the operation of a neighborhood electric vehicle on a street or highway if the governing body of the county or municipality determines that the prohibition is necessary in the interest of safety.

(c) The Texas Department of Transportation may prohibit the operation of a neighborhood electric vehicle on a highway if that department determines that the prohibition is necessary in the interest of safety.

Transportation Code, Sec. 551.304. Limited Operation.

(a) An operator may operate a neighborhood electric vehicle:

(1) in a master planned community:

(A) that has in place a uniform set of restrictive covenants; and

(B) for which a county or municipality has approved a plat;

(2) on a public or private beach; or

(3) on a public highway for which the posted speed limit is not more than 35 miles per hour, if the neighborhood electric vehicle is operated:

(A) during the daytime; and

(B) not more than two miles from the location where the neighborhood electric vehicle is usually parked and for transportation to or from a golf course.

(b) A person is not required to register a neighborhood electric vehicle operated in compliance with this section.

A NEV is a motor vehicle that:

- is originally manufactured to meet, and meets, the equipment requirements and safety standards established for "low speed vehicles" in Federal Motor Vehicle Safety Standard 500 (49 C.F.R. §571.500);
- has four wheels;
- does not have to be powered by electricity (other power sources, such as gasoline, are acceptable);

- is a slow-moving vehicle, being able to attain a speed of more than 20 miles per hour but not more than 35 miles per hour; and
- is not a golf cart (designed by the manufacturer primarily for transporting persons on a golf course).

Registration and Title

A NEV is required to be titled in order to be registered for operation on public roads in accordance with 551.303. A NEV is not required to be titled and registered if operated in accordance with 551.304 (same as golf cart). NEVs are exempt from inspection verification.

The registration classification of a NEV will be determined by whether it is designed as a 4-wheel truck, or a 4-wheel passenger vehicle.

A NEV requires the same financial responsibility or liability insurance as a vehicle when operated in accordance with 551.303. A NEV no longer requires the same financial responsibility or liability insurance as a vehicle when operated as a golf cart in accordance with 551.304.

The NEV must meet Federal Motor Vehicle Safety Standard 500 (49 C.F.R. §571.500) for low-speed vehicles.

NEVs must be titled with a body style of "NV NHOOD ELEC" and registered as either a truck or a passenger vehicle.

Evidence of Ownership

Acceptable documents for evidence of ownership for NEVs include Certificates of Title indicating a body style of "NV NHOOD ELEC" or a Manufacturer's Certificate of Origin with a statement that the vehicle meets Federal Motor Vehicle Safety Standard 500 (49 C.F.R. §571.500).

Some NEVs in Texas were previously titled with the body style of golf cart (GC) and out-of-state titles may show other body styles. In order to title and register these vehicles as "NV NHOOD ELEC" the vehicle must have a conforming 17-digit VIN. If a vehicle does not meet this criteria, it cannot be titled or registered as a NEV.

Federal Motor Vehicle Safety Standard §571.500 Standard No. 500; Low-speed vehicles.

S1. ***Scope.*** *This standard specifies requirements for low-speed vehicles.*

S2. ***Purpose.*** *The purpose of this standard is to ensure that low-speed vehicles operated on the public streets, roads, and highways are equipped with the minimum motor vehicle equipment appropriate for motor vehicle safety.*

S3. ***Applicability.*** *This standard applies to low-speed vehicles.*

S4. [Reserved.]

S5. ***Requirements.***

(a) When tested in accordance with test conditions in S6 and test procedures in S7, the maximum speed attainable in 1.6 km (1 mile) by each low-speed vehicle shall not more than 40 kilometers per hour (25 miles per hour).

(b) Each low-speed vehicle shall be equipped with:

(1) Headlamps,

(2) Front and rear turn signal lamps,

(3) Taillamps,

(4) Stop lamps,

(5) Reflex reflectors: one red on each side as far to the rear as practicable, and one red on the rear,

(6) An exterior mirror mounted on the driver's side of the vehicle and either an exterior mirror mounted on the passenger's side of the vehicle or an interior mirror,

(7) A parking brake,

(8) A windshield that conforms to the Federal motor vehicle safety standard on glazing materials (49 CFR 571.205).

(9) A VIN that conforms to the requirements of part 565 Vehicle Identification Number of this chapter, and

(10) A Type 1 or Type 2 seat belt assembly conforming to Sec. 571.209 of this part, Federal Motor Vehicle Safety Standard No. 209, Seat belt assemblies, installed at each designated seating position.

(11) Low-speed vehicles shall comply with the rear visibility requirements specified in paragraphs S6.2 of FMVSS No. 111.

(12) An alert sound as required by § 571.141.

Operation of NEVs

A NEV operated in accordance with Transportation Code, Sec. 551.303:

- may be operated only on a street or highway for which the posted speed limit is 45 miles per hour or less and is subject to all traffic and other laws applicable to motor vehicles,
- may cross a road or street at an intersection where the road or street has a posted speed limit of more than 45 miles per hour, and
- may not be operated on a street or highway if:
  - the governing body of a county or city determines that prohibiting such operation is necessary in the interest of safety, or
  - The Texas Department of Transportation determines that prohibiting such operation is necessary in the interest of safety.

A NEV operated in accordance with Transportation Code, Sec. 551.304:

- may be operated in a master planned community that has in place a uniform set of restrictive covenants; and for which a county or municipality has approved a plat;
- may be operated on a public or private beach; and
- may be operated on a public highway for which the posted speed limit is not more than 35 miles per hour, if operated:
  - during the daytime, and

- not more than two miles from the location where the NEV is usually parked and for transportation to or from a golf course.

A person is not required to register an NEV operated in compliance with Transportation Code, Sec. 551.304.

12.3 Golf Cart

Transportation Code, Sec. 551.401. Definitions.

In this subchapter, "golf cart" means a motor vehicle designed by the manufacturer primarily for use on a golf course.

Transportation Code, Sec. 551.402. Registration Not Authorized; License Plates.

(a) The Texas Department of Motor Vehicles may not register a golf cart for operation on a highway regardless of whether any alteration has been made to the golf cart.

(b) A person may operate a golf cart on a highway in a manner authorized by this subchapter only if the vehicle displays a license plate issued under this section.

(c) The Texas Department of Motor Vehicles:

(1) shall by rule establish a procedure to issue license plates for golf carts; and

(2) may charge a fee not to exceed $10 for the cost of the license plate, to be deposited to the credit of the Texas Department of Motor Vehicles fund.

(d) A golf cart license plate does not expire. A person who becomes the owner of a golf cart for which the previous owner obtained a license plate may not use the previous owner's license plate.

Transportation Code, Sec. 551.403. Operation Authorized in Certain Areas.

(a) An operator may operate a golf cart:

(1) in a master planned community:

(A) that is a residential subdivision as defined by Section 209.002(9), Property Code, or has in place a uniform set of restrictive covenants; and

(B) for which a county or municipality has approved one or more plats;

(2) on a public or private beach that is open to vehicular traffic; or

(3) on a highway for which the posted speed limit is not more than 35 miles per hour, if the golf cart is operated:

(A) during the daytime; and

(B) not more than five miles from the location where the golf cart is usually parked and for transportation to or from a golf course.

(b) Notwithstanding Section 551.402(b), a person may operate a golf cart in a master planned community described by Subsection (a) without a golf cart license plate on a highway for which the posted speed limit is not more than 35 miles per hour, including through an intersection of a highway for which the posted speed limit is more than 35 miles per hour.

Transportation Code, Sec. 551.4031. Prohibition of Operation on Highway by Municipality, County, or Department.

(a) A county or municipality may prohibit the operation of a golf cart on a highway under Section 551.403 if the governing body of the county or municipality determines that the prohibition is necessary in the interest of safety.

(b) The Texas Department of Transportation may prohibit the operation of a golf cart on a highway under Section 551.403 if the department determines that the prohibition is necessary in the interest of safety.

Transportation Code, Sec. 551.404. Operation on Highway Authorized by Municipality or Certain Counties.

(a) In addition to the operation authorized by Section 551.403, the governing body of a municipality may allow an operator to operate a golf cart on all or part of a highway that:

(1) is in the corporate boundaries of the municipality; and

(2) has a posted speed limit of not more than 35 miles per hour.

(b) In addition to the operation authorized by Section 551.403, the commissioners court of a county described by Subsection (c) may allow an operator to operate a golf cart on all or part of a highway that:

(1) is located in the unincorporated area of the county; and

(2) has a speed limit of not more than 35 miles per hour.

(c) Subsection (b) applies only to a county that:

(1) borders or contains a portion of the Red River; or

(2) borders the Gulf of Mexico and has a population of less than 500,000.

Transportation Code, Sec. 551.4041. Equipment.

A golf cart operated under Section 551.404 must have the following equipment:

(1) headlamps;

(2) taillamps;

(3) reflectors;

(4) parking brake; and

(5) mirrors.

Transportation Code, Sec. 551.405. Crossing Intersections.

A golf cart may cross a highway at an intersection, including an intersection with a highway that has a posted speed limit of more than 35 miles per hour.

Transportation Code, Sec. 551.403 allows golf carts to be operated:

- in a master planned community with a uniform set of restrictive covenants and a county or municipality-approved plat;
- on a public or private beach that is open to vehicular traffic; or

- on a road with a posted speed limit not more than 35 mph if operated during the daytime and the golf cart is driven not more than five miles from the location where it is usually parked for transportation to and from a golf course.

A golf cart may be operated in a master planned community without a Golf Cart license plate for which the posted speed limit is not more than 35 miles per hour, including through an intersection of a highway for which the posted speed limit is more than 35 miles per hour.

Transportation Code, Sec. 551.404, allows a city or certain county to authorize operation of golf carts on certain highways within the city's or county's boundaries. A city may authorize operation when the highway is within the boundaries of the city and the posted speed limit is 35 mph or less. Certain counties may authorize operation on county highways that are located in an unincorporated area of the county and the posted speed limit is 35 mph or less. The golf cart must be equipped with head lamps, tail lamps, reflectors, a parking brake, and mirrors. The counties that may authorize operation in an unincorporated area of the county must:

- border or contain a portion of the Red River; or
- border the Gulf of Mexico with a population less than 500,000.

Golf carts operated on highways where operation is authorized must display a Golf Cart license plate.

There is a one-time license plate fee of $10, and there will be no expiration date for the license plate and no license plate sticker issued. The Golf Cart license plate is not proof of registration for operation on a public highway. Effective September 1, 2009, the TxDMV stopped titling and registering golf carts.

Note: Issuance of Golf Cart license plates is done through the RTS Title Application event by selecting Non-Titled.

12.4 Package Delivery Vehicles

Transportation Code, Sec. 551.452. License Plates for Package Delivery Vehicles.

(a) The Texas Department of Motor Vehicles may issue distinguishing license plates for a vehicle operated by a motor carrier for the purpose of picking up and delivering mail, parcels, and packages if the vehicle:

(1) is a golf cart, a neighborhood electric vehicle, or an off-highway vehicle; and

(2) is equipped with headlamps, taillamps, reflectors, a parking brake, and mirrors, in addition to any other equipment required by law.

(b) The Texas Department of Motor Vehicles by rule shall establish a procedure to issue the license plates to be used only for operation in accordance with this subchapter.

(c) The license plates must include the words "Package Delivery."

(d) The Texas Department of Motor Vehicles may charge a license plate fee not to exceed $25 annually to be deposited to the credit of the Texas Department of Motor Vehicles fund.

Transportation Code, Sec. 551.453. Limited Operation.

(a) A motor carrier may operate, for the purpose of picking up or delivering mail, parcels, or packages, a vehicle bearing license plates issued under Section 551.452 on a public highway that is not an interstate or a limited-access or controlled-access highway and that has a speed limit of not more than 35 miles per hour.

(b) The Department of Motor Vehicles may not require the registration of a vehicle operated under Subsection (a) unless the registration is required by other law.

Golf carts, NEVs, and off-highway vehicles (ATVs, ROVs, UTVs and sand rails) operated by a motor carrier for the purpose of picking up or delivering mail, parcels, and packages are eligible for Package Delivery license plates.

The license plate fee is $25 annually, and NEVs pay registration fees in addition to the license plate fee.

Operation of the vehicle is limited to a public roadway with a speed limit of 35 miles or less, unless crossing on or through a road or street.

For operation in a subdivision or condominium, the Package Delivery vehicle must comply with any applicable rules adopted by the property owner's association that manages the subdivision or condominium.

For operation on all or part of a public highway allowed by a municipality or county, the Package Delivery vehicle must operate in the corporate boundaries of the municipality or unincorporated areas of the county with a speed limit 35 miles or less.

Initial issuance of the license plates must be purchased through the county tax assessor-collector's office. Renewal may take place at the county, online, or through a subcontractor.

12.5 Miniature Vehicles

Transportation Code Section 502.001

(21-a) "Miniature vehicle" means a miniature motor vehicle that:

(A) is designed to propel itself with four or more tires in contact with the ground;

(B) complies with applicable federal law; and

(C) is not a custom vehicle or street rod, as those terms are defined by Section 504.501, a neighborhood electric vehicle, as defined by Section 551.301, a golf cart, as defined by Section 551.401, or an off-highway vehicle, as defined by Section 551A.001.

A mini vehicle includes a mini car, truck, van, and bus manufactured in a foreign country, most commonly in Japan, China, and India. Mini vehicles are required to be titled and must be registered if operated on public roadways effective April 4, 2024. The mini vehicle must pass current inspection requirements to be registered and operated on public roadways. If the surrendered evidence of ownership or supporting documentation indicates the vehicle is for off-highway use only, the vehicle is not eligible for registration. For title requirement information on Mini Vehicles, refer to the Title Manual.

12.6 Pocket Bike or Minimotorbike

Transportation Code, Sec. 551.353. Application of Subchapter to Pocket Bike or Minimotorbike.

This subchapter may not be construed to authorize the operation of a pocket bike or minimotorbike on any:

(1) highway, road, or street;

(2) path set aside for the exclusive operation of bicycles; or

(3) sidewalk.

12.7 Motor Assisted Scooter and Minimotorbike

Transportation Code, Sec. 551.351. Definitions.

In this subchapter:

(1) "Motor-assisted scooter":

(A) means a self-propelled device with:

(i) at least two wheels in contact with the ground during operation;

(ii) a braking system capable of stopping the device under typical operating conditions;

(iii) a gas or electric motor not exceeding 40 cubic centimeters;

(iv) a deck designed to allow a person to stand or sit while operating the device; and

(v) the ability to be propelled by human power alone; and

(B) does not include a pocket bike or a minimotorbike.

(2) "Pocket bike or minimotorbike" means a self-propelled vehicle that is equipped with an electric motor or internal combustion engine having a piston displacement of less than 50 cubic centimeters, is designed to propel itself with not more than two wheels in contact with the ground, has a seat or saddle for the use of the operator, is not designed for use on a highway, and is ineligible for a certificate of title under Chapter 501. The term does not include:

(A) a moped or motorcycle;

(B) an electric bicycle;

(C) a motorized mobility device, as defined by Section 552A.0101;

(D) an electric personal assistive mobility device, as defined by Section 551.201; or

(E) a neighborhood electric vehicle, as defined by Section 551.301.

Operation on Roadways

Transportation Code, Sec. 551.352. Operation on Roadways or Sidewalks.

(a) A motor-assisted scooter may be operated only on a street or highway for which the posted speed limit is 35 miles per hour or less. The motor-assisted scooter may cross a road or street at an intersection where the road or street has a posted speed limit of more than 35 miles per hour.

(b) A county or municipality may prohibit the operation of a motor-assisted scooter on a street, highway, or sidewalk if the governing body of the county or municipality determines that the prohibition is necessary in the interest of safety.

(c) The department may prohibit the operation of a motor-assisted scooter on a highway if it determines that the prohibition is necessary in the interest of safety.

(d) A person may operate a motor-assisted scooter on a path set aside for the exclusive operation of bicycles or on a sidewalk. Except as otherwise provided by this section, a provision of this title applicable to the operation of a bicycle applies to the operation of a motor-assisted scooter.

(e) A provision of this title applicable to a motor vehicle does not apply to a motor-assisted scooter.

Unsafe Vehicles

Transportation Code, Sec. 502.048. Refusal to Register Unsafe Vehicle.

(a) The department may refuse to register a motor vehicle and may cancel, suspend, or revoke a registration if the department determines that a motor vehicle is unsafe, improperly equipped, or otherwise unfit to be operated on a public highway.

12.8 Log Loader Vehicle

Transportation Code, Sec. 504.506. Log Loader Vehicles.

(a) The department shall issue specialty license plates for a vehicle that is temporarily operated on public highways, during daylight hours only, and on which machinery is mounted solely to load logs on other vehicles.

(b) The fee for issuance of the license plates is $62.50.

(c) A person entitled to specialty license plates under this section may register the vehicle without payment of any fee paid for or at the time of registration other than the fee for the license plates.

(d) A vehicle having a license plate issued under this section is exempt from the inspection requirements of Chapter 548.

(e) This section does not apply to a vehicle used to haul logs.

(f) Repealed by Acts 2011, 82nd Leg., Ch. 1296 (H.B. 2357), § 247(17), effective January 1, 2012

Log Loader Vehicle; Penalties

Transportation Code, Sec. 504.942. Log Loader Vehicles; Penalties.

A vehicle operated in violation of Section 504.506 is considered to be operated or moved while unregistered and is immediately subject to the applicable fees and penalties prescribed by this chapter.

Log Loader license plate fees are divided between the Employees Retirement System of Texas (ERS) and the TxDMV. The ERS receives 4% of the fees, deposited in the law enforcement and custodial officer supplemental retirement fund, and the TxDMV receives the remaining 96%.

- A Log Loader license plate is staggered for 12 months based on the date of application or renewal.
- The fee for a Log Loader license plate is $62.50 for each year or portion of a year. License plate fees are not prorated.
- The license plates are manufactured with "LOG LOADER." A registration sticker is issued along with a single license plate. The license plate should be displayed on the front of the vehicle if the Log Loader is a pulling unit. The license plate should be displayed on the rear of the vehicle if the Log Loader is pulled by a power unit.

A vehicle that qualifies for a Log Loader license plate is exempt from registration fees and from vehicle safety inspection requirements; however, it is subject to the $62.50 license plate fee. A Texas Certificate of Title issued in the applicant's name is not required.

Log Loader License Plate Applications

The owner of a qualified vehicle may apply for a license plate by submitting a completed *Application for Log Loader License Plate* (Form VTR-209), with the fee of $62.50 to a local county tax assessor-collector's office.

- A photograph of the vehicle must accompany the application.
- Once approved, a license plate and registration sticker are issued.
- Application must be made in the county in which the owner resides.

Log Loader License Plate Refunds

Refunds for Log Loader license plates will not be authorized by the TxDMV. Fees are payable for each year or portion of a year, and not prorated or refunded for any unused portion.

If the vehicle is destroyed after making application, an owner may return the license plate, sticker, and registration receipt to a TxDMV Regional Service Center. A credit fee voucher may be authorized.

Log Loader License Plate Renewal

Each year, prior to the plate expiration, owners are mailed a renewal.

To renew a Log Loader license plate after the expiration date, the owner must submit the renewal or the previous year's license plate receipt with the prescribed fee. If the owner cannot furnish the renewal or the previous year's license plate receipt, the owner must complete a new application.

Log Loader License Plate Replacement

To replace a Log Loader license plate the owner completes a new application for a new license plate and registration sticker.

- The owner pays the fee of $62.50 at the time of application.
- The owner surrenders the current license plate receipt, the remaining license plate, and sticker, if available, to the TxDMV for cancellation.

Log Loader license plates are non-transferable from one owner to another owner or from one vehicle to another vehicle.

When selling vehicles, the existing license plate and registration sticker becomes invalid and should be surrendered to the TxDMV with the license plate receipt for cancellation.

If the new owner wants to display a Log Loader license plate, the owner must complete an application to apply for a new license plate.

12.9 Forestry Vehicles

Transportation Code, Sec. 504.507. Forestry Vehicles.

(a) The department shall issue specialty license plates for forestry vehicles. License plates issued under this section must include the words "Forestry Vehicle."

(b) There is no fee for issuance of the license plates. The department shall:

(1) collect any fee that a county imposes under this chapter for registration of a forestry vehicle; and

(2) send the fee to the appropriate county for disposition.

(c) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 1296, Sec. 247(18), eff. January 1, 2012.

Transportation Code, Sec. 502.001. Definitions.

(17) "forestry vehicle" means a vehicle designed and used exclusively for transporting forest products in their natural state, including logs, debarked logs, untreated ties, stave bolts, plywood bolts, pulpwood billets, wood chips, stumps, sawdust, moss, bark, wood shavings, and property used in production of those products.

According to provisions of the International Registration Plan, this is a restricted license plate. Vehicles displaying a Forestry Vehicle license plate have interstate registration reciprocity when operating into or through other jurisdictions.

Forestry Vehicle license plates are single license plates with the word FORESTRY depicted. The license plate is displayed on the front of the vehicle.

There is no specialty license plate fee for Forestry Vehicle license plate.

- Collect registration fees based on the gross vehicle weight at the time of license plate application.
- The TxDMV collects all fees, including local fees. Local fees are forwarded to the appropriate county for disposition.

License Plate Application

Applications for Forestry Vehicle license plates are processed at any TxDMV Regional Service Center.

The owner of a qualified vehicle may apply for a license plate by submitting to the TxDMV a completed application with all applicable fees, and proof of liability insurance.

Forestry vehicles with a gross registration weight of 55,000 lbs. or more are subject to compliance with Federal Heavy Vehicle Use Tax requirements. If a customer applies for title for a forestry vehicle:

- The county deputy will process the application for title and issue a title application receipt.
- Collect the title application fee and the appropriate tax. Do not collect any type of registration fee or issue any registration receipts with this type of transaction.
- Advise the applicant to contact the nearest TxDMV Regional Service Center to apply for a Forestry Vehicle license plate.
- If the vehicle must operate prior to the receipt of the license plate, advise the registrant to purchase a temporary registration (72-Hour or 144-Hour Permit). These permits are not valid outside of Texas.
- Forestry vehicles that are leased may display the license plate if the TxDMV Regional Service Center verifies the lease agreement.

Once approved, the TxDMV Regional Service Center will:

- Collect the appropriate registration fee.
- Issue the license plate and receipt to the applicant.
- Forward a copy of the application and receipt to the Special Plates Unit.

If current registration is displayed on the vehicle, the applicant may request a refund (for double registration) on the unused portion of the registration fee.

If an applicant wants to obtain Forestry Vehicle license plates for additional vehicles, a separate application must be submitted for each license plate requested.

Vehicles displaying Forestry license plates must be registered for the combined gross weight of the truck and the trailer therefore, the trailer will display Token Trailer license plates.

License Plate Renewals

The TxDMV mails renewals to vehicle owners who have current Forestry Vehicle license plates. These renewals indicate the appropriate fees (registration fee, $2 Cab Card Fee and applicable local fees).

Upon return of the completed renewal form, proof of insurance and other documents as required, the TxDMV will prepare a billing statement for the applicant. The applicant obtains the license plate(s) by presenting the statement to the appropriate TxDMV Regional Service Center with payment.

License Plate Replacements

Forestry Vehicle license plates that have been lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons may be obtained from any TxDMV Regional Service Center along with payment of the $6 Replacement Fee and the Automation Fee.

- Applicant must make application for a replacement license plate using *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60) or by letter. The regional service center issues replacement license plates.
- Advise the applicant to surrender the current registration receipt and any remaining license plate(s) to the TxDMV for cancellation. The regional service center forwards a copy of the replacement application and the supplemental application to the Special Plates Unit to update the automated file.

License Plate Transfers Not Allowed

Forestry Vehicle license plates are non-transferable from one owner to another owner or from one vehicle to another vehicle.

- If a vehicle is sold, the existing license plate becomes invalid and surrendered with the registration receipt to the TxDMV for cancellation.
- If the buyer of the vehicle wants to display Forestry Vehicle license plates, they must complete an application and apply for a new license plate.
- A replacement license plate will not be issued when the vehicle has been sold.

12.10 Other Vehicles

Transportation Code, Sec. 502.143. Other Vehicles.

An owner may not register the following vehicles for operation on a public highway:

(1) power sweepers;

(2) motorized mobility devices;

(3) electric personal assistive mobility devices; and

(4) electric bicycles, as defined by Section 664.001.

12.11 Oil Well Servicing and Drilling Machinery

Permit License Plates

Transportation Code, Sec. 623.141. Optional Procedure.

This subchapter provides an optional procedure for the issuance of a permit for the movement of oversize or overweight oil well servicing or oil well drilling machinery and equipment.

Transportation Code, Sec. 623.149. Determination Whether Vehicle Subject to Registration or Eligible for Distinguishing License Plate.

(a) The department may establish criteria to determine whether oil well servicing, oil well clean out, or oil well drilling machinery or equipment is subject to registration under Chapter 502 or eligible for the distinguishing license plate provided by Section 502.146.

(b) Notwithstanding Subsection (a), a vehicle authorized by the department before August 22, 1963, to operate without registration under Chapter 502 may not be required to register under that chapter.

(c) In this section, "oil well servicing, oil well clean out, or oil well drilling machinery or equipment" means a vehicle constructed as a machine used solely for servicing, cleaning out, or drilling an oil well and consisting in general of a mast, an engine for power, a draw works, and a chassis permanently constructed or assembled for one or more of those purposes.

Oversize or Overweight Vehicles

Oversize, overweight, or overaxle vehicles may qualify for a special distinguishing $5 Permit license plate. These vehicle types include:

- An oil well clean-out unit, oil well drilling unit, or oil well swabbing unit, which is mobile equipment, either self-propelled or trailer-mounted, constructed as a machine used solely for cleaning-out, drilling, servicing, or swabbing oil wells, and consisting in general of, but not limited to, a mast, an engine for power, a draw works, and a chassis permanently constructed or assembled for this purpose.
- A vehicle that is a piece of fixed-load mobile machinery or equipment required to obtain an additional permit through the TxDMV's Motor Carrier Division (MCD) under Transportation Code, Sec. 623.142.
- A mobile crane is a self-propelled vehicle constructed solely to raise, shift, or lower heavy weights by means of a projecting, swinging mast on a chassis constructed for such purposes. To qualify for a Permit license plate, a mobile crane must be used for the purposes of oil well servicing and "well service" or "well servicing" must be included in the load description on the Oversize/Overweight (OS/OW) Permit from MCD.
- Self-propelled vehicles equipped with an aerial work platform that appears to be fixed-load mobile machinery or equipment may qualify for a Permit license plate if the vehicle is oversize/overweight. For issuance of the license plate the vehicle must qualify for a crane permit issued by MCD to be operated on roadways; however, a permit from MCD is not required to be issued in advance of obtaining the license plate.
- The operation of such vehicle is prohibited on the highways unless the owner also has a special time or trip permit. The MCD issues time and trip permits and may be reached at 1-800-299-1700.
- Vehicles issued Permit license plates are exempted from the Certificate of Title Act.
- Liens should be recorded through the Uniform Commercial Code section of the Secretary of State's office.
- Oil well servicing vehicles that are not oversize should be registered with regular commercial registration and should be titled.

Application

Permit license plates are license plates issued on a staggered basis. The customer must submit an *Application for Permit License Plate* (Form VTR-67).

- A current photograph of the vehicle and proof of a current OS/OW permit issued under Transportation Code, Sec. 623.142, must accompany the Form VTR-67. The notation "APPVTR" (application through VTR) must be listed in the license plate field on the permit. The application and copy of the permit is submitted to a TxDMV Regional Service Center.
- Upon application approval, it is returned to the applicant advising the owner to contact the county tax assessor-collector's office to obtain the $5 Permit license plate. A copy of the OS/OW Permit must be submitted for the county tax assessor-collector's office to verify the permit is current and the notation "APPVTR" is listed in the license plate field on the permit.
- Permit license plates are not transferable. The new owner must apply for a new Permit license plate and surrender the old Permit license plates belonging to the previous owner to the county tax assessor-collector's office for disposal.
- If a vehicle is currently registered with registration and want to exchange for Permit license plates, no refunds will be given.

Renewal

Each year the TxDMV mails a registration renewal notice to each vehicle owner with a current Permit license plate. To renew the license plates, the owner must present the renewal to the county tax assessor-collector's office with a copy of the current OS/OW permit and proper fee. The Permit license plate number must be listed in the license plate number field on the permit.

Replacement

If a Permit license plate is lost, stolen, mutilated, or needs to be replaced for cosmetic or readability reasons a replacement license plate is issued for the fee of $6 along with the Automation Fee if the owner completes an *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60).

If the owner cannot provide proof of registration and the current registration is unverifiable, the owner must complete a new application, *Application for Permit License Plate* (Form VTR-67) and reapply for a Permit license plate.

Penalties

Vehicles displaying current Permit license plates, apprehended while operating without the additional time or trip permit as provided in Transportation Code, Chapter 623, or vehicles apprehended while operating unregistered are subject to commercial registration fees according to classification. The vehicle must be registered for 12 months from the time of apprehension plus a 20% penalty.

12.12 Registration of Vehicle

Transportation Code, Sec. 623.144. Registration of Vehicle.

(a) A person may not operate a vehicle permitted under this subchapter on a public highway unless the vehicle is registered under Chapter 502 for the maximum gross weight applicable to the vehicle under Section 621.101 or has distinguishing license plates as provided by Section 502.146 if applicable to the vehicle.

(b) The department may not issue distinguishing license plates to a vehicle described by Section 502.146(b)(3) unless the applicant complies with the requirements of that subsection.

12.13 Vehicles Subject to Registration or Eligible for Distinguishing License Plates

Transportation Code, Sec. 623.149. Determination Whether Vehicle Subject to Registration or Eligible for Distinguishing License Plate.

(a) The department may establish criteria to determine whether oil well servicing, oil well clean out, or oil well drilling machinery or equipment is subject to registration under Chapter 502 or eligible for the distinguishing license plate provided by Section 502.146.

(b) Notwithstanding Subsection (a), a vehicle authorized by the department before August 22, 1963, to operate without registration under Chapter 502 may not be required to register under that chapter.

(c) In this section, "oil well servicing, oil well clean out, or oil well drilling machinery or equipment" means a vehicle constructed as a machine used solely for servicing, cleaning out, or drilling an oil well and consisting in general of a mast, an engine for power, a draw works, and a chassis permanently constructed or assembled for one or more of those purposes.

Note: The types of machinery listed below as examples are for illustration purposes only. Each application and supporting documentation submitted for machinery license plates must be reviewed for a determination of eligibility to receive the license plates.

Drilling and Construction Equipment

Transportation Code, Sec. 502.146. Certain Farm Vehicles and Drilling and Construction Equipment.

(a) The department shall issue distinguishing license plates to a vehicle described by Subsection (b), (c) or (i). The fee for the license plates is $5 and shall be deposited to the credit of the Texas Department of Motor Vehicles fund.

(b) An owner is not required to register a vehicle that is used only temporarily on the highways if the vehicle is:

(1) a farm trailer or farm semitrailer with a gross weight of more than 4,000 pounds but not more than 34,000 pounds that is used exclusively:

(A) to transport seasonally harvested agricultural products or livestock from the place of production to the place of processing, market, or storage;

(B) to transport farm supplies from the place of loading to the farm; or

(C) for the purpose of participating in equine activities or attending livestock shows, as defined by Section 87.001, Civil Practice and Remedies Code;

(2) machinery used exclusively for the purpose of drilling water wells;

(3) oil well servicing or drilling machinery and if at the time of obtaining the license plates, the applicant submits proof that the applicant has a permit under Section 623.142; or

(4) construction machinery.

(c) An owner is not required to register a vehicle that is:

(1) a farm trailer or farm semitrailer owned by a cotton gin and used exclusively to transport agricultural products without charge from the place of production to the place of processing, market, or storage;

(2) a trailer used exclusively to transport fertilizer without charge from a place of supply or storage to a farm; or

(3) a trailer used exclusively to transport cottonseed without charge from a place of supply or storage to a farm or place of processing.

(c-1) An exemption provided by this section applies to a vehicle owned by a farmers' cooperative society incorporated under Chapter 51, Agriculture Code, or a marketing association organized under Chapter 52, Agriculture Code, and used by members of the society or association for a fee if the vehicle otherwise meets the requirements for the exemption.

(d) A vehicle described by Subsection (b) is exempt from the inspection requirements of Subchapter F, Chapter 548.

(e) Except as provided by Subsection (c-1), this section does not apply to a farm trailer or farm semitrailer that:

(1) is used for hire;

(2) has metal tires operating in contact with the highway;

(3) is not equipped with an adequate hitch pinned or locked so that it will remain securely engaged to the towing vehicle while in motion; or

(4) is not operated and equipped in compliance with all other law.

(f) A vehicle to which this section applies that is operated on a public highway in violation of this section is considered to be operated while unregistered and is immediately subject to the applicable registration fees and penalties prescribed by this chapter.

(g) In this section, the gross weight of a trailer or semitrailer is the combined weight of the vehicle and the load carried on the highway.

(h) A distinguishing license plate may not be issued or renewed under Subsection (a) to an owner of a vehicle described by Subsection (b)(1) unless the vehicle's owner provides a registration number issued by the comptroller under Section 151.1551, Tax Code, or the vehicle is owned by a farmers' cooperative society incorporated

under Chapter 51, Agriculture Code, or a marketing association organized under Chapter 52, Agriculture Code. The comptroller shall allow access to the online system established under Section 151.1551(l), Tax Code, to verify a registration number provided under this subsection.

(i) The department shall issue a distinguishing license plate under this section for a frac tank that does not expire or require an annual registration insignia to be valid. The alphanumeric pattern for a license plate issued under this subsection may remain on a frac tank for as long as the license plate for the frac tank is renewed or until the frac tank is removed from service or sold. The registration receipt required under Section 621.002 is not required for a frac tank that displays a license plate issued under this subsection. For purposes of this subsection, "frac tank" means a portable or stationary high-volume holding vessel designed and constructed for use in separating, storing, or temporarily holding materials used in or resulting from fracturing techniques in oil and gas exploration.

Note: Applicants for Farm license plates for Farm Trailer/Semitrailer must present a current Texas Agricultural and Timber Exemption Registration Number issued by the Texas Comptroller of Public Accounts, unless the vehicle is owned by a Farmers' Cooperative or Marketing Association. See Farm Vehicles in Chapter 7 under Farm Trailers and Semitrailers for more information.

Machinery License Plates

Machinery license plates may be issued to the following:

Water Well Vehicles

Every truck or trailer, whether conventional or unconventional, which has mounted machinery used exclusively for drilling water wells may qualify for a Machinery license plate.

In addition to the drilling units, various other servicing units associated with water well drilling operations may qualify for Machinery license plates. The affiliated servicing units that are eligible for Machinery license plates include:

- Pump pulling and pump setting units used to lower or raise submergible water pumps at well sites. Additionally, this type of unit is occasionally used to pull well casing and is used at times for cleanout purposes.
- Bailing units used exclusively for cleaning out water wells. This type of unit operates by lowering a bailing projectile - a long, cylindrical tube - into the well. As the projectile lowers, a trap valve located on the end of the tube opens taking in mud and slush. The bailing unit then raises the projectile containing the settlements from the well.
- Mud pumps, generally used in conjunction with drilling units to pump, mud and slush into and from the well site during the drilling operation. Such units may or may not qualify for the Machinery license plate, depending upon the construction of the unit.
  - A mud pump, built from the ground up as a machine, is eligible.

  - A conventional vehicle with a mounted mud pump is not eligible for the $5 Machinery license plate and registers with regular license plates.
- Owners must hold a water well drilling or pumping license from the Texas Department of Licensing and Regulation to qualify for a Machinery license plate unless they furnish an affidavit stating that they work under the direct supervision of a registered water well driller. The affidavit must state the name of the registered water well driller.
- Water well driller "apprentices" may qualify for Machinery license plates.
  - Water well driller "trainees" may qualify for Machinery license plates provided they provide a copy of their approved application, and the completed *Application for Water Well Drilling or Construction Machinery License Plate* (Form VTR-77).
  - Other applicants who are not licensed drillers may qualify for Machinery license plates if a licensed driller or a trainee operates the vehicle. An affidavit of fact explaining the circumstances must accompany the application.

There are various other vehicles associated with water well drilling that do **not** qualify for the $5 Machinery license plate and must be registered with registration. Included in this group of vehicles are:

- Water tank trucks or trailers (does not include hydraulic tower tanks),
- Trucks or trailers used in transporting drill stem pipe,
- Truck or trailer mounted tool houses, and
- Truck-tractors used in combination with machinery licensed semitrailers on which water well drilling machinery is mounted. The exemption from registration fees applies only to the vehicle on which the machinery is mounted; therefore:
  - Truck-tractors used in combination with a machinery licensed semitrailer are registered with Truck license plates for the empty weight plus that portion of the weight of the semitrailer and its load that rests upon the truck-tractor.
  - The registered weight is never less than the empty weight of the truck-tractor plus the minimum carrying capacity.

Construction Machinery

Under Transportation Code, Sec. 502.146, Construction machinery must meet certain criteria to qualify for the Machinery license plate.

Construction machinery as defined in Transportation Code, Sec. 502.001(8) (see Definitions), means a vehicle that:

- is used for construction,
- is built from the ground up,
- is not mounted or affixed to another vehicle such as a trailer,
- was originally and permanently designed as machinery, and
- was not in any way originally designed to transport persons or property; does not carry a load, including fuel, or tow another vehicle.

Machinery vehicles are designed for special construction purposes.



Forklift



Front end loader

Generally Eligible Examples:

- Motor graders,
- Tractor scrapers,
- Tractors with front end loaders,
- Welding machines,
- Forklifts, and
- Mobile cranes and draglines, built from the ground up as construction machinery. If a mobile crane is used for the purposes of oil well servicing, it may qualify for a Permit license plate. See Oversize and Overweight Vehicles in this chapter for more information.
    - The mounting of mobile cranes, draglines, or any other machinery, regardless of its type, upon a conventional-type truck, trailer, or semitrailer does not qualify such vehicle for a machinery license plate and must be registered according to vehicle classification and weight.

Note: Concrete pump trucks are ineligible to receive machinery license plates.

The issuance of Machinery license plates is further restricted to only those unconventional vehicles equipped with pneumatic or solid rubber tires. Although track laying or metal-wheeled machinery type vehicles are generally considered unconventional, the issuance of the Machinery license plate to such vehicles is not allowed because the movement of such vehicles on the public highways of this state is prohibited.

A truck-tractor used in combination only with a machinery-license plated vehicle should be registered with Truck license plates If the truck also pulls semitrailers with gross weights in excess of 6,000 lbs. then it must be registered with Combination license plates for the heaviest load being carried during the registration year.

Since the exemption from registration fees is allowed only on the unconventional vehicles, the truck-tractor is registered for its empty weight plus that portion of the weight of the vehicle and its load that rest upon the truck-tractor.

The registered weight is never less than the empty weight of the truck-tractor plus the minimum carrying capacity.

Note: Road construction equipment (machinery type vehicles) operating laden or unladen within the limits of a project are not required to display the $5 Machinery license plate, regardless of the intermingling of regular vehicular traffic. However, conventional commercial vehicles operating within the limits of a project are required to be registered with regular commercial license plates whenever traffic is allowed to intermingle. A highway construction project is that section of the highway between the warning signs giving notice of a construction area.

Note: Impact attenuator trailers do not qualify for Machinery license plates. These are not an unconventional machine. These are trailers pulled behind a truck to alert traffic of a highway construction zone.



Impact attenuator trailer with arrow board

Issuing Machinery License Plates

The procedure for issuing Machinery license plates is as follows:

- A firm or individual making application for the Machinery license plate must complete the *Application for Water Well Drilling or Construction Machinery License Plate* (Form VTR-77). A current photograph of the vehicle must accompany the application. The application can be mailed, faxed, or emailed to the TxDMV Regional Service Center or the Special Plates Unit for approval.
- If approved, the TxDMV returns the application to the applicant who then presents it to the county tax assessor-collector's office to obtain the Machinery license plate.
- In cases of extreme necessity the county tax assessor-collector's office may contact the TxDMV Regional Service Center for approval to issue the Machinery license plate prior to the applicant's submission of an application. The county tax assessor-collector's office must fax or email the application and picture to its local Regional Service Center.

Machinery license plates are license plates issued on a staggered basis. The "body style" should indicate (CE) for construction equipment. The county tax assessor-collector's office must retain the application presented by the applicant.

The owner must include a motor or serial number on the application for a Machinery license plate. If the machinery has no motor or serial number, then they must obtain an assigned number from the TxDMV using the *Law Enforcement Identification Number Inspection* (Form VTR-68-A) or assign their own. The fee for an assigned number is $2.

If a Machinery license plate or registration sticker is lost, stolen, mutilated, or needs to be replaced for cosmetic or readability reasons a replacement license plate and sticker is issued for a $6 fee along with the Automation Fee, provided the owner completes an *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60).

When renewing a Machinery license plate, the applicant must present a registration renewal notice or current registration receipt to the county tax assessor-collector's office with the fee of $5. If the registration renewal notice or current registration receipt is not available and the previous Machinery license plates cannot be verified, the applicant must complete a new application, Form VTR-77, and reapply for a Machinery license plate.

Vehicles qualified for Machinery license plates are exempt from registration fees and are exempt from the Certificate of Title Act. Application for title should not be accepted if applying for Machinery license plates on water well drilling or construction equipment.

Issuing Frac Tank License Plates

This law requires the department to issue a license plate for a frac tank that doesn't expire or require annual registration to be valid. Additionally, the registration receipt required under Section 621.002 isn't required for a frac tank that displays a frack tank license plate. The license plate can remain on a frac tank for as long as the license plate is renewed or the frac tank is removed from service or sold. A frac tank is defined, as "a portable or stationary high-volume holding vessel designed and constructed for use in separating, storing, or temporarily holding materials used in or resulting from fracturing techniques in oil and gas exploration." The procedure for issuing Frac Tank license plates is as follows:

- A firm or individual making application for the Frac Tank license plate must complete the Application for Frac Tank License Plate (Form VTR-78) A current photograph of the vehicle must accompany the application. The application can be mailed, faxed, or emailed to the TxDMV Regional Service Center for approval.
- If approved, the TxDMV returns the application to the applicant who then presents it to the county tax assessor-collector's office to obtain the Frac Tank license plate.
- The Fee for the Frac Tank license plate is $5.

Transfer of Machinery License Plates

Water well drilling equipment is transferable from one owner to another by using the registration receipt and a bill of sale if:

- The buyer completes the application, *Application for Water Well Drilling or Construction Machinery License Plate* (Form VTR-77) and is registered with the Texas Department of Licensing and Regulation (TDLR).

- If the buyer is not registered with the TDLR and cannot furnish the affidavit stating that they are working under the direct supervision of a licensed water well driller, the buyer must surrender the Machinery license plate, obtain registration and apply for a title.
- Credit is not allowed for the surrendered Machinery license plate.

Construction equipment is transferable from one owner to another by using the registration receipt and a bill of sale if the buyer completes the Form VTR-77.

Restriction

When **temporarily** moved upon the highways, there is no width or length restrictions for vehicles on which water well drilling equipment is mounted, as well as vehicles with road construction and maintenance machinery.

A slow moving vehicle must display a “Slow Moving Vehicle” emblem. A slow moving vehicle is any motor vehicle designed to operate at a maximum speed of 25 miles per hour or less. The term includes all vehicles, implements of husbandry and other machinery, including all road construction machinery, while being drawn by animals or by a motor vehicle designed to operate at a maximum speed of 25 miles per hour or less.

The term “Slow Moving Vehicle” emblem means a triangular emblem, conforming to the size, color, standards, and specifications as adopted by the DPS.

Chapter 13

OFFENSES AND PENALTIES

This chapter contains the following sections:

- ***13.1*** General Penalty
- ***13.2*** Improperly Registered Vehicles
- ***13.3*** Vehicles without Registration Insignia
- ***13.4*** Expired License Plates
- ***13.5*** Vehicles with Wrong License Plates
- ***13.6*** Wrong, Fictitious, or Unreadable Plates
- ***13.7*** Falsification or Forgery
- ***13.8*** Bribery of County Officer
- ***13.9*** County Assessor-Collector Violations
- ***13.10*** Driver's License and Vehicle Registration Suspension

13.1 General Penalty

Transportation Code, Sec. 520.016. General Penalty.

(a) A person commits an offense if the person violates this subchapter in a manner for which a specific penalty is not provided.

(b) An offense under this section is a misdemeanor punishable by a fine of not less than $50 and not more than $200.

(c) This section does not apply to a violation of Section 520.006 or a rule adopted under Section 520.0071.

Transportation Code, Sec. 502.471. General Penalty.

(a) A person commits an offense if the person violates a provision of this chapter and no other penalty is prescribed for the violation.

(b) This section does not apply to a violation of Section 502.003, 502.042, 502.197, or 502.431.

(c) Unless otherwise specified, an offense under this section is a misdemeanor punishable by a fine not to exceed $200.

13.2 Improperly Registered Vehicles

Transportation Code, Sec. 502.472. Operation of Vehicle Under Improper Registration.

A person commits an offense if the person operates a motor vehicle that has not been registered or registered for a class other than that to which the vehicle belongs as required by law.

Examples of Registration Violations

- A vehicle operated with license plates purchased by the owner in a county other than the county of his residence.
- A vehicle operated without license plates.
- A vehicle operated with expired license plates.
- A vehicle owned by a Texas resident operated while displaying out-of-state license plates, unless the vehicle is titled under Transportation Code, Sec. 502.090. Effect of Certain Military Service on Registration Requirement., which allows 90 days after the owner returns to Texas before registration.
- A vehicle operated with fictitious or stolen license plates.

Valid Reasons for Violations

If there is a valid reason for the delinquent registration, the vehicle is registered for 12 months from the time of application, establishing a new registration expiration month. No penalty is assessed.

If there is **not** a valid reason for the delinquent registration, the vehicle is registered for 12 months without establishing a new registration period. (No penalty is charged unless apprehended.)

Valid reasons may include:

- extensive repairs on the vehicle,
- the person was out of the country,
- the vehicle is used only for seasonal use,
- military orders,
- storage of the vehicle,
- a medical condition such as an extended hospital stay, and
- any other reason submitted with evidence that the county tax assessor-collector's office determines is valid.

Note: If a person is claiming a medical reason for late registration, you can ask for verification (i.e., hospital bill). Providing proof is voluntary and the person has the right to redact information as they deem necessary.

Note: Obtaining a current, passing inspection is not a valid reason for late registration.

Apprehensions

If the operator of an unregistered Texas titled vehicle is apprehended (issued a ticket for driving with expired registration), the operator must register for a 12-month period without change to the initial month of registration and pay a penalty of 20% in addition to the regular registration fees.

A temporary permit (72-Hour, 144-Hour) and a Temporary Registration Plate (One-Trip, or 30-Day) may not be issued to any vehicle that has been apprehended.

13.3 Vehicles without Registration Insignia

Transportation Code, Sec. 502.473. Operation of Vehicle Without Registration Insignia.

(a) A person commits an offense if the person operates on a public highway during a registration period a motor vehicle that does not properly display the registration insignia issued by the department that establishes that the license plates have been validated for the period.

(b) A person commits an offense if the person operates on a public highway during a registration period a road tractor, motorcycle, trailer, or semitrailer that does not display a registration insignia issued by the department that establishes that the vehicle is registered for the period.

(c) This section does not apply to a dealer operating a vehicle as provided by law.

(d) A court may dismiss a charge brought under Subsection (a) if the defendant pays a reimbursement fee not to exceed $10 and:

(1) remedies the defect before the defendant's first court appearance; or

(2) shows that the motor vehicle was issued a registration insignia by the department that was attached to the motor vehicle, establishing that the vehicle was registered for the period during which the offense was committed.

Wrong, Fictitious, or Unreadable Registration Insignia

Transportation Code, Sec. 502.475. Wrong, Fictitious, Altered, or Obscured Insignia.

(a) A person commits an offense if the person attaches to or displays on a motor vehicle a registration insignia that:

(1) is assigned to a different motor vehicle;

(2) is assigned to the vehicle under any other motor vehicle law other than by the department;

(3) is assigned for a registration period other than the registration period in effect; or

(4) is fictitious.

(b) Except as provided by Subsection (d), an offense under Subsection (a) is a misdemeanor punishable by a fine of not more than $200, unless it is shown at the trial of the offense that the owner knowingly altered or made illegible the letters, numbers, and other identification marks, in which case the offense is a Class B misdemeanor.

(c) A court may dismiss a charge brought under Subsection (a)(3) if the defendant:

(1) remedies the defect before the defendant's first court appearance; and

(2) pays a reimbursement fee not to exceed $10.

(d) An offense under Subsection (a)(4) is a Class B misdemeanor.

Deceptively Similar Insignia

Transportation Code, Sec. 502.4755. Deceptively Similar Insignia.

(a) A person commits an offense if the person:

(1) manufactures, sells or possesses a registration insignia deceptively similar to the registration insignia of the department; or

(2) makes a copy or likeness of an insignia deceptively similar to the registration insignia of the department with intent to sell the copy or likeness.

(b) For the purpose of this section, an insignia is deceptively similar to the registration insignia of the department if the insignia is not prescribed by the department but a reasonable person would presume that it was prescribed by the department.

(c) A district or county court, on application of the attorney general or of the district attorney or prosecuting attorney performing the duties of the district attorney for the district in which the court is located, may enjoin a violation or threatened violation of this section on a showing that a violation has occurred or is likely to occur.

(d) It is an affirmative defense to a prosecution under this section that the insignia was produced pursuant to a licensing agreement with the department.

(e) An offense under this section is:

(1) a felony of the third degree if the person manufactures or sells a deceptively similar registration insignia; or

(2) a Class C misdemeanor if the person possesses a deceptively similar registration insignia, except that the offense is a Class B misdemeanor if the person has previously been convicted of an offense under this subdivision.

Vehicles without License Plates

Transportation Code, Sec. 504.943. Operation Of Vehicle Without License Plate.

(a) Except as provided by Subsection (b), a person commits an offense if the person operates on a public highway, during a registration period, a motor vehicle that does not display two license plates that:

(1) have been assigned by the department for the period; and

(2) comply with department rules regarding the placement of license plates.

(b) A person commits an offense if the person operates on a public highway during a registration period a road tractor, motorcycle, trailer, or semitrailer that does not display a license plate that:

(1) has been assigned by the department for the period; and

(2) complies with department rules regarding the placement of license plates.

(c) This section does not apply to a dealer operating a vehicle as provided by law.

(d) A court may dismiss a charge brought under Subsection (a)(1) if the defendant:

(1) remedies the defect before the defendant's first court appearance; and

(2) pays a reimbursement fee not to exceed $10.

(e) An offense under this section is a misdemeanor punishable by a fine not to exceed $200.

13.4 Expired License Plates

Transportation Code, Sec. 502.407. Operation of Vehicle with Expired License Plate.

(a) A person commits an offense if, after the fifth working day after the date the registration for the vehicle expires:

(1) the person operates on a public highway during a registration period a motor vehicle, trailer, or semitrailer that has attached to it a license plate for the preceding period; and

(2) the license plate has not been validated by the attachment of a registration insignia for the registration period in effect.

(b) A justice of the peace or municipal court judge having jurisdiction of the offense may:

(1) dismiss a charge of driving with an expired motor vehicle registration if the defendant:

(A) remedies the defect not later than the 20th working day after the date of the offense or before the defendant's first court appearance date, whichever is later; and

(B) establishes that the fee prescribed by Section 502.045 has been paid; and

(2) assess a reimbursement fee not to exceed $20 when the charge is dismissed.

(c) It is a defense to prosecution under this section that at the time of the offense:

(1) the office of the county assessor-collector for the county in which the owner of the vehicle resided was closed for a protracted period of time in accordance with department rules; and

(2) the vehicle's registration was expired for 30 working days or less.

Five Day Grace Period

Owners may operate a vehicle for five working days after the date the registration expires.

Penalty Fee(s)

Any person apprehended for operating an unregistered vehicle or a vehicle with expired registration is subject to a fine not to exceed $200. In addition, they must purchase Texas registration and pay a penalty equal to 20% of the prescribed fee.

Unregistered or Expired Apprehended Vehicles

The registration fee for unregistered or expired apprehended vehicles:

- is collected for the entire year and the vehicle retains the registration period originally assigned.

- that are new or out-of-state, must be registered from the date of apprehension for a 12-month period inclusive of the registration month.

All Apprehended Vehicles

- A 20% "delinquent registration" penalty is required if a citation is issued by law enforcement.
- Proof of insurance is required (if applicable).
- Current, passing inspection is required (if applicable).

Out-of-County

- Texas titled vehicle apprehended out-of-county with expired registration may be registered in the apprehended county.
- Proof of insurance is required (if applicable).
- Current, passing inspection is required (if applicable).

Out-of-State Vehicles Apprehended in Texas

- Application for a "Registration Purposes Only" (RPO) is required, unless the out-of-state title is surrendered.
- A commercial and/or emissions inspection (if applicable) (including a Vehicle Inspection Report [VIR]) is required if the applicant's address is out-of-state.
- Check "VIN Certification Waived" if the applicant does not provide the vehicle identification certificate when applying for an RPO.
- New Resident tax is due if applying for an RPO on a vehicle titled in another state.

The State Comptroller's office should be consulted regarding tax issues.

DOT Proof Required

This remark indicates that proof of compliance with U.S. Department of Transportation safety regulations is required before title and registration can be issued and prevents the printing and mailing of a registration renewal notice. It is important that this remark be "checked" when processing an RPO transaction involving an apprehended vehicle so that a registration renewal notice will not be printed and mailed to the out-of-state owner.

Since a "hard stop" is not created by the remark, it is important for tax office personnel to view all remarks in the system before completing a renewal for a vehicle with an RPO record. If "DOT Proof Required" is displayed as a remark on an RPO record created as the result of an apprehension, registration is permitted only if the vehicle has been apprehended again.

Title Only Vehicles Apprehended

- The county tax assessor-collector's office will register the vehicle from date of apprehension for a 12-month period, plus a 20% penalty.
- The county tax assessor-collector's office will modify the expiration month (if needed) in the system.

- If the vehicle has been apprehended, a self certification as to the correct VIN may be acceptable in lieu of the Vehicle Inspection Report (VIR), provided an out-of-state address is shown on the *Application for Texas Title and/or Registration* (Form 130-U). (Refer to Transportation Code, Sec. 501.030.) In addition, an officer of the DPS may waive the requirement of a weight certificate.

13.5 Vehicles with Wrong License Plates

Transportation Code, Sec. 504.944. Operation of Vehicle with Wrong License Plate.

A person commits an offense if the person operates, or as the owner permits another to operate, on a public highway a motor vehicle that has attached to it a number plate or registration insignia issued for a different vehicle. An offense under this section is a misdemeanor punishable by a fine not to exceed $200.

13.6 Wrong, Fictitious, or Unreadable Plates

Transportation Code, Sec. 504.945. Wrong, Fictitious, Altered, or Obscured License Plate.

(a) A person commits an offense if the person attaches to or displays on a motor vehicle a license plate that:

(1) is issued for a different motor vehicle;

(2) is issued for the vehicle under any other motor vehicle law other than by the department;

(3) is assigned for a registration period other than the registration period in effect;

(4) is fictitious;

(5) has blurring or reflective matter that significantly impairs the readability of the name of the state in which the vehicle is registered or the letters or numbers of the license plate number at any time;

(6) has an attached illuminated device or sticker, decal, emblem, or other insignia that is not authorized by law and that interferes with the readability of the letters or numbers of the license plate number or the name of the state in which the vehicle is registered; or

(7) has a coating, covering, protective substance, or other material that:

(A) distorts angular visibility or detectability;

(B) alters or obscures one-half or more of the name of the state in which the vehicle is registered; or

(C) alters, covers, or obscures the letters or numbers of the license plate number or the color of the plate.

(b) Except as provided by Subsections (e) and (f), an offense under Subsection (a) is a misdemeanor punishable by a fine of not more than $200, unless it is shown at the trial of the offense that the owner knowingly altered or made illegible the letters, numbers, and other identification marks, in which case the offense is a Class B misdemeanor.

(c) Subsection (a)(7) may not be construed to apply to:

(1) a trailer hitch installed on a vehicle in a normal or customary manner;

(2) a transponder, as defined by Section 228.057, that is attached to a vehicle in the manner required by the issuing authority;

(3) a wheelchair lift or wheelchair carrier that is attached to a vehicle in a normal or customary manner;

(4) a trailer being towed by a vehicle; or

(5) a bicycle or motorcycle rack that is attached to a vehicle in a normal or customary manner.

(d) A court may dismiss a charge brought under Subsection (a)(3), (5), (6), or (7) if the defendant:

(1) remedies the defect before the defendant's first court appearance;

(2) pays a reimbursement fee not to exceed $10; and

(3) shows that the vehicle was issued a plate by the department that was attached to the vehicle, establishing that the vehicle was registered for the period during which the offense was committed.

(e) An offense under Subsection (a)(4) is a Class B misdemeanor.

(f) An offense under Subsection (a)(7)(C) is a misdemeanor punishable by a fine of not more than $300, except that the offense is:

(1) a misdemeanor punishable by a fine of not more than $600 if it is shown on the trial of the offense that the person has been previously convicted of an offense under Subsection (a)(7)(C); or

(2) a Class B misdemeanor if it is shown on the trial of the offense that the person has been previously convicted two or more times of an offense under Subsection (a)(7)(C).

Deceptively Similar License Plate

Transportation Code, Sec. 504.946. Deceptively Similar License Plate.

(a) A person commits an offense if the person:

(1) manufactures, sells, or possesses a license plate deceptively similar to a license plate issued by the department; or

(2) makes a copy or likeness of a license plate deceptively similar to a license plate issued by the department with intent to sell the copy or likeness.

(b) For the purposes of this section, a license plate is deceptively similar to a license plate issued by the department if it is not prescribed by the department but a reasonable person would presume that it was prescribed by the department.

(c) A district or county court, on application of the attorney general or of the district attorney or prosecuting attorney performing the duties of the district attorney for the district in which the court is located, may enjoin a violation or threatened violation of this section on a showing that a violation has occurred or is likely to occur.

(d) It is an affirmative defense to a prosecution under this section that the license plate was produced pursuant to a licensing agreement with the department.

(e) An offense under this section is:

(1) a felony of the third degree if the person manufactures or sells a deceptively similar license plate; or

(2) a Class C misdemeanor if the person possesses a deceptively similar license plate, except that the offense is a Class B misdemeanor if the person has previously been convicted of an offense under this subdivision.

13.7 Falsification or Forgery

Transportation Code, Sec. 502.410. Falsification or Forgery.

(a) A person commits an offense if the person knowingly provides false or incorrect information or without legal authority signs the name of another person on a statement or application filed or given as required by this chapter.

(b) Subsection (a) does not apply to a statement or application filed or given under Section 502.060, 502.093, 502.094, 502.095, 504.201, 504.202(b-1), 504.2025(d), 504.508, or 504.515.

(c) An offense under this section is a felony of the third degree.

13.8 Bribery of County Officer

Transportation Code, Sec. 502.411. Bribery of County Officer or Agent.

(a) A person commits an offense if the person directly or indirectly agrees with the commissioners court of a county or an officer or agent of the commissioners court or county that the person will register or cause to be registered a motor vehicle, trailer, or semitrailer in that county in consideration of:

(1) the use by the county of the funds derived from the registration in the purchase of property; or

(2) an act to be performed by the commissioners court or an agent or officer of the commissioners court or the county.

(b) The registration of each separate vehicle in violation of Subsection (a) is a separate offense. The agreement or conspiracy to register is a separate offense.

(c) A person who makes or seeks to make an agreement prohibited by Subsection (a) shall be restrained by injunction on application by the district or county attorney of the county in which the vehicle is registered or the attorney general.

(d) An offense under this section is punishable in the same manner as an offense under Section 36.02, Penal Code.

13.9 County Assessor-Collector Violations

Transportation Code, Sec. 502.480. Violation by County Assessor-Collector; Penalty.

(a) A county assessor-collector commits an offense if the county assessor-collector knowingly accepts an application for the registration of a motor vehicle that:

(1) has had the original motor number or vehicle identification number removed, erased, or destroyed; and

(2) does not bear a motor number or vehicle identification number assigned by the department.

(b) An offense under this section is a misdemeanor punishable by a fine of not less than $10 and not more than $50.

13.10 Driver's License and Vehicle Registration Suspension

Transportation Code, Sec. 601.152. Suspension of Driver's License and Vehicle Registration or Privilege.

(a) Subject to Section 601.153, the department shall suspend the driver's license and vehicle registrations of the owner and operator of a motor vehicle if:

(1) the vehicle is involved in any manner in an accident; and

(2) the department finds that there is a reasonable probability that a judgment will be rendered against the person as a result of the accident.

(b) If the owner or operator is a nonresident, the department shall suspend the person's nonresident operating privilege and the privilege of use of any motor vehicle owned by the nonresident.

Texas Motor Vehicle Safety Responsibility Act

The Safety Responsibility Act provides that a person cannot legally operate a motor vehicle in Texas without liability insurance coverage. Valid proof of liability insurance coverage must be presented to receive or renew:

- Motor vehicle registration,
- Driver license, and
- Vehicle commercial and/or emissions inspection.

Acceptable evidence of proof may be an original or a photocopy of one of the following:

- a liability insurance card,
- an insurance policy,
- an insurance binder, or
- a certificate of self-insurance.

The Safety Responsibility Act is administered by the DPS. However, this Act is closely related to the Certificate of Title Act because the TxDMV maintains the only complete registration and title record database for motor vehicles in the state. These records must be available to record the suspension of registration and title.

If DPS suspends the registration of any motor vehicle, the suspension automatically suspends the title; and the notation "Safety Responsibility Suspension" is recorded on the motor vehicle record.

- If a person purchases a motor vehicle with suspended registration, that person may file an application for title supported by an assigned Texas Certificate of Title, along with a completed *Safety Responsibility Affidavi*t (Form SR39). This form states they have acquired the vehicle in good faith for their own use and benefit and not for the purpose

of aiding the prior registered owner, either directly or indirectly, to defeat the purpose of the Texas Safety Responsibility Act. The safety responsibility case number should be recorded on the form, but the TxDMV will not reject the transaction if it is not shown.

- If a motor vehicle on which a suspension has been placed was transferred prior to the date of suspension, an application for title on the vehicle may be accepted provided the title transaction is in proper order.
- Any transfer of a motor vehicle by operation of law (repossession affidavit, court order, affidavit of heirship, sheriff's bill of sale, etc.) will automatically lift the suspension against the motor vehicle.
- An application for corrected title (no transfer of ownership) may be filed on a motor vehicle that has a Safety Responsibility Suspension against it.
- A Certified Copy of a Texas Certificate of Title may be issued on a suspended vehicle.

If ownership of a motor vehicle with suspended registration is transferred, the applicant may obtain a duplicate registration receipt either from the county in which the vehicle was registered or from the TxDMV.

- A request to the TxDMV for a duplicate registration receipt should be supported by the papers showing transfer by operation of law, such as a repossession affidavit or an affidavit of heirship, or a *Safety Responsibility Affidavit* (Form SR39). When the receipt is issued, the surrendered papers will be returned to the applicant to be provided with the application for title.
- If the current license plates have been removed, the applicant may obtain a set of replacement license plates from the county tax-assessor collector's office (the registration receipt and license plates of any suspended vehicle are required to be surrendered to DPS).

Chapter 14

APPLICATION FOR REGISTRATION

This chapter contains the following sections:

- ***14.1*** General Provisions
- ***14.2*** Application for Registration and Certain Permits
- ***14.3*** Title Required for Registration
- ***14.4*** Initial Registration
- ***14.6*** Transfer of Registration
- ***14.7*** Registration Year
- ***14.8*** License Plate or Registration Insignia Issuance
- ***14.9*** Registration Receipt
- ***14.10*** License Plate or Registration Insignia Replacement
- ***14.11*** Unsafe Vehicles
- ***14.12*** Refusal to Register Vehicles (Scofflaws)
- ***14.13*** Military Service on Registration Requirements
- ***14.15*** Active Duty Military Personnel

14.1 General Provisions

Transportation Code, Sec. 502.040. Registration Required; General Rule.

(a) Not more than 30 days after purchasing a vehicle or becoming a resident of this state, the owner of a motor vehicle, trailer, or semitrailer shall apply for the registration of the vehicle for:

(1) each registration year in which the vehicle is used or to be used on a public highway; and

(2) if the vehicle is unregistered for a registration year that has begun and that applies to the vehicle and if the vehicle is used or to be used on a public highway, the remaining portion of that registration year.

(b) The application must be accompanied by personal identification as determined by department rule and made in a manner prescribed by the department through:

(1) the county assessor-collector of the county in which the owner resides; or

(2) any county assessor-collector who is willing to accept the application.

(c) A provision of this chapter that conflicts with this section prevails over this section to the extent of the conflict.

(d) A county assessor-collector, a deputy county assessor-collector, or a person acting on behalf of a county assessor-collector is not liable to any person for:

(1) refusing to register a vehicle because of the person's failure to submit evidence of residency that complies with the department's rules; or

(2) registering a vehicle under this section.

Owner Definitions

Owner

"Owner" means the person who holds legal title to the vehicle or, for registration purposes, that person who has the legal right of possession or legal right of control of such vehicle.

If the vehicle is subject to a lien, the lienholder is considered the legal owner; or if the vehicle is free and clear of all liens, the person who is named on the title is the legal owner.

Legal Right of Possession

The terms "legal right of possession" and "legal right of control" mean something more than the actual physical possession by an agent or servant. The terms imply such possession or control to be with a degree of permanency throughout the greater part of the registration year and not merely temporary possession. (Attorney General's Opinion No. 0-2105)

A person who can be classified as having either legal right of possession or legal right of control would be one who could be entrusted with the vehicle's care. The terms would preclude a person who has only the physical control of a motor vehicle, but would include a person who has all rights in the motor vehicle as to its control, operation, use, and management, but who does not have legal title.

- A local ticket agent of a bus company would not have legal right of possession or legal right of control over the buses. The exception to this would be where by some instrument in the form of a lease or bailment said ticket agent would be given such legal right of control or legal right of possession. In this connection however, such an instrument drawn up for the purpose of evasion of the motor vehicle registration law would not of itself suffice to make such person the owner within the meaning of the registration statute.
- The same rule that applies to a local agent of a bus company would also be applicable to the local agent of a freight line. However, the local agent of a freight line would be considered an owner for registration purposes, of vehicles permanently stationed in his county over which he is given legal right of control or legal right of possession.
- A district or branch manager of an oil refining company or wholesale grocery chain could be an owner for his company for the vehicles definitely assigned to that district or branch for registration purposes.

Leased Vehicles

The lessor's name (person or firm who actually owns the vehicle) must be shown in the name of owner space on the registration receipt. To enable the leasing company to receive the negotiable title yet allow the lessee to receive all subsequent registration renewal notices, the name and address of the lessee may be shown in the Renewal Recipient field on the *Application for Texas Titl*e *and/or Registration* (Form 130-U).

Either the lessor or lessee may renew Texas registration, provided the renewal is filed in the county of residence of the applicant or at any county willing to accept the application.

When a vehicle has been leased, it is not necessary for the party applying for registration to present the lease agreement.

The registration of a company owned vehicle in the possession and control of an employee of such company is accomplished in the same manner as leased vehicles.

Obtaining a Negotiable Certificate of Title without Texas Registration (Title Only)

Transportation Code, Sec. 501.0275, Issuance of Title for Unregistered Vehicle, allows an applicant to obtain a negotiable certificate of title without obtaining Texas registration.

- The applicant must complete the *Application for Texas Title and/or Registration* (Form 130-U) before issuance of a title without registration.
- Do not issue title without registration if the vehicle record contains a notation indicating suspension or revocation. Advise applicants that the suspension or revocation must be cleared before issuance of a title without registration.
- No proof of insurance is required at the time of application for title without registration.
- Vehicle inspection is not required for vehicles issued a title without registration under Transportation Code, Sec. 548.052.

Salvage or Nonrepairable Vehicles

A salvage or nonrepairable vehicle may not be operated on the public roads. Any existing registration on a vehicle becomes invalid upon notification by the insurance company or the owner voluntarily designates the vehicle as a salvage or non-repairable vehicle. Any vehicle issued a salvage or nonrepairable vehicle title prior to September 1, 2003, may be issued a regular certificate of title if it has been repaired, rebuilt, or reconstructed by a person described by Transportation Code, Sec. 501.104(a), and has passed the applicable state inspection. The new title will reflect the remark of "Rebuilt Salvage."

A vehicle issued a nonrepairable vehicle title on or after September 1, 2003, may not be rebuilt or retitled, and may not be issued any form of registration.

14.2 Application for Registration and Certain Permits

Transportation Code, Sec. 502.043. Application for Registration and Certain Permits.

(a) An application for vehicle registration or a permit described by Section 502.094 or 502.095 must:

(1) be made in a manner prescribed and include the information required by the department by rule; and

(2) contain a the full description of the vehicle as required by department rule;

(b) The department shall deny the registration of or permitting under Section 502.094 or 502.095 of a commercial motor vehicle, truck-tractor, trailer, or semitrailer if the applicant:

(1) has a business operated, managed, or otherwise controlled or affiliated with a person who is ineligible for registration or whose privilege to operate has been suspended, including the applicant entity, a relative, family member, corporate officer, or shareholder;

(2) has a vehicle that has been prohibited from operating by the Federal Motor Carrier Safety Administration for safety-related reasons;

(3) is a carrier whose business is operated, managed, or otherwise controlled or affiliated with a person who is ineligible for registration, including the owner, a relative, a family member, a corporate officer, or a shareholder; or

(4) fails to deliver to the county assessor-collector proof of the weight of the vehicle, the maximum load to be carried on the vehicle, and the gross weight for which the vehicle is to be registered.

(c) In lieu of filing an application during a year as provided by Subsection (a), the owner of a vehicle registered in any state for that year or the preceding year may present:

(1) the registration receipt and transfer receipt for the vehicle; or

(2) other evidence satisfactory to the county assessor-collector that the person owns the vehicle.

(c-1) A county assessor-collector shall accept a receipt or evidence provided under Subsection (c) as an application for renewal of the registration if the receipt or evidence indicates the applicant owns the vehicle. This section allows issuance for registration purposes only but does not authorize the department to issue a title.

(d) The department may require an applicant for registration to provide current personal identification as determined by department rule. Any identification number required by the department under this subsection may be entered into the department's electronic titling system but may not be printed on the title.

Certificate of Title Act

The statute requiring motor vehicle owners to make application for registration was superseded by the Certificate of Title Act that provides that an application for title must be filed with the county tax assessor-collector's office for each motor vehicle that is required to be registered. A vehicle must also have a current, passing commercial and/or emissions inspection (if applicable) prior to issuance of initial registration or renewal.

- The TxDMV maintains a master vehicle record in its system for each vehicle registered and/or titled in Texas. From these records, it prints and mails a *Registration Renewal Notice* (Form VTR-39-A) to each vehicle owner.
- Registration renewal notices may be presented to the county tax assessor-collector's office for renewal of registration in lieu of a certificate of title.
- In the absence of a registration renewal notice or certificate of title, the applicant may present the previous year's registration receipt, or verification of Texas title/registration as proof of ownership for registration renewal purposes.

Registration Renewal Period

Registration renewal notices are mailed to each vehicle owner approximately six to eight weeks prior to the vehicle's registration expiration date. However, the vehicle owner has the option to renew two months prior to the expiration month and during the month of expiration. This allows sufficient time for an owner to renew the current registration before it expires.

Registration Renewal Notice Form

When a *Registration Renewal Notice* (Form VTR-39-A), is presented in person for renewal of registration, it is not necessary to retain the notice in order to complete the renewal. Once the vehicle record has been retrieved and appears on the system workstation screen, the registration renewal notice may be discarded.

The information appearing on the registration renewal notice prints from the TxDMV's master vehicle record.

- The registration fees shown on the registration renewal notices are annual fees. The state's portion of the Inspection Fee (commercial vehicles), Inspection Replacement Fee and/or Emissions Inspection Fee will also be shown on the renewal notice, when applicable.
- When an emissions inspection is required information will be displayed in the top right corner of the renewal notice indicating that an emissions inspection must be obtained prior to registration renewal.
- Permanent additional weight purchased during the current registration year becomes part of that vehicle's master record. Consequently, when the annual fees are calculated for the forthcoming registration year, the total accumulated weight is indicated on the registration renewal notice, and the annual fee shown is calculated on the basis of any accumulated gross weight.
- At the customers' option, email addresses may be captured at the time of renewal in order to send a renewal reminder. An e-reminder is sent three weeks prior to registration expiration, if the customer has not renewed another e-reminder is sent one week prior to registration expiration.

Addresses

The copy of the registration renewal notice contains an area to update incorrect addresses. The address of the owner should always be the physical street address. If resident mail delivery is not available or the owner does not want a street address to appear on the vehicle record, a P.O. Box is acceptable. If a P.O. Box address is used as the owner's address, then you may indicate the physical street address in the "Vehicle Location Information" fields on the "Owner Address" screen in the system.

Address Confidentiality Program

Code of Criminal Procedure, Sec. 56.82. Address Confidentiality Program.

(a) The attorney general shall establish an address confidentiality program, as provided by this subchapter, to assist a victim of family violence, sexual assault or abuse, stalking, or trafficking of persons in maintaining a confidential address.

(b) The attorney general shall:

(1) designate a substitute post office box address that a participant may use in place of the participant's true residential, business, or school address;

(2) act as agent to receive service of process and mail on behalf of the participant; and

(3) forward to the participant mail received by the office of the attorney general on behalf of the participant.

(c) A summons, writ, notice, demand, or process may be served on the attorney general on behalf of the participant by delivery of two copies of the document to the office of the attorney general. The attorney general shall retain a copy of the summons, writ, notice, demand, or process and forward the original to the participant not later than the third day after the date of service on the attorney general.

(d) The attorney general shall make and retain a copy of the envelope in which certified mail is received on behalf of the participant.

The Address Confidentiality Program (ACP) protects the victims of certain crimes, such as sexual assault and stalking. The Office of the Attorney General (OAG) assigns a post office box for use in lieu of participant's physical address. This is designed to help protect the crime victim by providing the victim an additional layer of confidentiality.

The OAG, Crime Victim Services Division issues ACP participants a card that includes their name, the seal of the Office of the Attorney General, and the number of the assigned post office box. Any transaction involving an ACP participant may use this post office box number instead of any physical address the TxDMV may otherwise require.

Counties or dealers can validate participation in the program by asking the person to produce the authorization card issued by the OAG for this program. The card contains the proper post office box number.

National Change of Address

The following describes the registration renewal notice print-mail schedule and National Change of Address (NCOA) process:

- Each month, a file of approximately 1.6 million records is pulled from the master motor vehicle database and sent to a licensed NCOA vendor for processing. The NCOA vendor runs the list against approximately 160 million permanent change-of-address records provided by the U.S. Postal Service.
- Any changed addresses are printed in the renewal recipient field of the registration renewal notice and updated in the vehicle records. The renewal recipient address file changes permanently.
- The processed file is returned to the TxDMV for printing.

Registration by Mail

Applications for registration and renewal of registration may be processed by the county tax assessor-collector's office through the mail. In addition to the registration fee a $4.75 P&H Fee will be assessed when applicable.

License Plates and Stickers Lost In Mail

If a license plate and/or registration sticker is lost in the mail, the owner must submit an *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60) to the tax collector or sign the replacement application on the back of the receipt. The county tax assessor-collector's office may determine whether to charge the replacement fee for license plates and/or registration stickers issued by mail.

Renewal without Registration Renewal Notice

If a registration renewal notice is not submitted by the applicant, the applicant must present other satisfactory evidence of ownership, or affidavit if the applicant is not the owner of record.

If no registration renewal notice is available, one of the following may be accepted:

- the previous renewal receipt issued in the owner's name for the preceding year,
- a title application receipt issued in the owner's name for the preceding year; or
- a Registration Purposes Only receipt, if issued in the owner's name for the preceding year.

If the applicant is not the person whose name appears on the registration record, deny renewal of registration until the applicant presents satisfactory evidence, such as a certificate of title or affidavit, to verify ownership or authority to renew.

Applicants that do not have a current, passing commercial inspection at the time the renewal notices are printed will receive the Vehicle Inspection and Registration Notice in lieu of a registration renewal notice. This notice can be presented to the county tax assessor-collector's office or subcontractor for renewal purposes. For more information, see Chapter 22, Section 22.5 Registration Renewal Notice.

Out-of-State Registered Vehicles

An owner of a motor vehicle previously registered out-of-state must present to the tax assessor-collector proper evidence of ownership, file an application for title, and complete a current, passing Texas commercial and/or emissions inspection (if applicable) before the vehicle can be registered and new license plates issued.

For vehicles that have never been titled or registered in Texas, and that aren't subject to an emissions inspection still require VIN verification through the selection of the appropriate checkbox on the *Application for Texas Title and/or Registration* Form 130-U.

Registration Purposes Only

Registration Purposes Only (RPO) receipts may be issued to both Texas residents and nonresidents who do not possess the necessary evidence to obtain a negotiable Texas Certificate of Title. This includes nonresidents who do not want to surrender their out-of-state title, or may have a lienholder. (For a discussion of RPO receipts and Identification requirements, refer to Chapter 14, Section 14.5 Identification Requirements for Initial Registration)

Under no condition may a RPO receipt be issued to a new vehicle that has not previously been registered or titled.

14.3 Title Required for Registration

Transportation Code, Sec. 502.042. Title Required for Registration.

(a) The department may not register or renew the registration of a motor vehicle for which a title is required under Chapter 501 unless the owner:

(1) obtains a title for the vehicle; or

(2) presents satisfactory evidence that a title was previously issued to the owner by the department or another jurisdiction.

14.4 Initial Registration

Transportation Code, Sec. 502.041. Initial Registration.

(a) Notwithstanding Section 502.040, the owner of a vehicle may concurrently apply for a title and for registration through the county assessor-collector of the county in which:

(1) the owner resides;

(2) the vehicle is purchased or encumbered; or

(3) the county assessor-collector is willing to accept the application

(b) The first time an owner applies for registration of a vehicle, the owner may demonstrate compliance with Section 502.046(a) as to the vehicle by showing proof of financial responsibility in any manner specified in Section 502.046(c) as to:

(1) any vehicle of the owner; or

(2) any vehicle used as part of the consideration for the purchase of the vehicle the owner applies to register.

Individual Residency Requirements

In accordance with Attorney General's Opinion 0-1023, every person who holds legal title or has the legal right of possession or control of a vehicle is required to register and must annually register the vehicle in the county in which the individual resides or any county willing to accept the application. Therefore, it is the responsibility of the tax assessor-collectors and their deputies to establish the applicant's residence prior to the issuance of registration.

For motor vehicle registration purposes, the residence of an individual is the place of domicile or permanent abode.

- The residence of a single person is where that individual sleeps at night; that of a married person is where that individual's spouse resides, or if permanently separated, the residence is where the individual sleeps at night.
- It is the place where the family dwells or where the person makes the chief seat of the individual's affairs and interests.

- If a person owns property in a county other than the individual's county of legal residence and owns vehicles stationed on such property, the vehicles may be registered in the local county or any county willing to accept the application. However, if it is a vehicle the registrant drives back and forth between their county of residence and the property, then the vehicle should be registered in the county of residence.
- Persons residing in one county and traveling to and from a place of regular employment in another county must register their vehicles in the county in which they reside or any county willing to accept the application.
- If a person abandons all evidence of residency in a county, the individual should not be allowed to return to that county solely for registering vehicles.
- "Winter Texans" are part-time residents who have dual residency in Texas for part of the year and another jurisdiction for the remainder of the year. They may not be employed or enter into business in Texas. Based on an opinion of the Office of Attorney General JM-611, applicants may title and register a vehicle in Texas provided they have a Texas physical address. Visitors to Texas without a Texas physical address may not title and register a vehicle in Texas. All other county residency requirement procedures remain in place for leased vehicles, military personnel, out-of-state corporations, bonded title applicants, college students, and reciprocity agreements between other jurisdictions.
- The residence of an officer or employee of the government of this state is where the individual's home was before the state employment or service unless the individual has become a bona fide resident of the location of government service.

Note: Active-duty military service members (or spouse) serving abroad or out-of-state and claiming Texas residency may obtain either Texas initial or renewal registration without providing a physical Texas address.

Corporation Requirements

A corporation, whether domestic or foreign, which has established residence in this state should register all vehicles owned by the corporation in the county of the corporation's principle place of business. However, if a domestic or foreign corporation owns motor vehicles permanently located in various counties of this state, the vehicles register in the county of the local headquarters.

Partnership Requirements

A partnership owned by two or more individuals having residence in different counties in this state may register their vehicles in the county of residence of either partner.

Construction Company Requirements

A construction company may register the company's vehicles in the county where the company operates a construction project provided the work continues through the major portion of the registration year.

Vehicles Acquired Outside the Buyer's County of Residence

Buyers of new or used vehicles when acquired outside the purchaser's county of residence may file an application for title and registration (if required to be registered) in:

- the county where the vehicle was purchased,
- the county where the lienholder is located,
- the purchaser's home county, or
- any county willing to accept the application.

Violation and Penalty

The penalty for owners registering in a county other than the owner's county of legal residence (except under the conditions as explained in this section) may be fined up to $200, plus court costs. Each owner must re-register in the owner's home county from the date of the purchase of the out-of-county registration and pay a penalty equal to 20% of the applicable fee.

14.5 Identification Requirements for Initial Registration

Use the Title & Initial Registration Transaction Types chart below to determine which ID standard applies.

Transaction Type	Is ID required or title purposes	Is ID required for initial registration purposes?	Acceptable ID
Standard Initial Registration (Including Registration Purposes Only - RPO)	Yes	Yes	List A
Title Only (No Registration)	Yes	No	List B
Off-Highway (Titled without registration)	Yes	No	List B
Exempt Vehicles	Yes	No	List B
IRP (Apportioned)	Yes	No	List B
Non-Resident Agricultural Permit	N/A	Yes	List B
Annual Permits	N/A	Yes	List B
72-Hour and 144-Hour Permits	N/A	Yes	List B
Temporary Registration Plate (One-Trip and 30-Day)	N/A	Yes	List B

Transaction Type	Is ID required or title purposes	Is ID required for initial registration purposes?	Acceptable ID
Alternate Registration (Fertilizer, Seasonal Ag, Soil Conservation, Farm - Motor Vehicles and Trailers)	Yes	Yes	List B
Rental Trailers	Yes	Yes	List B
Commercial Registration (City Bus, Combination, Cotton, Forestry, Motor Bus, Token Trailer, Tow Truck)	Yes	Yes	List B

List A - Acceptable ID for Transactions

One of the following must be presented:

- Valid, unexpired REAL ID-compliant driver's license or state ID from any state or territory of the United States
- Without REAL ID - Valid, unexpired driver's license or state ID that does not meet REAL ID requirements, issued by state that requires proof of legal presence: Alabama, Alaska, Arizona, Arkansas, Florida, Georgia, Idaho, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maine, Michigan, Mississippi, Missouri, Montana, Nebraska, New Hampshire, North Carolina, North Dakota, Ohio, Oklahoma, Pennsylvania, South Carolina, South Dakota, Tennessee, Texas, West Virginia, Wisconsin, and Wyoming
- Without REAL ID - Valid, unexpired driver's license or state ID that does not meet REAL ID requirements issued by any state or territory of the United States, PLUS:
  - U.S. birth certificate,
  - Certificate of Naturalization, or
  - Certificate of Citizenship
- Valid, unexpired U.S. passport
- Valid, unexpired foreign passport PLUS:
  - Form I-94 (Not in Parole status),
  - Current permanent resident card, or
  - Unexpired immigrant visa from the United States Department of Homeland Security
- Valid, unexpired Texas License to Carry a Handgun issued by TxDPS

Note: A valid, unexpired driver's license or state ID issued by a state that requires proof of legal presence is acceptable, including those marked "limited term" or "temporary." Additionally, a valid, unexpired driver's license or state ID issued by a state or territory of the U.S., including those marked "limited term" or "temporary," plus a U.S. birth certificate, or Certificate of Naturalization, or Certificate of Citizenship; is also acceptable.

List B - Acceptable Photo ID for Transactions

- Driver's license or ID issued by a U.S. state or territory
- Texas License to Carry a Handgun issued by TxDPS
- U.S. passport
- Foreign passport
- U.S. military ID
- North Atlantic Treaty Organization (NATO) ID
- ID issued under a Status of Forces Agreement
- U.S. Department of Homeland Security ID
- U.S. Department of State ID
- U.S. Citizenship and Immigration Services ID

Note: Only List B acceptable forms of ID can be expired up to 12 months.

Agent ID Requirements

If an agent submits an application that includes registration on behalf of a business, trust, or leasing company:

- The agent must present their own photo ID.

The agent's ID must meet the ID requirements shown in List B.

Military Applicants are required to adhere to ID requirements identified in the chart above based on transaction type.

Non-Titled Vehicles

The following are not subject to these ID requirements:

- Machinery plates
- Permit plates
- Frac tank plates
- Other registration classes issued with the "MISC" vehicle class

14.6 Transfer of Registration

Transportation Code, Sec. 502.491. Transfer of Vehicle Registration.

(a) On the sale or transfer of a vehicle, the registration insignia issued for the vehicle shall be removed. The registration period remaining at the time of sale or transfer expires at the time of sale or transfer.

(b) On a sale or transfer of a vehicle in which neither party holds a general distinguishing number issued under Chapter 503, the part of the registration period remaining at the time of the sale or transfer shall continue with the vehicle being sold or transferred and does not transfer with the license plates or registration validation insignia. To continue the remainder of the registration period, the purchaser or transferee must file the documents required under Section 501.145.

(c) On the sale or transfer of a vehicle to a dealer, as defined by Section 503.001, who holds a general distinguishing number issued under Chapter 503, the registration period remaining at the time of the sale or transfer expires at the time of the sale or transfer. On the sale of a used vehicle by a dealer, the dealer shall issue to the buyer new registration documents for an entire registration year.

(d) If the transferor has paid for more than one year of registration, the department may credit the transferor for any time remaining on the registration in annual increments.

14.7 Registration Year

Transportation Code, Sec. 502.044. Registration Period.

(a) The department shall designate a vehicle registration year of 12 consecutive months to begin on the first day of a calendar month and end on the last day of the 12th calendar month.

(b) The department shall designate vehicle registration years so as to distribute the work of the department and the county assessor-collectors as uniformly as possible throughout the year. The department may establish separate registration years for any vehicle or classification of vehicle and may adopt rules to administer the year-round registration system.

(c) The department may designate a registration period of less than 12 months to be computed at a rate of one-twelfth the annual registration fee multiplied by the number of months in the registration period. The board by rule may allow payment of registration fees for a designated period not to exceed the amount of time determined by department rule.

(d) The department shall issue a registration receipt and registration insignia that are valid until the expiration of the designated period.

(e) The department shall use the date of sale of the vehicle in designating the registration year for a vehicle for which registration is applied for under Section 501.0234.

Staggered Registration

Texas implemented a staggered registration system on January 1, 1978. Under the staggered registration system, registration expiration dates in different months throughout the year are assigned to most vehicles.

- A registration sticker (windshield or license plate) is issued that identifies the month and year of expiration, county of residence, license plate number, and last eight digits of the VIN. The registration sticker serves as proof of the vehicle's registration and inspection.
- In cases of delinquent registration when the county tax assessor-collector's office determines there is a valid reason for being delinquent, the vehicle is registered for a 12-month period. A new registration expiration month is established, that ends on the last day of the 11th month following the month of registration.

Multi-Year Registration

New passenger cars or light trucks sold on a MCO by a Texas dealer must receive 24 months of initial registration for certain registration classes. This also applies to new passenger cars and light trucks purchased on a MCO by a commercial fleet buyer.

Fixed Expiration

The following license plate classifications have an established expiration date of December 31 (renewed annually):

- County Judge,
- Federal Administrative Law Judge,
- State Judge,
- U.S. Congress – House and Senate,
- State Official, and
- U.S. Judge.

Vehicle Color

The vehicle color is not required to be entered in the system; however capturing vehicle color is another way to assist law enforcement in identifying a vehicle.

- Major vehicle color is the primary color that covers most, if not all, of the vehicle.
- Minor vehicle color is the secondary color and covers less than the major color of the vehicle and is captured only if the customer has indicated two colors on the application.

Assigning Registration Periods

Each registration period assigned by the TxDMV consists of 12 consecutive months beginning on the first day of a calendar month and expiring on the last day of the last calendar month in that period.

For example, if an applicant applies for registration during the month of June, the system will collect the registration fee for the 12-month period extending from June l through May 31 of the succeeding year. The applicant is issued license plates and a registration sticker with "May" expiration and the appropriate year of expiration.

DPS Inspection Certificate

An original, signed Vehicle Inspection Report (VIR) is required to support an application for Texas title and registration on a vehicle that was last registered or titled outside of Texas. The VIR, issued by a state approved Inspection Station, is required by law to ensure that the out-of-state vehicle has passed the applicable Texas commercial and/or emissions inspection and to verify the vehicle identification number on the vehicle. The VIR replaced the VI-30 with the start of Two Steps, One Sticker (H.B. 2305, 83rd Texas Legislature). A printout from www.mytxcar.org is not acceptable in lieu of the VIR for purposes of VIN verification.

Renewals

If an owner fails to renew registration before the fifth working day after the registration expires, the vehicle must not be operated until the proper registration fee has been paid.

If an application for registration is filed more than one month past the date of the previous year's registration expiration, and there is a valid reason for being late, the vehicle will be registered for a full 12 months and a new month of expiration is established.

If an application for registration is filed more than one month past the date of the previous year's registration expiration, and there is an invalid reason for being late, the vehicle will be registered for a full 12 months and the month of expiration will remain the same. If a citation has been issued, a 20% penalty of the registration fees is collected. The registrant may also be subject to a fine not to exceed $200.

Motorists are able to renew their vehicle registration online for up to 12 months past expiration if they have not received a law enforcement citation. Anyone renewing between 10 and 12 months late with a current, passing commercial and/or emissions inspection (if applicable) will be given the option to renew for the expired (past-due) registration year and the subsequent (current) registration year. The month of expiration does not change with online renewal. Registration and local county fees will be doubled when registration is renewed for two registration periods. One P&H Fee will be collected.

Reregistration under Different Registration Classification

If a vehicle's classification should change and the owner applies for registration under a different classification, the registration period may be affected, depending on the classification change involved.

14.8 License Plate or Registration Insignia Issuance

Transportation Code, Sec. 504.010. Issuance and Placement of License Plate.

(a) On payment of the prescribed fee, an applicant for motor vehicle registration shall be issued a license plate or set of plates.

(b) Subject to Section 504.901, the department shall issue only one license plate or set of plates for a vehicle during the registration period set by rule.

(c) The board may adopt rules regarding the placement of license plates for a motor vehicle, road tractor, motorcycle, trailer, or semitrailer.

Transportation Code, Sec. 502.059. Issuance of Registration Insignia.

(a) On payment of the prescribed fee an applicant for motor vehicle registration shall be issued a registration insignia.

(b) On application and payment of the prescribed fee for a renewal of the registration of a vehicle through the period set by rule, the department shall issue a registration insignia for the validation of the license plate or plates to be attached as provided by Subsection (c).

(c) Except as provided by Subsection (f), the registration insignia for validation of a license plate shall be attached to the inside of the vehicle's windshield, if the vehicle has a windshield, in the lower left corner in a manner that will not obstruct the vision of the driver. If the vehicle does not have a windshield, the owner, when applying for registration or renewal of registration, shall notify the department, and the department shall issue a distinctive device for attachment to the rear license plate of the vehicle.

(d) Department rules may provide for the use of an automated registration process, including:

(1) the automated on-site production of registration insignia; and

(2) automated on-premises and off-premises self service registration.

(e) Subsection (c) does not apply to:

(1) the issuance of specialized license plates as designated by the department, including state official license plates, exempt plates for governmental entities, and temporary registration plates; or

(2) the issuance or validation of replacement license plates, except as provided by Chapter 504.

(f) The registration insignia shall be attached to the rear license plate of the vehicle, if the vehicle is:

(1) a motorcycle;

(2) machinery used exclusively to drill water wells or construction machinery for which a distinguishing license plate has been issued under Section 502.146; or

(3) oil well servicing, oil clean out, or oil well drilling machinery or equipment for which a distinguishing license plate has been issued under Subchapter G, Chapter 623.

14.9 Registration Receipt

Transportation Code, Sec. 502.057. Registration Receipt.

(a) The department shall issue or require to be issued to the owner of a vehicle registered under this chapter a registration receipt showing the information required by rule.

(b) A receipt for the renewed registration of a vehicle generated by an online registration system approved by the department is proof of the vehicle's registration until the 31st day after the date of renewal on the receipt.

A registration receipt is issued to document the registration of each vehicle within this state. The receipt serves two primary purposes:

- proof of registration and that the proper fees have been paid for the legal operation of a vehicle, and
- as evidence of title if the vehicle falls under the title laws of this state. In the case of Registration Purposes Only, the receipt is proof of registration.

The only registration receipts that are acceptable as proof of a vehicle's current registration status are receipts issued by the TxDMV or by the county tax assessor-collector's office, either on a form furnished by the TxDMV or on a validated verification of title and registration printout.

A renewal receipt issued at time of online renewal is proof of registration until the 31st day after the date of the renewal listed on the receipt.

Transportation Code, Sec. 502.058. Duplicate Registration Receipt.

(a) The owner of a vehicle for which the registration receipt has been lost or destroyed may obtain a duplicate receipt from the department or the county assessor-collector who issued the original receipt by paying a fee of $2.

(b) The office issuing a duplicate receipt shall retain the fee received.

(c) A fee collected by the department under Subsection (a) shall be deposited to the credit of the Texas Department of Motor Vehicles fund.

Duplicate Receipts

Duplicate registration receipts may be issued at any county tax assessor-collector's office or TxDMV Regional Service Centers for a $2 fee. Duplicate receipts may only be issued for currently registered vehicles.

Note: The $2 fee should be charged when a Duplicate Registration Receipt is printed and provided to a customer. However, the $2 fee should not be charged at the time of title transfer.

Registration Inquiry Receipts

If the vehicle is not currently registered, and a Vehicle Inquiry Receipt is printed, a $2 fee should be charged at the county tax assessor-collector's office.

14.10 License Plate or Registration Insignia Replacement

Transportation Code, Sec. 502.060. Replacement of Registration Insignia.

(a) The owner of a registered motor vehicle may obtain a replacement registration insignia by:

(1) certifying that the replacement registration insignia will not be used on any other vehicle owned or operated by the person making the statement;

(2) paying a fee of $6 plus the fees required by Section 502.356(a) for each replacement registration insignia, except as provided by other law; and

(3) returning each replaced registration insignia in the owner's possession.

(b) [2 Versions: As amended by Acts 2017, 85th Leg., Ch. 490] No fee is required under this section if:

(1) the replacement fee for a license plate has been paid under Section 504.007; or

(2) a county assessor-collector determines that the owner of a registered motor vehicle did not receive a registration insignia that was issued to the owner by mail.

(b) [2 Versions: As amended by Acts 2017, 85th Leg., Ch. 968] No fee is required under this section if:

(1) the replacement fee for a license plate has been paid under Section 504.007; or

(2) the county assessor-collector determines that the owner paid for a registration insignia for the same registration period that was mailed to the owner but not received by the owner.

(c) A county assessor-collector may not issue a replacement registration insignia without complying with this section.

(d) A county assessor-collector shall retain $2.50 of each fee collected under this section and shall report and send the remainder to the department.

(e) The portion of the fee sent to the department under Subsection (d) shall be deposited to the credit of the Texas Department of Motor Vehicles fund.

Transportation Code, Sec. 504.007. Replacement License Plates.

(a) The owner of a registered motor vehicle may obtain replacement license plates for the vehicle by:

(1) certifying that the replacement plates will not be used on any other vehicle owned or operated by the person making the statement;

(2) paying a fee of $6 plus the fee required by Section 502.356(a) for each set of replacement license plates, unless otherwise specified by law; and

(3) returning to the department each license plate in the owner's possession for which a replacement license plate is obtained.

(b) Replacement license plates may not be issued except as provided by this section.

(c) A county assessor-collector shall retain $2.50 of each fee collected under this section and forward the remainder of the fee to the department for deposit to the credit of the Texas Department of Motor Vehicles fund.

(d) The fee required by this section applies to the issuance of license plates for a transferred used vehicle for which the registration and license plates were not transferred under Section 504.901.

(e) Replacement license plates may be used in the registration year in which the plates are issued and during each succeeding year of the registration period as set by rule if the registration insignia is properly displayed on the vehicle.

(f) Subsection (e) does not apply to the issuance of specialized license plates for limited distribution, including exempt plates for governmental entities and temporary registration plates.

(g) [2 Versions: As added by Acts 2017, 85th Leg., Ch. 490] No fee is required under this section if a county assessor-collector determines that the owner of a registered motor vehicle did not receive license plates that were mailed to the owner by mail.

(g) [2 Versions: As added by Acts 2017, 85th Leg., Ch. 968] No fee is required under this section if the county assessor-collector determines that the owner paid for license plates for the same vehicle that were mailed to the owner but not received by the owner.

The owner must complete an *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60), stating that the license plates and/or registration sticker is lost, stolen, mutilated, or needs to be replaced for cosmetic or readability reasons. Instead of the form, the county tax assessor-collector's office may use the back of the VTR-500-RTS receipt if the customer is available to sign.

The owner must surrender the current year's registration receipt and any remaining license plate or sticker.

If the license plates and/or registration sticker is issued by mail, the Replacement Fee may not apply if the county tax assessor-collector's office determines the owner did not receive the license plates and/or registration sticker.

Note: Surrendered license plates must be made unusable, destroyed, or processed by a recycling facility. If necessary, coordinate with your local TxDMV Regional Service Center to pick up license plates that have been surrendered and cannot be recycled, destroyed or made unusable.

Elimination of the Mandatory "Needs" License Plate Replacement

The mandatory replacement of all license plates when the license plate age reaches seven years (Plate Age will show '7' in the system) was eliminated effective November 1, 2016. "New Plates Required" no longer displays on the registration renewal notices and the system no longer prompts for new license plates during registration renewal. Requests for replacement of license plates requires the payment of the $6 Replacement Fee and the Automation Fee.

License Plate Replacements

The statutory Replacement Fee for all vehicles is $6. Certain meritorious service military specialty license plates do not have a Replacement Fee. The Replacement Fee is not due when the county tax assessor-collector's office can determine the license plate(s) were lost in the mail.

If an owner loses their license plate(s), the county tax assessor-collector's office must replace both the license plates and the registration sticker since the license plate number is shown on the registration sticker. The registration sticker shows the:

- replacement license plate number,

- county name, and
- last eight digits of the VIN.

14.11 Unsafe Vehicles

Transportation Code, Sec. 502.048. Refusal to Register Unsafe Vehicle.

The department may refuse to register a motor vehicle and may cancel, suspend, or revoke a registration if the department determines that a motor vehicle is unsafe, improperly equipped, or otherwise unfit to be operated on a public highway.

14.12 Refusal to Register Vehicles (Scofflaws)

Failure to Appear or Pay on a City Violation of Traffic Law

Transportation Code, Sec. 502.010. County Scofflaw.

(a) Except as otherwise provided by this section, a county assessor-collector or the department may refuse to register a motor vehicle if the assessor-collector or the department receives information that the owner of the vehicle:

(1) owes the county money for a fine, fee, or tax that is past due; or

(2) failed to appear in connection with a complaint, citation, information, or indictment in a court in the county in which a criminal proceeding is pending against the owner.

(b) A county may contract with the department to provide information to the department necessary to make a determination under Subsection (a).

(b-1) Information that is provided to make a determination under Subsection (a)(1) and that concerns the past due status of a fine or fee imposed for a criminal offense and owed to the county expires on the second anniversary of the date the information was provided and may not be used to refuse registration after that date. Once information about a past due fine or fee is provided under Subsection (b), subsequent information about other fines or fees that are imposed for a criminal offense and that become past due before the second anniversary of the date the initial information was provided may not be used, either before or after the second anniversary of that date, to refuse registration under this section unless the motor vehicle is no longer subject to refusal of registration because of notice received under Subsection (c).

(c) A county that has a contract under Subsection (b) shall notify the department regarding a person for whom the county assessor-collector or the department has refused to register a motor vehicle on:

(1) the person's payment or other means of discharge, including a waiver, of the past due fine, fee, or tax; or

(2) perfection of an appeal of the case contesting payment of the fine, fee, or tax.

(d) After notice is received under Subsection (c), the county assessor-collector or the department may not refuse to register the motor vehicle under Subsection (a).

(e) A contract under Subsection (b) must be entered into in accordance with Chapter 791, Government Code, and is subject to the ability of the parties to provide or pay for the services required under the contract.

(f) Except as otherwise provided by this section, a county that has a contract under Subsection (b) may impose an additional reimbursement fee of $20 to:

(1) a person who fails to pay a fine, fee, or tax to the county by the date on which the fine, fee, or tax is due; or

(2) a person who fails to appear in connection with a complaint, citation, information, or indictment in a court in which a criminal proceeding is pending against the owner.

(f-1) The additional reimbursement fee may be used only to reimburse the department or the county assessor-collector for its expenses for providing services under the contract, or another county department for expenses related to services under the contract.

(g) In this section:

(1) a fine, fee, or tax is considered past due if it is unpaid 90 or more days after the date it is due; and

(2) registration of a motor vehicle includes renewal of the registration of the vehicle.

(h) This section does not apply to the registration of a motor vehicle under Section 501.0234, unless the vehicle is titled and registered in the name of a person who holds a general distinguishing number.

(i) A municipal court judge or justice of the peace who has jurisdiction over the underlying offense may waive an additional reimbursement fee imposed under Subsection (f) if the judge or justice makes a finding that the defendant is economically unable to pay the fee or that good cause exists for the waiver.

(j) If a county assessor-collector is notified that the court having jurisdiction over the underlying offense has waived the past due fine or fee, including a reimbursement fee, due to the defendant's indigency, the county may not impose an additional reimbursement fee on the defendant under Subsection (f).

Transportation Code, Sec. 502.011. Refusal to Register Vehicle for Nonpayment of Toll or Administrative Fee.

(a) A county assessor-collector or the department may refuse to register or renew the registration of a motor vehicle if it has received written notice from a toll project entity that the owner of the vehicle has been finally determined to be a habitual violator under Subchapter C, Chapter 372.

(b) A toll project entity shall notify a county assessor-collector or the department, as applicable, that:

(1) a person for whom the assessor-collector or the department has refused to register a vehicle is no longer determined to be a habitual violator; or

(2) an appeal has been perfected and the appellant has posted any bond required to stay the toll project entity's exercise of habitual violator remedies pending the appeal.

(c) This section does not apply to the registration of a motor vehicle under Section 501.0234.

Transportation Code, Sec. 372.106. Habitual Violator.

(a) For purposes of this subchapter, a habitual violator is a registered owner of a vehicle who a toll project entity determines:

(1) was issued at least two written notices of nonpayment that contained:

(A) in the aggregate, 100 or more events of nonpayment within a period of one year, not including events of nonpayment for which:

(i) the registered owner has provided to the toll project entity information establishing that the vehicle was subject to a lease at the time of the nonpayment, as provided by applicable toll project entity law; or

(ii) a defense of theft at the time of the nonpayment has been established as provided by applicable toll project entity law; and

(B) a warning that the failure to pay the amounts specified in the notices may result in the toll project entity's exercise of habitual violator remedies; and

(2) has not paid in full the total amount due for tolls and administrative fees under those notices.

(b) If the toll project entity makes a determination under Subsection (a), the toll project entity shall give written notice to the person at:

(1) the person's address as shown in the vehicle registration records of the Texas Department of Motor Vehicles or the analogous agency of another state or country; or

(2) an alternate address provided by the person or derived through other reliable means.

(c) The notice must:

(1) be sent by first class mail and is presumed received on the fifth day after the date the notice is mailed; and

(2) state:

(A) the total number of events of nonpayment and the total amount due for tolls and administrative fees;

(B) the date of the determination under Subsection (a);

(C) the right of the person to request a hearing on the determination; and

(D) the procedure for requesting a hearing, including the period during which the request must be made.

(d) If not later than the 30th day after the date on which the person is presumed to have received the notice the toll project entity receives a written request for a hearing, a hearing shall be held as provided by Section 372.107.

(e) If the person does not request a hearing within the period provided by Subsection (d), the toll project entity's determination becomes final and not subject to appeal on the expiration of that period.

Transportation Code, Sec. 372.111. Denial of Motor Vehicle Registration.

After a final determination that the registered owner of a motor vehicle is a habitual violator, the toll project entity may report the determination to a county assessor-collector or the Texas Department of Motor Vehicles in order to cause the denial of vehicle registration as provided by Section 502.011.

Transportation Code, Sec. 702.003. Refusal to Register Vehicle.

(a) A county assessor-collector or the department may refuse to register a motor vehicle if the assessor-collector or the department receives under a contract information from a municipality that the owner of the vehicle has an outstanding warrant from that municipality for failure to appear or failure to pay a fine on a complaint that involves the violation of a traffic law.

(b) A municipality may contract with a county in which the municipality is located or the department to provide information to the county assessor-collector or department necessary to make a determination under Subsection (a).

(c) A municipality that has a contract under Subsection (b) shall notify the county assessor-collector or the department regarding a person for whom the county assessor-collector or the department has refused to register a motor vehicle on:

(1) entry of a judgment against the person and the person's payment to the court of the fine for the violation and of all court costs;

(2) perfection of an appeal of the case for which the arrest warrant was issued; or

(3) dismissal of the charge for which the arrest warrant was issued.

(d) After notice is received under Subsection (c), the county assessor-collector or the department may not refuse to register the motor vehicle under Subsection (a).

(e) A contract under Subsection (b) must be entered into in accordance with Chapter 791, Government Code, and is subject to the ability of the parties to provide or pay for the services required under the contract.

(e-1) A municipality that has a contract under Subsection (b) may impose an additional $20 reimbursement fee to a person who has an outstanding warrant from the municipality for failure to appear or failure to pay a fine on a complaint that involves the violation of a traffic law. The additional reimbursement fee may be used only to reimburse the department or the county assessor-collector for its expenses for providing services under the contract, or another county department for expenses related to services under the contract.

(f) This section does not apply to the registration of a motor vehicle under Section 501.0234.

These statutes allow a county tax assessor-collector's office the option to refuse to register a motor vehicle if it or the TxDMV receives information that:

- A county is owed a fine, fee, or tax past due that is unpaid 90 or more days after the date it is due.
- An owner has failed to appear in connection with a complaint, citation, information, or indictment in a court in the county in which a criminal proceeding is pending against the owner.
- An owner has 100 or more events of nonpayment within a period of one year to a toll project entity.
- A county tax assessor-collector's office cannot deny registration to an individual found to be indigent by a court with jurisdiction over the offense. A waiver provided by the court must be accepted as a type of discharge by a county tax assessor-collector as proof the fine or fee is resolved. A court must alert the county tax assessor collector that the motor vehicle registration may not be refused.
- A scofflaw for failure to appear for a fine or fee expires after the second anniversary of when the information was provided to the local county tax assessor-collector and may not be used to refuse registration after that date.

Note: Statute specifically refers to a county tax assessor-collector refusing to register a motor vehicle, if a scofflaw remark is on the record. This does not pertain to the issuance or renewal of disabled parking license plates or placards.

The $20 fee:

- only applies to counties and municipalities that have scofflaw related contracts with TxDMV under Transportation Code, Sec. 502.010 - the County Scofflaw Interlocal Agreement or Transportation Code, Sec. 702.003 - the City Scofflaw Interlocal Agreement.
- is only charged to customers who failed to appear in connection with a complaint, citation, information, or indictment in a court in the county or a municipality in which a criminal proceeding is pending against the vehicle owner.
  - the fee cannot be charged if the court or justice of the peace finds the defendant economically unable to pay the fee, good cause exists for the waiver, or the court informs the county tax assessor-collector that the past due fine or fees are waived.
- should not be collected in the Registration and Title System since it is not a registration or title fee.
- may be used to reimburse the county tax assessor-collector's office, another county department, or the TxDMV for expenses related to services under the scofflaw contract. While the TxDMV is cited in the statute, the TxDMV does not intend to seek any portion of the $20.

Flagging Motor Vehicle Record

The remark “COUNTY SCOFFLAW: [County Name]” and/or “CITY SCOFFLAW [CITY Name]” appears on the vehicle record and is printed on the owner's registration renewal notice. An owner whose registration renewal notice contains this remark must renew registration in person in the county tax assessor-collector's office.

The remark “TOLL SCOFFLAW: [Toll Entity Name]” appears on the vehicle record and is printed on the owner’s registration renewal notice. This remark is recorded on the record when the vehicle has been reported to TxDMV by a toll authority as having delinquent toll charges. An owner whose registration renewal notice contains this remark must renew registration in person in the county tax assessor-collector's office.

Clearing Motor Vehicle Record

A county tax assessor-collector’s office must notify the TxDMV when an owner has paid or has otherwise discharged a past due fine, fee, or tax or if the owner has perfected an appeal of the case contesting payment of the fine, fee, or tax. Once notification is received, the county tax assessor-collector’s office may not refuse the registration of the vehicle.

A municipality that has a contract must notify the TxDMV of a settlement. Once notification is received, the remark is removed from the vehicle record.

The TxDMV will remove the Toll Scofflaw remark once notified by the toll entity.

Transfer by Licensed Motor Vehicle Dealers

A county tax assessor-collector’s office may not use this statute as the basis for denying registration when the application for title is made on behalf of a buyer by a Texas licensed dealer.

Office of Attorney General (OAG) Child Support Scofflaw

Texas Family Code, Chapter 232 and Texas Administrative Code, Rule §217.30 requires the TxDMV to deny registration renewal and other registration related transactions for delinquent child support. The TxDMV will flag a motor vehicle record with a Child Support remark when the OAG provides the records to be flagged. The OAG also provides the records that should have the flag removed on a daily basis.

Vehicles that have joint ownership or that are leased will not be flagged. The remark will not be carried forward when a vehicle transfers ownership.

This Child Support remark is a hard stop for the following registration related transactions:

- Registration Renewal (POS, webSUB, and Online)
- Registration Correction
- Exchange
- Replacement
- Temporary Permits (POS and online)
- Temporary Registration Plates (POS)
- Non-Resident Ag. Permit (In-State and Out-of-State)
- Permanent Additional Weight (Voluntary and Apprehended)
- Temporary Additional Weight

If a record contains the Child Support remark, the system will not allow the transaction to be processed and an authorization code will not be accepted. The error message presented in all TxDMV systems refers all customers to the OAG. The OAG is the only department that can assist the customer regarding the remark on their record. The OAG can be reached at 866-646-5611 and its website contains information for counties and customers www.texasattorneygeneral.gov.

The registration renewal notice provides the Child Support remark on the front of the notice as it does other scofflaw remarks. Information is provided on the back of the renewal notice with the OAG contact information.

14.13 Military Service on Registration Requirements

Transportation Code, Sec. 502.090. Effect of Certain Military Service on Registration Requirement.

(a) This section applies only to a motor vehicle that is owned by a person who:

(1) is a resident of this state;

(2) is on active duty in the armed forces of the United States;

(3) is stationed in or has been assigned to another nation under military orders; and

(4) has registered the vehicle or been issued a license for the vehicle under the applicable status of forces agreement by:

(A) the appropriate branch of the armed forces of the United States; or

(B) the nation in which the person is stationed or to which the person has been assigned.

(b) Unless the registration or license issued for a vehicle described by Subsection (a) is suspended, canceled, or revoked by this state as provided by law:

(1) Section 502.040(a) does not apply; and

(2) the registration or license issued by the armed forces or host nation remains valid and the motor vehicle may be operated in this state under that registration or license for a period of not more than 90 days after the date on which the vehicle returns to this state.

14.14 Voluntary Disclosure of Military Status

Transportation Code, Sec. 502.013. Voluntary Disclosure of Military Status by Registration Applicant.

(a) When a person registers or renews the registration of a motor vehicle under this chapter, the department shall provide the person with the option to indicate whether the person is a member of the United States armed forces.

(b) If a person indicates under Subsection (a) that the person is a member of the United States armed forces, the department shall include the person's status as a member of the United States armed forces:

(1) in the department's vehicle registration records for the vehicle described by Subsection (a); and

(2) with any record information released by the department relating to the department's vehicle registration records for the vehicle described by Subsection (a), including a report issued by the department for the vehicle.

This law provides that when a person registers or renews their motor vehicle registration the person may voluntarily indicate they are a member of the U.S. Armed Forces. If the person voluntarily indicates they are a member they must also provide their status as a member of the U.S. Armed Forces.

A completed *Voluntary Disclosure of Military Status* (Form VTR-217) must be submitted when a person registers or renews their motor vehicle registration so that the person may voluntarily indicate they are a member of the U.S. Armed Forces.

14.15 Active Duty Military Personnel

Transportation Code, Sec. 502.457. Persons on Active Duty in Armed Forces of United States.

(a) This section applies only to a used motor vehicle that is owned by a person who:

(1) is on active duty in the armed forces of the United States;

(2) is stationed in or has been assigned to another nation under military orders; and

(3) has registered the vehicle or been issued a license for the vehicle under the applicable status of forces agreement by:

(A) the appropriate branch of the armed forces of the United States; or

(B) the nation in which the person is stationed or to which the person has been assigned.

(b) The requirement that a used vehicle be registered under the law of this state does not apply to a vehicle described by Subsection (a). In lieu of delivering the license receipt to the transferee of the vehicle, as required by Section 501.0721, the person selling, trading, or otherwise transferring a used motor vehicle described by Subsection (a) shall deliver to the transferee:

(1) a letter written on official letterhead by the owner's unit commander attesting to the registration of the vehicle under Subsection (a)(3); or

(2) the registration receipt issued by the appropriate branch of the armed forces or host nation.

(c) A registration receipt issued by a host nation that is not written in the English language must be accompanied by:

(1) a written translation of the registration receipt in English; and

(2) an affidavit, in English and signed by the person translating the registration receipt, attesting to the person's ability to translate the registration receipt into English.

This law provides that under specific circumstances, persons who are on active duty in the U.S. Armed Forces may apply for a Texas Certificate of Title without obtaining Texas registration (Title Only).

In addition to the negotiable evidence of ownership that must be surrendered in support of the Texas Certificate of Title, the applicant must meet the following requirements:

- be a Texas resident,
- be on active duty in the armed forces of the United States,
- be stationed in or be assigned to another nation under military orders,
- have registered the vehicle or been issued a license for the vehicle under the applicable status of forces agreement by the appropriate branch of the U.S. Armed Forces, or
- have registered the vehicle or been issued a license for the vehicle by the country in which the person is stationed.

The proof of the current registration must be submitted by either a:

- letter written on official letterhead by the owner's unit commander attesting to the registration of the vehicle (applicable status of forces agreement), or
- registration receipt issued by the appropriate branch of the armed forces or host nation.

A registration receipt not written in English must be accompanied by a written translation in English with a signed affidavit by the translator attesting to their ability to translate the receipt into English.

The registration or license issued by the armed forces or host nation remains valid and the motor vehicle may be operated for 90 days after the vehicle returns to Texas.

Proof of active duty and assignment to a Texas military base is required at the county tax assessor-collector's office.

Chapter 15

SIZE AND WEIGHT

This chapter contains the following sections:

- ***15.1*** Manufactured Housing
- ***15.2*** Determination of Weight
- ***15.3*** Definitions
- ***15.4*** Heavy Vehicles Registration Receipts
- ***15.5*** Other State Reciprocal Permits
- ***15.6*** Maximum Width
- ***15.7*** Additional Gross Weight Registration
- ***15.8*** Width Exceptions
- ***15.9*** Length Exceptions
- ***15.10*** Recreational Vehicle Width Limitations

15.1 Manufactured Housing

Transportation Code, Sec. 502.142. Manufactured Housing.

Manufactured housing, as defined by Section 1201.003, Occupations Code, is not a vehicle subject to this chapter.

Definitions

Manufactured housing which includes mobile homes which are eight feet or more in width, or 40 feet or more in length (not including the hitch) are not subject to the Registration or Certificate of Title Acts. Manufactured housing is under the authority of the Department of Licensing and Regulation.

Over Width/Over Length Permits

Manufactured housing does not require any type of registration to travel Texas highways. However, they may require oversize permits which may be obtained from the Motor Carrier Division.

15.2 Determination of Weight

Transportation Code, Sec. 502.055. Determination of Weight and Seating Capacity.

(a) The weight, net weight, or gross weight of a vehicle, as determined by the department, is the correct weight for registration purposes, regardless of any other purported weight of the vehicle.

(b) The department may require an applicant for registration under this chapter to provide the department with evidence of:

(1) the manufacturer's rated carrying capacity for the vehicle; or

(2) the gross vehicle weight rating.

(c) For the purposes of this section, the seating capacity of a bus is:

(1) the manufacturer's rated seating capacity, excluding the operator's seat; or

(2) if the manufacturer has not rated the vehicle for seating capacity, a number computed by allowing one passenger for each 16 inches of seating on the bus, excluding the operator's seat.

(d) For registration purposes:

(1) the weight of a passenger car is the shipping weight of the car plus 100 pounds; and

(2) the weight of a municipal bus or private bus is calculated by adding the following and rounding to the next highest 100 pounds:

(A) the shipping weight of the bus; and

(B) the seating capacity multiplied by 150 pounds.

15.3 Definitions

Transportation Code, Sec. 621.001. Definitions.

In this chapter:

(1) "Commercial motor vehicle" means a motor vehicle, other than a motorcycle, designed or used for:

(A) the transportation of property; or

(B) delivery purposes.

(2) "Commission" means the Texas Transportation Commission.

(3) "Department" means the Texas Department of Motor Vehicles.

(4) "Director" means:

(A) the executive director of the department; or

(B) an employee of the department who is:

(i) a division or special office director or holds a rank higher than division or special office director; and

(ii) designated by the executive director.

(5) "Motor vehicle" means a vehicle that is self-propelled.

(6) "Semitrailer" means a vehicle without motive power that is designed, or used with a motor vehicle, so that some of its weight and the weight of its load rests on or is carried by the motor vehicle.

(7) "Trailer" means a vehicle without motive power that is:

(A) designed or used to carry property or passengers on its own structure exclusively; and

(B) drawn by a motor vehicle.

(8) "Truck-tractor" means a motor vehicle designed or used primarily for drawing another vehicle:

(A) that is not constructed to carry a load other than a part of the weight of the vehicle and load being drawn; or

(B) that is engaged with a semitrailer in the transportation of automobiles or boats and that transports the automobiles or boats on part of the truck-tractor.

(9) "Vehicle" means a mechanical device, other than a device moved by human power or used exclusively upon stationary rails or tracks, in, on, or by which a person or property can be transported on a public highway. The term includes a motor vehicle, commercial motor vehicle, truck-tractor, trailer, or semitrailer but does not include manufactured housing as defined by Chapter 1201, Occupations Code.

(10) "Single axle weight" means the total weight transmitted to the road by all wheels whose centers may be included between two parallel transverse vertical planes 40 inches apart, extending across the full width of the vehicle.

(11) "Tandem axle weight" means the total weight transmitted to the road by two or more consecutive axles whose centers may be included between parallel transverse vertical planes spaced more than 40 inches and not more than 96 inches apart, extending across the full width of the vehicle.

(12) "Port of entry" means a place designated by executive order of the president of the United States, by order of the United States secretary of the treasury, or by act of the United States Congress at which a customs officer is authorized to accept entries of merchandise, collect duties, and enforce customs and navigation laws. The term includes a publicly owned or privately owned international port of entry between this state and the United Mexican States.

(13) "Board" means the board of the Texas Department of Motor Vehicles.

15.4 Heavy Vehicles Registration Receipts

Transportation Code, Sec. 621.002. Vehicle Registration Receipt for Certain Heavy Vehicles.

(a) A copy of the registration receipt issued under Section 502.057 for a commercial motor vehicle, truck-tractor, trailer, or semitrailer shall be:

(1) carried on the vehicle when the vehicle is on a public highway; and

(2) presented to an officer authorized to enforce this chapter on request of the officer.

(b) A copy of the registration receipt is:

(1) admissible in evidence in any cause in which the gross registered weight of the vehicle is an issue; and

(2) prima facie evidence of the gross weight for which the vehicle is registered.

15.5 Other State Reciprocal Permits

Transportation Code, Sec. 621.003. Reciprocal Agreement with Another State for Issuance of Permits.

(a) The board by rule may authorize the director to enter into with the proper authority of another state an agreement that authorizes:

(1) the authority of the other state to issue on behalf of the department to the owner or operator of a vehicle, or combination of vehicles, that exceeds the weight or size limits allowed by this state a permit that authorizes the operation or transportation on a highway in this state of the vehicle or combination of vehicles; and

(2) the department to issue on behalf of the authority of the other state to the owner or operator of a vehicle, or combination of vehicles, that exceeds the weight or size limits allowed by that state a permit that authorizes the operation or transportation on a highway of that state of the vehicle or combination of vehicles.

(b) A permit issued by the authority of another state under an agreement entered into under this section has the same validity in this state as a permit issued by the department.

(c) The holder of a permit issued by the authority of another state under an agreement entered into under this section is subject to all applicable laws of this state and rules of the department.

(d) The department may contract with a third party to act as the department's agent in the processing of a permit application and the distribution of permit issued by the department under this section.

(e) An agreement entered into under this section may provide for a third party to act as the agent of each state in the processing of a permit application and the distribution of a permit issued by a state under this section.

Regarding circus and carnival vehicles, the TxDMV grants no reciprocity to owners and operators of vehicles owned or used in connection with circus and carnival activities if the owners or operators of such vehicles are residents of this state. If the circus or carnival "winters" in Texas, consider them residents for registration purposes.

15.6 Maximum Width

Transportation Code, Sec. 621.201. Maximum Width.

(a) The total width of a vehicle operated on a public highway other than a vehicle to which Subsection (b) applies, including a load on the vehicle but excluding any safety device determined by the United States Department of Transportation or the Texas Department of Public Safety to be necessary for the safe and efficient operation of motor vehicles of that type, may not be greater than 102 inches.

(b) The total width of a passenger vehicle and its load may not be greater than eight feet. This subsection does not apply to a motor bus or trolley bus operated exclusively in the territory of a municipality, in suburbs contiguous to the municipality, or in the county in which the municipality is located.

(c) A passenger vehicle may not carry a load extending more than three inches beyond the left side line of its fenders or more than six inches beyond the right side line of its fenders.

15.7 Additional Gross Weight Registration

Transportation Code, Sec. 621.406. Additional Gross Weight Registration.

(a) If the gross weight of the motor vehicle is not heavier than the maximum gross weight allowed for the vehicle but is heavier than the registered gross weight for the vehicle, the weight enforcement officer shall require the operator or owner of the vehicle to apply to the nearest available county assessor-collector to increase the gross weight for which the vehicle is registered to a weight equal to or heavier than the gross weight of the vehicle before the operator or owner may proceed.

(b) The vehicle may not be operated further over the public highways or roads of the state until the registered gross weight of the vehicle has been increased as required by Subsection (a) unless the load consists of livestock or perishable merchandise, in which event the operator or owner may proceed with the vehicle in the direction of the vehicle's destination to the nearest practical location at which the vehicle's load can be protected from damage or destruction before increasing the registered weight.

(c) If an operator or owner is found to be carrying a load that is heavier than the load allowed for the registered gross weight of the vehicle, the operator or owner shall pay for the registration of the additional weight for the entire period for which the vehicle is registered without regard to whether the owner or operator has been carrying similar loads from the date of purchase of the vehicle's current license registration for that registration period.

A 10% registration emissions surcharge may apply for qualifying vehicles.

Out-of-state vehicles apprehended for weight violations are required to obtain an RPO. The county tax assessor-collector's office should collect additional fees for one year from the date of apprehension based on 100% Texas fees.

15.8 Width Exceptions

Transportation Code, Sec. 622.901. Width Exceptions.

(a) In this section, "farm tractor" and "implement of husbandry" have the meanings assigned by Section 541.201.

(b) The width limitation provided by Section 621.201 does not apply to:

(1) highway building or maintenance machinery that is traveling:

(A) during daylight on a public highway other than a highway that is part of the national system of interstate and defense highways; or

(B) for not more than 50 miles on a highway that is part of the national system of interstate and defense highways;

(2) a vehicle traveling during daylight on a public highway other than a highway that is part of the national system of interstate and defense highways or traveling for not more than 50 miles on a highway that is part of the national system of interstate and defense highways if the vehicle is:

(A) a farm tractor or implement of husbandry; or

(B) a vehicle on which a farm tractor or implement of husbandry, or equipment used in the harvesting and production of timber, other than a tractor, implement, or equipment being transported from one dealer to another, is being moved by the owner of the tractor, implement, or equipment or by an agent or employee of the owner:

(i) to deliver the tractor, implement, or equipment to a new owner;

(ii) to transport the tractor, implement, or equipment to or from a mechanic for maintenance or repair; or

(iii) in the course of an agricultural or forestry operation;

(3) machinery that is used solely for drilling water wells, including machinery that is a unit or a unit mounted on a conventional vehicle or chassis, and that is traveling:

(A) during daylight on a public highway other than a highway that is part of the national system of interstate and defense highways; or

(B) for not more than 50 miles on a highway that is part of the national system of interstate and defense highways;

(4) a vehicle owned or operated by a public, private, or volunteer fire department;

(5) a vehicle registered under Section 502.431; or

(6) a recreational vehicle to which Section 622.903 applies.

15.9 Length Exceptions

Transportation Code, Sec. 622.902. Length Exceptions.

The length limitations provided by Sections 621.203 to 621.205 do not apply to:

(1) machinery used exclusively for drilling water wells, including machinery that is itself a unit or that is a unit mounted on a conventional vehicle or chassis;

(2) a vehicle owned or operated by a public, private, or volunteer fire department;

(3) a vehicle or combination of vehicles operated exclusively in the territory of a municipality or to a combination of vehicles operated by a municipality in a suburb adjoining the municipality in which the municipality has been using the equipment or similar equipment in connection with an established service to the suburb;

(4) a truck-tractor, truck-tractor combination, or truck-trailer combination exclusively transporting machinery, materials, and equipment used in the construction, operation, and maintenance of facilities, including pipelines, that are used for the discovery, production, and processing of natural gas or petroleum;

(5) a drive-away saddlemount vehicle transporter combination or a drive-away saddlemount with fullmount vehicle transporter combination, as defined by Subsection 23 C.F.R. Part 658 or its successor, if:

(A) the overall length of the combination is not longer than 97 feet; and

(B) the combination does not have more than three saddlemounted vehicles if the combination does not include more than one fullmount vehicle;

(6) the combination of a tow truck and another vehicle or vehicle combination if:

(A) the other vehicle or vehicle combination cannot be normally or safely driven or was abandoned on a highway; and

(B) the tow truck is towing the other vehicle or vehicle combination directly to the nearest authorized place of repair, terminal, or destination of unloading; or

(7) a vehicle or combination of vehicles used to transport a harvest machine that is used in farm custom harvesting operations on a farm if the overall length of the vehicle or combination is not longer than:

(A) 75 feet if the vehicle is traveling on a highway that is part of the national system of interstate and defense highways or the federal aid primary highway system; or

(B) 81-1/2 feet if the vehicle is not traveling on a highway that is part of the national system of interstate and defense highways or the federal aid primary highway system.

15.10 Recreational Vehicle Width Limitations

Transportation Code, Sec. 622.903. Width Limitation on Certain Recreational Vehicles.

(a) In this section:

(1) "Appurtenance" includes an awning, a grab handle, lighting equipment, or a vent. The term does not include a load-carrying device.

(2) "Recreational vehicle" has the meaning assigned by Section 522.004.

(b) A recreational vehicle may exceed a width limitation established by Section 621.201 or 621.202 if the excess width is attributable to an appurtenance that extends six inches or less beyond a fender on one or both sides of the vehicle.

Note: Transportation Code, Sec. 522.004, reads in part: In this section, "recreational vehicle" means a motor vehicle primarily designed as temporary living quarters for recreational camping or travel use. The term includes a travel trailer, camping trailer, truck camper, and motor home.

Chapter 16

TEMPORARY PERMITS AND TEMPORARY REGISTRATION PLATES

This chapter contains the following sections:

- ***16.1*** Temporary 72-Hour or 144-Hour Permits
- ***16.2*** One-Trip or 30-Day Temporary Registration Plates
- ***16.3*** Nonresident-Owned Farm Transport Vehicles.
- ***16.4*** Vehicle Transit Permit - Private Party Sale
- ***16.5*** Temporary Permit (Lights Out)

A temporary permit (72-Hour, 144-Hour, One-Trip, or 30-Day) may not be issued to any vehicle that:

- Has been apprehended, or
- Is salvage or nonrepairable.

Note: A temporary 72-Hour or 144-Hour permit, or a One-Trip, or 30-Day Temporary Registration Plate may be issued to vehicles with "Title Only."

Payments for Texas temporary permits and Temporary Registration Plates must be made in the form of:

- a money order,
- certified check,
- escrow account,
- cash, or
- credit card, if applicable (a service charge for the credit card payment or escrow payment may be included).

Personal checks are not accepted for temporary permits or Temporary Registration Plates.

Note: As much as possible, temporary permits should be printed on plain paper and not VTR-500-RTS paper.

16.1 Temporary 72-Hour or 144-Hour Permits

See Table 16-1 for a combination truck 72/144-Hour Permit quick reference.

Transportation Code, Sec. 502.094. 72- or 144-Hour Permits.

(a) The department may issue a temporary registration permit in lieu of registration for a commercial motor vehicle, trailer, semitrailer, or motor bus that:

(1) is owned by a resident of the United States, Canada, or the United Mexican States;

(2) is subject to registration in this state; and

(3) is not authorized to travel on a public highway because of the lack of registration in this state or the lack of reciprocity with the state or province in which the vehicle is registered.

(b) A permit issued under this section is valid for the period stated on the permit, effective from the date and time shown on the receipt issued as evidence of registration under this section.

(c) A person may obtain a permit under this section by:

(1) applying to the county assessor-collector or the department;

(2) paying a fee of $25 for a 72-hour permit or $50 for a 144-hour permit in the manner prescribed by the department that may include a service charge for a credit card payment or escrow account;

(3) furnishing to the county assessor-collector or the department evidence of financial responsibility for the vehicle that complies with Sections 502.046(c) and 601.168(a); and

(4) submitting a copy of the applicable federal declaration form required by the Federal Motor Carrier Safety Administration or its successor in connection with the importation of a motor vehicle or motor vehicle equipment subject to the federal motor vehicle safety, bumper, and theft prevention standards.

(d) A county assessor-collector shall report and send a fee collected under this section in the manner provided by Section 502.198. The board by rule shall prescribe the format and content of a report required by this subsection.

(e) A vehicle issued a permit under this section is subject to Chapter 548, unless the vehicle:

(1) is registered in another state of the United States, or in a province of Canada, or in a state of the United Mexican States; or

(2) is mobile drilling or servicing equipment used in the production of gas, crude petroleum, or oil, including a mobile crane or hoisting equipment, mobile lift equipment, forklift, or tug.

(f) A commercial motor vehicle, trailer, semitrailer, or motor bus apprehended for violating a registration law of this state:

(1) may not be issued a permit under this section; and

(2) is immediately subject to registration in this state.

(g) A person who operates a commercial motor vehicle, trailer, or semitrailer with an expired permit issued under this section is considered to be operating an unregistered vehicle subject to each penalty prescribed by law.

(h) The department may establish one or more escrow accounts in the Texas Department of Motor Vehicles fund for the prepayment of a 72-hour permit or a 144-hour permit. Any fee established by the department for the administration of this subsection shall be administered as required by an agreement entered into by the department.

A temporary 72-Hour or 144-Hour Permit is recognized in lieu of registration. Such permits are issued for the movement of a commercial laden truck, truck-tractor, trailer, semitrailer, or a motor bus upon the highways of Texas. See Table 16-1 for a temporary permit quick reference.

Eligible Use

Temporary 72-Hour or 144-Hour Permits may only be issued to commercial vehicles and buses owned by residents of the United States, United Mexican States, or Canada. A valid USDOT number is required to obtain either a 72-Hour or 144-Hour Permit. Residents of any other foreign country are not eligible to obtain this type of temporary registration.

Nonresidents of Texas may use these permits to:

- Operate an unregistered commercial vehicle or bus in Texas.
- Engage in intrastate operations in Texas with out-of-state licensed commercial vehicles.

Texas residents may use these permits to operate:

- An unregistered commercial vehicle or bus in Texas.
- A Texas registered commercial vehicle with a heavier gross weight than registered. The heavier load may operate for only the period that the permit is valid unless the owner purchases additional permits.
- A vehicle registered with either Farm or Soil Conservation license plates when the vehicle is operating over the maximum weight allowed by law.

Note: Temporary 72-Hour or 144-Hour Permits issued by Texas are only valid in Texas.

72-Hour Permits and 144-Hour Permits may not be issued to:

- Any vehicle that is salvage or nonrepairable.
- Any vehicle that has been apprehended.
- Any vehicle that will solely be operated outside of Texas.

Weights

Vehicles operating with 72-Hour or 144-Hour Permits may operate at the maximum weight allowed under the Texas registration laws.

Fees and Purchasing Information

There is a fee of $25 per 72-Hour Permit and $50 per 144-Hour Permit. Proof of ownership is not a prerequisite to the issuance of a 72-Hour or 144-Hour Permit. Owners can purchase permits in advance of a proposed trip and several permits may be obtained at one time with the times of validity to run sequentially, having one permit become effective immediately upon the expiration of the preceding one.

Temporary 72-Hour or 144-Hour Permits are available at all county tax assessor-collector's offices, any TxDMV Regional Service Center and online at www.TxDMV.gov. Personal checks are not accepted. No refunds may be applied after the issuance of a timed permit.

Insurance Requirements

Applicants must present the same evidence of financial responsibility (insurance) as required for vehicle registration. An insurance company authorized to write insurance in Texas must provide the coverage. Insurance is not required for trailers and semitrailers. If the applicant is registered as a motor carrier with the TxDMV Motor Carrier Division, a registration listing is acceptable instead of proof of liability insurance.

Application

By signing in the space provided on the back of the receipt (VTR-500-RTS), and checking the appropriate box, the applicant certifies to be a resident of the U.S., United Mexican States, or Canada and that the vehicle was not apprehended for a registration violation, and the vehicle is not junked, salvage or nonrepairable. Owners or operators of vehicles apprehended for registration violations do not qualify for a 72-Hour or 144-Hour Permit. Such owners or operators must pay full registration and all applicable fees. The original copy of the receipt should be carried in the vehicle.

Vehicles Registered in Combination

When issuing 72-Hour or 144-Hour Permits to trucks or truck-tractors with a gross weight in excess of 10,000 lbs. and semitrailers with gross weights in excess of 6,000 lbs. and the combined gross weight is greater than 18,000 lbs., permits should be issued as follows:

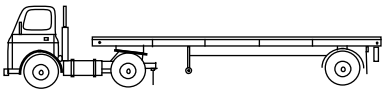
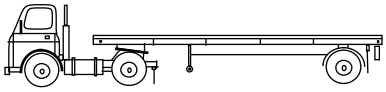
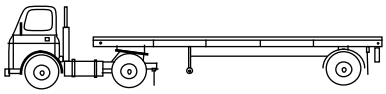
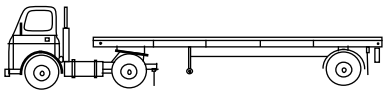
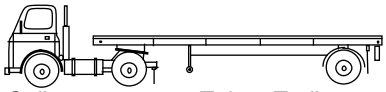
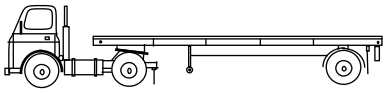
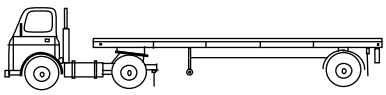
- A truck or truck-tractor displaying a 72-Hour or 144-Hour Permit may not pull a semitrailer displaying a Token Trailer license plate. Token Trailer license plates are valid only when displayed on semitrailers pulled by vehicles registered with Combination, Forestry, Apportioned, or Seasonal Permit license plates for the combined gross weight of all the vehicles used in the combination. Therefore, if a pulling unit displays a 72-Hour or 144-Hour Permit, each semitrailer operated in combination must also display a 72-Hour or 144-Hour Permit or trailer registration.
- If a truck or truck-tractor displaying a Combination license plate pulls a semitrailer displaying a 72-Hour or 144-Hour Permit, the pulling unit should be registered for the combined gross weight of all the vehicles in the combination. If the vehicle is not registered for a sufficient combined gross weight, the owner may increase the weight at the county tax assessor-collector's office, or may purchase a 72-Hour or 144-Hour Permit for the pulling unit. The permit qualifies the combination for the maximum gross weight permitted under the Texas registration laws.
- A vehicle displaying Truck license plates cannot legally pull a semitrailer displaying a Token Trailer license plate. The semitrailer would need to display a 72-Hour or 144-Hour Permit. This allows the owner to legally operate the combination without exchanging registration.
- An out-of-state licensed power unit can legally pull a semitrailer displaying a Texas Token Trailer license plate. The power unit must be registered for the combined gross weight of the truck or truck-tractor, semitrailer, and load. The out-of-state vehicle must display a 72-Hour or 144-Hour Permit on the pulling unit.

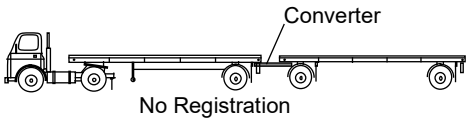
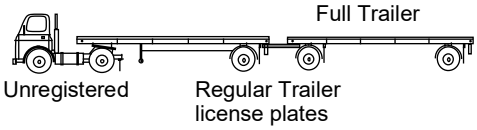
- An out-of-state power unit operating in Texas under the International Registration Plan (IRP) may operate interstate or intrastate in Texas while pulling a semitrailer displaying a Texas Token Trailer license plate or a Texas 72-Hour or 144-Hour Permit. The out-of-state power unit must be registered for the combined gross weight of the truck or truck-tractor, semitrailer, and load.

Combination Truck 72/144-Hour Permit Quick Reference

Table 16-1 lists various truck/trailer combinations and the appropriate way to issue 72/144-Hour Permits.

Table 16-1 Truck Combination 72/144-Hour Permit Quick Reference

Combination Type	Appropriate 72/144-Hour Permit
 No Registration	A commercial vehicle pulling a trailer or semitrailer is considered to be a combination of two vehicles and should be issued **two permits** when both are **unregistered**.
 Combination license plate Unregistered	A 72/144-Hour Permit should be issued for an unregistered trailer when being pulled by a commercial vehicle displaying a Combination license plate.
 Unregistered Regular Trailer license plates	A 72/144-Hour Permit should be issued for an unregistered commercial vehicle when pulling a trailer/semitrailer displaying regular Trailer license plates.
 Farm Truck Tractor Token Trailer	A commercial vehicle registered with Farm Truck-Tractor license plates cannot pull a trailer registered with Token Trailer license plates. The trailer would need to display a 72/144-Hour Permit.
 Soil Conservation Token Trailer	A commercial vehicle registered with Soil Conservation license plates may not pull a semi-trailer registered with Token Trailer license plates. The trailer would need to display 72/144-Hour Permit.
 Truck license plates Token Trailer or Unregistered	A commercial vehicle registered with Truck license plates may not pull a semitrailer registered with Token Trailer license plates. The trailer would have to display 72/144-Hour Permit.
 Farm Truck Tractor Farm Trailer	An owner may purchase a 72/144-Hour Permit when hauling a load of farm products in excess of 34,000 lbs. on a farm trailer.

Combination Type	Appropriate 72/144-Hour Permit
	Any commercial tractor pulling two semitrailers is considered to be a three-vehicle combination. Each vehicle must register with a separate 72/144-Hour Permit. Converter axles, jeep axles, and auxiliary axles are not required to register in Texas.
	An unregistered commercial vehicle operating with 72/144-Hour Permits may pull trailers or semitrailers registered with regular Trailer license plates.

16.2 One-Trip or 30-Day Temporary Registration Plates

Transportation Code, Sec. 502.095. One-Trip or 30-Day License Plates.

(a) The department may issue a temporary metal license plate in lieu of registration for a vehicle subject to registration in this state that is not authorized to travel on a public highway because of the lack of registration in this state or the lack of reciprocity with the state or country in which the vehicle is registered.

(b) A license plate issued under this section is valid for:

(1) one trip, as provided by Subsection (c); or

(2) 30 days, as provided by Subsection (d).

(c) A one-trip license plate is valid for one trip between the points of origin and destination and those intermediate points specified in the application and registration receipt. Unless the vehicle is a bus operating under charter that is not covered by a reciprocity agreement with the state or country in which the bus is registered, a one-trip permit is for the transit of the vehicle only, and the vehicle may not be used for the transportation of any passenger or property. A one-trip license plate may not be valid for longer than 15 days from the effective date of registration.

(d) A 30-day license plate may be issued only to a passenger vehicle, a private bus, a trailer or semitrailer with a gross weight of not more than 10,000 pounds, a light truck, or a light commercial vehicle with a gross vehicle weight of more than 10,000 pounds that will operate unladen. A person may obtain multiple 30-day permits. The department may issue a single registration receipt to apply to all of the periods for which the vehicle is registered.

(e) A person may obtain a license plate under this section by:

(1) applying as provided by the department to:

(A) the county assessor-collector of the county in which the vehicle will first be operated on a public highway; or

(B) the department in Austin or at one of the department's vehicle title and registration regional offices;

(2) paying a fee, in the manner prescribed by the department including a registration service charge for a credit card payment or escrow account of:

(A) $5 for a one-trip license plate; or

(B) $25 for each 30-day license plate; and

(3) furnishing evidence of financial responsibility for the vehicle in a form listed under Section 502.046(c).

(f) The department shall prepare the design and specifications of a license plate issued under this section. The license plate must contain all pertinent information required by this section and must be displayed as prescribed by department rule. The registration receipt must be carried in the vehicle at all times during the period in which it is valid.

(g) The department may refuse and may instruct a county assessor-collector to refuse to issue a license plate for any vehicle if, in the department's opinion, the vehicle or the owner of the vehicle has been involved in operations that constitute an abuse of the privilege granted by this section. A license plate issued after notice to a county assessor-collector under this subsection is void.

(h) A vehicle operated with a license plate under this section is exempt from the inspection requirements of Chapter 548.

Operation of One-Trip Temporary Registration Plate Vehicle: Offense

Transportation Code, Sec. 502.474. Operation of One-Trip Permit Vehicle.

A person commits an offense if the person operates a vehicle for which a one-trip permit is required without the registration receipt and properly displayed temporary tag.

One-Trip Temporary Registration Plates

A One-Trip Temporary Registration Plate is issued for the temporary movement of an **unladen** vehicle subject to the registration laws of this state. The permit is valid for a period of 15 days from the effective date.

Eligible Use

A One-Trip Temporary Registration Plate is valid for one trip only between the point of origin and the point of destination and the intermediate point as shown on the receipt. The operator must show an intermediate point for the purpose of establishing a definite route. The point of origin or the point of destination must be in the State of Texas.

One-Trip Temporary Registration Plate may be issued for:

- A bus for the transit of the vehicle only. The vehicle shall not at the time of transit be used for the transportation of property or passenger, unless it is operated for charter from another state.
- A charter bus from another state or country may carry property and passengers.
- A private bus carrying property and passengers.

- A commercial vehicle with a camper unit mounted thereon (regardless of whether or not the camper unit is of the permanent or slide-in type).
- A commercial vehicle that is not transporting any passengers or property. The vehicle must be empty.
- A passenger vehicle. The carrying of passengers and property is permitted.
- An unladen truck or truck-tractor operating in combination with an unladen trailer or semitrailer. If both vehicles are unregistered, two permits must be issued, one for each unit.
- A travel trailer. A house trailer-type vehicle that is 400 square feet or less measured at the largest horizontal projections.
- A motorcycle.

One-Trip Temporary Registration Plate may not be issued for:

- Manufactured housing.
- A charter bus based in Texas that is transporting passengers.
- A commercial vehicle that is transporting the owner's household goods.
- A boat trailer that is carrying a boat.
- A laden luggage trailer or laden utility trailer.
- A vehicle carrying a fixed load, regardless of whether the vehicle is conventional or unconventional.
- A vehicle that has been apprehended for operating unregistered.
- A junk, salvage, or nonrepairable vehicle.
- A trip that originates and terminates outside Texas.
- The movement of a laden commercial vehicle of any type, including luggage and utility trailers.

Fees and Purchasing Information

The fee for a One-Trip Temporary Registration Plate is $5, and the permit may be purchased before its effective date. Proof of ownership is not a requirement when purchasing a One-Trip Temporary Registration Plate. Temporary Registration Plates are available at all county tax assessor-collector’s offices or at any TxDMV Regional Service Center. Personal checks are not accepted. No refunds may be applied after the issuance of a Temporary Registration Plate.

Note: Additional time can be added to a temporary registration plate that is customer supplied; a new plate may not need to be issued.

Insurance Requirements

Applicants must present evidence of financial responsibility (insurance) as required for vehicle registration. Insurance is not required for trailers and semitrailers. An insurance company authorized to write insurance in Texas must provide the coverage.

Certification

By signing in the space provided on the back of the receipt (VTR-500-RTS) and checking the appropriate box, the applicant certifies that the vehicle will not operate in violation of the law, will not carry a load and the vehicle is not junked, salvage or non-repairable. Owners or operators of vehicles apprehended for registration violations do not qualify for One-Trip Permits.

Permit Display

The One-Trip Permit must be displayed in the rear window of the vehicle. If the vehicle does not have a rear window, the operator must attach the permit to the vehicle or carry the permit in the vehicle at all times during the period in which the permit is valid. The receipt must always be carried in the vehicle at all times during the period in which the permit is valid.

30-Day Temporary Registration Plate

30-Day Temporary Registration Plates are issued for the temporary movement of a qualifying, non-commercial, or light commercial vehicle subject to Texas registration laws. The 30-Day Temporary Registration Plate is valid for a period of 30 calendar days from the effective date.

Eligible Use

The Temporary Registration Plate is available for:

- passenger vehicles;
- motorcycles;
- private buses;
- trailers and semitrailers with a gross weight not exceeding 10,000 lbs.;
- trucks and commercial vehicles not exceeding a gross vehicle weight of 10,000 lbs.; and
- trucks and commercial vehicles exceeding a gross weight of 10,000 lbs. that are operating unladen.

Note: A VIN is required in order to issue a 30-Day Temporary Registration Plate.

30-Day Temporary Registration Plate may not be issued to:

- A vehicle that will not be operated in Texas.
- A salvage or nonrepairable vehicle.

Fees and Purchasing Information

The fee for a 30-Day Temporary Registration Plate is $25, and the permit may be purchased up to 60 calendar days before its effective date. Proof of ownership is not a requirement when purchasing a 30-Day Temporary Registration Plate. The applicant may purchase the permit at any county tax assessor-collector's office or at any TxDMV Regional Service Center. Personal checks are not accepted. No refunds may be applied after the issuance of a Temporary Registration Plate.

Insurance Requirements

Applicants must present the same evidence of financial responsibility (insurance) as required for vehicle registration. The vehicle should be insured for the duration of the permit; however, this requirement can be waived at the discretion of the Tax Assessor Collector. Insurance is not required for trailers and semitrailers. An insurance company authorized to write insurance in Texas must provide the coverage.

Application

The *Application for Timed Temporary Permits* (Form VTR-66) must be completed to obtain a 30-Day Permit. The following items must accompany a completed Form VTR-66 application:

- Proof of insurance
- Current government-issued photo identification

Note: A Power of Attorney (POA) is required if the application is being submitted by anybody other than the applicant listed on the Form VTR-66, a dealer, or a leasing company.

Temporary Registration Plate Display

The temporary registration plate must be displayed on the rear of the vehicle. The receipt must be carried in the vehicle at all times during the period in which the temporary registration plate is valid.

Issuance of Additional 30-Day Temporary Registration Plates

To prevent abuse or misuse of 30-Day Temporary Registration Plates, county tax assessor-collector's offices and Regional Service Centers should require further information from a customer who requests a subsequent 30-Day Temporary Registration Plate. The customer should be questioned to determine the need for an additional Temporary Registration. Customer circumstances vary, but the following are a few examples of reasons a customer may be issued additional Temporary Registration:

- Dealership closures/bankruptcy
- Heirship issues or disputes
- Probate issues or disputes

If the county tax assessor-collector's office or Regional Service Center has reason to believe the customer is avoiding the requirement to title and register the vehicle, the county tax assessor-collector's office or Regional Service Center has the authority to deny issuance of a 30-Day Temporary Registration Plate. Transportation Code, Sec. 502.095(g), provides the TxDMV or county tax assessor-collector's office the authority to deny issuance of 30-Day Temporary Registration Plate due to abuse of the privilege of this statute.

Transportation Code specifying the title and registration requirements include:

- Sec. 501.022, requires the owner of a motor vehicle registered in this state to apply for title to the vehicle, and that the vehicle may not be operated on the public highway until the owner applies for title and registration or registration purposes only.

- Sec. 502.040, requires that not more than 30 days after purchasing a vehicle or becoming a resident of this state, the owner of the vehicle must apply for registration if the vehicle is used or to be used on a public highway.

Note: Additional time can be added to a temporary registration plate that is customer supplied; a new plate may not need to be issued.

16.3 Nonresident-Owned Farm Transport Vehicles.

Nonresident Agricultural Permit - Texas Products

Temporary nonresident registration may be issued for the movement of farm products (wheat, oats, rye, barley, grain sorghums, flax, rice, cotton, vegetables in bulk, field crates, or bags) and all other agricultural products produced in Texas. The permit may also be used in the movement of machinery such as combines and implements of husbandry used to harvest such commodities.

The permit is valid for the movement from the Texas place of production of such farm products to market, storage, or railhead provided such destination is not more than 75 miles from the place of production.

The permit must be issued for sufficient weight to transport the heaviest gross load to be transported during the permit's validity by the nonresident.

Not more than three temporary registration permits may be issued to a nonresident owner during a registration year. To operate a commercial vehicle in Texas after the expiration of the third permit, the operator must obtain a temporary 72/144-Hour Permit.

- The Temporary Nonresident Registration Permit is valid for a 30-Day period inclusive of the date of issuance.
- Do not issue permits to vehicles apprehended for registration violations.
- The applicant should complete the *Application for Movement of Agricultural Products by a Nonresident* (Form VTR-52-B) prior to the issuance of the permit. Only one copy of the form is required, and the issuing county tax assessor-collector’s office retains the copy.
- Each vehicle in a combination must be issued a separate permit. The permit fee is based on the gross weight of the vehicle. Issue the permit for sufficient weight to transport the heaviest gross load hauled during the permit's validity.
- The fee is calculated by taking 1/12th of the applicable annual registration fee.
- The 11% Diesel Fee must be collected for trucks or truck-tractors that have a gross vehicle weight exceeding 18,000 lbs.
- The registration permit receipt contains a system generated permit number and a pre-printed message instructing the applicant the receipt must be carried in the vehicle.
- Proof of insurance is required prior to the issuance of this permit.
- Proof of issuance of a Texas Safety Inspection is not a prerequisite to the issuance of this permit.

Nonresidents Agricultural Permit - Out-of-State Products

Temporary nonresident registration may be issued for the movement of farm products produced outside of Texas but marketed or processed in Texas or moved to points in Texas for shipment. The permit is valid for not more than 80 miles from the point of entry into the State of Texas.

The vehicle for which this permit is issued must be legally registered in the nonresident owner's home state for the current registration year. The owner's home state registration must remain valid for the period of time that the Texas temporary registration permit is valid.

No more than three temporary registration permits may be issued to a nonresident owner during a registration year. To operate a commercial vehicle in Texas after the expiration of the third permit, the nonresident must register the vehicle with regular Texas license plates or a temporary 72-Hour or 144-Hour Permit. The vehicles cannot qualify for Farm Truck license plates.

- The Nonresident Registration Permit is valid for a 30-Day period, inclusive of the date of issuance.
- Do not issue permits to vehicles apprehended for registration violations.
- The applicant should complete the *Application for Movement of Agricultural Products by a Nonresident* (Form VTR-52-B), prior to the issuance of the permit. Use only one copy of the form and retain the copy in the issuing office.
- Each vehicle in a combination must be issued a separate permit. The permit fee is based on the gross weight of the vehicle. Issue the permit for sufficient weight to transport the heaviest gross load hauled during the permits validity.
- The fee is calculated by taking 1/12th of the applicable annual registration fee.
- Collect the 11% Diesel Fee for diesel trucks or truck-tractors that have a gross vehicle weight exceeding 18,000 lbs.
- The registration permit receipt contains a system generated permit number and a pre-printed message instructing the applicant the receipt must be carried in the vehicle.
- Proof of insurance is required prior to the issuance of this permit.

16.4 Vehicle Transit Permit - Private Party Sale

Transportation Code, Sec. 502.492. Temporary Transit Permit for a Vehicle Purchased.

(a) A purchaser may obtain from the department a temporary transit permit to operate a motor vehicle:

(1) that is subject to registration in this state;

(2) from which the license plates and the registration insignia have been removed as authorized by Section 502.491 or 504.901; and

(3) that is not authorized to travel on a public roadway because the required license plates and the registration insignia are not attached to the vehicle.

(b) The department may issue the permit in accordance with this section.

(c) A permit issued under this section is valid for one trip between the point of origin and the destination and those intermediate points specified in the permit.

(d) A permit issued under this section may not be valid for longer than a five-day period.

(e) A person may obtain a permit under this section by applying, as provided by the department, to the department. Application may be made using the department's Internet website.

(f) A person is eligible to receive only one permit under this section for a motor vehicle.

(g) A permit receipt issued under this section must be in a manner provided by the department. The receipt must contain the information required by this section and shall be carried in the vehicle at all times during which it is valid.

(h) The department may refuse to issue a permit under this section for any vehicle if in the department's opinion the applicant has been involved in operations that constitute an abuse of the privilege granted under this section.

If a car or truck is sold and the seller keeps the Texas license plates, the buyer may print a Vehicle Transit Permit to legally drive the vehicle home or to the county tax assessor-collector's office. A Vehicle Transit Permit is valid for five calendar days and only for one trip between the point of origin and the destination and any intermediate points specified in the permit. Only one Vehicle Transit Permit may be issued.

Eligible Use

The Vehicle Transit Permit may only be used on passenger vehicles 6,000 lbs. or less and light trucks with a gross vehicle weight of 10,000 lbs. or less, and only one permit may be issued per vehicle.

If traveling outside Texas, verify that the permit is valid for operation in the jurisdiction(s) being traveled.

A Vehicle Transit Permit may not be issued to any salvage or nonrepairable vehicle.

Fees and How to Obtain

There is no fee for a Vehicle Transit Permit. Vehicle buyers may obtain a Vehicle Transit Permit by visiting the TxDMV's website at www.TxDMV.gov. A VIN is required to complete the online application. License plates may be obtained at the county tax assessor-collector's office when the vehicle is titled and registered.

Insurance Requirements

Applicants must present the same evidence of financial responsibility (insurance) as required for vehicle registration. An insurance company authorized to write insurance in Texas must provide the coverage.

Permit Display

The Vehicle Transit Permit receipt must be carried in the vehicle at all times during the period in which the permit is valid.

16.5 Temporary Permit (Lights Out)

A Temporary Permit (VTR-24-SP) may be issued at no charge, in the event a sticker cannot be printed through the system, due to power failure or equipment failure. The permit will be valid for 15 working days from the date of issuance. A Temporary Permit will only be issued when the customer provides a renewal and is intended for use only by the county tax assessor-collector's office.

Chapter 17

TRANSFER OF REGISTRATION WHEN APPLYING FOR TITLE

This chapter contains the following sections:

- ***17.1*** Notice of Sale or Transfer
- ***17.2*** Dealer Sales
- ***17.3*** Invalidation of Registration
- ***17.4*** Delivery of Receipt and Title to Transferee
- ***17.5*** Plate to Owner Transactions
- ***17.6*** Transfer of Used Vehicle

17.1 Notice of Sale or Transfer

Transportation Code, Sec. 503.005. Notice of Sale or Transfer.

(a) A manufacturer or dealer shall immediately notify the department if the manufacturer or dealer transfers, including by sale or lease, a motor vehicle, trailer, or semitrailer to a person other than a manufacturer or dealer.

(b) The notice must be in writing using the form provided by the department and must include:

(1) the date of the transfer;

(2) the names and addresses of the transferrer and transferee; and

(3) a description of the vehicle.

(c) A dealer who submits information to the database under Section 503.0631 satisfies the requirement for the dealer to notify the department of the sale or transfer of a motor vehicle, trailer, or semitrailer under this section.

(d) The notice required under this section is in addition to the application for vehicle registration and certificate of title a dealer is required to submit under Section 501.0234.

17.2 Dealer Sales

Upon the sale of a motor vehicle by a licensed Texas motor vehicle dealer, the selling dealer must complete and file all documents necessary to transfer title to the motor vehicle and/or register the vehicle in the name of the buyer. The dealer must collect and remit any applicable sales tax, title, and registration fees to the local county tax assessor-collector's office where purchased, encumbered, or the buyer (owner) resides or any county willing to accept the application.

The dealer is required to file the paperwork with any county tax assessor-collector's office within 30 days from the date of sale. A $10 late transfer penalty is charged for failure to meet this requirement (Transportation Code, Sec. 501.145 and Sec. 501.146).

Seller-financed transactions by dealers have 45 calendar days from the date of delivery (date of title assignment) of the vehicle to the buyer to apply for title before penalty fees are imposed.

Transportation Code, Sec. 503.063. DEALER-ISSUED LICENSE PLATES FOR BUYER.

(a) Except as provided by this section, a dealer shall issue to a person who buys a vehicle:

(1) a license plate or set of license plates, if a license plate is required by law to be displayed on the vehicle; and

(2) a completed and signed form required by, as applicable, Section 503.0631(c) or (d).

(b) A license plate or set of license plates issued under this section is valid for the operation of the vehicle while the registration application submitted by the dealer on behalf of the buyer under Section 501.0234 is pending.

(c) Except as otherwise provided by this subsection, at the time of issuance of a license plate or set of license plates under this section, the dealer is responsible for displaying the license plate or set of license plates in compliance with department rules. If a vehicle is a passenger car or light truck that is not equipped by the manufacturer with an exterior front feature to which a license plate may be fastened without drilling through the exterior of the vehicle, the dealer shall affix the rear license plate in compliance with department rules and provide the unmounted remaining license plate to the vehicle buyer.

(d) The dealer is responsible for the safekeeping and distribution of each license plate or set of license plates the dealer obtains from the department. The dealer is liable for missing or misused license plates. The department may conduct a review of a dealer's compliance with this subsection.

(e) A dealer shall obtain license plates and sets of license plates from the department in the manner provided by department rules.

(f) The department shall ensure that a dealer may obtain in advance a sufficient amount of license plates or sets of license plates in order to continue selling vehicles without an unreasonable disruption of business due to the unavailability of license plates. The department shall establish an expedited procedure to allow a dealer to obtain additional license plates or sets of license plates so the dealer may remain in business.

(g) For each license plate or set of license plates issued to a buyer under this section, the dealer shall charge the buyer a registration fee prescribed by the department to be sent to the comptroller for deposit to the credit of the Texas Department of Motor Vehicles fund.

(h) A federal, state, or local governmental agency that is exempt under Section 503.024 from the requirement to obtain a dealer general distinguishing number may issue one license plate or set of license plates in accordance with this section for a vehicle sold or otherwise disposed of by the governmental agency under Chapter 2175, Government Code, or other law that authorizes the governmental agency to sell or otherwise dispose of the vehicle. A governmental agency that issues a license plate or set of license plates under this subsection:

(1) is subject to the provisions of Section 503.0631 applicable to a dealer; and

(2) is not required to charge the registration fee under Subsection (g).

(i) A vehicle may be issued and display a temporary license plate under this section without satisfying the inspection requirements of Chapter 548 if:

(1) the buyer of the vehicle is not a resident of this state; and

(2) the vehicle:

(A) at the time of purchase, is not located or required to be titled or registered in this state;

(B) will be titled and registered in accordance with the laws of the buyer's state of residence; and

(C) will be inspected in accordance with the laws of the buyer's state of residence, if the laws of that state require inspection.

(i) A temporary license plate issued to a vehicle described by Subsection (i) is valid for 60 days.

(j) A vehicle may be issued and display a license plate or set of license plates under this section without satisfying the inspection requirements of Chapter 548 if the vehicle is purchased at public auction in this state and is:

(1) an antique vehicle as defined by Section 683.077(b); or

(2) a special interest vehicle as defined by Section 683.077(b) that:

(A) is at least 12 years of age; and

(B) has been the subject of a retail sale.

(k) A dealer may not issue a license plate or set of license plates for a vehicle that is exempt from the payment of registration fees under Subchapter J, Chapter 502, until the department approves the application for registration of the vehicle.

A Texas dealer must issue a $10 license plate for all retail vehicle sales unless the vehicle is exempt from payment of registration fees under Transportation Code, §502.453 or §502.456. The license plate may only be displayed on vehicles that have a valid commercial and/or emissions inspection (if applicable), unless the vehicle is exempt from inspection requirements. For a list of vehicles exempt from commercial and/or emissions inspection requirements, refer to Chapter 22, "Inspection Verification".

Dealers will issue metal plates at the time of the sale. In most cases, general issue license plates will be issued and registered in the name of the buyer. The black and white general issue license plate replaces the previous buyer tag.

The following temporary license plates will be issued by the dealer when they do not have the appropriate license plate in their inventory or for out of state sales.

Note: A dealer is allowed to apply for title only on behalf of a retail purchaser if the vehicle will not be operated on the roads; however, this should not happen regularly.

17.3 Invalidation of Registration

Current registration will be invalidated at the time a vehicle is traded in to a Texas dealer and subsequently sold to a new owner. Removal of the license plates are for passenger vehicles and light trucks only. If obtaining registration for a retail purchaser, the dealer is required to collect registration fees for a minimum of 12 months (except for registrations with fixed expiration months, which may be less than 12 months) at the time of application for Texas title.

The proper calculation of registration fees will be based on the following criteria:

- Title Transaction Date, and
- Dealer General Distinguishing Number (GDN).

The Dealer Number field should:

- Contain only complete Texas motor vehicle dealer GDNs, including any leading "P," and, in the case of a trailer dealer, trailing "X."
- NOT contain a salvage dealer GDN, out-of-state dealer GDN, or any non-alphanumeric characters such as asterisks or dashes.

In a private party sale, a vehicle owner may remove the license plates and registration sticker. Any remaining registration stays with the vehicle, regardless of whether the license plates and registration sticker are removed.

17.4 Delivery of Receipt and Title to Transferee

Transportation Code, Sec. 501.0721. Delivery of Receipt and Title to Purchaser of Used Motor Vehicle.

A person, whether acting for that person or another, who sells, trades, or otherwise transfers a used motor vehicle shall deliver to the purchaser at the time of delivery of the vehicle a properly assigned title or other evidence of title as required under this chapter.

Used Vehicles

When a used vehicle is transferred, the seller must furnish the purchaser with a properly assigned certificate of title and an *Application for Texas Title and/or Registration* (Form 130-U).

Registration fees for an unregistered used vehicle are collected for a new 12 month period inclusive of the month of issuance.

A motor vehicle may be titled without being registered. For more information, refer to the Title Manual.

17.5 Plate to Owner Transactions

Transportation Code, Sec. 502.491. Transfer of Vehicle Registration.

(a) On the sale or transfer of a vehicle, the registration insignia issued for the vehicle shall be removed. The registration period remaining at the time of sale or transfer expires at the time of sale or transfer.

(b) On a sale or transfer of a vehicle in which neither party holds a general distinguishing number issued under Chapter 503, the part of the registration period remaining at the time of the sale or transfer shall continue with the vehicle being sold or transferred and does not transfer with the license plates or registration validation insignia. To continue the remainder of the registration period, the purchaser or transferee must file the documents required under Section 501.145.

(c) On the sale or transfer of a vehicle to a dealer, as defined by Section 503.001, who holds a general distinguishing number issued under Chapter 503, the registration period remaining at the time of the sale or transfer expires at the time of the sale or transfer. On the sale of a used vehicle by a dealer, the dealer shall issue to the buyer new registration documents for an entire registration year.

(d) If the transferor has paid for more than one year of registration, the department may credit the transferor for any time remaining on the registration in annual increments.

Transportation Code, Sec. 504.901. REMOVAL AND TRANSFER OF LICENSE PLATES.

(a) On the sale or transfer of a motor vehicle to a dealer who holds a general distinguishing number issued under Chapter 503, the dealer shall remove each license plate issued for the motor vehicle. The dealer shall transfer each removed license plate to a motor vehicle if that motor vehicle is purchased from the dealer and the license plates are appropriate for the class of vehicle to which the plates are being transferred.

(b) On the sale or transfer of a motor vehicle to a person who does not hold a general distinguishing number issued under Chapter 503, the seller shall remove each license plate issued for the motor vehicle. The removed license plates may be transferred to another vehicle titled in the seller's name if the license plates are appropriate for the class of vehicle to which the plates are being transferred and the seller obtains:

(1) the department's approval of an application to transfer the license plates; and

(2) a new registration insignia for the motor vehicle.

(c) A license plate removed from a motor vehicle that is not transferred to another motor vehicle must be disposed of in a manner prescribed by the department not later than the 10th day after the date the license plate is removed from the motor vehicle.

Licensed dealers are required to remove the general issue license plates and registration sticker from a passenger car (6,000 lbs. or less) or light truck (10,000 lbs. or less) sold, traded, or transferred to the dealer. There are three options for license plate disposition:

- The owner may transfer the license plates to a vehicle to be purchased, if the classification is the same.
- The dealer shall transfer each removed license plate to a motor vehicle if that motor vehicle is purchased from the dealer and the license plates are appropriate for the class of vehicle to which the plates are being transferred.
- If the license plates are not transferred or kept by the owner, they must be disposed of by defacing the front of the license plates, either with indelible black ink or use another method to prevent fraudulent use not later than the 10th day after the date the license plate is removed from the motor vehicle.

Note: When a dealer assigns a general issue plate that the customer wanted to retain and transfer in ePLATE, RTS will carry forward the license plate information. Plate to Owner Transfer will automatically be checked on the Title Additional Info TTL008 screen

In private party sales,.the seller shall remove each license plate issued for the motor vehicle. The license plates may be transferred to another vehicle titled in the seller 's name if the license plates are appropriate for the class of vehicle to which the plates are being transferred and the seller obtains:

- the department 's approval of an application to transfer the license plates; and
- a new registration insignia for the motor vehicle.

There is no fee to transfer a license plate.

Note: License plates removed from a motor vehicle that are not transferred to another motor vehicle must be disposed of in a manner prescribed by the department not later than the 10th day after the date the license plate is removed from the motor vehicle.

Note: When a dealer assigns a general issue plate that the customer wanted to retain and transfer in ePLATE, RTS will carry forward the license plate information. Plate to Owner Transfer will automatically be checked on the Title Additional Info TTL008 screen.

Transfer Eligibility

Eligibility for the license plate transfer must be determined before processing in the system. Owners may transfer license plates on passenger cars with a gross vehicle weight less than or equal to 6,000 lbs. and trucks with a gross vehicle weight less than or equal to 10,000 lbs.

If the owner wants to transfer eligible license plates, the transfer should be allowed as long as the county tax assessor-collector's office can confirm the name on the vehicle record matches the name of the individual requesting to transfer the license plates. If the vehicle record has already changed, transfer may still be allowed if the individual can provide a prior registration receipt in his/her name.

Note the following:

- On private party sales, registration remains with the vehicle from which the license plates were removed.
- All other fees are due and should be collected.
- A Replacement Fee is charged if new license plates and registration sticker are issued.

Example Scenarios

The following are Plate to Owner scenarios that may be encountered.

Title Transfer with License Plates

An individual purchases a vehicle from a dealer or another individual. There are no license plates on the vehicle but the individual has a set of license plates they want to transfer.

Verify the license plate ownership:

- Through the system (no fee inquiry), or
- Registration renewal receipt in the customer's name.

Process the title transfer as usual and remember to:

- Check the Plate to Owner Transfer check box, and
- Enter license plate number being transferred.

Exchange License Plates to a Vehicle Already Titled in Owner's Name

An individual wants to transfer license plates removed from a vehicle (sold previously) to another vehicle titled in their name (exchange).

Process the exchange as usual (if the vehicle is currently registered), remember to:

- Check the Plate to Owner Transfer check box, and
- Enter license plate number being transferred.

Note: To transfer license plates to an unregistered vehicle already titled in the owner's name, go to the registration renewal event to process.

Table 17-1 Plate to Owner Transfer Guidelines

Vehicle Type	General Issue License Plates	Specialty License Plate	Disabled Veteran License Plates	Disabled Person License Plates
Passenger Car	GVW up to 6,000 lbs.	As Allowed*	GVW up to 18,000 lbs.	GVW up to 18,000 lbs.
Motor Home	Not applicable	As Allowed*	Allowed	GVW up to 18,000 lbs.
Truck	GVW up to 6,000 lbs.	As Allowed*	GVW up to 18,000 lbs.	GVW up to 18,000 lbs.
Trailer or Travel Trailer	Not allowed	As Allowed*	Not applicable	Not applicable
Motorcycle or Moped	Not allowed	As Allowed*	GVW up to 18,000 lbs.	GVW up to 18,000 lbs.

*Antique, Classic, Custom Vehicle. Forestry, Log Loader, and Street Rod plates may NOT be transferred.

17.6 Transfer of Used Vehicle

Transportation Code, Sec. 501.147. Vehicle Transfer Notification.

(a) On receipt of a written notice of transfer from the seller of a motor vehicle or a dealer who holds a general distinguishing number issued under Chapter 503, the department shall indicate the transfer on the motor vehicle records maintained by the department. As an alternative to a written notice of transfer, the department shall establish procedures that permit the seller of a motor vehicle or a dealer who holds a general distinguishing number issued under Chapter 503 to electronically submit a notice of transfer to the department through the department's Internet website. A notice of transfer provided through the department's Internet website is not required to bear the signature of the seller or include the date of signing.

(a-1) On the sale or transfer of a motor vehicle to a dealer who holds a general distinguishing number issued under Chapter 503, the dealer shall submit the notice of transfer under Subsection (a).

(b) The notice of transfer shall be provided by the department and must include a place for the seller to state:

(1) a complete description of the vehicle as prescribed by the department;

(2) the full name, address and telephone number of the seller;

(3) the full name, address and telephone number of the purchaser;

(4) the date the seller delivered possession of the vehicle to the purchaser;

(5) the signature of the seller; and

(6) the date the seller signed the form.

(c) This subsection applies only if the department receives notice under Subsection (a) that includes the full name, address, and telephone number of the purchaser before the 30th day after the date the seller delivered possession of the vehicle to the purchaser or in accordance with Section 152.069, Tax Code. After the date of the transfer of the vehicle shown on the records of the department, the purchaser of the vehicle shown on the records is rebuttably presumed to be:

(1) the owner of the vehicle; and

(2) subject to civil and criminal liability arising out of the use, operation, or abandonment of the vehicle, to the extent that ownership of the vehicle subjects the owner of the vehicle to criminal or civil liability under another provision of law.

(d) The department may adopt rules to implement this section.

(e) This section does not impose or establish civil or criminal liability on the owner of a motor vehicle who transfers ownership of the vehicle but does not disclose the transfer to the department.

(f) The department may not issue a title or register the vehicle until the purchaser applies for a title to the county assessor-collector as provided by this chapter.

(g) A transferor who files the appropriate form with the department as provided by, and in accordance with, this section, whether that form is a part of a title or a form otherwise promulgated by the department to comply with the terms of this section, has no vicarious civil or criminal liability arising out of the use, operation, or abandonment of the vehicle by another person. Proof by the transferor that the transferor filed a form under this section is a complete defense to an action brought against the transferor for an act or omission, civil or criminal, arising out of the use, operation, or abandonment of the vehicle by another person after the transferor filed the form. A copy of the form filed under this section is proof of the filing of the form.

Sale of Vehicle

When a vehicle is sold or transferred, the recorded owner(s) shown on the certificate of title should notify the TxDMV of the sale.

The notice must be received within 30 days of the date of sale for the buyer to be presumed as the owner for liability purposes. If received later than 30 days after the date of sale, the notification will be accepted and the sale date will be recorded.

Forms submitted to the department for vehicles sold September 1, 2023 or later, must include the buyer's full name, address, and telephone number. If this information is not provided, the department will not be able to accept the form or mark the record to indicate the transfer.

The owner may submit notice by using any of the following methods:

- File the Vehicle Transfer Notification (VTN) online through the TxDMV's web site (www.TxDMV.gov).
- Complete and mail a *Texas Motor Vehicle Transfer Notification* (Form VTR-346) to the following address:

  Texas Department of Motor Vehicles
  Vehicle Titles and Registration Division
  P.O. Box 26417
  Austin, Texas 78755-0417
- Complete and submit to a TxDMV Regional Service Center, the Form VTR-346.
- A written request that includes all of the information required on Form VTR-346 may be submitted in lieu of the form.

Note: All requested information must be complete. The date of sale of the vehicle cannot be prior to the issue date on the existing title.

When a Texas titled vehicle is sold or transferred to a Texas dealer the purchasing dealer is required to notify the department of the sale by completing the Texas Motor Vehicle Transfer Notification electronically in ePLATE.

Note: If the purchasing dealer is unable to submit the Texas Motor Vehicle Transfer Notification in ePLATE the dealer should submit the notification by mail or in person to a TxDMV Regional Service Center.

Upon receipt of the notification, the vehicle record is updated with the date of transfer and the notation “Vehicle Transferred.”

The motor vehicle title record remains in the name of the last recorded owner(s) until the buyer files a new application for title and a new certificate of title is issued.

Chapter 18

SPECIALTY AND PERSONALIZED PLATES

This chapter contains the following sections:

- ***18.1*** Specialty License Plates
- ***18.2*** Personalized License Plates
- ***18.3*** Souvenir License Plates

18.1 Specialty License Plates

General Provisions

Transportation Code, Sec. 504.002. General Provisions.

(a) Unless expressly provided by this chapter or by department rule:

(1) except for license plates specified as exempt, the fee for issuance of a license plate, including replacement plates, is in addition to each other fee that is paid for at the time of the registration of the motor vehicle and shall be deposited to the credit of the Texas Department of Motor Vehicles fund;

(2) if the registration period is greater than 12 months, the expiration date of a specialty license plate, symbol, tab, or other device shall be aligned with the registration period, and the specialty plate fee shall be adjusted pro rata, except that if the statutory annual fee for a specialty license plate is $5 or less, it may not be prorated;

(3) the department is the exclusive owner of the design of each license plate;

(4) if a license plate is lost, stolen, or mutilated, an application for a replacement plate must be accompanied by the fee prescribed by Section 502.060; and

(5) the department shall prepare the designs and specifications of license plates.

(b) If necessary to cover the costs of issuing license plates for golf carts under Section 551.402 or off-highway vehicles under Section 551A.052, the department may charge an administrative fee, in an amount established by the department by rule, for the issuance of a golf cart or off-highway vehicle license plate.

Transportation Code, Sec. 504.601. General Provisions Applicable to Specialty License Plates for General Distribution.

(a) Unless expressly provided by this subchapter or department rule:

(1) the fee for issuance of a license plate under this subchapter is $30; and

(2) of each fee received under this subchapter, the department shall use $8 to defray its administrative costs in complying with this subchapter.

(b) This section does not apply to a specialty license plate marketed and sold by a private vendor at the request of the specialty license plate sponsor under Section 504.6011.

Application and Fees

Most non-qualifying specialty license plates are available for a $30 fee in addition to vehicle registration fees. God Bless America and God Bless Texas license plates are available for a $40 fee. These license plates are issued for a 12-month registration period. The fee and the *Application for Specialty License Plate* (Form VTR-999) should be submitted to the local county tax assessor-collector's office. Most specialty license plates may be ordered online at www.texas.gov.

Mailing Specialty License Plates

- If the specialty license plate is ordered at the county tax assessor-collector's office and assigned to the vehicle record, the specialty license plates will be mailed directly to the customer.
- Specialty license plates that have not been assigned to the vehicle record (for example, new internet orders); the specialty license plates will be mailed to the county tax assessor-collector's office.

Eligible Vehicles

Most specialty license plates are available on the following vehicle registration types:

- Trailer,
- Travel Trailer,
- Private Bus,
- Motorcycle,
- Passenger, and
- Truck.

To verify what license plates are available for a specific vehicle type, visit www.texas.gov.

Personalized Specialty License Plates

A Personalization Fee of $40 in addition to registration fees is charged if the specialty license plate can be personalized. Most military specialty license plates may also be personalized.

If the specialty license plate is not renewed, 60 days after the expiration, the system will purge the specialty license plate and the personalization is available for purchase.

Refunds

If the application for a personalized specialty license plate is rejected, the applicant has the option of choosing another personalization or a refund.

A refund will be issued for the $40 Personalization Fee. Of the $30 specialty license plate fee, only $8 will be refunded. The applicant must request the remaining $22 from the sponsoring agency.

Synchronizing Specialty License Plate Fees and Motor Vehicle Registration

The system allows the expiration dates of the specialty license plate and the vehicle registration to be synchronized to the furthest date out, and for the county tax assessor-collector's office to collect at least 12 months of vehicle registration. The system automatically calculates any additional fees based on a per-month prorated amount.

Texas Temporary Insignia for Specialty License Plates

A Texas Temporary Insignia for specialty license plates will print automatically when a specialty license plate is ordered and linked to a vehicle record. Special characters and the International Symbol of Access (ISA) symbol do not print on the temporary insignia. Applicants should be instructed to use their Disabled Person Parking Placard until the specialty license plate is available.

The temporary insignia is valid for 60 calendar days from date of issuance. If the original temporary insignia is lost, stolen, mutilated, or needs to be replaced for cosmetic or readability reasons, a duplicate insignia is available and valid for the same time period as the original insignia.

Specialty License Plates Reference

Current specialty license plate information is available in the system online at the TxDMV's web site and at www.texas.gov.

New Specialty License Plates Creation

Transportation Code, Sec. 504.801. Creation of New Specialty License Plates by the Department.

(a) The department may create new specialty license plates on its own initiative or on receipt of an application from a potential sponsor. A new specialty license plate created under this section must comply with each requirement of Section 504.702 unless the license is created by the department on its own initiative. The department may permit a specialty license plate created under this section to be personalized. The redesign of an existing specialty license plate at the request of a sponsor shall be treated like the issuance of a new specialty license plate.

(b) Any nonprofit entity may submit an application to the department to sponsor a new specialty license plate. An application may nominate a state agency to receive funds derived from the issuance of the license plates. The application may also identify uses to which those funds should be appropriated.

(c) The department shall design each new specialty license plate in consultation with the sponsor, if any, that applied for creation of that specialty license plate. The department may refuse to create a new specialty license plate if the design might be offensive to any member of the public, if the nominated state agency does not

consent to receipt of the funds derived from issuance of the license plate, if the uses identified for those funds might violate a statute or constitutional provision, or for any other reason established by rule. At the request of the sponsor, distribution of the license plate may be limited by the department.

(d) The fee for issuance of license plates created under this subchapter before November 19, 2009, is $30 unless the department sets a higher fee. This subsection does not apply to a specialty license plate marketed and sold by a private vendor at the request of the specialty license plate sponsor.

(d-1) The fee for issuance of license plates created under this subchapter on or after November 19, 2009, is the amount established under Section 504.851.

(e) For each fee collected for a license plate issued by the department under this section:

(1) $8 shall be used to reimburse the department for its administrative costs; and

(2) the remainder shall be deposited to the credit of:

(A) the specialty license plate fund, which is an account in the general revenue fund, if the sponsor nominated a state agency to receive the funds; or

(B) the Texas Department of Motor Vehicles fund if the sponsor did not nominate a state agency to receive the funds or if there is no sponsor.

(f) Subchapter D, Chapter 316, Government Code, and Section 403.095, Government Code, do not apply to fees collected under this subchapter.

(g) The department may report to the legislature at any time concerning implementation of this section. The report may include recommendations concerning the appropriations, by amount, state agency, and uses, that are necessary to implement the requests of sponsors.

(h) The department may vary the design of a license plate created under this section to accommodate or reflect its use on a motor vehicle other than a passenger car or light truck.

(i) The sponsor of a new specialty plate may not be a for-profit enterprise.

Specialty License Plates Authorized After January 1, 1999

Transportation Code, Sec. 504.702. Specialty License Plates Authorized After January 1, 1999.

(a) This section applies only to specialty license plates that are authorized to be issued by a law that takes effect on or after January 1, 1999.

(b) The department may manufacture the specialty license plates only if a request for manufacture of the license plates is filed with the department. The request must be:

(1) made in a manner prescribed by the department;

(2) filed before the fifth anniversary of the effective date of the law that authorizes the issuance of the specialty license plates; and

(3) accompanied by a deposit of $8,000.

(c) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 1296, Sec. 247(21), eff. January 1, 2012.

(d) If a request is not filed with the department before the date specified by Subsection (b)(2), the law that authorizes the issuance of the specialty license plates expires on that date.

(e) The department may issue license plates under:

(1) Section 504.614 for a particular professional sports team only if $8,000 has been deposited with the department for that sports team; or

(2) Section 504.615 for a particular institution of higher education or private college or university only if $8,000 has been deposited with the department for that institution, college, or university.

(f) Money deposited with the department under Subsection (b)(3) or (e) shall be returned by the department to the person who made the deposit after 800 sets of plates have been issued.

18.2 Personalized License Plates

General Provisions

Transportation Code, Sec. 504.101. Personalized License Plates.

The department shall issue personalized license plates, including those sold by the private vendor under a contract with the department as provided by Section 504.851.

Transportation Code, Sec. 504.102. Personalization of Specialty License Plate.

Unless expressly prohibited by this chapter or department rule, any specialty license plate issued under this chapter may be personalized. If a specialty license plate is personalized, the fee for personalization of the specialty license plate shall be added to the fee for issuance of that specialty license plate.

Criteria for Approval

For a complete list of criteria, refer to Administrative Code, Rule §217.27.

The license plate may not be:

- in conflict with the TxDMV's current or proposed regular license plate numbering system.
- indecent (defined as including a reference or connotation to a sexual act, an excretory function or material, or sexual body parts);
- vulgar (defined as curse words);
- derogatory (defined as an expression of hate directed toward people or groups that is demeaning to people or groups, or associated with an organization that advocates such expressions);
- a direct or indirect negative instruction or command directed at another individual related to the operation of a motor vehicle;

- a direct or indirect reference to gangs, illegal activities, implied threats of harm, or expressions that describe, advertise, advocate, promote, encourage, glorify, or condone violence, crime, or unlawful conduct;
- a direct or indirect reference to controlled substances or the physiological state produced by such substances, intoxicated states, or a direct or indirect reference that may express, describe, advertise, advocate, promote, encourage, or glorify such substances or states;
- a direct representation of law enforcement or other governmental entities, including any reference to a public office or position exclusive to government;
- a pattern that could be misread by law enforcement; or
- currently issued to another owner.

The license plate may contain space(s), hyphen(s), period(s), heart(s), star(s), or silhouette(s) of Texas in conjunction with the approved selection, depending on available space.

Leased Vehicle

Specialty license plates may be issued to a person with a leased vehicle if the county tax assessor-collector's office verifies a copy of the lease agreement.

Registration Period

Specialty license plates are issued for a 12-month registration period. The expiration date is determined by the month in which the application is received.

When an applicant obtains a specialty license plate, additional fees may be collected to establish a single expiration date for both the specialty license plate and the vehicle registration.

Assigning to a Vehicle

Specialty license plates are not assigned to a vehicle until the county tax assessor-collector's office links the license plate to the vehicle in the system. The license plates may be issued to any vehicle that the applicant owns or leases as long as the vehicle classification or license plate type does not prohibit assignment.

Assigning to a Vehicle Currently Registered

The title must be in the applicant's name (joint ownership is permissible), unless:

- the applicant has legal right of possession and control of the vehicle then an affidavit must be completed and attached to the application.
- the applicant has a leased vehicle, then the county tax assessor-collector's office should verify the lease agreement. If the vehicle is currently registered, the applicant must surrender their license plates and receipt to the county tax assessor-collector's office in exchange for the specialty license plates.

Local county fees and other additional fees are not collected when adjusting registration that is less than 12 months.

In the system, the expiration dates are synchronized for both the specialty license plate and the vehicle registration. This is determined by using whichever expiration period is the furthest out (either vehicle registration expiration or specialty license plate expiration).

To accomplish this single expiration, the annual specialty license plate fee or the vehicle registration may be prorated. Examples include:

- When a vehicle has registration expiration in July and the applicant obtains specialty license plates in November, the system will collect four additional months of registration fees and the expiration (registration/specialty license plate) will be November.
- When a vehicle has registration expiration in December and the applicant obtains specialty license plates in September, the system will collect three additional months of specialty license plate fees and the expiration (registration/specialty license plate) will be December.

Note: If an applicant does not want to attach the specialty license plate to a vehicle they own, the applicant may obtain the license plate without requiring the specialty license plate to be linked to a vehicle. This type of purchase is often referred to as a "wall hanger" (for example, someone who orders a specialty license plate so the personalization can be saved for later use on a vehicle).

Renewal

The TxDMV mails a registration renewal notice to vehicle owners 60 days prior to expiration (including those not linked to a vehicle). Specialty license plates that are not renewed within 60 days after expiration will be purged from the system, and become available for reuse. Owners who allow their specialty license plates to expire are required to re-apply for the specialty license plate, or obtain general issue license plates.

Transfer

Do not transfer specialty license plates between persons unless:

- the transfer is approved by the TxDMV as consistent with statutory standards, and
- the recipient files an application with the county tax assessor-collector's office and pays the full annual fee.

Transfer Owner Responsibilities

The specialty license plate owner, at a subsequent date during the registration year, may elect to transfer the license plates to another vehicle of the same classification. The specialty license plate owner must obtain a set of replacement license plates and registration sticker and pay the applicable replacement fee for the vehicle from which the specialty license plates and registration sticker is removed. The replacement license plates retain the expiration currently assigned to the vehicle.

Replacement Specialty License Plates

If specialty license plates are lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons replacement license plates may be obtained as indicated:

- The owner submits a written request to the county tax assessor-collector for replacement specialty license plates accompanied by a copy of the registration receipt.
- The county tax assessor-collector's office will:
  - order the replacement license plates through the system,
  - issue a special license plate registration insignia to the owner, and

- collect the $6 Replacement Fee and the Automation Fee.

After manufacture, the replacement license plates are mailed directly to the customer.

If TxDMV records indicate the vehicle displaying the specialty license plates is stolen, the TxDMV will not issue replacement license plates with the same pattern until the vehicle is recovered.

Note: The TxDMV will not approve the issuance of replacement license plates with the same personalized license plate number if the TxDMV's records indicate that the vehicle was reported stolen. The county tax assessor-collector's office will direct the customer to contact the TxDMV's Special Plates Unit, so the owner may select a different personalized number at no charge, with the same expiration as the stolen specialty license plates.

Replacement Registration Stickers

If a registration sticker is lost, stolen, mutilated, or needs to be replaced for cosmetic or readability reasons a replacement sticker may be issued. The county tax assessor-collector's office collects the statutory $6 fee and other applicable fees.

Penalty

Specialty license plates displayed on vehicles other than those to which issued or transferred are subject to immediate cancellation. The TxDMV considers such vehicles unregistered and subject to registration according to their classification for the entire registration year. The vehicle operator is subject to a fine.

Disabled Persons Specialty License Plate

Disabled persons have the option of having their specialty license plate manufactured with the International Symbol of Access (ISA).

Applicants must submit a completed *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214). A person with a disability who wants to purchase a specialty license plate that does not display the ISA may retain disabled parking privileges by obtaining a Disabled Parking Placard for display on the rear view mirror (Transportation Code, Sec. 681.002. Disabled Parking Placard.).

Dealer Personalized License Plates

Expiration of Dealer personalized license plates coincide with the General Distinguishing Number (GDN) certificate expiration. The TxDMV issues a registration sticker that displays the dealer's GDN instead of the last eight digits of the vehicle identification number.

When renewing Dealer Personalized license plates, the county tax assessor-collector's office must verify that the GDN is current.

Fees

Prorated fees do not apply to these license plates. Collect the full annual fee regardless of when these license plates are issued during the twelve-month period the dealer license is valid. The fee for initial applications is $85 ($45 for Dealer License Plate Fee plus $40 for Personalized License Plate Fee).

Replacement Fees

In the event the Dealer Personalized license plates are lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons the dealer can request replacement Dealer Personalized license plates through each local county tax assessor-collector's office. The fees will be collected in the RTS Additional Collections Event as follows:

- DEALER PLT- $45
- PERSONALIZED PLATE FEE- $40
- REPLACEMENT FEE- $6
- AUTOMATION FEE - $0.50

18.3 Souvenir License Plates

Transportation Code, Sec. 504.009. Souvenir License Plates.

(a) The department may issue a souvenir version of any specialty license plate for any vehicle.

(a-1) On request, the Texas Military Department, as defined by Section 437.001, Government Code, shall issue a souvenir version of the specialty license plate described by Section 504.322.

(b) The fee for a single souvenir license plate is $20. The fee shall be deposited to the credit of the Texas Department of Motor Vehicles fund unless the souvenir license plate is a replica of a specialty license plate issued under Subchapter G or I for which the fee is deposited to an account other than the Texas Department of Motor Vehicles fund, in which case:

(1) $10 of the fee for the souvenir license plate shall be deposited to the credit of the designated account; and

(2) $10 of the fee for the souvenir license plate shall be deposited to the credit of the Texas Department of Motor Vehicles fund.

(c) If a souvenir license plate issued before November 19, 2009, is personalized, the fee for the plate is $40. Of the fee:

(1) $20 shall be deposited to the credit of the Texas Department of Motor Vehicles fund;

(2) $10 shall be deposited to the credit of the designated account if the souvenir license plate is a replica of a specialty license plate issued under Subchapter G or I for which the fee is deposited to a designated account other than the Texas Department of Motor Vehicles fund; and

(3) the remainder shall be deposited to the credit of the general revenue fund.

(c-1) The fee for a souvenir license plate issued on or after November 19, 2009, is the amount established under Section 504.851(c).

(d) A souvenir license plate may not be used on a motor vehicle and is not an insignia of registration for a motor vehicle. Each souvenir license plate must be identified by the department in a way that identifies it to law enforcement officers and others as a souvenir license plate.

(e) A beneficiary of a specialty license plate issued under Subchapter G or I, as designated by the applicable section of those subchapters, may purchase the specialty license plates, in minimum amounts determined by the department, for use or resale by the beneficiary. The beneficiary shall pay the required fee per plate, less the amount of the fee that would be deposited to the credit of the designated account.

License Plate Pick Up by Non-Owner - Gift Plates

Administrative Code, Rule §217.45 states:

A person may purchase general distribution specialty license plates as a gift for another person if the purchaser submits an application for the specialty license plates that provides:

- the name and address of the person who will receive the license plates, and
- the VIN of the vehicle on which the license plates will be displayed.

Note: To be valid for use on a motor vehicle, the recipient of the license plates must file an application with the county tax assessor-collector and pay the statutorily required registration fees in the amount as provided by Transportation Code, Chapter 502.

Chapter 19

MILITARY SPECIALTY LICENSE PLATES

This chapter contains the following sections:

- ***19.1*** General Provisions
- ***19.2*** General Application Procedures
- ***19.3*** Disabled Veteran Specialty License Plates
- ***19.4*** Exemption from Parking Fees

19.1 General Provisions

Transportation Code, Sec. 504.301. Provisions Generally Applicable to Military Specialty License Plates.

(a) Unless expressly provided by this subchapter or department rule:

(1) the department shall design specialty license plates for the military; and

(2) a person is not eligible to be issued a specialty license plate under this subchapter if the person was discharged from the armed forces under conditions less than honorable.

(b) Notwithstanding any other provision of this subchapter, the department may design the wording on a specialty license plate authorized by this subchapter to enhance the legibility and reflectivity of the license plate.

(c) Section 504.702 does not apply to a specialty license plate issued under this subchapter.

19.2 General Application Procedures

Military specialty license plates are available to active duty members of the United States Armed Forces or former members who have been honorably discharged. These license plates are issued for a 12-month period.

Application and Fees

General and eligibility requirements are listed on each application.

Personalization is available for certain military specialty license plates for an additional $40 annual fee.

Note: As of November 30, 2015, existing customers of Former Prisoner of War (POW) license plates will be grandfathered and may continue to renew these license plates at no fee for the first set. Qualified veterans may only apply for the new POW Medal license plate under Transportation Code, Sec. 504.315.

The following is a listing of the applications for Military and Disabled Veteran license plates.

Table 19-1 Application Forms for Military and Disabled Veteran Specialty License Plates

License Plate Application	Number	Accepted at
Texas Guard License Plates	VTR-139	TAC Office
Military Service License Plates	VTR-420	TAC Office
Military Meritorious Service License Plates	VTR-421	TxDMV HQ
Military Recognition License Plates	VTR-422	TAC Office
Gold Star License Plates	VTR-423	TAC Office
Armed Forces, Coast Guard, Merchant Marine & Civil Air Patrol License Plates	VTR-424	TAC Office
Surviving Spouse of a Veteran License Plates	VTR-425	TAC Office
Disabled Veteran License Plates and/or Parking Placards	VTR-615	TAC Office

Title Requirements

The vehicle must be titled in the applicant's name (joint ownership with spouse is allowed). If the vehicle is titled in a name other than the applicant, the applicant must have the legal right of possession and control of the vehicle; and used for their own personal use. If the applicant has a leased vehicle, the lease agreement will be verified by the county tax assessor-collector's office.

Application

The completed application must be submitted with payment (if required) and proof of eligibility to the county tax assessor-collector's office.

Once approved, the county tax assessor-collector's office will order the specialty license plates and collect any applicable vehicle registration fee. A temporary registration insignia will be issued displaying the license plate number that will be issued.

Upon issuance of Disabled Veteran specialty license plates, the *Persons with Disabilities License Plates and Placards* (Form VTR-429) brochure must be provided to customers.

International Symbol of Access

The International Symbol of Access (ISA) may be displayed on military specialty license plates.

- To request an ISA, applicants indicate on the appropriate form and attach a completed *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214), or
- If the applicant is an eligible disabled veteran, they may complete the *Application for Disabled Veteran License Plates and/or Parking Placards* (Form VTR-615) in lieu of submitting a Form VTR-214.

Renewals

The TxDMV mails a registration renewal notice to vehicle owners of military specialty license plates 60 days prior to expiration (including those not linked to a vehicle). Military specialty license plates that are personalized and not renewed within 60 days after expiration are purged from the system and become available for reuse. Owners who allow their license plates to expire are required to re-apply for the personalized license plate, or obtain general issue license plates. Military specialty license plates that are not personalized do not purge and may continue to be renewed or registered to another vehicle.

Replacement License Plates

If license plates are lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons the owner may obtain replacement license plates from a county tax assessor-collector's office. The owner signs the replacement affidavit on the back of the VTR-500-RTS. If applying by mail the customer may also complete an *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60).

The county tax assessor-collector’s office will:

- order the replacement license plates, and
- issue the customer a temporary registration insignia.

Replacement license plates are mailed directly to the customer.

Transfers

Military specialty license plates may be transferred to another vehicle:

- The owner will surrender the license plates, registration sticker, and registration receipt of the vehicle on which the military license plates will be issued.
- For a newly-purchased vehicle, the applicant should surrender the current license plates and receipt to the county tax assessor-collector’s office at the time of title application.
- If the vehicle is titled in another name, a written statement must be submitted stating that the applicant has control or legal right of possession.
- If leased, the lease agreement should be verified by the county tax assessor-collector’s office.
- If mailed, the *Application for Transfer of Military Specialty License Plates* (Form VTR-420-UT), must be completed and submitted to the county tax assessor-collector's office at the time of title application.
- If purchased from a Texas dealer, the dealer may transfer the military specialty plates as "customer supplied" during the webDEALER transaction. The vehicle can be operated with the buyer plate receipt until the registration sticker has been received. For webDEALER transactions, the Form VTR-420-UT is not required to be submitted or uploaded.

Surviving Spouse

The surviving spouse of a person who would be eligible for a military specialty license plate may register one motor vehicle as long as the spouse remains unmarried. Proof of eligibility for the plate of the deceased spouse must be submitted with the plate application.

Surviving Spouse Disabled Veteran specialty license plates are for spouses who were married to an eligible veteran who qualified for a Disabled Veteran license plate. As with any surviving spouse, the person must remain unmarried. *Application for Surviving Spouse of a Veteran License Plates* (Form VTR-425), must be completed and the first set of license plates is $3, additional sets are free, but annual registration fees are required.

Initial Application

Send the *Application for Military Meritorious Service License Plates* (Form VTR-421) to the Special Plates Unit at TxDMV Headquarters. This form is used for the following license plates:

- Air Force Cross Medal
- Air Medal
- Air Medal with Valor
- Airman's Medal
- Army Distinguished Service Cross Medal
- Bronze Star Medal
- Bronze Star Medal with Valor
- Coast Guard Medal
- Defense Meritorious Service Medal
- Defense Superior Service Medal
- Distinguished Flying Cross Medal
- Distinguished Flying Cross Medal with Valor
- Distinguished Service Medal, Air Force
- Distinguished Service Medal, Army
- Distinguished Service Medal, Coast Guard
- Distinguished Service Medal, Department of Defense
- Distinguished Service Medal, Department of Homeland Security
- Distinguished Service Medal, Department of Transportation
- Distinguished Service Medal, Navy
- Legion of Merit Medal
- Meritorious Service Medal
- Navy and Marine Corps Medal
- Navy Cross Medal
- Prisoner of War Medal
- Silver Star Medal
- Soldier's Medal

- Surviving Spouse

County tax assessor-collector's offices should process renewals of these military license plates through the system.

Disabled Veterans may obtain DV license plates for each qualifying motor vehicle (car, truck with gross vehicle weight of 18,000 lbs. or less, or motorcycle), and may receive one disabled placard for each set of DV license plates. Only **first set** DV license plates ($3) **without** the ISA may be issued to a vehicle with a gross weight greater than 18,000 lbs.

19.3 Disabled Veteran Specialty License Plates

Veterans with Disabilities

Transportation Code, Sec. 504.202. Veterans with Disabilities.

(a) A person entitled to specialty license plates under this section may register, for the person's own use, one vehicle without payment of any fee paid for or at the time of registration except the fee for the license plates. Registration under this section is valid for one year.

(b) A veteran of the United States armed forces is entitled to register, for the person's own use, motor vehicles under this section if:

(1) the person has suffered, as a result of military service:

(A) at least a 50 percent service-connected disability; or

(B) a 40 percent service-connected disability because of the amputation of a lower extremity;

(2) the person receives compensation from the United States because of the disability; and

(3) the motor vehicle:

(A) is owned by the person; and

(B) has a gross vehicle weight of 18,000 pounds or less or is a motor home.

(b-1) A person described by Subsection (b) who is eligible to receive license plates under Section 504.201 may elect to receive license plates under this section that include the symbol described by Section 504.201(f). The initial application for license plates under this subsection must be accompanied by:

(1) the written statement required by Section 504.201(d), unless the applicant is an organization described by Subsection (b-2); and

(2) any other information required for an application under this section.

(b-2) An organization that registers a motor vehicle under Subsection (c) may elect to receive license plates under Subsection (b-1) if the vehicle regularly transports veterans who are eligible to receive license plates under Subsection (b-1). The department shall adopt rules prescribing satisfactory proof of eligibility under this subsection.

(c) An organization may register a motor vehicle under this section if:

(1) the vehicle is used exclusively to transport veterans of the United States armed forces who have suffered, as a result of military service, a service-connected disability; and

(2) the veterans are not charged for the transportation.

(d) A statement by the veterans county service officer of the county in which a vehicle described by Subsection (c) is registered or by the Department of Veterans Affairs that a vehicle is used exclusively to transport veterans with disabilities without charge is satisfactory proof of eligibility for an organization.

(e) Other than license plates issued under Subsection (h), license plates issued under this section must include:

(1) the letters "DV" on the plate if the plate is issued for a vehicle other than a motorcycle; and

(2) the words "Disabled Veteran" and "U.S. Armed Forces" at the bottom of each license plate.

(e-1) Other than license plates issued under Subsection (h), license plates issued under this section may include, on request:

(1) the emblem of the veteran's branch of service; or

(2) one emblem from another license plate to which the person is entitled under Section 504.307, 504.309, 504.310(b), 504.311, 504.312, 504.313, 504.3135, 504.314, 504.315, 504.316, 504.3161, 504.318, 504.319, 504.320, 504.323, 504.325, 504.327, 504.328, 504.330, 504.331, 504.332, 504.333, 504.334, 504.335, 504.336, 504.337, 504.338, 504.339, or 504.340.

(f) The fee for the first set of license plates is $3. There is no fee for each additional set of license plates.

(g) A person who receives license plates under Subsection (b-1) may receive a disabled parking placard under Section 681.004 for each set of license plates.

(h) A person entitled to license plates under this section may elect to receive license plates issued under Chapter 502 under the same conditions for the issuance of license plates under this section.

(i) A license plate with the letters "DV" may be personalized with up to four characters.

(j) A person entitled to license plates under this section may instead use, for a vehicle that meets the requirements of Section 504.501 or 504.502, disabled veteran license plates issued by the state that:

(1) are embossed with an alphanumeric pattern;

(2) are of a plate design that was issued in the same year as the model year of the vehicle;

(3) are approved for use by the department; and

(4) include the symbol described by Section 504.201(f), if the person satisfies the requirements for the issuance of license plates under Subsection (b-1) and elects to include the symbol on the plates.

(k) A reference in law to license plates issued under Subsection (b-1) includes disabled veteran license plates described by Subsection (j)(4).

Disabled Veteran Eligibility

Texas residents, who are veterans of the U.S. Armed Forces, and who, because of military service, receive compensation from the U.S. government for a service-connected disability of at least 50% or at least 40% due to the amputation of a lower extremity are entitled to receive Disabled Veteran (DV) license plates. The fee for the first set of DV license plates is $3 (no annual registration fee required). Additional sets may be obtained for the annual registration fee and other applicable fees.

Texas residents, who are veterans of the U.S. Armed Forces, and meet the eligibility requirements for DV ISA license plates may register a vehicle with a gross vehicle weight of 18,000 lbs. or less. The fee for the first set of DV ISA license plates is $3 (no annual registration fee required). An additional set may be obtained for the annual registration fee and other applicable fees. The application for DV ISA license plates must be accompanied by a written statement from a physician who is licensed to practice medicine in this state or in a state adjacent to this state or who is authorized by applicable law to practice medicine in a hospital or other health facility of the U.S. Department of Veterans Affairs. For the purposes of obtaining a DV ISA license plate, a written statement includes a properly completed *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214), *Application for Disabled Veteran License Plates and/or Parking Placards* (Form VTR-615) or any formal document which includes the disabled person's name, indication that the disability is permanent, and the licensed medical professional's title (as described above) and signature. If the applicant has a mobility problem caused by a disorder of the foot, the written statement may be issued by a person licensed to practice podiatry in this state or a state adjacent to this state.

Note: DV ISA license plates are not required to have a notarized written statement or written prescription. Although not required, a notarized written statement or original written or electronic prescription is acceptable for issuance of DV license plates with the ISA.

A veteran who qualifies for DV license plates may register a vehicle with a gross vehicle weight of 18,000 lbs. or less. Only **first set** DV license plates ($3) **without** the ISA may be issued to a motor home with a gross vehicle weight greater than 18,000 lbs.

Vehicles must be used for the veteran's own personal use and:

- Titled in Texas, or issued an RPO in the name of the veteran (joint ownership is allowed).
- If titled in a name other than that of the veteran, the veteran must have the legal right of possession and control of the vehicle; and it must operate for the veteran's own personal use.

If the veteran has a leased vehicle, the county tax assessor-collector's office will verify the lease agreement.

Disabled Veteran License Plates

The words "Disabled Veteran U.S. Armed Forces" appear at the bottom of each DV military license plate.

Other options for a disabled veteran in lieu of the standard or military DV license plate include:

- A maximum of two sets of Disabled Veteran (DV) license plates that include the ISA on the license plate in lieu of standard DV license plates. The fee for the first set is $3. The applicant must surrender their current $3 set of DV license plates, if applicable.
- One set of general issue license plates for the $3 fee in lieu of DV license plates; the county tax assessor-collector's office must contact the Special Plates Unit for the license plates to be issued. The applicant must surrender their current $3 set of DV license plates, if applicable.
- Previously issued embossed DV license plates if the vehicle is at least 25 years old. Previously issued embossed DV license plates, as with any previously issued license plates approved for use on a qualifying vehicle, must be embossed with an alphanumeric pattern, issued in the same year as the model year of the vehicle and must include the ISA on a license plate if the customer elects to include the ISA. Refer to Chapter 21, Use of Previously Issued License Plates, if you have additional questions on approval of previously issued license plates for use on vehicles at least 25 years old.

For each set of DV ISA license plates issued, the applicant may also obtain a disabled parking placard. A maximum of two DV ISA license plates and two placards can be obtained. The *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214) may be used in conjunction with the *Application for Disabled Veteran License Plates and/or Parking Placards* (Form VTR-615) to apply for the DV ISA license plate.

Disabled Veteran Organizations

License plates may be issued to an eligible organization that registers a motor vehicle used exclusively for the transportation, without charge, of disabled veterans to apply for DV license plates that include the ISA. A written statement is not required if the applicant is an organization and the vehicle displaying the DV ISA license plates is used exclusively for the transportation, without charge, of disabled veterans.

A qualified organization may register one motor vehicle with Disabled Veteran license plates, provided the vehicle weighs 18,000 lbs. or less. First set DV license plates at $3, without the ISA may be issued to a motor home with a gross vehicle weight greater than 18,000 lbs. If a citation is given for a vehicle displaying Disabled Veteran license plates being used for purposes other than to transport disabled veterans, full registration fees must be paid and a penalty equal to 20% of the registration fee must be collected.

Parking Privileges

Transportation Code, Sec. 681.008. Parking Privileges: Certain Veterans and Military Award Recipients.

(a) A vehicle may be parked for an unlimited period in a parking space or area that is designated specifically for persons with physical disabilities if:

(1) the vehicle:

(A) displays special license plates issued under Section 504.202(b-1) or 504.2025(d); and

(B) is being operated by or for the transportation of the person whom the plates were issued; or

(2) the vehicle displays license plates issued by another state of the United States that indicate on the face of the license plates that the owner or operator of the vehicle is a disabled veteran of the United States armed forces.

(a-1) A vehicle described by Subsection (a) may be parked for an unlimited period in a parking space or area that is designated specifically for person with physical disabilities on the property of an institution of higher education, as defined by Section 61.003, Education Code, regardless of whether a permit is generally required for the use of the space or area. An institution of higher education may require a vehicle described by Subsection (a) to display a parking permit issued by the institution specifically for the purpose of implementing this subsection but may not charge a fee for the permit. This subsection does not entitle a person to park a vehicle described by Subsection (a) in a parking space or area that has not been designated specifically for persons with physical disabilities on the property of the institution if the vehicle has not been granted or assigned a parking permit required by the institution.

(a-2) Subsection (a-1) does not apply to a parking space or area located in:

(1) a controlled access parking facility if at least 50 percent of the number of parking spaces or areas designated specifically for persons with physical disabilities on the property of the institution of higher education are located outside a controlled access parking facility;

(2) an area temporarily designated for special event parking; or

(3) an area where parking is temporarily prohibited for health or safety concerns.

(b) A vehicle on which license plates described by Subsection (a)(2) or issued under Section 504.202, 504.2025, 504.308, 504.310, 504.315, 504.316, or 504.319 are displayed is exempt from the payment of a parking fee collected through a parking meter charged by a governmental authority other than a branch of the federal government, when being operated by or for the transportation of:

(1) the person who registered the vehicle under Section 504.202(a), 504.2025(b), 504.308, 504.310, 504.315, 504.316, or 504.319;

(2) a person described in Section 504.202(b) or 504.2025(c) if the vehicle is registered under that subsection; or

(3) the owner or operator of a vehicle displaying license plates described by Subsection (a)(2).

(c) This section does not permit a vehicle to be parked at a time when or a place where parking is prohibited.

(d) A governmental unit may provide by ordinance or order that the exemption provided by Subsection (b) also applies to payment of a fee or penalty imposed by the governmental unit for parking in a parking garage or lot or in a space with a limitation on the length of time for parking.

19.4 Exemption from Parking Fees

Owners of vehicles displaying certain military license plates, as specified in Transportation Code, Sec. 681.008, may be exempt from the payment of parking fees. This includes a fee collected through a parking meter, charged by a governmental authority other than a branch of the U.S. government. Vehicles parking in a parking garage or lot may only be parked for the length of time designated and cannot park where parking is prohibited. These vehicles are only exempt from the parking fees if they are being operated by or for the transportation of the person who registered the vehicle with the above mentioned license plates.

Vehicles with Disabled Veteran ISA license plates may be parked for an unlimited period in a parking space or area that is designated specifically for persons with disabilities on the property of an institution of higher education regardless of whether a permit is generally required for the use of the space or area. For more information about campus parking privileges, contact the institution of higher education.

Chapter 20

RESTRICTED DISTRIBUTION SPECIALTY LICENSE PLATES

This chapter contains the following sections:

- ***20.1*** Restricted License Plates Quick Reference
- ***20.2*** Deaf Driver Awareness
- ***20.3*** State Officials and Judges
- ***20.4*** Star of Texas License Plates
- ***20.5*** Occupational License Plates
- ***20.6*** Organizational License Plates
- ***20.7*** Gold Star
- ***20.8*** Foreign Organization Vehicles

20.1 Restricted License Plates Quick Reference

Table 20-1 lists information on restricted specialty license plates, including their required fees, forms, and appropriate statutes.

Table 20-1 Restricted License Plates Quick Reference

Plate Name	Plate Fee	Description	Form	Personalize	Transportation Code, Section
Antarctica Service Medal	$0	Recipients of the Antarctica Service Medal	VTR-313	Yes	504.417
Deaf Driver Awareness	One-time $8	Certified deaf or hard of hearing	VTR-215	Yes	504.204
State Officials	$0	State Official (including State Legislators), U.S. Congress, County Judge	None	No (ISA allowable)	504.401 504.402 504.403 504.404 504.405
Star of Texas	$0	Star of Texas Award issued by the Governor's office or the surviving spouse of the person who was the posthumous recipient of a Star of Texas award.	VTR-101	Yes	504.416
Emergency Medical Services Personnel	$8	Emergency Medical Services Personnel may receive one set of plates	VTR-312	Yes	504.514
Professional Fire Fighters	$30	Member of International Association of Firefighters	VTR-310	Yes	504.801
Certified Fire Fighters (former Volunteer)	$0	Certified by State Firemen's and Fire Marshals Association of Texas	VTR-311	Yes	504.513

Plate Name	Plate Fee	Description	Form	Personalize	Transportation Code, Section
Industrial Firefighters	$30	Certified by the State Firefighters' and Fire Marshals' Association of Texas	VTR-102	Yes	504.517
Fire Protection Personnel	$0	Certified by the Texas Commission on Fire Protection	VTR-311	Yes	504.513
Peace Officer	$20	Wounded in the line of duty as a peace officer, or surviving spouse, parent, brother, sister or adult child of a person killed on duty	VTR-406	Yes	504.511
Peace Officer Purple Heart	$3/$0	Must be a Peace Officer and a recipient of the Peace Officer Purple Heart award or the surviving spouse of the person who was the posthumous recipient of a Peace Officer Purple Heart award.	VTR-408	Yes	504.5115
Retired Peace Officer	$0	A person who was formally employed as a peace officer, as defined by Section 1.07, Penal Code	VTR-406	Yes	504.5111
Classroom Teacher	$10	Cassroom teachers with at least 15 years of service teaching public school students	VTR-56	Yes	504.517
Retired Classroom Teacher	$5	A person who was formerly employed as a classroom teacher, as defined by Section 5.001, Education Code; and is a retiree of the Teacher Retirement System of Texas that has at least 20 years of service teaching public school students.	VTR-56	Yes	504.518
(Mobile Amateur) Radio Operator	$0	Must be a mobile amateur radio operator who regularly operates equipment in vehicle	VTR-53	No	504.415
Texas Constables	$0	Must be certified as a constable by a county judge	VTR-426	Yes	504.406
American Legion	$30	Members of the American Legion	VTR-415	Yes	504.659

Plate Name	Plate Fee	Description	Form	Personalize	Transportation Code, Section
Gold Star	$0	Issued to the mother, father, surviving spouse or immediate family member of a person who died while serving in the U.S. Armed Forces	VTR-423	Yes	504.512
Foreign Organization Vehicles	$0	Foreign Organizations recognized by the U.S. government before January 1, 1979, but still currently without official representation in or diplomatic relations with the U.S.	VTR-62-A (contact Special Plates Unit)	No	504.4061

Note: General and eligibility requirements are listed on the applicable forms. Proof of financial responsibility (insurance) must be verified by the county tax assessor-collector's office upon initial registration or renewal.

20.2 Deaf Driver Awareness

Transportation Code, Sec. 504.204. Persons Who are Deaf or Hard of Hearing.

(a) In this section, "deaf" and "hard of hearing" have the meanings assigned by Section 81.001, Human Resources Code.

(b) The department shall design and issue specialty license plates for a motor vehicle that is regularly operated by a person who is deaf or hard of hearing. A license plate issued under this section must include an emblem indicating that the person operating the vehicle is deaf or hard of hearing.

(c) The initial application for specialty license plates under this section must be accompanied by a written statement from a physician who is licensed to practice medicine in this state or in a state adjacent to this state or who is authorized by applicable law to practice medicine in a hospital or other health facility of the Department of Veterans Affairs. The statement must certify that the person making the application is deaf or hard of hearing.

(d) The fee for a set of license plates issued under this section is $8.

Eligible Persons

Deaf Driver Awareness license plates are specifically designed to indicate to law enforcement that the driver is deaf or hard of hearing. These license plate are available to individuals who are:

- deaf; meaning the individual has a hearing impairment of such severity that they must depend on visual methods to communicate; or
- hard of hearing; meaning the individual relies on residual hearing; possibly depending on visual methods to communicate.

Application

To apply for these license plates, the applicant must submit the completed *Application for Deaf Driver Awareness License Plate* (Form VTR-215). This includes the disability statement that must be completed by a Licensed Medical Professional, certifying the applicant is deaf or hard of hearing.

A separate application must be completed for more than two vehicles. There is a one-time specialty license plate fee of $8. Additional fees and registration fees may apply.

The vehicle must be titled and registered in the applicant's name or joint ownership. If the vehicle is titled and registered in another person's name, the applicant must provide a statement that they have legal right of possession and control of the vehicle. If the vehicle is leased, the county tax assessor-collector's office will verify the lease agreement. The vehicle must be for personal use only.

20.3 State Officials and Judges

This section provides general procedures for State Official and Judge license plates, referred to in this chapter as State Official license plates.

Transportation Code, Sec. 504.400. Fees for Certain Restricted Plates.

The department shall issue, without charge, not more than three sets of specialty license plates under this Subchapter.

Transportation Code, Sec. 504.401. State Officials.

(a) The department shall issue specialty license plates to a state official.

(b) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 1296, Sec. 247(11), eff. January 1, 2012.

(c) The registration remains valid until December 31 of each year.

(d) In this section, "state official" means:

(1) a member of the legislature;

(2) the governor;

(3) the lieutenant governor;

(4) a justice of the supreme court;

(5) a judge of the court of criminal appeals;

(6) the attorney general;

(7) the commissioner of the General Land Office;

(8) the comptroller;

(9) a member of the Railroad Commission of Texas;

(10) the commissioner of agriculture;

(11) the secretary of state; or

(12) a member of the State Board of Education.

Transportation Code, Sec. 504.402. Members of Congress.

(a) The department shall issue specialty license plates to members of congress, which must include the words "U.S. Congress."

(b) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 1296, Sec. 247(12), eff. January 1, 2012.

(c) The license plates remain valid until December 31 of each year.

Transportation Code, Sec. 504.403. State and Federal Judges.

(a) The department shall issue specialty license plates for a current or visiting state or federal judge. The license plates must include the words "State Judge" or "U.S. Judge," as appropriate.

(b) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 1290, Sec. 44(a) (4), eff. September 1, 2011.

(c) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 1290, Sec. 44(a) (4), eff. September 1, 2011.

(d) In this section:

(1) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 1290, Sec. 44(a) (4), eff. September 1, 2011.

(2) "State judge" means:

(A) a justice of the supreme court;

(B) a judge of the court of criminal appeals;

(C) a judge of a court of appeals of this state;

(D) a district court judge;

(E) a presiding judge of an administrative judicial district; or

(F) a statutory county court judge.

Transportation Code, Sec. 504.404. Federal Administrative Law Judges.

(a) The department shall issue specialty license plates to current federal administrative law judges that bear the words "U.S. A. L. Judge."

(b) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 1290, Sec. 44(a)(4), eff. September 1, 2011.

Transportation Code, Sec. 504.405. County Judges.

(a) The department shall issue specialty license plates for current county judges of this state that bear the words "County Judge."

(b) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 1296, Sec. 247(15), eff. January 1, 2011.

(c) In this section, "county judge" means the judge of the county court established by Section 15, Article V, Texas Constitution.

Eligible Persons

State Official (SO), U.S. Congress, State/County Judge, and U.S. Judge license plates are available to members of the legislature. This includes certain other State Officials in the Capitol complex and Judges. The registration for SO license plates expires annually on December 31. Beginning in December 2011, registration stickers were issued in lieu of new license plates being issued each year. SO license plates must be used on vehicles the SO owns or controls.

There are two license plate options for state legislators:

- SO license plate with "SO" as the prefix, or
- SO Capitol license plate with an "H" or "S" prefix - for House or Senate members, as applicable.

State Officials may have up to three license plates; however, applicants are not allowed to mix the two different design choices for their vehicles.

Standard Registration Renewal Notice

A standard registration renewal notice for SO license plates is sent prior to expiration. State Officials may renew their vehicles:

- at a county tax assessor-collector's office subcontractor where available (sometimes found in grocery stores),
- online at www.texas.gov (if applicable),
- by mail, or
- in person.

Fee

State Official license plates are issued at no charge; however, registration fees apply.

License Plates are Not Transferable

State Official (SO) license plates must be removed any time a vehicle is sold, traded-in or transferred to a different owner.

- SO license plates may be placed on a newly acquired vehicle after payment of the registration fee for the remaining portion of the registration year.
- If the SO is acquiring a currently registered vehicle, adjust the registration expiration date of the currently registered vehicle to conform to the December 31 expiration date of the SO registration period.

Replacement

If a State Official license plate is lost, stolen, mutilated, or needs to be replaced for cosmetic or readability reasons the owner must contact the county tax assessor-collector's office to request a replacement set to be manufactured. The county tax assessor-collector's office will issue a Texas Temporary Insignia for specialty license plates and contact the Special Plates Unit to process the manufacturing order.

Personalized/Specialty State Official License Plates

State Official license plates cannot be personalized through the system. Contact the Special Plates Unit for requests for personalized or other specialty license plate requests.

License Plates with International Symbol of Access

State Officials are eligible for the International Symbol of Access (ISA) on one set of license plates, and must complete the *Application for Persons with Disabilities Parking Placard and/or License Plate* (Form VTR-214), so that the county tax assessor-collector's office may contact the Special Plates Unit to have the set of license plates with the ISA manufactured.

State Officials Leaving Office

If a State Official relinquishes office during the elected tenure or is not re-elected, the official must surrender the specialty license plates to the county tax assessor-collector's office and purchase a set of general issue replacement license plates.

20.4 Star of Texas License Plates

Eligible Persons

Star of Texas license plates are issued to recipients of a Star of Texas Award issued by the Governor's Office. Recipients of this award are established under Government Code, Chapter 3106, and include:

- Peace officers, firefighters, and emergency medical first responders who are seriously injured in the line of duty, or their surviving next of kin for those who were killed or sustained fatal injury in the line of duty;
- Federal law enforcement officers or special agents who are seriously injured while performing duties in this state to assist a state or local law enforcement agency, or their surviving next of kin for those who were killed or sustained fatal injury while performing these duties; and
- A private citizen who is seriously injured while aiding or attempting to aid a peace officer, firefighter, or emergency medical first responder in the performance of the duties of the officer, firefighter, or first responder, or their surviving next of kin for those who were killed or sustained fatal injuries while providing aid.
- The surviving spouse of the person who was the posthumous recipient of a Star of Texas award is entitled to this license plate.

Application

To apply for these license plates, the applicant must submit the completed *Application for the Star of Texas Award License Plate* (Form VTR-101). Proof of eligibility must be submitted with the application and includes a copy of the Star of Texas Award certificate or letter from the Governor's Office.

There is no specialty license plate fee; however, annual registration fees apply. License plates may be personalized for an additional $40 fee per year.

The vehicle must be titled and registered in the applicant's name or joint ownership. If the vehicle is titled and registered in another person's name, the applicant must provide a statement that they have legal right of possession and control of the vehicle. If the vehicle is leased, the county tax assessor-collector's office will verify the lease agreement. The vehicle must be for personal use only.

20.5 Occupational License Plates

This section contains generic procedures for the following specialty license plates:

- Emergency Medical Services (EMS),
- Professional Fire fighters,
- Certified (formerly Volunteer) Fire fighters,
- Fire Protection Personnel,
- Peace Officer,
- Radio Operator,
- Retired Peace Officer,
- Texas Constable,
- Peace Officer Purple Heart, and
- Antarctica Service Medal

Transportation Code, Sec. 504.406. Texas Constables.

The department shall issue specialty license plates for Texas constables that bear the words "Texas Constable."

Transportation Code, Sec. 504.415. Vehicles Carrying Mobile Amateur Radio Equipment.

The department shall issue specialty license plates for a person who holds an amateur radio station license issued by the Federal Communications Commission and who operates receiving and transmitting mobile amateur radio equipment. The license plates shall include the person's amateur call letters as assigned by the Federal Communications Commission. A person may register more than one vehicle equipped with mobile amateur radio equipment under this section, and the department shall issue license plates that include the same amateur call letters for each vehicle.

Transportation Code, Sec. 504.417. Antarctica Service Medal Recipients.

The department shall issue specialty license plates for recipients of the Antarctica Service Medal. License plates issued under this section must include the Antarctica Service Medal emblem and the words "Antarctica Service Medal" at the bottom of each plate.

Transportation Code, Sec. 504.511. Peace Officers Wounded or Killed in Line of Duty.

(a) The department shall issue specialty license plates for:

(1) a person wounded in the line of duty as a peace officer; or

(2) a surviving spouse, parent, brother, sister, or adult child, including an adopted child or stepchild, of a person killed in the line of duty as a peace officer.

(b) License plates issued under this section must include the words "To Protect and Serve" above an insignia depicting a yellow rose superimposed over the outline of a badge.

(c) The fee for issuance of the license plates is $20.

(d) In this section, "peace officer" has the meaning assigned by Section 1.07, Penal Code.

Transportation Code, Sec. 504.5111. Retired Peace Officer.

(a) In this section, "retired peace officer" means a person who was formerly employed as a peace officer, as defined by Section 1.07, Penal Code.

(b) The department shall design and issue specialty license plates for retired peace officers.

(c) There is no fee for the issuance of the license plates.

Transportation Code, Sec. 504.5115. Certain Purple Heart Recipients.

(a) The department shall issue specialty license plates for recipients of a Purple Heart awarded by the Department of Public Safety or another law enforcement agency in this state.

(b) The fee for issuance of one set of the license plates is $3.

(c) A person issued specialty license plates under this section shall be issued one set of the license plates without payment of the registration fee required under Chapter 502.

(d) The surviving spouse of a person who was the posthumous recipient of an award described by Subsection (a) is entitled to specialty license plates issued under this section.

Transportation Code, Sec. 504.513. Firefighters.

(a) The department shall issue specialty license plates for:

(1) volunteer firefighters certified by:

(A) the Texas Commission on Fire Protection; or

(B) the State Firemen's and Fire Marshals' Association of Texas; and

(2) fire protection personnel as that term is defined by Section 419.021, Government Code.

(b) A person may be issued not more than three sets of license plates.

Transportation Code, Sec. 504.5131. RETIRED FIREFIGHTERS.

(a) In this section, "retired firefighter" means a person who was formerly:

(1) a volunteer firefighter certified by:

(A) the Texas Commission on Fire Protection; or

(B) the State Firefighters' and Fire Marshals' Association of Texas; or

(2) fire protection personnel, as defined by Section 419.021, Government Code.

(b) The department shall design and issue specialty license plates for retired firefighters.

(c) There is no fee for the issuance of the license plates.

Transportation Code, Sec. 504.514. Emergency Medical Services Personnel.

(a) The department shall issue specialty license plates for emergency medical services personnel certified by the Department of State Health Services under Subchapter C, Chapter 773, Health and Safety Code.

(b) The fee for issuance of the license plates is $8.

(c) A person may be issued only one set of the license plates.

Transportation Code, Sec. 504.517. Industrial Firefighters.

(a) The department shall design and issue specialty license plates for industrial firefighters certified by the State Firefighters' and Fire Marshals' Association of Texas.

(b) The fee for issuance of the license plates is $30.

(c) A person may be issued not more than three sets of license plates.

Transportation Code, Sec. 504.517. Classroom Teachers.

(a) In this section, "classroom teacher" has the meaning assigned by Section 5.001, Education Code.

(b) The department shall issue specialty license plates for classroom teachers with at least 15 years of service teaching public school students. The license plates must include the words "Texas Teacher" and depict a Texas public education logo. The department shall design the license plates in consultation with the Texas Education Agency.

(c) The fee for issuance of the license plates is $10.

Transportation Code, Sec. 504.518. Retired Classroom Teachers.

(a) In this section, "retired classroom teacher" means a person who:

(1) was formerly employed as a classroom teacher, as that term is defined by Section 5.001, Education Code; and

(2) is a retiree of the Teacher Retirement System of Texas.

(b) The department shall issue specialty license plates for retired classroom teachers with at least 20 years of service teaching public school students. The license plates must include the words "Retired Texas Teacher" and depict a Texas public education logo. The department shall design the license plates in consultation with the Texas Education Agency.

(c) The fee for issuance of the license plates is $5.

Fees

Specialty license plate fees vary for these license plates; registration fees apply. See Table 20-1.

20.6 Organizational License Plates

American Legion

Transportation Code, Sec. 504.659. Members of American Legion.

(a) The department shall issue specialty license plates for members of the American Legion. The license plates shall include the words "Still Serving America" and the emblem of the American Legion. The department shall design the license plates in consultation with the American Legion.

(b) The fee for the license plates is $30.

(c) After deduction of $8 to reimburse the department for its administrative costs, the remainder of the fee for issuance of the license plates shall be deposited to the credit of the American Legion, Department of Texas account in the state treasury. Money in the account may be used only by the Texas Veterans Commission in making grants to the American Legion Endowment Fund for scholarships and youth programs sponsored by the American Legion, Department of Texas.

20.7 Gold Star

Transportation Code, Sec. 504.512. Gold Star Mother, Father, Spouse, or Family Member.

(a) The department shall issue a specialty license plate for the mother, father, or surviving spouse or an immediate family member of a person who died while serving in the United States armed forces. License plates issued under this section must include the words "Gold Star Mother," "Gold Star Father," "Gold Star Spouse," or "Gold Star Family" and a gold star. A person may not be issued more than one set of the license plates at a time.

(a-1) In this section "immediate family member" means the parent, child, sibling, adoptive parent, adoptive child, foster parent, foster child, step parent, or stepchild of a person who died while serving in the United States armed forces.

Eligible Persons

Gold Star license plates are available to eligible family members of persons who died while serving in the U.S. Armed Forces. One set may be issued per applicant. There is no specialty license plate fee but registration fees apply. Proof that the person is eligible under this section must be shown at the time of application.

Application

The vehicle must be titled in the applicant's name or joint ownership. If the vehicle is titled in another person's name, the applicant must have the legal right of possession and control of the vehicle. The applicant must complete the affidavit on the *Application for Gold Star License Plates* (Form VTR-423). If the applicant has a leased vehicle, the county tax assessor-collector's office will verify the lease agreement. The owner may transfer these license plates to another vehicle.

20.8 Foreign Organization Vehicles

Transportation Code, Sec. 504.4061. Foreign Organization Vehicles.

(a) The department shall issue specialty license plates for an instrumentality established by a foreign government recognized by the United States before January 1, 1979, that is without official representation or diplomatic relations with the United States. The license plates must include the words "Foreign Organization" and shall remain valid for seven years.

(b) A person entitled to specialty license plates under this section may register the vehicle without payment of any fee paid for or at the time of registration.

Eligible Persons

Foreign Organization license plates may be issued to Foreign Organizations recognized by the U.S. government before January 1, 1979, but still currently without official representation or diplomatic relations with the U.S.

- Foreign Organization license plates are staggered for 12 months based on the date of application or renewal and issued for a seven-year period to those vehicles owned by organizations recognized by the U.S. government.
- The applicant must be a Foreign Organization authorized by the U.S. instrumentality of a foreign government.
- A Texas title must be in the applicant's name. Joint ownership is permissible.
- If the vehicle is leased, a copy of the lease agreement must be attached to the *Application for Standard Texas Exempt License Plates* (Form VTR-62-A).
- If a lien exists on the vehicle, the applicant must file for title through the county tax assessor-collector's office with an *Application for Texas Title and/or Registration* (Form 130-U), and evidence of ownership.

Application

Foreign Organization license plates are exempt license plates with the legend "Foreign Organization" on the license plate.

Each Foreign Organization application may have as many sets of license plates as desired.

To acquire Foreign Organization license plates, an applicant must submit an *Application for Standard Texas Exempt License Plates* (Form VTR-62-A) to the Special Plates Unit.

A registration receipt and registration sticker will be issued directly to the applicant with the Foreign Organization license plates.

Replacement

If Foreign Organization license plates and/or registration sticker are lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons, the owner may obtain replacements from the Special Plates Unit. An owner may submit a completed *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60) or a letter that states the reason for the replacement. The owner must remove and surrender any license plate and/or registration sticker remaining on the applicant's vehicle with the exempt registration receipt for cancellation. Issue the Foreign Organization replacement license plates and/or registration sticker as a "no fee" replacement.

Vehicles Sold

When a vehicle is sold, the license plates, registration sticker, and receipt must be surrendered for cancellation and the registration is no longer valid.

- If a vehicle previously registered with Foreign Organization license plates is sold, the buyer must obtain registration at the time an application for title is filed.
- If the vehicle sells to another exempt agency, the purchasing agency must reapply for exempt registration.
- Do not transfer Foreign Organization license plates to a new owner.

Cancellation

If the owner of a vehicle registered with Foreign Organization license plates ceases to be an active member of a foreign government or the vehicle is disposed of, the owner must return the specialty license plates and registration sticker for cancellation.

When the owner removes the Foreign Organization license plates and registration sticker the vehicle becomes unregistered and must be registered by the owner or by the buyer if sold.

Register the vehicle for one year from the date of application under the same conditions as an unregistered new or out-of-state vehicle.

Do not issue replacement license plates for a former Foreign Organization-license plated vehicle.

Transfers

The owner may transfer the Foreign Organization license plates to a newly acquired vehicle.

Chapter 21

MISCELLANEOUS SPECIALTY LICENSE PLATES

This chapter contains the following sections:

- ***21.1*** Antique and Former Military
- ***21.2*** Classic Motor Vehicles and Travel Trailer; Custom Vehicles; Street Rods
- ***21.3*** Nonprofit Disaster Relief Organizations
- ***21.4*** Religious Organizations Trailers and Semitrailers
- ***21.5*** Personalized Dealer License Plates

21.1 Antique and Former Military

Transportation Code, Sec. 504.502. Certain Exhibition Vehicles.

(a) The department shall issue specialty license plates for a passenger car, truck, motorcycle, bus, or former military vehicle that;

(1) is at least 25 years old, if the vehicle is a passenger car, truck, motorcycle, or bus;

(2) is a collector's item;

(3) is used exclusively for exhibitions, club activities, parades, and other functions of public interest and is not used for regular transportation; and

(4) does not carry advertising.

(b) The license plates must include the words "Antique Auto," "Antique Truck," "Antique Motorcycle," "Antique Bus," or "Military Vehicle," as appropriate.

(c) A person eligible for the license plates may instead use license plates that are:

(1) embossed with an alphanumeric pattern;

(2) of a plate design that was issued by this state in the same year as the model year of the vehicle, provided that a passenger car must bear passenger car or truck license plates and a truck must bear passenger car or truck license plates; and

(3) approved for use by the department.

(c-1) The department may require attachment of a registration insignia to a license plate described by Subsection (c) in a manner that does not affect the display of information originally on the license plate.

(d) License plates issued or approved under this section expire on the fifth anniversary of the date of issuance or approval.

(e) The fee for issuance or approval of license plates under this section is:

(1) $10 for each year or portion of a year remaining in the five-year registration period if the vehicle was manufactured in 1921 or later; or

(2) $8 for each year or portion of a year remaining in the five-year registration period if the vehicle was manufactured before 1921.

(f) The department may exempt a former military vehicle from the requirement to display a license plate or registration insignia if the exemption is necessary to maintain the vehicle's accurate military markings. The department may approve an alternative registration insignia that is compatible with the vehicle's original markings.

(g) A person entitled to specialty license plates or to department approval under this section may register the vehicle without payment of any fees paid for or at the time of registration except the fee for the license plate.

(h) Notwithstanding any other provision of law, a vehicle issued license plates under Subsection (a) shall be required to attach and display only one license plate on the rear of the vehicle.

(i) In this section, "former military vehicle" means a vehicle, including a trailer, regardless of the vehicle's size, weight, or year of manufacture, that:

(1) was manufactured for use in any country's military forces;

(2) is maintained to represent its military design and markings accurately; and

(3) is not operated on continuous tracks.

(j) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 1296, Sec. 247(16), eff. January 1, 2012.

Transportation Code, Sec. 504.941. Antique Vehicles; Offense.

(a) A person who violates Section 504.502 commits an offense. An offense under this section is a misdemeanor punishable by a fine of not less than $5 or more than $200.

(b) It is an affirmative defense to prosecution under this section that at the time of the offense the vehicle was en route to or from a location for the purpose of routine maintenance of the vehicle.

Eligibility

Antique Vehicle

Antique Vehicle license plates are issued to owners of passenger cars, trucks, motorcycles or buses that are at least 25 years old. The vehicles must be assembled, complete, and have a frame, body, and motor that is at least 25 years old. The vehicles cannot display any advertising (except advertising pertinent to the vehicles original use, e.g., milk advertisement on a milk delivery truck). Only one license plate and license plate sticker are issued and displayed at the rear of the vehicle.

Former Military Vehicle

A passenger car, truck, motorcycle, or trailer, manufactured for use in any country's military forces and accurately represents its military design and markings, may be registered as a Former Military Vehicle. A Former Military Vehicle may be registered accordingly, regardless of the vehicle's size, weight, or year of manufacture. Former Military Vehicle registration restricts the use of these vehicles to exhibitions, club activities, parades, and other functions of public interest and does not allow these vehicles to be used for regular transportation.

To be used for regular transportation, Former Military Vehicles that are not designated as "Off-Highway Use Only" have the option to obtain any registration type the vehicle or owner is eligible to receive. In addition, Former Military Vehicles with the designation as "Off-Highway Use Only" may be registered for on-road use if the vehicle is a high mobility multipurpose wheeled vehicle (known as Humvee) with a GVWR < 10,000 lbs. All applicable requirements for the registration type will apply, including safety and emissions inspections, insurance, and the required fees.

Note: Vehicles equipped with tracks are not allowed to be registered for on-road use in Texas.

Exemptions and Restrictions

For exceptions to Financial Responsibility, refer to Transportation Code, Sec. 601.052. Exceptions to Financial Responsibility Requirement.

This subsection provides an exemption from mandatory liability insurance for motor vehicles 25 years old or older or former military vehicles under the following conditions:

- The vehicle is operated only for exhibitions, club activities, parades, and other functions of public interest and not for regular transportation. Vehicles displaying Antique license plates or tabs may be driven to and from a location for routine maintenance.
- The owner of the vehicle has filed a sworn affidavit (SR-2) with the DPS stating that the vehicle is a collector's item and used solely for the aforementioned purposes.

Owners of motor vehicles 25 years old or older or former military vehicles which meet the limited use restriction provisions of this legislation may take advantage of this exemption by contacting:

Texas Department of Public Safety
Safety Responsibility Bureau
5805 North Lamar Boulevard
P.O. Box 4087
Austin, Texas 78773-0001
512-424-2600

Upon receipt of the affidavit of exemption (SR-2), an authorized agent of the DPS signs, stamps, and dates the portion of the form designated "FOR DEPARTMENTAL USE ONLY." They file the original affidavit and return a copy the owner.

Under Transportation Code, Section 548.052, vehicles registered under the provisions of this act are exempt from compulsory vehicle safety inspection.

License Plate Fees

An Antique license plate or Former Military Vehicle license plate are issued for a five-year period from the date of issuance or renewal.

Determine license plate fees as follows:

- The license plate fee for the five-year period for vehicles manufactured in 1921 and subsequent years is $50 ($10 for each year).
- The license plate fee for the five-year period for vehicles manufactured in 1920 and prior years is $40 ($8 for each year).

Antique Vehicle Application

The *Application for Antique License Plate* (Form VTR-54), must be submitted directly to the county tax assessor-collector's office for approval. Proper evidence of ownership must support the application unless title has already been issued in the name of the applicant.

- If approved, the county tax assessor-collector's office issues an Antique Vehicle license plate and a registration license plate sticker. Any ownership papers previously submitted with the application will be returned to the applicant. The owner must submit proof of insurance or waiver from the DPS (SR-2), and pay the required fees.
- If title is not in the applicant's name, the owner must submit an application for title before issuance of the Antique Vehicle license plates and registration license plate sticker.

An applicant for Antique Vehicle license plates has the option of displaying a set of previously issued Texas license plates on the vehicle in lieu of TxDMV-issued Antique Vehicle license plates if the previously issued license plates are issued in the same year as the year model of the antique vehicle. The following requirements must be met before the previously issued license plates may be used on a vehicle:

- The previously issued Texas license plates must be submitted along with the Form VTR-54, to the county tax assessor-collector's office for approval. The previously issued license plate(s) must be in good condition and have the correct color scheme for that particular year.
- The county tax assessor-collector's office may approve passenger license plates for use on a passenger vehicle or a truck. Truck license plates may be approved for use on either a truck or passenger vehicle.
- If the previously issued license plates were originally issued in sets, a single license plate cannot be approved for Antique registration. The department did not issue Texas license plates for registration years 1918-22, and 1943-44. It issued registration discs or metal tabs to cover those particular years.

Use of previously issued license plates on the same model year vehicle is valid only if approved by the county tax assessor-collector's office. For example, a 1919 vehicle would be required to display 1917 license plates with a 1919 registration disc.

- Single license plates, not sets, were issued during 1945 and 1946.

- Upon approval, the county tax assessor-collector's office issues the applicant a registration sticker to place onto a specially designed slotted metal tab. The applicant bolts the slotted metal tab onto the rear license plate in a manner that does not affect the display of information originally on the license plate.

Previously issued license plates will NOT be approved if:

- the license plate's original use was restricted by statute to another vehicle type,
- the license plate is a qualifying license plate type that originally required the owner to meet one or more eligibility requirements, or
- the alphanumeric pattern of the personalized or general issue license plate is currently in use on another Texas vehicle.

Note: Vehicles titled with a REPLICA brand are not eligible for Antique license plates.

Former Military Vehicle Application

Applicants may use the serial number as assigned to the vehicle by the armed forces as the license plate number. These characters must be a minimum of two inches in height, and applied to the vehicle in a design and location that conforms to the vehicle's official military design and markings. Use the last six characters of the serial number as the license plate number. Registrants that use the approved stenciled number and/or letters will be issued a registration sticker. The owner must carry this registration sticker in the vehicle, not attached to the vehicle.

The *Application for Former Military Vehicle License Plate* (Form VTR-135), along with a photo of the vehicle must be submitted directly to the county tax assessor-collector's office for approval. Evidence of ownership must support the application, unless title has already been issued in the name of the applicant.

- If approved, issue a Former Military Vehicle license plate and/or a registration sticker. Ownership papers previously submitted with the application will be returned to the applicant. The owner must submit proof of insurance or waiver from the DPS (SR-2), and pay the required fees.
- If the title is not in the applicant's name, require an application for title before issuing a Former Military license plate and/or registration license plate sticker.
- Owners pay the applicable specialty license plate fee and the county tax assessor-collector's office issues a registration receipt. The registration receipt must be carried in the vehicle at all times.

Renewal

A registration renewal notice is mailed every five years to each Antique Vehicle or Former Military Vehicle owner. The renewal form is preprinted with the appropriate renewal fee. The registration renewal notice is submitted to the county tax assessor-collector's office with:

- the proper renewal fee
- proof of insurance or DPS waiver (SR-2)

Replacement

If the TxDMV-issued Antique or Former Military license plates and/or registration sticker are lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons, replacements may be obtained from the county tax assessor-collector's office. The county tax assessor-collector's office collects the $6 Replacement Fee and the Automation Fee.

Vehicle Sold

If the owner sells the vehicle, the owner must remove the license plates and registration license plate sticker from the vehicle prior to the sale. In such instances, the county tax assessor-collector's office registers the vehicle for one year from the date of application under the same conditions as an unregistered new or out-of-state vehicle. Under no circumstances will replacement license plates be issued for vehicles with Antique Vehicle or Former Military Vehicle license plates.

- If the buyer wants Antique license plates, they must submit their own *Application for Antique License Plate* (Form VTR-54), directly to the county tax assessor-collector's office for approval. Proper evidence of ownership must support the application unless title has already issued in the name of the applicant.
- If the buyer does not want to obtain a Former Military Vehicle license plate or Antique license plates, they may obtain registration, and pay the registration fees for a period of 12 months from the date of application.

21.2 Classic Motor Vehicles and Travel Trailer; Custom Vehicles; Street Rods

Transportation Code, Sec. 504.501. Classic Motor Vehicles and Travel Trailers; Custom Vehicles; Street Rods.

(a) The department shall issue specialty license plates for a motor vehicle that is at least 25 years old or is a custom vehicle or street rod. The license plates must include the word or words "Classic," "Custom Vehicle," or "Street Rod," or a similar designation, as appropriate.

(b) A person eligible for the license plates may instead use license plates that are:

(1) embossed with an alphanumeric pattern;

(2) of a plate design that was issued by this state in the same year as the model year of the vehicle; and

(3) approved for use by the department.

(b-1) The department may require the attachment of a registration insignia to a license plate described by Subsection (b) in a manner that does not affect the display of information originally on the license plate.

(c) There is no fee for issuance or approval of license plates under this section.

(d) Notwithstanding Chapter 547, a custom vehicle or street rod eligible to receive license plates under this section is not required to be equipped with a specific piece of equipment unless the specific piece of equipment was required by statute as a condition of sale during the year listed as the model year on the certificate of title.

(e) On initial registration of a custom vehicle or street rod, the owner must provide proof, acceptable to the department, that the custom vehicle or street rod passed a safety inspection that has been approved by the department. The department shall create a safety inspection process for inspecting custom vehicles and street rods.

(f) In this section:

(1) "Custom vehicle" means a vehicle:

(A) that is:

(i) at least 25 years old and of a model year after 1948; or

(ii) manufactured to resemble a vehicle that is at least 25 years old and of a model year after 1948; and

(B) that:

(i) has been altered from the manufacturer's original design; or

(ii) has a body constructed from materials not original to the vehicle.

(2) "Street rod" means a vehicle:

(A) that was manufactured:

(i) before 1949; or

(ii) after 1948 to resemble a vehicle manufactured before 1949; and

(B) that:

(i) has been altered from the manufacturer's original design; or

(ii) has a body constructed from materials not original to the vehicle.

Classic Application

The *Application for Classic License Plates* (Form VTR-850), must be submitted directly to the county tax assessor-collector's office along with annual registration and other applicable fees. Customers who own passenger vehicles, motorcycles, travel trailers or trucks that are 25 or more years old may apply. Vehicles displaying classic registration may be operated without limited use restrictions.

Evidence of ownership must support the application unless title has already issued in the name of the applicant.

- If approved, the county tax assessor-collector's office will order the Classic license plate and issue a Texas Temporary Insignia for specialty license plates, and registration sticker. Any documentation previously submitted with the application will be returned to the applicant. The owner must submit proof of insurance and pay the required fees.
- If the title is not in the applicant's name, the owner must submit an application for title before issuance of the Classic license plates and registration sticker.

Use of Previously Issued License Plates

An applicant for classic vehicle registration has the option of displaying a set of previously issued Texas license plates on the vehicle in lieu of TxDMV-issued Classic license plates. The previously issued license plates must be the same year as the year model of the vehicle, be in good readable condition, and have that year's correct color scheme. As of September 1, 2019, the alpha or numeric characters must be embossed.

- The county tax assessor-collector's office may approve passenger license plates for use on a passenger vehicle or a truck.
- Truck license plates may be approved for use on either a truck or a passenger vehicle.
- Classic Travel Trailers must have travel trailer license plates.
- For the years 1945 and 1946, single license plates, not sets, were issued.
- For the years 1918-1922, 1943 and 1944, the department issued registration discs or metal tabs instead of license plates. Use of these license plates are valid only if approved. Upon approval, the county tax assessor-collector's office issues the applicant a registration sticker to place onto a specially designed slotted metal tab. The applicant attaches the tab to the upper right-hand corner of the rear license plate for display.

Previously issued license plates will **not** be approved if:

- the license plate's original use was restricted by statute to another vehicle type,
- the license plate is a qualifying license plate type that originally required the owner to meet one or more eligibility requirements, or
- the alphanumeric pattern of the personalized or general issue license plate is currently in use on another Texas vehicle.
- the alphanumeric pattern of the personalized or general issue license plate is not embossed.

Renewal

Registration renewal notices are mailed annually, and registration may be renewed by paying the annual registration fee and other applicable fees.

Replacement

If Classic license plates or registration sticker are lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons replacement license plates and/or a registration sticker may be obtained from the county tax assessor-collector's office. The county tax assessor-collector's office may be required to issue a Texas Temporary Insignia for specialty license plates if the replacement Classic license plate has to be ordered. The county tax assessor-collector's office collects the $6 Replacement Fee and the Automation Fee.

Vehicle Sold

If the owner sells the vehicle, the owner must remove the license plates and registration sticker from the vehicle prior to the sale. The vehicle registration stays with the vehicle.

If the buyer obtains previously issued Texas license plates for the vehicle, a new *Application for Classic License Plates* (Form VTR-850), must be submitted for approval to the county tax assessor-collector's office, along with the application for title in the new owner's name.

Custom Vehicle and Street Rod

Application

Before accepting an application for the Custom Vehicle or Street Rod specialty license plate, the following conditions must be met:

- The vehicle must pass an Automotive Service Excellence (ASE) Safety Inspection, conducted by an ASE Certified Master Technician;
- The ASE Certified Master Technician must sign the *ASE Safety Inspection and Application for Custom Vehicle or Street Rod License Plates* (Form VTR-852); and
- The ASE Certified Master Technician must provide the applicant a printout of their ASE Certification Status (A1-A8) that is current at the time of inspection.

Since the Texas title for the vehicle **must** contain a REPLICA brand and reflect the year and make of the replica, it may be necessary for the customer to apply for a corrected title before making application for the specialty license plates. If this is the case, the customer must also:

- Complete the *Application for Texas Title and/or Registration* (Form 130-U),
- Submit the original vehicle title,
- Four photos of the replica (front, rear, each side) must be submitted with the application, and
- Pay applicable title fees.

Note: The only circumstance in which a "REPLICA" brand would not be applied is when the model year is the true year of manufacturing. For more information on how to title these vehicles, refer to the Assembled and Rebuilt Vehicle Manual.

There is no fee for the specialty license plate, but the annual registration and applicable local fees must be paid. The license plate may be personalized for an additional fee of $40 per year.

Form VTR-852 is available on the TxDMV website. Once the vehicle is approved for Custom Vehicle or Street Rod license plates, the vehicle is exempt from the Texas vehicle emissions inspection (if applicable). Carry a copy of this completed application/inspection form in your vehicle.

The application should be forwarded to the Vehicle Titles and Registration Division in Austin in a separate bundle. If the application is part of the title paperwork, the application and title package should be sent to the vendor for imaging.

When applying for the license plate only, send the completed application to: Texas Department of Motor Vehicles, Vehicle Titles and Registration Division-SPB, Austin, Texas 78779-0001.

As with any specialty license plate, the customer should allow 2-3 weeks for the application to be processed and the license plates to be manufactured. If needed, a corrected title showing the REPLICA brand will also be mailed to the customer.

Renewal

Registration renewal notices are mailed annually, and registration may be renewed by paying the annual registration fee and other applicable fees.

Replacement

If Custom Vehicle or Street Rod license plates or registration sticker are lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons a new license plate or registration sticker may be obtained from the county tax assessor-collector's office. The county tax assessor-collector's office may be required to issue a Texas Temporary Insignia for specialty license plates if the replacement Custom Vehicle or Street Rod license plates have to be ordered. The county tax assessor-collector's office collects the $6 Replacement Fee and the Automation Fee.

Vehicle Sold

If the owner sells the vehicle, the owner must remove the license plates and registration sticker from the vehicle prior to the sale. The vehicle registration is invalidated. A new *ASE Safety Inspection and Application for Custom Vehicle or Street Rod License Plates* (Form VTR-852) must be submitted for approval to the county tax assessor-collector's office, along with the application for title in the new owner's name and all applicable fees must be paid.

21.3 Nonprofit Disaster Relief Organizations

Transportation Code, Sec. 502.454. Vehicles Used by Nonprofit Disaster Relief Organizations.

(a) The owner of a commercial motor vehicle, trailer, or semitrailer may apply for registration under Section 502.451 and is exempt from the payment of the registration fee that would otherwise be required by this chapter if the vehicle is:

(1) owned by a nonprofit disaster relief organization; and

(2) used by the organization exclusively for emergencies, training, equipment maintenance, transportation of disaster relief supplies, or other activities related to disaster relief.

(b) An application for registration under this section must include:

(1) a statement by the owner of the vehicle that the vehicle is used exclusively as described by Subsection (a) and has not been used for any other purpose;

(2) a statement signed by an officer of the nonprofit disaster relief organization that the vehicle has been used exclusively as described by Subsection (a) and qualifies for registration under this section; and

(3) a reasonable description of the vehicle and the emergency equipment included in the vehicle.

(c) An applicant for registration under this section must pay a fee of $5.

(d) A commercial motor vehicle registered under this section must display the name of the organization that owns it on each front door.

(e) A vehicle registered under this section must display at all times an appropriate license plate showing the vehicle's status.

(f) A vehicle registered under this section that is used other than as described by Subsection (a) may not again be registered under this section.

Commercial motor vehicles, trailers, and semitrailers owned and operated by nonprofit disaster relief organizations may obtain a Disaster Relief license plate for a fee of $5, provided such vehicles operate solely for disaster relief work used by the organization exclusively for emergencies, training, equipment maintenance, transportation of disaster relief supplies, or other activities related to disaster relief.

Application

Application for Disaster Relief Vehicle License Plate (Form VTR-76), must be completed and submitted to the county tax assessor-collector's office for approval. The tax assessor-collector retains the application, Form VTR-76 for their records.

The affidavit on the form stating that the vehicle operates exclusively for emergencies, training, equipment maintenance, transportation of disaster relief supplies, or other activities related to disaster relief and not for any other purposes must be signed by an officer of the nonprofit disaster relief organization stating that the vehicle is used solely for disaster relief. Disaster relief vehicles must be titled and are not exempt from title fees.

An organization making application for a Disaster Relief license plate must have the name of the organization displayed on each front door of the commercial motor vehicle.

Disaster Relief license plates are staggered for 12 months based on the date of application or renewal.

Replacement

If Disaster Relief license plates and/or registration sticker are lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons the owner may obtain replacement license plates from the county tax assessor-collector's office. Application for such llicense plates may be made on the *Application for Replacement License Plate(s) and/or Registration Sticker* (Form VTR-60) or by letter that states the reason for the replacement. Advise the owner to surrender the current registration receipt and any remaining license plates for cancellation. The county tax assessor-collector's office may be required to issue a Texas Temporary Insignia for specialty license plates if the replacement license plate has to be ordered. The county tax assessor-collector's office collects the $6 Replacement Fee and the Automation Fee.

Vehicle Sold

When a vehicle displaying a Disaster Relief license plate is sold to another qualified disaster relief organization, the buyer must submit a completed *Application for Disaster Relief Vehicle License Plate* (Form VTR-76) with the application for title.

The owner must surrender the Disaster Relief license plate and registration receipt for cancellation if the buyer does not qualify for the license plates. If the license plates are surrendered, the vehicle then is unregistered and the new owner must register with general issue license plates for a period of 12 months. Do not issue general issue replacement license plates.

No credit is allowed for the surrendered Disaster Relief license plate.

21.4 Religious Organizations Trailers and Semitrailers

Transportation Code, Sec. 502.455. Trailers and Semitrailers Owned by Religious Organizations.

(a) A trailer or semitrailer may be registered without payment if the trailer or semitrailer is:

(1) owned by an organization that qualifies as a religious organization under Section 11.20, Tax Code; and

(2) used primarily for the purpose of transporting property in connection with the charitable activities and functions of the organization.

(b) An application for registration under this section must include a statement signed by an officer of the religious organization stating that the trailer or semitrailer qualifies for registration under this section.

Eligibility

A trailer or semitrailer owned by an organization that qualifies as a religious organization under the Tax Code, Sec. 11.20, may qualify for registration without payment of registration fees. The trailer/semitrailer must operate primarily for transporting the property of the organization in connection with charitable activities of that organization.

Application

An officer authorized to act for the qualifying religious organization must complete the *Application for Standard Texas Exempt License Plates* (Form VTR-62-A). The application, along with the *Application for Texas Title and/or Registration* (Form 130-U), and supporting evidence of ownership must be submitted to the county tax assessor-collector's office. If approved, the county will issue Exempt license plates, which may remain with the trailer/semitrailer for as long as it is owned by the organization.

Eligible religious organizations are exempt only from payment of registration fees for the trailer or semitrailer. Qualifying as a "religious organization" under the Tax Code does not exempt an organization from payment of title fees or motor vehicle sales tax on trailers or semitrailers. Questions regarding payment of sales tax should be referred to the State Comptroller's Office.

Inscription Required

Transportation Code, Sec. 721.002, requires owners of exempt vehicles to indicate the name of the organization on the vehicle. The inscription must be letters that are at least two inches high or in an emblem that is at least 100 square inches in size and of a color sufficiently different from the body of the vehicle to be clearly legible from a distance of 100 feet.

Replacement

If Exempt license plates are lost, stolen, mutilated, or need to be replaced for cosmetic or readability reasons an officer for the organization must complete the replacement statement on the *Application for Standard Texas Exempt License Plates* (Form VTR-62-A) and submit to the county tax assessor-collector's office. The owner must remove any license plate remaining on the trailer/semitrailer and surrender it with the registration receipt previously issued for cancellation. The replacement license plates are issued as a "no fee" replacement.

Trailer/Semitrailer Sold

When a qualifying trailer/semitrailer is sold, the owner must surrender the license plates and receipt for cancellation. The trailer/semitrailer is then unregistered.

The buyer must purchase 12 months of registration through a county tax assessor-collector's office when applying for title (if required).

If the trailer/semitrailer is sold to another qualifying religious organization, the purchasing organization must reapply for exempt registration.

Exempt license plates cannot be transferred to a new owner.

21.5 Personalized Dealer License Plates

Dealers may apply for personalized dealer license plates through their county tax assessor-collector's office.

Verify that the dealer's General Distinguishing Number is current prior to initial application or renewal of a Dealer Personalized license plate.

The Motor Vehicle Division (MVD) Dealer List is posted on the TxDMV website and in RTS under the HELP menu. The list contains the names of all currently licensed dealers in Texas.

For more dealer information, contact the MVD at 512-465-3000 or 888-368-4689.

Chapter 22

INSPECTION VERIFICATION

This chapter contains the following sections:

- ***22.1*** Inspection Requirements
- ***22.2*** Inspection Verification Time Frames
- ***22.3*** Vehicle Inspection Report (VIR)
- ***22.4*** Inspection Fees
- ***22.5*** Registration Renewal Notice
- ***22.6*** Standard Exempt Registration
- ***22.7*** Out-of-State Motorists
- ***22.8*** Dealer Out-of-State Sales
- ***22.9*** 24 Months of Registration
- ***22.11*** Additional Inspection Information

22.1 Inspection Requirements

Transportation Code, Sec. 502.047. Registration-Based Enforcement of Motor Vehicle Inspection Requirements.

(a) Except as provided by Chapter 548, the department and the Department of Public Safety shall ensure compliance with motor vehicle inspection requirements under Chapter 548, through a vehicle registration-based enforcement system.

(b) A motor vehicle may not be registered if the department receives from the Texas Commission on Environmental Quality or the Department of Public Safety notification that the registered owner of the vehicle has not complied with Chapter 548.

(c) A motor vehicle may not be registered if the vehicle was denied registration under Subsection (b) unless verification is received that the registered vehicle owner is in compliance with Chapter 548.

(d) The department and the Department of Public Safety shall enter into an agreement regarding the timely submission by the Department of Public Safety of inspection compliance information to the department.

(d-1) The department, the Texas Commission of Environmental Quality, and the Department of Public Safety shall enter an agreement regarding the responsibilities for costs associated with implementing this section.

(e) A county tax assessor-collector is not liable to any person for refusing to register a motor vehicle because of the person's failure to provide verification of the person's compliance with Chapter 548.

Transportation Code, Sec. 548.256. Proof of Compliance with Inspection Requirements Required to Register Vehicle.

(a) Except as provided by Subsection (b) or (c), before a vehicle may be registered, the Texas Department of Motor Vehicles or the county assessor-collector registering the vehicle shall verify that the vehicle complies with the applicable inspection requirements under this chapter and Chapter 382, Health and Safety Code, as indicated in the department's inspection database. If the database information is not available, the owner of the vehicle may present a vehicle inspection report issued for the vehicle.

(b) The Texas Department of Motor Vehicles or a county assessor-collector may register a vehicle that is not in compliance with the applicable inspection requirements under this chapter or Chapter 382, Health and Safety Code, if the vehicle is located in another state at the time the applicant applies for registration or registration renewal under Chapter 502 and the applicant certifies that the vehicle is located in another state and the applicant will comply with the applicable inspection requirements under this chapter, Chapter 382, Health and Safety Code, and the department's administrative rules regarding inspection requirements once the vehicle is operated in this state. The Texas Department of Motor Vehicles or the county assessor-collector shall add a notation to the Texas Department of Motor Vehicles' registration database for law enforcement to verify the inspection status of the vehicle.

(c) Subsection (a) does not apply to:

(1) a vehicle that is being registered under the International Registration Plan as authorized by Section 502.091; or

(2) a token trailer that is being registered under Section 502.255, including a token trailer that is being registered for an extended period under Section 502.0023.

Transportation Code, Sec. 548.509. Collection of Fee During Registration.

The Texas Department of Motor Vehicles or a county assessor-collector that registers a motor vehicle that is subject to an inspection fee under this chapter or Section 382.202, Health and Safety Code, or a replacement fee under Section 548.510 of this code shall collect at the time of registration of the motor vehicle the portion of the inspection fee that is required to be remitted to the state. The Texas Department of Motor Vehicles or the county assessor-collector shall remit the fee to the comptroller.

Overview

All vehicles subject to a safety inspection (commercial vehicles only) must have a current and passing inspection at the time of initial registration or at time of renewal. Vehicles registered in an emissions county will be required to obtain an emissions inspection.

Certain time frames for a current and passing inspection for initial registration and renewal are enforced and will be discussed further in this chapter.

For all non-commercial vehicles the Inspection Replacement Fee must be paid at the time of registration or renewal. The state's portion of the Emissions Inspection Fee will also be paid in addition to the Inspection Replacement Fee if the vehicle is registered in an emissions county.

The state's portion of the Inspection Fee (commercial vehicles) and Emissions Inspection Fee, if applicable, must be paid at the time of registration. Inspection is verified only at initial registration or renewal.

Once registration is received, the registration sticker is proof of both current registration and inspection.

There is no change to commercial vehicles required to complete a vehicle inspection. Vehicles previously exempt from the inspection requirement will also be exempt from paying the current $7.50 Inspection Fee (commercial vehicles only) or the $7.50 Inspection Replacement Fee (non-commercial vehicles). If a customer has a question about the inspection requirement, their inspection record, or the inspection program, the customer should be directed to the DPS.

DPS and the Texas Commission on Environmental Quality (TCEQ) have created a state inspection database which all TxDMV Systems query to determine if a vehicle has a current and passing inspection (if applicable) at time of initial registration or renewal. TxDMV Systems also calculate any Inspection Fee due.

Upload of inspection records are near real time. However, there may be times when the electronic record is not immediately available.

In the event an inspection is required and there is not a record in the state inspection database or the inspection does not meet the statutory time frame, manual verification of vehicle inspection is needed. The Vehicle Inspection Report (VIR) or a printout of the inspection record from www.mytxcar.org is used to manually verify the vehicle's inspection status. The customer may provide proof of inspection on an electronic device.

Changes as of March 1, 2016

- Statutory time frames for inspection must be met at time of initial registration and renewal.
- The state's portion of the Inspection Fee (commercial vehicles only), the Inspection Replacement Fee (non-commercial vehicles) and the Emissions Inspection Fee (if applicable) will be printed on the renewal notice any time there is an inspection record found. This includes out-of-state renewal recipients.
- All TxDMV systems automatically check the state inspection database for a record of inspection that meets the statutory time frames. Manual verification of inspection is needed only when an inspection record cannot be found in the state inspection database.

22.2 Inspection Verification Time Frames

State law requires an inspection (if applicable) to occur within a certain time frame for initial registration and renewal.

Registration Renewal - 90 Days

The time frame for registration renewal is determined by the type of inspection the vehicle receives. Vehicles in counties where the emissions inspection is required or vehicles that have not received a commercial inspection must have passed an inspection no earlier than 90 days prior to the registration expiration.

Commercial vehicles with a two year inspection (i.e., new vehicles sold on Manufacturer's Certificate of Origin [MCO] by dealer) must have one full month of inspection remaining at time of renewal and one full month after the registration expiration.

Commercial Inspection

Vehicles with a commercial inspection must have an unexpired inspection before registration can be renewed and are not held to the 90 day time frame. Some commercial vehicles are not subject to inspection verification at time of renewal; however, if an inspection record is found at time of renewal, the fee will be charged (i.e., Token Trailers).

Inspection Fee Recalculation

There can be occurrences where the Inspection Fee printed on the registration renewal notice does not match the fee for the most recent inspection completed. This can happen when the customer moves from one county to another and obtains a different type of inspection. When an inspection occurs after the renewal was printed and the fee amount is different, TxDMV systems will recalculate as appropriate. RTS will present the Recalculate Inspection Fee button when a different fee amount is due in these circumstances. Counties should recalculate the Inspection Fee for walk-in customers. Counties have the option of choosing to recalculate the Inspection Fee for mail-in registration renewals when processed through RTS Point-of-Sale.

Non-Dealer Vehicle Title Transfers (Private Party)

Vehicles New to the State (on MCO or Out-of-State Title)

When a vehicle is new to Texas and being registered for the first time, the vehicle must have a current, passing (commercial and/or emissions) inspection (if applicable) with at least one month of inspection remaining when processed by the county tax assessor-collector's office. The vehicle's inspection does not have to meet the 90 day time frame for renewal, because it is obtaining registration for the first time.

For vehicles that have never been titled or registered in Texas, and that aren't subject to an inspection still require VIN verification through the selection of the appropriate checkbox on the Application for Texas Title and/or Registration Form 130-U.

Texas Titled Vehicles

If registration is being renewed on a Texas commercial vehicle during a title transfer, a vehicle must have passed an inspection no earlier than 90 days prior to the registration expiration currently on the record. An emissions inspection will also be required if the customer resides in one of the designated emissions counties.

Texas Dealer Vehicle Title Transfers

If the dealership location is in an emissions county and the dealership sells a vehicle to a customer who resides in an emissions county, an emissions inspection will be required unless exempt.

New Vehicles

New commercial vehicles sold by a Texas dealer must have one full month of inspection remaining on the date of sale.

Used Vehicles - 180 Days

Used vehicles sold by a Texas dealer must have a passing commercial and/or emissions inspection (if applicable) within 180 days preceding the date of sale. An emissions inspection will be required only if the dealer and customer are located in an emissions county.

Some used commercial vehicles may have a current two year inspection on record at the time of sale. It is not necessary to obtain a new inspection if the start of the second year of the current inspection is within 180 days preceding the date of sale. The TxDMV systems will calculate the time frame automatically.

Two year commercial inspection example:

- The date of sale is June 1, 2018.
- The 180-day inspection window begins December 3, 2017 (visit the Two Steps One Sticker website and enter the date of sale to calculate).
- The vehicle received a two-year inspection in January 2017, the start of the second year of inspection is January 1, 2018.
- January 1, 2018, is within the 180-day window and therefore the inspection is current.

Commercial Fleet Buyer (CFB) Title Transfers

For counties that process title transactions in webDEALER for CFBs, the following time frames apply based on the previous owner type selected.

- Texas Dealership - The applicable inspection should have one full month remaining on the **Date of Sale**. Ownership evidence type is always MCO.
- Out-of-State Dealership - Inspection should have one full month remaining on the **Transaction Date.** Ownership evidence type is always MCO.
- CFB Owner - Inspection should have one full month remaining on the **Transaction Date.** Ownership evidence type is always an Out-of-State title.

Token Trailers

Token trailers are statutorily exempt from inspection verification at time of registration. However, token trailers are not exempt from payment of the Inspection Fee if a record is found in the state inspection database. Token trailer renewal notices will show an Inspection Fee if a record was found when the renewal was created. TxDMV systems will charge the fee if a record is found in the inspection database at time of initial registration issuance or renewal.

If an inspection record cannot be found at time of registration, TxDMV systems will not require manual verification of inspection. The customer will not be required to provide a VIR. Token trailers with a gross vehicle weight more than 26,000 lbs. that are domiciled out-of-state will be required to pay the state's portion of the commercial Inspection Fee even if the vehicle has not passed a Texas inspection.

Table 22-1 Inspection Time Frame Quick Reference

Registration Renewal	
Renewal - One-year non-commercial emissions inspection (if applicable)	Emissions inspection date no more than 90 days prior to registration expiration on existing Texas record
Renewal - Vehicle with commercial inspection	Inspection unexpired on transaction date
Title Transfer (private party/non-dealer)	
Renewal - One-year non-commercial emissions inspection (if applicable)	Inspection date no more than 90 days prior to registration expiration on existing Texas record
Renewal - Two-year non-commercial emissions inspection (if applicable)	One full month of emissions inspection (if applicable) remaining when reg. renewed and after reg. expiration date on existing Texas record
Renewal - Vehicle with commercial inspection	Inspection must be unexpired on the title transaction date
Registration issuance	One full month of emissions inspection (if applicable) remaining on title transaction date
Vehicle new to Texas	
First issuance of Texas registration	One full month of a commercial and/or emissions inspection if applicable remaining on title transaction date
Texas record not applicable	One full month of a commercial and/or emissions inspection if applicable remaining on title transaction date
Vehicle with a commercial inspection	One full month of inspection remaining on title transaction date
Dealer Sales - Time frames begin with March 1, 2016, or later, date of sale	
Used vehicle - with one-year commercial and/or emissions inspection	A commercial and/or emissions inspection date no more than 180 days preceding the date of sale
Used vehicle - with two-year commercial and/or emissions inspection	Date of sale must be no more 180 days after the start of the second year of inspection (first day of second year of inspection is not included when counting 180 days)
New vehicle - one- or two-year commercial inspection (MCO)	One full month of commercial inspection remaining on date of sale
Commercial Fleet Buyer (CFB) - based on previous owner type	
Texas Dealership (MCO)	One full month of a commercial and/or emissions inspection (if applicable) remaining on date of sale
CFB Owner (Out-of-State Title)	One full month of a commercial and/or emissions inspection remaining on title transaction date

22.3 Vehicle Inspection Report (VIR)

Importance and Use of the VIR

The VIR is provided by the inspection station once a vehicle inspection has been completed. The original VIR shows the VIN, vehicle year, make, and model, date of inspection and expiration, the type of inspection the vehicle received, overall result (pass or fail), inspection station fees and other inspection related information.

Inspection stations electronically send inspection records to the state inspection database. Most inspection records are available real-time. When an inspection cannot be verified electronically by the TxDMV Systems, the VIR is proof of a current and passing inspection.

There are two types of VIR's. The first type is issued by inspection stations in emission counties. The other type is issued by inspection stations in non-emission (commercial safety only) counties.

When manual verification is necessary, there are four key elements on the VIR to verify:

1. Overall Result(s) (Pass or Fail) - the overall result(s) should be Pass. A failing VIR with a waiver code is acceptable.
2. VIN - the VIN on the VIR should match the VIN for the vehicle receiving registration. If the VINs do not match, compare the vehicle information on the VIR to the RTS record or ownership evidence. The vehicle make, model, and year on the VIR must match the RTS record or ownership evidence for the VIR to be proof of current inspection. If the vehicle is a trailer, the license plate on the VIR must match the plate number on the RTS record if the VINs do not match.
3. Test Date - enter this information into the system when prompted.
4. Certificate/Inspection Type - select inspection type in the system when prompted.

A customer can submit a print out from mytxcar.org in place of the VIR. A customer can also show the county a picture of a VIR or the inspection information screen from mytxcar.org on an electronic device, such as a smart phone or tablet.

If a customer needs a copy of their VIR, the best route would be for them to get one from the inspection station that performed their inspection; however, TxDPS has stated that all Texas inspection stations have the capability of printing a copy.

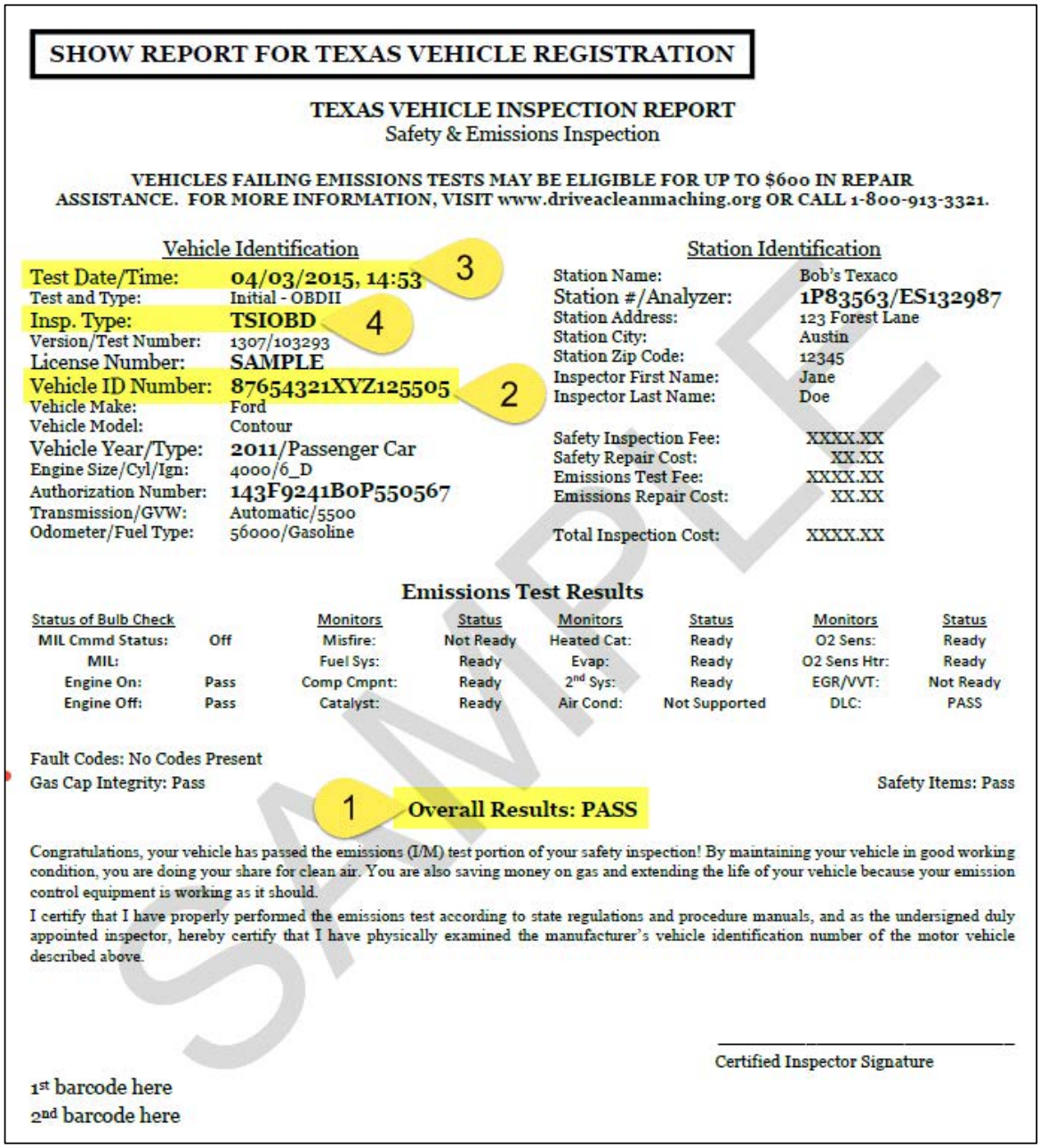
The customer should be referred to the inspection station that completed the original inspection if the individual needs to get a corrected VIR. The inspection station will have to re-inspect the vehicle. If the problem cannot be rectified at the inspection station, the customer should contact TxDPS.

If the VIR appears altered in any way, the customer should be directed to receive an updated copy from an inspection station. Handwritten corrections to the VIR are not acceptable.

The TxDMV will provide DPS and TCEQ a report of all manual inspection verifications processed in order for them to monitor and determine why there is not a record in the database.

Note: The sample VIRs below are subject to minor changes and should be used as informational only.

Figure 22-1 Emissions County VIR Sample



SHOW REPORT FOR TEXAS VEHICLE REGISTRATION

TEXAS VEHICLE INSPECTION REPORT
Safety & Emissions Inspection

VEHICLES FAILING EMISSIONS TESTS MAY BE ELIGIBLE FOR UP TO $600 IN REPAIR ASSISTANCE. FOR MORE INFORMATION, VISIT www.driveacleanmaching.org OR CALL 1-800-913-3321.

Vehicle Identification

Test Date/Time:	04/03/2015, 14:53
Test and Type:	Initial - OBDII
Insp. Type:	TSIOBD
Version/Test Number:	1307/103293
License Number:	SAMPLE
Vehicle ID Number:	87654321XYZ125505
Vehicle Make:	Ford
Vehicle Model:	Contour
Vehicle Year/Type:	2011/Passenger Car
Engine Size/Cyl/Ign:	4000/6_D
Authorization Number:	143F9241B0P550567
Transmission/GVW:	Automatic/5500
Odometer/Fuel Type:	56000/Gasoline

Station Identification

Station Name:	Bob's Texaco
Station #/Analyzer:	1P83563/ES132987
Station Address:	123 Forest Lane
Station City:	Austin
Station Zip Code:	12345
Inspector First Name:	Jane
Inspector Last Name:	Doe
Safety Inspection Fee:	XXXX.XX
Safety Repair Cost:	XX.XX
Emissions Test Fee:	XXXX.XX
Emissions Repair Cost:	XX.XX
Total Inspection Cost:	XXXX.XX

Emissions Test Results

Status of Bulb Check		Monitors	Status	Monitors	Status	Monitors	Status
MIL Cmmd Status:	Off	Misfire:	Not Ready	Heated Cat:	Ready	O2 Sens:	Ready
MIL:		Fuel Sys:	Ready	Evap:	Ready	O2 Sens Htr:	Ready
Engine On:	Pass	Comp Cmpnt:	Ready	2nd Sys:	Ready	EGR/VVT:	Not Ready
Engine Off:	Pass	Catalyst:	Ready	Air Cond:	Not Supported	DLC:	PASS

Fault Codes: No Codes Present
Gas Cap Integrity: Pass
Safety Items: Pass

Overall Results: PASS

Congratulations, your vehicle has passed the emissions (I/M) test portion of your safety inspection! By maintaining your vehicle in good working condition, you are doing your share for clean air. You are also saving money on gas and extending the life of your vehicle because your emission control equipment is working as it should.

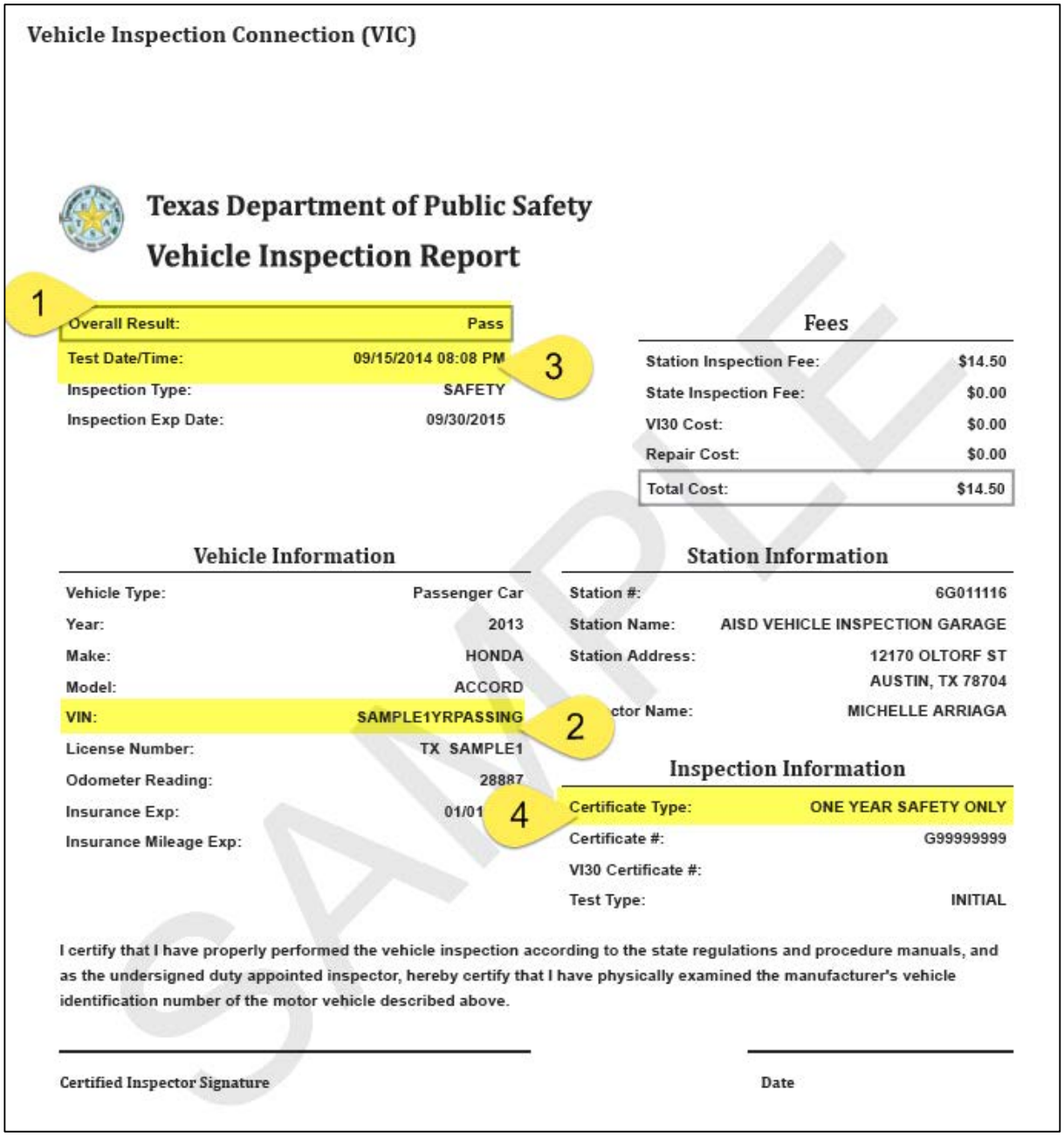
I certify that I have properly performed the emissions test according to state regulations and procedure manuals, and as the undersigned duly appointed inspector, hereby certify that I have physically examined the manufacturer's vehicle identification number of the motor vehicle described above.

Certified Inspector Signature

1st barcode here
2nd barcode here

SAMPLE

Figure 22-2 Non-Emissions (Safety Only) County Sample with new Commercial vehicle VIR from DPS



Vehicle Inspection Connection (VIC)

Texas Department of Public Safety

Vehicle Inspection Report

1

Overall Result:	Pass
Test Date/Time:	09/15/2014 08:08 PM
Inspection Type:	SAFETY
Inspection Exp Date:	09/30/2015

3

Fees

Station Inspection Fee:	$14.50
State Inspection Fee:	$0.00
VI30 Cost:	$0.00
Repair Cost:	$0.00
Total Cost:	$14.50

Vehicle Information

Vehicle Type:	Passenger Car
Year:	2013
Make:	HONDA
Model:	ACCORD
VIN:	SAMPLE1YRPASSING
License Number:	TX SAMPLE1
Odometer Reading:	28887
Insurance Exp:	01/01
Insurance Mileage Exp:	

2

4

Station Information

Station #:	6G011116
Station Name:	AISD VEHICLE INSPECTION GARAGE
Station Address:	12170 OLTORF ST AUSTIN, TX 78704
ctor Name:	MICHELLE ARRIAGA

Inspection Information

Certificate Type:	ONE YEAR SAFETY ONLY
Certificate #:	G99999999
VI30 Certificate #:	
Test Type:	INITIAL

I certify that I have properly performed the vehicle inspection according to the state regulations and procedure manuals, and as the undersigned duty appointed inspector, hereby certify that I have physically examined the manufacturer's vehicle identification number of the motor vehicle described above.

Certified Inspector Signature

Date

SAMPLE

22.4 Inspection Fees

State's Portion of the Inspection Replacement Fee and Emissions Inspection Fee

Registration fees have not changed. Effective January 1, 2025 non-commercial vehicles will pay the $7.50 (annual) or $16.75 (two-year) Inspection Replacement Fee. For vehicles located in emissions counties the customer will pay the inspection station its portion of the emissions fee and the $2.75 state's portion of the Emissions Inspection Fee will be collected in addition to the Inspection Replacement Fee at time of initial registration or renewal.

All TxDMV Systems will automatically assess the applicable Inspection Replacement Fee and will check against the state inspection database to calculate the amount due for the state's portion of the Emissions Inspection Fee. This amount will also reflect on the renewal notice.

22.5 Lists the different inspection types and the fee that would be due to the state per inspection type.

Table 22-2 State Portion of Inspection Fee by Inspection Type

INSP. TYPE	INSPECTION DESCRIPTION	FEE DUE
1YR	Inspection Replacement Fee (annual)	**$7.50**
2YR	Inspection Replacement Fee (new vehicles)	**$16.75**
CDEC	Commercial – Decal	**$22.00**
CW	Commercial - Windshield	**$22.00**
CWEO	Comm. Windshield + Emission Only	**$24.75**
CWE2	Comm. Windshield + Emission Only 2	**$30.75**
CWE3	Comm. Windshield + Emission Only 3	**$26.75**
EMONLY	Emission Only	**$2.75**
TLMC	Trailer or Motorcycle	**$7.50**

22.5 Registration Renewal Notice

Changes to Renewal Notice

When the renewal notices are created, approximately 90 days prior to expiration, TxDMV will run the file against the state inspection database to determine if there is a current and passing inspection. If a current inspection is found in the database then the current inspection fee will be charged. If a current inspection is not found in the database then the Inspection Replacement Fee amount printed on the renewal notice is due at time of renewal. If a customer resides in one of the designated emissions counties the Emissions Inspection Fee will also be due at the time of renewal as indicated on the renewal notice. When renewing, RTS charges the Inspection Replacement Fee as printed on the renewal notice. Collect the Inspection Replacement Fee as indicated by RTS. The Recalculate Inspection Fee button is presented when a different fee amount is due. Counties have the option of choosing to recalculate the Inspection Fee for mail-in renewals processed through RTS point-of-sale, using discretion if the Recalculate Inspection Fee button is presented.

Vehicle Inspection and Registration Notice

For commercial vehicles once the renewal notice file is run against the state inspection database prior to printing, if there is not an inspection record in the database a renewal notice will not be generated.

In lieu of the registration renewal notice, a *Vehicle Inspection and Registration Notice* will be sent to these customers. This letter informs the customer to complete a passing commercial inspection before renewing.

Customers who receive this notice may renew at a subcontractor or county tax assessor-collector's office. These customers may renew online if the state inspection database has a record of a current and passing commercial inspection within the required time frame.

22.6 Standard Exempt Registration

Changes for Standard Exempt Vehicles

- Only non-commercial vehicles requiring emissions inspections are impacted.
- A registration expiration month and year, based on the last date of inspection prior to March 1, 2015, was assigned at the start of the Single Sticker Program.
- The registration expiration month for a vehicle with exempt registration cannot be changed.
- A renewal notice will be printed and mailed coinciding with the emissions inspection expiration. The Inspection Replacement Fee and Emissions Inspection Fee due will be printed on the renewal notice.
- The Inspection Replacement Fee and Emissions Inspection Fee can be collected online, in person or by mail and a registration sticker will be issued which must be displayed on the vehicle.
- These agencies will not be exempt from any applicable processing fees such as the $2 online processing fee.
- The registration sticker serves as visual proof to law enforcement of a current annual inspection for these vehicles. When a vehicle is sold, the license plate and sticker should be removed.

22.7 Out-of-State Motorists

Self-Certification

If a vehicle is out-of-state at time of renewal and the commercial and/or emissions inspection is required and does not meet the required statutory time frame, the motorist is able to self-certify within all TxDMV systems the vehicle is not in Texas and not available for the commercial and/or emissions inspection. This will still allow the motorist to renew their vehicle without the commercial and/or emissions inspection either online, by mail or in person.

There is no form required for an individual to self-certify the vehicle is out-of-state; however, a remark is placed on the vehicle record for law enforcement use until such time that the vehicle passes inspection and the state portion of the Emissions Inspection Fee and/or the Inspection Fee for the commercial vehicle is paid.

Verify Inspection Remark

Once a customer certifies the vehicle is out-of-state and not available for the applicable inspection required, the "Verify Inspection" remark will be placed on the vehicle record. This remark is intended for law enforcement as notification that an inspection may be due and there is no action needed by the county tax assessor-collector's office.

Out-of-state motorists with non-commercial vehicles have three days in accordance with DPS to get their vehicle inspected with an emissions inspection (if applicable) after returning to Texas. At that time, the customer will pay the inspection station their portion of the fee and be expected to pay the county tax assessor-collector's office the state's portion of the Emissions Inspection Fee. The customer should retain the VIR as proof of the emissions inspection for law enforcement.

The remark will be removed when the vehicle returns to Texas, receives an emissions inspection and the emissions inspection is verified.

Collection of Inspection Fee, Inspection Replacement Fee, and Emissions Inspection Fee

For non-commercial vehicles, the Inspection Replacement Fee will be printed on the renewal notice and will be collected at time of renewal. The state's portion of the Inspection Fee for commercial vehicles will be printed on the renewal notice for a vehicle with a gross vehicle weight more than 26,000 lbs even if no inspection record is found and will be collected at time of renewal. The state's portion of the Emissions Inspection Fee will be printed on the renewal notice and will be collected at time of renewal (if applicable).

Commercial vehicle motorists returning to the state with a vehicle that passes the required inspection may pay the Inspection Fee and the Emissions Inspection Fee (if applicable) and have the "Verify Inspection" remark removed from the vehicle record. The fee may be paid prior to renewal. For commercial vehicles, the state's portion of the Inspection Fee for out-of-state motorists not renewing, must be collected in the RTS Status Change event using the Inspection Status option. For non-commercial vehicles the Inspection Replacement Fee for out-of-state motorists not renewing, must be collected in the RTS Status Change event using the Inspection Status option.

22.8 Dealer Out-of-State Sales

Collection of Buyer Plate and/or Inspection Fee

The Status Change event allows for collection of the Buyer's Tag and the Emissions Inspection Fee due (if applicable) when a Texas dealer sells a new or used vehicle to a customer who is not a Texas resident. The Dealer Sale - OOS selection in the Status Change event should be used when the vehicle will not be titled and registered in Texas. A Texas record does not have to be found in order to collect the fee. The dealer name, dealer general distinguishing number (GDN), and VIN are needed to perform the transaction. An Inspection Replacement Fee will not be assessed on dealer out-of-state sales.

22.9 24 Months of Registration

Dealer Registration Requirements - New Vehicles

Passenger cars and light trucks sold on a MCO by a Texas dealer must receive 24 months of initial registration for certain registration classes. This also applies to new passenger cars and light trucks purchased on a MCO by a commercial fleet buyer.

The following registration classes are eligible for 24 months of registration:

- 13 DISABLED VETERAN
- 15 FARM TRK-LESS/EQUAL 1 TON (10,000 LBS.)
- 25 PASSENGER-LESS/EQUAL 6000 LBS.
- 26 PASSENGER-MORE THAN 6000 LBS.
- 27 POW (PRISONER OF WAR)
- 29 PEARL HARBOR SURVIVOR
- 30 PURPLE HEART
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- 36 TRUCK-MORE THAN 1 TON (10,000 LBS.)
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- 152 MERITORIOUS SERVICE MEDAL
- 154 NAVY MARINE CORPS MEDAL
- 156 PRISONER OF WAR MEDAL
- 158 SOLDIER MEDAL

22.10 Inspection Refunds

Refund Process

Refunds for the state's portion of the Inspection Fee may be considered in limited circumstances.

For consideration of a refund, customers must provide the following information to the county tax assessor-collector's office or Regional Service Center:

- Signed customer request for refund
- Copy of registration or title receipt showing Inspection Fee paid
- Copy of VIR or printout from www.mytxcar.org showing inspection obtained

22.11 Additional Inspection Information

Dealer License Plates

Commercial and/or emissions inspection cannot be verified for a vehicle prior to initial issuance or at time of renewal of dealer license plates since these license plates are not assigned to a specific vehicle.

Inspection for these vehicles will be verified when the vehicle is part of a retail sale and title paperwork is processed. The state's portion of the Inspection Fee for a commercial vehicle and/or the Emissions Inspection Fee (if applicable) for the most recent inspection will be due to the county at that time.

Vehicles Exempt from Inspection Requirements

The following vehicles and/or license plate types are exempt from inspection requirements:

- Antique (all vehicle types)
- Disaster Relief (all vehicle types)
- Fertilizer
- Farm Trailer
- Golf Cart
- Log Loader
- Machinery

- Neighborhood Electric Vehicle (NEV)
- Permit (oil well unit)
- Personalized Dealer license plate (all vehicle types)
- Tractor
- Trailers (gross weight 7,500 lbs. or less)
- Travel Trailers (gross weight 7,500 lbs. or less)

Registration Codes and Classes

001	5-YR RENTAL TRAILER	049	OFCL TRUCK-LESS/EQL 1 TON	100	FLEET CITY BUS - L/E 6000
002	5-YR TOKEN TRAILER	050	OFCL PASS-MORE THAN 6000	101	FLEET CITY BUS > 6000
003	GOLF CART	051	Z-5 YR APPORTIONED TRLR	105	FLEET MOTORCYCLE
004	ANTIQUE MOTORCYCLE	052	ARMED RSRV-PASS LE 6000	106	FLEET PASSENGER-L/E 6000
005	ANTIQUE	053	ARMED RSRV-PASS GT 6000	107	FLEET PASSENGER > 6000
006	APPORTIONED	054	ARMED RSRV-TRK LE 1 TON	108	FLEET PRIVATE BUS-L/E6000
007	ATV	055	HON CONSUL-PASS LE 6000	109	FLEET PRIVATE BUS > 6000
008	CITY BUS-LESS/EQL. 6000	056	HON CONSUL-PASS GT 6000	110	FLEET TRUCK - L/E 1 TON
009	CMOH	057	HON CONSUL-TRK LE 1 TON	111	FLEET TRUCK > 1 TON
010	COMBINATION	058	TX GUARD-PASS LE 6000	112	FLEET FORESTRY
011	DISASTER RELIEF	059	TX GUARD-PASS GT 6000	113	TOKEN TRAILER FLT
012	DRIVER EDUCATION	060	TX GUARD-TRUCK LE 1 TON	114	DISTING SERVICE MEDAL
013	DISABLED VETERAN	061	COTTON TRK GT 1 TON	115	DISTING SERVICE MEDAL MC
014	FERTILIZER	062	FARM TRK TRACTOR > 1TON	116	BRONZE STAR MEDAL
015	FARM TRK-LESS/EQL 1 TON	064	ANNUAL PERMIT TRUCK	117	BRONZE STAR MEDAL MC
016	FARM TRAILER	065	FOREIGN ORGANIZATION	118	FLEET TOKEN TRLR
019	MACHINERY	066	5-YR HVY RENTAL TRAILER	119	FLEET TRAILER
020	MOPED	067	OFCL MOTORCYCLE	138	ANTIQUE TRAILER
021	MOTOR BUS	068	PEARL HARBOR SURVIVOR MC	139	OFCL TRUCK-MORETHAN 1 TON
022	MOTORCYCLE	069	DISABLED VETERAN MC	140	AIR MEDAL
023	OIL WELL PERMIT	070	SEAS AG TRK <= 1 TON	141	AIR MEDAL MC
024	PARADE	071	SEAS AG TRK > 1 TON	142	DEFENSE SUPERIOR SERV MDL
025	PASSENGER-LESS/EQL 6000	072	SEAS AG FARM TRK <= 1 TON	143	DEFENSE SUPER SERV MDL MC
026	PASSENGER-MORE THAN 6000	073	SEAS AG FARM TRK > 1 TON	144	SURVIVING SPOUSE DV
027	POW	074	SEAS AG FRM TRK TRAC >1TON	145	SURVIVING SPOUSE DV MC
028	PRIVATE BUS-LESS/EQL6000	075	SEAS AG COTTON TRK > 1TON	146	AIRMANS MEDAL
029	PEARL HARBOR SURVIVOR	076	SEAS AG COMBINATION	147	AIRMANS MEDAL MC
030	PURPLE HEART	077	DISASTER RELIEF TRL	148	COAST GUARD MEDAL
031	SOIL CONSERVATION TRUCK	079	PER DEALER	149	COAST GUARD MEDAL MC
032	SOIL CONSERVATION TRL	080	PER DEALER MOTORCYCLE	150	DEFENSE MERIT SERVMDL
033	TOKEN TRAILER	081	EXEMPT MOPED	151	DEFENSE MERIT SERV MDL MC
034	TRACTOR	082	PURPLE HEART MC	152	MERITORIOUS SERV MDL
035	TRUCK-LESS/EQL. 1 TON	083	CMOH MC	153	MERITORIOUS SERV MDL MC
036	TRUCK-MORE THAN 1 TON	084	LEGION OF VALOR MC	154	NAVY MARINE CORPS MDL
037	TRAILER	085	FLYING CROSS MEDAL RECPNT	155	NAVY MARINE CORPS MDL MC
038	TRAVEL TRAILER	086	FLY CRS MEDAL RECPNT MC	156	PRISONER OF WAR MDL
039	EXEMPT-NOT FOR TITLE ONLY	087	SILVER STAR MEDAL	157	PRISONER OF WAR MDL MC
040	CITY BUS-MORE THAN 6000	088	SILVER STAR MEDAL MC	158	SOLDIER MEDAL
041	PRIVATE BUS-MORETHAN 6000	089	LEGION OF MERIT	159	SOLDIER MEDAL MC
042	LOG LOADER	090	LEGION OF MERIT MC	160	ANTIQUE BUS
043	FARM TRK-MORE THAN 1 TON	091	ANNUAL PERMIT TRAILER	161	DIST FLY CROSS MDL VLR
044	FORESTRY	092	ROV	162	DIST FLY CROSS MDL VLR MC
045	LEGION OF VALOR	099	TITLE ONLY (NO REGIS)	163	ANTIQUE TRUCK <= 1 TON
046	TOW TRK-LESS/EQL. 1 TON	102	FLEET COMBINATION	164	ANTIQUE TRUCK >1 TON
047	TOW TRK-MORE THAN 1 TON	103	FLEET MOPED	165	UTV
048	OFCL PASS LESS/EQL 6000	104	FLEET MOTOR BUS	166	GOLF CART-PKG DELIVERY

167	SAND RAIL
168	ARMY OF OCCUP MDL
169	ARMY OF OCCUP MDL MC
170	PEACE OFCR PURPLE HRT
171	PEACE OFCR PURPLE HRT MC
172	PEACE OFCR PURPLE HRT TRL
173	COUNTY EXEMPT FLT
174	FRAC TANK
175	MVY MRN ACHV MDL
176	NVY MRN ACHV MDL MC
177	DISABLED PEACE OFCR ISA MC
178	DISABLED PEACE OFCR ISA MC

APPENDIX B

Texas Administrative Code, Rules

Chapter 217 -Vehicle Titles and Registration, Subchapter B - Motor Vehicle Registration

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§217.22 Definitions
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P&H Fee Distributions by Entity

	TxDMV	Automation	Printing & Mailing Vendor	Texas.gov Fee*	County	Deputy P&H	Deputy Registration Convenience Fee**	Deputy Title Convenience Fee	P&H TOTAL
Walk-In	$1.95	$0.50	$0.00	$0.00	$2.30	$0.00	$0.00	$0.00	**$4.75**
Mail	$1.95	$0.50	$0.00	$0.00	$2.30	$0.00	$0.00	$0.00	**$4.75**
Limited Service Deputy	$1.95	$0.50	$0.00	$0.00	$1.30	$1.00	$0.00	$0.00	**$4.75**
Full Service Deputy	$1.95	$0.50	$0.00	$0.00	$1.30	$1.00	$9.00	Up to $20	**$4.75**
Dealer Deputy	$1.95	$0.50	$0.00	$0.00	$2.30	$0.00	$0.00	Up to $10	**$4.75**
Temp Permits (RSC)	$4.25	$0.50	$0.00	$0.00	$0.00	$0.00	$0.00	$0.00	**$4.75**
Online Temp Permits	$4.25	$0.50	$0.00	Total + $0.25 * 2.25% + $0.25	$0.00	$0.00	$0.00	$0.00	**$4.75**
Temp Permits (Cty)* **	$0.00	$0.00	$0.00	$0.00	$4.75	$0.00	$0.00	$0.00	**$4.75**
Temp Permits (FSD)* **	$0.00	$0.00	$0.00	$0.00	$0.00	$4.75	$0.00	$0.00	**$4.75**
Temp Registration Plates (RSC)	$4.25	$0.50	$0.00	$0.00	$0.00	$0.00	$0.00	$0.00	**$4.75**
Temp Registration Plates (Cty)* **	$0.00	$0.00	$0.00	$0.00	$4.75	$0.00	$0.00	$0.00	**$4.75**

*Texas.gov Fee Paid by Customer. Total is the Price of the Permit + P&H

**Full Service Deputy May Charge this Fee ($9 is not a variable fee)

***Processing Entity Retains P&H

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